

Nagpur Metropolitan Area Development Plan 2012-2032



Draft Development Control Regulations

Published u/s 26 of the Maharashtra Regional and Town Planning Act, 1966.

February 2015

Nagpur Improvement Trust



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Technical assistance by the Consortium led by
Halcrow Consulting India Pvt. Ltd. (A CH2M Hill Company)

Consortium Members:



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PART I: ADMINISTRATION**1 SHORT TITLE, EXTENT AND COMMENCEMENT:**

- 1.1** These Regulations shall be called as "Development Control Regulations" for the Nagpur Metropolitan Area and shall be read in consonance with the proposals of the Development Plan 2014 of the Nagpur Metropolitan Area prepared under the rules and regulations of the Maharashtra Regional and Town Planning Act, 1966.
- 1.2** These Regulations shall apply to all building activity and development work in the Nagpur Metropolitan Area for which Nagpur Improvement Trust is the Special Planning Authority, excluding the areas where Improvement Scheme/ Town Planning Scheme is sanctioned by the Government with separate development control regulations.
- 1.3** These Regulations shall come into force from date of sanction of Development Plan 2014 of the Nagpur Metropolitan Area and these shall replace all existing building bye-laws and Development Control Rules / Regulations applicable for Nagpur Region, Standardized Development Control and Promotion Regulations for Regional Plans in Maharashtra in force framed under the Maharashtra Regional and Town Planning Act, 1966, the Maharashtra Municipal Councils, Nagar Panchayats and Industrial Townships Act, 1965, in respect of the notified Nagpur Metropolitan Area.
- 1.4** **Savings:** These Regulations will not prohibit the continuance of existing land uses and buildings that have been lawfully established and have valid development permission from NIT/ Collector, Nagpur/ any other competent planning authority prior to the enforcement of these Regulations. However, expansion or alterations of the existing uses or activities that are non-conforming as per the proposals of the Development Plan shall not be permissible.

2 DEFINITIONS**2.1 General**

- 2.1.1** In these Regulations, unless the context otherwise requires, the definitions given hereunder shall have meaning indicated against each of them.
- 2.1.2** Words and expressions which are not defined in these Regulation shall have the same meaning or sense as in the
- The Nagpur Improvement Trust Act, 1936
 - Maharashtra Regional and Town Planning (MR&TP), Act 1966;
 - Maharashtra Municipal Corporations, Municipal Councils and Maharashtra Regional and Town Planning (Amendment) Act 2011 and
 - National Building Code of India, 2005, as amended from time to time.

2.1.3 Chairman - 'Chairman' means Chairman, Nagpur Improvement Trust.**2.2 Act**

The Act shall mean - The Maharashtra Regional and Town Planning (MR&TP) Act, 1966;

2.3 Authority

Shall mean NIT or any other Authority which has been created by a statute and which, for the purpose of administering the regulations, may authorize a Technical Committee or an official having a professional skills to act on its behalf; hereinafter called the Authority.

2.4 Alteration

Any change in an existing authorized building or change from one occupancy to another, or a structural change, such as an addition to the area or height, or the removal of part of a building, or any change to the structure, such as the construction of, cutting into or removal of any wall, partition, column, beam, joist, floor, roof or other support or a change to or closing of any required means of ingress or egress or a change to the fixtures of equipment as provided under these regulations. However modification with regards to

gardening, white washing, painting, plastering, pointing, paving and retiling shall not be deemed to be alteration.

2.5 Advertising Sign

Any surface or structure with characters, letters or illustrations applied thereto and displayed in any manner whatsoever out of doors for purposes of advertising or to give information regarding or to attract the public to any place, person, public performance, article or merchandise whatsoever, and which surface or structure is attached to, forms part of or is connected with any building, or is fixed to a tree or to the ground or to any pole, screen, fence or hoarding or displayed in space.

2.6 Air-conditioning

The process of treating air so as to control simultaneously its temperature, humidity, cleanliness and distribution to meet the requirement of conditioned space.

2.7 Accessory Building

A building separate from the main building on a plot and containing one or more rooms for accessory use such as servant quarters, garage, store rooms or such areas as may be classified by the Director of Town Planning.

2.8 Accessory / Ancillary Use

Any use of the premises subordinate to the principal use and incidental to the principal use.

2.9 Amenity Space

For the purpose of these Regulations, amenity space means a statutory space kept in any layout to be used for any of the amenities such as open spaces, parks, recreational grounds, playgrounds, sports complex, gardens, convenience shopping, parking lots or multi-level car parks (not exceeding 400 cars capacity) as public car parking facility, primary and secondary schools, clinics, dispensaries, nursery, health club, club house, museum, auditorium (with a maximum seating capacity of 500 persons), exhibition hall, community hall (not exceeding 2500sqm BUA), public convenience (rest rooms), social facilities including library, sub-post office, police station, bank, fire station, telephone exchange, electric substation, bank ATM, open market, bus stop on a road with minimum ROW 15m, garbage bin, water supply installation, electricity supply installation, sewage treatment plant and includes other utilities, services and conveniences.

Additional use as amenity space shall be allowed based on local requirements with the prior permission of the Chairman, NIT in consultation with the Divisional Head of Town Planning Department, Nagpur.

2.10 Access

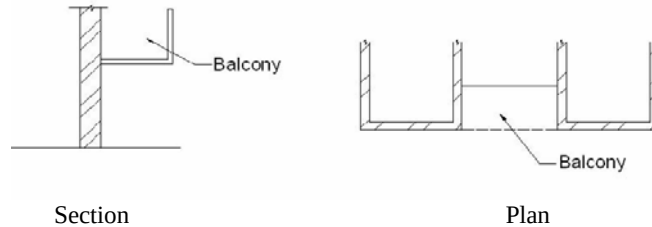
Clear approach to a plot or a building.

2.11 Architect

An Architect who is an associate or corporate member of the Indian Institute of Architects or who holds a degree or diploma which makes him eligible for such membership for such qualification listed in Schedule XIV of the Architects Act, 1972, and being duly registered with the Council of Architecture under the Act.

2.12 Balcony

A horizontal cantilever or projection shown in the figure 1 below, including parapet and handrail balustrade to serve as a passage or sitting out place with at least one side fully open, except provided with railing or parapet wall for safety. Width of the balcony shall be measured perpendicular to the building admeasured from that line to the balcony's outer most edge.

Figure 1: Balcony**2.13 Basement**

The lower storey of a building below or partly below the ground level.

2.14 Building

Any structure for whatsoever purpose and of whatsoever materials constructed and every part thereof whether used as human habitation or not and includes foundation, plinth, walls, floors, roofs, chimneys, wells, door steps, fencing, plumbing and building services, fixed -platforms, verandas, balcony; cornice or projection, part of a building or anything affixed thereto or any wall fence enclosing or intended to enclose any land or space and signs and outdoor display structures. However, tents, shamianas and the tarpaulin shelters erected for temporary and ceremonial occasions with the permission of the Authority shall not be considered as building.

2.15 Built up Area (BUA)

The area covered by a building on all floors including cantilevered portion, mezzanine floors, if any, except the areas excluded specifically under these Regulations.

2.16 Building Line

This is the line up to which the plinth of a building abutting a street or an extension of a street or on a future street may lawfully extend.

2.17 Building Height

The vertical distance measured from the average level of the ground which is around and contiguous to the building, or building site area as decided by the NIT/SPA, to the terrace of last habitable floor of the building, in the case of flat roofs; and, upto the point where the external surface of the outer wall intersects the finished surface of the pitched roofs, upto the point where the external surface of the outer wall intersects the finished surface of the sloping roof, in the case of pitched roofs; and, the mid-point between the eaves level and the ridge, in the case of gable end facing the road.

The entire stilt floor, when provided for parking purposes, and architectural features serving no other function except that of decoration shall be excluded for the purpose of measuring height.

Note: The above given exclusion for entire stilt floor as part of the Building Height calculations is only applicable for the purpose of computation of marginal open spaces.

2.18 Builder/ Developer

Means the person who is legally empowered to construct or to execute work on a plot, building or structure or where no person is empowered, the owner of the plot, building or structure.

2.19 Cabin

A non-residential enclosure constructed of non-load bearing, non-masonry partitions having area not exceeding 3.00 sqm.

2.20 Carpet Area

The net usable floor area within a building excluding that covered by the walls or any other areas specifically exempt from floor space index (FSI) computation in these regulations.

2.21 Chajja

A sloping or horizontal structural overhang usually provided over openings on external walls to provide weather protection and for purpose of architectural appearance.

2.22 Chimney

An upright shaft containing one or more flues provided for the conveyance to the outer air of any product of combustion resulting from the operation of heat producing appliance or equipment employing solid, liquid or gaseous fuel.

2.23 Combustible Material

A material, if it burns or adds heat to fire when tested for combustibility in accordance with IS - 3808 - 1966 method of test for non-combustibility of building materials, National Building Code.

2.24 Control Line

A line on either side of a highway/ road beyond the building line fixed in respect of such highway by the Highway Authority/ appropriate Authority.

2.25 Courtyard or Chowk

A space permanently open to sky enclosed fully or partially by buildings and may be at ground level or any other level within or adjacent to a building.

2.26 Canopy

A canopy means a cantilevered and unenclosed projection over a building entrance at the ground level. The purpose of a canopy is to provide protection from weather and it does not have access from floors above for use as a terrace/ balcony or sit-out.

2.27 Congested Area

Means the congested area as shown on the Development Plan including gaathan/ abadi areas of village settlements as per revenue records.

2.28 Convenience Shopping

Means shops for domestic needs, provided at a ground floor level, of area up to maximum of 10.00sqm (BUA) per shop. Activities permitted under convenience shopping shall comprise of dairy/milk booth, vegetable and fruit stalls, food grain shops (ration shops), groceries, and general provisions, confectionary store or bakery, flour mills (power up to 10 HP), tea shop, medicine and chemist shops, newspaper stall, ATM, laundry, tailors, hair dressing saloon and beauty parlour, bicycle hire and repair, florist, books and stationery, photo studio, pan shops, bangles and other articles needed by women, plumbers, electricians, electronic equipment repair shops and video libraries, public telephone booths/ photocopy and printing services, cyber cafe and other equipment based communication facilities. This list may be amended or modified from time to time by Chairman, NIT in consultation with the Divisional head of Town Planning Department, Nagpur Division.

2.29 Corridor

Means a common passage or circulation space including a common entrance hall.

2.30 Detached building

A building whose walls and roofs are independent of any other building with open space on all sides as specified

2.31 Development

Development with its grammatical variations means the carrying out of buildings, engineering, mining or other operations in, or over, or under, land or the making of any material change, in any building or land or in the use of any building or land or any material or structural change in any heritage building or its precinct and includes demolition of any existing building, structure or erection of part of such building, structure of erection and reclamation, redevelopment and layout or sub-division of any land and to develop shall be construed accordingly.

2.32 Development Plan

“Development Plan” means a plan for the development of the area prepared as per the provisions of the MRTP Act, 1966 within the jurisdiction of the relevant competent planning authority and includes revision of a development plan and proposals by the relevant competent authority for development of land within its jurisdiction.

2.33 Drain

A system or line of pipes including all fittings and equipment such as manholes, inspection chambers, traps, gullies and floor traps used for drainage of building, or a number of buildings or yards appurtenant to the buildings, within the same cartilage. Drain shall include open channel used for conveying surface water.

2.34 Dwelling Unit /Tenement

An independent housing unit with separate facilities for living, cooking and sanitary requirements.

2.35 Density

The residential density expressed in terms of the number of dwelling units per hectare.

2.36 Enclosed Staircase

A staircase separated by fire resistant walls and doors from rest of the building.

2.37 Existing Building or Use

A building, structure or its authorised existing use.

2.38 Exit

A safe passage, channel or means of egress from any building, storeys or floor area to a street or other open space.

2.38.1 Vertical Exit

A vertical exit is a means of exit used for ascending or descending between two of more levels including stairways, smoke proof towers, ramps, escalators and fire escapes.

2.38.2 Horizontal Exit

A horizontal exit is protected opening through or around a firewall or a bridge connecting two buildings.

2.38.3 Outside Exit

An outside exit is an exit from the building to a public way, to an open area leading to a public way, to an enclosed fire resistive passage to a public way.

2.39 External Wall

An outer wall of a building which is not a party wall, even though it adjoins the wall of another building. A wall abutting an interior open space, chowk or courtyard of any building shall also be considered as an external wall.

2.40 Escalator

A power driven, inclined, continuous stairway used for vertical transportation of people between floors of buildings.

2.41 Fire and or Emergency Alarm System

An arrangement of call points or detectors, sounders and other equipments for the transmission and indication of alarm signals, for testing of circuits and whenever required for the operation of auxiliary services. This device may be workable automatically or manually to alert the occupants in the event of fire or other emergency.

2.42 Fire Lift

Designated lifts specially designed for use by fire service personnel in the event of fire.

2.43 Fire Proof Door

A door or shutter fitted to a wall opening, and constructed and erected with the requirement to check the transmission of heat and fire for a specified period.

2.44 Fire Resisting Material

Material which has certain minimum degree of fire resistance expressed in hours as defined under Part 4, Clause 3.3, the National Building Code.

2.45 Fire Resistance

The time during which it fulfils its function of contributing to the fire safety of a building when subjected to prescribed conditions of heat and load or restraint. The fire resistance test of structures shall be done in accordance with "IS -3809 - 1966 Fire Resistance Test of Structures.

2.46 Fire Separation

The distance in meters measured from any other building on the site, or from other site, or from the opposite side of a street or other public space to the building.

2.47 Fire Service Inlets

A connection provided at the base of a building for pumping up water through in-built fire-fighting arrangements by fire service pumps in accordance with the recommendations of the Chief Fire Officer, NIT/ NMC/ Director of Fire Services, Maharashtra.

2.48 Fire Tower

An enclosed staircase which can only be approached from the various floors through landings or lobbies separated from both the floor areas and the staircase by fire resisting doors and open to the outer air.

2.49 Floor

The lower surface in a storey on which one normally walks in a building. The general term floor unless otherwise specifically mentioned shall not refer to a mezzanine floor.

2.50 Floor Space Index (FSI)

The quotient obtained by dividing the total covered area (plinth area) on all floors, excluding exempt areas as given in Regulation 15.4.2 by the area of the plot.

$$FSI = \frac{\text{Total covered area on all floors}}{\text{Plot area}}$$

2.51 Footing

A foundation unit structurally designed and constructed in brick work, masonry or concrete under the base of a wall or column for the purpose of distributing the load over a large area.

2.52 Foundation

That part of a structure which transmits loads and is in direct contact with the ground.

2.53 Front

The space between the boundary line of plot that abuts a means of access/ road/ street and the building line. In case of plots facing two or more means of accesses / roads / streets, the plot shall be deemed to front on all such means of access / road / streets.

2.54 Gallery

An intermediate floor or platform projecting from a wall of an auditorium or theatre or hall providing extra floor area, additional seating accommodation etc. These shall also include the structures provided for seating in stadia.

2.55 Garage, Private

A building or portion thereof designed and used for parking of privately owned motor driven or other vehicles.

2.56 Garage, Public

A building or portion thereof designed as other than a private garage, operated for gain, designed or used for repairing, servicing, hiring, selling or storing or parking motor driven or other vehicles.

2.57 Group Housing Scheme

Group housing means a building or a group of buildings constructed or to be constructed with one or more floors, each floor consisting of one or more dwelling units with common service facilities. Common service facilities include staircase, balcony, corridor, veranda, lift, etc.

2.58 Ground Level

The average level of ground in a plot (site).

2.59 Habitable Room

Habitable room or living room means, a room constructed or intended for human habitation.

2.60 Home Occupation

Means customary home occupation other than the conduct of an eating or a drinking place offering services to the general public, customarily carried out by a member of the family residing on the premises without employing hired labour, and for which there is no display to indicate from the exterior of the building that it is being utilized in whole or in part for any purpose other than a residential or dwelling use, and in connection with which no article or service is sold or exhibited for sale except that which is produced therein, which shall be non-hazardous and not affecting the safety of the inhabitants of the building and the neighbourhood and provided that no mechanical equipment is used except that as is customarily used for purely domestic or household purposes and / or employing licensable goods. If motive power is used, the total electricity load should not exceed 0.75 KW.

'Home Occupation' may also include such similar occupations as may be specified by the Chairman, NIT in consultation with Director of Town Planning and subject to such terms and conditions as may be prescribed.

2.61 High Rise Building

A building which is 15m or above in height shall be considered as a 'high rise building'. However, chimneys, cooling towers, boiler, rooms/ lift machine rooms, cold storage and other non-working areas in case of industrial buildings, and water tanks, and architectural features in respect of other buildings may be permitted as non-high rise buildings.

2.62 Information Technology Establishment (ITE)

Means an establishment which is in the business of developing either software or hardware relating to computers or computer technology.

2.63 Layout Open Space/ Recreational Open Space

Layout Open Space/ Recreational Open Space means a statutory common open space in any layout exclusive of margins (setbacks) and approaches, at a height not more than ground level of the building unit/ layout.

2.64 Ledge or Tand

A shelf like projection, supported in any manner whatsoever, except by independent vertical supports, within a room itself but not having projection wider than half meter.

2.65 Licensed Engineer / Structural Engineer / Supervisor

A qualified Engineer/Structural Engineer / Supervisor licensed by the Nagpur Improvement Trust/ Special Planning Authority as per the provisions of these Regulations.

2.66 Lift

An appliance designed to transport persons or materials between two or more levels in vertical or substantially vertical directions, by means of a guided car platform.

2.67 Lift Machine

Part of the lift equipment comprising the motor(s) and the control gear there with, reduction gear (if any), brakes and winding drum or sheave, by which the lift car is raised or lowered.

2.67.1 Lift Machine Room

An equipment or machine room for equipment related to the Lift Machine as with dimensions as defined under Part 8, Section 5, Clause 4.9, National Building Code and not used for human habitation

2.67.2 Lift Well

Unobstructed space within an enclosure provided for the vertical movement of the lift car(s) and any counter weights, including the lift pit and the space for top clearance.

2.68 Loft

An intermediate floor between two floors or a residual space in a pitched roof, with a maximum clear height of 1.5m above and minimum 2.1m below the loft, which is constructed and used for storage purpose. The loft, if provided in a room, shall not cover more than 30 percent of the floor area of the room or residual space in a pitched roof, above normal floor level which is constructed and used for storage purposes.

2.69 Laying out a New Street

Includes provision of road or levelling, formation, metalling or paving of road and footpaths etc., including layout of the services such as water supply, drainage and so on.

2.70 Mall

A large enclosed shopping area.

2.71 Marginal Open Space/ Setback

Minimum distance required to be left open to sky between boundary of a plot and a building, excluding court yard/ chowk. Marginal Open Spaces form an integral part of the plot and are required to be left clear of any obstructions. These shall be measured perpendicular to the relevant plot boundary such that the setback line effectively forms an offset inside the plot parallel to the entire plot boundary.

2.72 Masonry

An assemblage of masonry units properly bound together with mortar.

2.73 Mezzanine Floor

An intermediate floor between two floors of any story, forming an integral part of the floor below, overhanging or overlooking a floor beneath, not being a loft between the floor and ceiling of any storey.

2.74 Means of Access

These shall include the road/street/vehicular access way, pathway upto the plot and to the building within a plot.

2.75 Net Plot Area

Net Plot Area shall be as defined in Regulation 13.4.1.

2.76 Non-combustible Material

A material which does not burn nor add heat to a fire when tested for combustibility in accordance with IS: 3808 1966 'Method of Test for Combustibility of Building Materials'.

2.77 Non-conforming User

Any lawful use/ building existing on the site prior to the enforcement of these Regulations, but which does not conform to the land use shown on the Development Plan.

2.78 Occupancy or Use Group/ Premises

The principal occupancy or use for which a building or a part of a building is used or intended to be used, for the purposes of classification of a building. An occupancy shall be deemed to include subsidiary

occupancies which are contingent upon it. Buildings with mixed occupancies are those buildings in which more than one occupancies are present in different portions of the building. The occupancy classification shall have the meaning given in 2.78.1 to 2.78.12 unless otherwise specified in the Development Plan.

2.78.1 Residential Buildings

These shall include any building in which sleeping accommodation is provided for normal residential purposes with or without cooking or dining or both facilities. It includes one or two or multi-family dwellings, lodging or rooming houses, hostels, dormitories, dharmashalas, apartment houses, flats, service apartment, studio apartment and private garages incidental thereto.

- 2.78.1.1** Villa/ Bungalow (detached house) – means a building, the walls and roof of which are independent of any other building with open spaces on all sides, except the portion covered by a private garage, if any.
- 2.78.1.2** Semi-detached house - means two dwelling units on two separate plots attached by one common or adjacent wall with marginal open spaces on the remaining three sides.
- 2.78.1.3** Row house – Refer definition 2.89.
- 2.78.1.4** Apartment - means a part of the property intended for any type of independent use, including one or more rooms or enclosed spaces located on one or more floors (or part or parts thereof) in a building, intended to be used for residential purposes and with a direct exit to a public street, road, or highway or to a common area leading to such street, road or highway.
- 2.78.1.5** Multi-storey apartment building - means a building containing two or more individual apartments/ dwelling units that share common spaces such as staircase, elevator, entrance lobby and common services such as overhead/underground water tank, plumbing network etc., with each apartment on separate floor or two or more apartments on each floor of a building.
 - a) Penthouse - is an apartment on the highest floor of an apartment building with private access to a terrace. Penthouses are typically differentiated from other apartments by luxury features.
 - b) Studio apartment - is a small apartment which has a combined living room, bedroom and kitchenette without full height internal walls, and an enclosed bathroom/WC.
 - c) Service apartment – is a furnished apartment providing all amenities for daily use and is leased out for short term or long term stays.
 - d) Residential duplex apartments - Duplex apartments shall mean a residential unit/apartment divided on two floors with an internal staircase connecting the two floors.

2.78.2 Residential Mixed Use Building

Premises in which at least 75 percent of the total built-up area is used for residential purposes with the remaining area used for either office and/or shopping or retail uses on ground floor and/or first floors.

2.78.3 Educational Buildings

A building exclusively used for a school or college recognized by the appropriate Board or University, or any other competent authority involving assembly for instruction, education or recreation incidental to educational use, and including a building for such other uses incidental thereto such as library, coaching class or a research institution. It shall also include quarters for essential staff required to reside in the premises and a hostel attached to an educational institution whether situated in its campus or not and also includes day care purposes more than 8 hours per week.

2.78.4 Institutional Buildings

A building constructed or used by government, semi-government organization or registered trusts, used for government offices, medical or other treatment, a hostel for working women or an auditorium or complex for cultural and allied activities or for an hospice care of persons suffering from physical or mental illness, handicap, disease or infirmity, care of orphans, children and infants, women, convalescents, destitute or aged persons and for penal or correctional detention with restricted liberty of the inmates ordinarily providing

sleeping accommodation, and includes hospitals, sanatoria, custodial and penal institutions such as jails, prisons, mental hospitals, houses of correctional detention and reformatories.

2.78.5 Assembly Buildings/ Public Occupancy Buildings

These shall include any building or part of a building where groups of people congregate or gather for amusement, recreation, social, religious, patriotic, civil, travel and similar purposes. Such buildings include the likes of theatres, motion picture house, drive-in-theatres, multiplexes, assembly halls, convention centres, banquet halls, star category hotels, city halls, town halls, auditoria, exhibition halls, museums, marriage halls, cultural centre, places of worship, dance theatres, club and gymkhana, passenger stations and terminals of air, surface and other public transportation services, sports complexes and stadia and so on.

2.78.6 Business Buildings

These shall include any building or part of building, which is used for transaction of business for the keeping of accounts and records or similar purposes; offices, banks, professional establishments, information technology establishments, call centre, offices for private entrepreneurs, court houses, libraries shall be classified in this group in so far as principal function of these is transaction of public business and the keeping of books and records.

2.78.7 Office Building / Premises

The premises whose sole or principal use is to be used as an office or for office purpose; 'office purposes' shall include administration, clerical work, handling money, telephone/ telegraph/ computer operations and 'clerical work' shall include writing, book-keeping, sorting papers, typing, filing, duplicating, drawing of matter for publication and the editorial preparation of matter for publication.

2.78.8 Mercantile/ Commercial Buildings

These shall include any building or part of a building, which is used as shops, stores, market, malls for display and sale of merchandise either wholesale or retail, office. Storage and service facilities incidental to the sale of merchandise and located in the same building shall be included under this group.

2.78.8.1 Commercial retail

These shall include the following typologies:

- a) Convenience retail shops upto 10sqm BUA;
- b) Individual retail shops and general stores upto 200sqm BUA;
- c) Shop line: An arrangement of individual retail shops along a public road right of way, such that each shop can be accessed from the street directly. (Also termed as high street shopping);
- d) Departmental stores, specialty stores and super markets; above 200sqm BUA but less than 3,000sqm BUA: a retail establishment which offers a wide range of consumer goods and products including individual branded retail;
- e) Hypermarkets; Between 3,000sqm and 5,000sqm BUA: Large volume based merchandise stores offering a wide range of consumer goods and products including branded products for retail consumption;
- f) Malls; above 5,000sqm BUA: Large retail complex containing at least one major anchor store as a department store, speciality store or super market and a variety of retail stores, restaurants, cinema hall, multiplex, entertainment zone and other retail establishments in a single large building;
- g) Large format commercial development: A free standing retail sales facility in a single building with BUA over 20,000sqm, generally occupied by only one major retailer. Such developments are generally located in the suburban areas and offer a variety of goods, in bulk, at wholesale prices. While most big box developments operate as a single-story structure, they typically have a three-story mass that stands more than 10m tall.

2.78.8.2 Restaurants

A restaurant or an eating place is a commercial establishment where foods/meals are prepared and served to customers.

2.78.8.3 Hospitality buildings

Hospitality buildings shall primarily include hotels and resorts.

1. A hotel is a commercial establishment providing lodging, meals, and other guest services. In general, to be called a hotel, an establishment must have a minimum of six letting bedrooms, at least three of which must have attached (ensuite) private bathroom facilities.
2. A resort is a hotel featuring a wide range of amenities, sports facilities and leisure attractions designed to provide a complete vacation experience. A resort is spread across a larger land area compared to a hotel, which can be housed in a single building.

2.78.9 Wholesale Establishments

These shall include establishments wholly or partly engaged in wholesale trade, manufactures, and wholesale outlets including related storage facilities, Agricultural Produce Market Committee (APMC) establishments, warehouses and establishments engaged in truck transport including truck transport booking agencies.

2.78.10 Industrial Buildings

These shall mean and include any building or part of building or structure, in which products or materials of all kinds and properties are fabricated, assembled or processed such as assembling plants, laboratories, power plants, smoke houses, refineries, gas plants, mills, dairies, factories etc., designed to house various types and scales of industrial operations and provide the necessary conditions for workers and the operation of industrial equipment. These shall be categorised in the following categories:

- 2.78.10.1** Service industries: Establishments in which small scale industrial processes carried out or the machinery installed are such that are not detrimental to surrounding residential or public amenity areas by reason of noise, vibration, smell, fumes, smoke, soot, ash, dust or grit. Such establishments do not generally use power above 10HP.
- 2.78.10.2** Light industries: Industries which do not employ more than 100 workers and do not use power more than 100HP, except in the case of foundries and smithies, and do not generally consume any solid fuel. The plot area requirement per unit does not normally exceed 2ha.
- 2.78.10.3** Extensive industries: Industries which employ more than 100 workers and may use any kind of motive power or fuel subject to their noxious features. These industries usually require more than 2ha site area per unit.
- 2.78.10.4** Heavy and large scale industries: Industries which are highly capital intensive and also land intensive in character and they generally function as self-contained and independent units.
- 2.78.10.5** Obnoxious or hazardous industry: Industries which are associated with such features as excessive smoke, noise, vibration, stench, unpleasant or injurious fumes, effluents, explosives, inflammable material etc., and other hazards to the health or safety of the community.

A list of industries under each category is given in Table No 12.

2.78.11 Storage Buildings

These shall include any building or part of a building used primarily for the storage of goods, wares or merchandise, warehouses, cold storage, freight depots, transit sheds, godowns, transfer godowns, store houses, public garages, hangars, truck terminals, grain elevators, barns and stables.

2.78.12 Hazardous Buildings

These shall include any building or part of a building which is used for the storage, handling, manufacturing or processing of highly combustible or explosive materials or products which are liable to burn with extreme rapidity and / or which may produce poisonous gases or explosions during storage, handling, manufacturing or processing; materials which involve highly corrosive, toxic or noxious alkalis, acids or other liquids or

chemicals producing flames, fumes and explosive, mixtures of dust or which result in the division of matter into fine particles subject to spontaneous ignition.

2.79 Owner

The person who has legal title for land or building.

2.80 Parapet

A low wall or railing built along the edge of a roof, terrace, balcony, veranda etc., as a safety measure.

2.81 Parking Space

An enclosed or unenclosed, covered or open area sufficient in size to park vehicles. Parking spaces shall be served by a driveway connecting them with a street or alley and shall permit ingress or egress of vehicles.

2.82 Permit/ Permission

A permission or authorisation in writing by the Authority to carry out the work regulated by these Regulations.

2.83 Plinth

The portion of a structure between the surface of the ground and surface of the floor immediately above the ground.

2.84 Plot/ Site

A parcel or piece of land enclosed by definite boundaries and approved by the NIT/ Competent Authority as a building site, under these Regulations. It shall also mean a sub-divided piece of land for which the owner/ developer has obtained a sub-division or layout approval.

2.85 Porch

A covered surface supported on pillars or otherwise for the purpose of pedestrian or vehicular approach to a building.

2.86 Road/ Street

Any highway, street, lane, pathway, alley, stairway, passageway, carriageway, footway, square, or bridge, whether a thoroughfare or not, over which the public have right of access or have passed and had access uninterruptedly for a specified period, whether existing or proposed in any scheme, and includes all bunds, channels, ditches, storm-water drains, culverts, sidewalks, traffic islands, roadside trees and hedges, retaining wafts, fences, barriers and railings within the street lines.

2.87 Road / Street Line / Road Right-of-Way

The line defining the side limit of a road/ street.

2.88 Room height

The vertical distance measured from the finished floor surface to the finished ceiling/ slab surface. In case of pitched roofs, the room height shall be the average height between bottom of the eaves and bottom of ridge measured from the floor.

2.89 Row Housing

A row of houses joined by common sidewalls and each house with only front, rear and/or interior open spaces (except for the units on either ends which have marginal spaces on one side).

2.90 Semi-detached Building

A building, comprised of two dwellings on two separate plots, attached by a common or adjoining wall on one side and marginal open spaces as specified on the remaining three sides.

2.91 Site Corner

The site at the junctions of and fronting on two or more intersecting streets.

2.92 Site, Depth Of

The mean horizontal distance between the front and rear boundaries.

2.93 Site, Double Frontage

A site, having frontage on two streets other than a corner plot.

2.94 Site, Interior or Tandem

A site, to which access is through a passage from a street; whether such passage forms part of the site or not.

2.95 Smoke Stop Door

A door for preventing or checking the spread of smoke from one area to another.

2.96 Stair Cover

A structure with a covering roof over a stair case and its landing built to enclose only the stair for the purpose of providing protection from weather and not used for human habitation.

2.97 Stilts or Stilt Floor

Stilts or stilt floor means portion of a building above ground level consisting of structural column supporting the super structure with atleast two sides open, without any enclosures and not more than 3m in clear height from the ground level, provided for the purpose of parking vehicles such as bicycles, two wheelers and cars.

2.98 Storage

A place where goods are stored.

2.99 Store Room

A room used as storage space.

2.100 Storey

The portion of a building included between the surface of any floor and the surface of the next floor immediately above it, or if there is no floor above it, then the space between any floor and the ceiling immediately above it.

2.101 Tenement

An independent dwelling unit with a kitchen or cooking alcove.

2.102 Terrace

A flat, open to sky roof or floor of a building, or a part of a building, having parapet.

2.102.1 Terrace, double height

A supported terrace with railings, having minimum height equal to two floors between the terrace and the slab above.

2.103 To Erect

To erect a building means:

1. to erect a new building on any site whether previously built upon or not;
2. to re-erect any building of which portions above the plinth level have been pulled down, burnt or destroyed; and
3. conversion from one occupancy to another and subdivision of occupancy into more than one.

2.104 Travel Distance

The distance from the remotest point on a floor of a building to a place of safety, be it a vertical exit, horizontal exit or an outside exit measured along the line of travel.

2.105 Tower Like Structure

A structure in which the height of the tower like portion is at least twice the width of the base or podium (see figure 2).

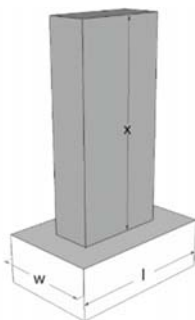
Figure 2: Tower like structure

$X \geq 2W$

Where:

X = Height of the tower like structure

W = width of the base/podium



2.106 Unsafe Building

Unsafe buildings are those which are structurally unsafe, unsanitary or not provided with adequate means of ingress or egress which constitute a fire hazard or are otherwise dangerous to human life or which in relation to existing use constitute a hazard to safety or health or public welfare, by reason of inadequate maintenance, dilapidation or abandonment.

2.107 Verandah

A covered area with at least one side open to the outside; when provided on any floor above the ground floor a parapet or safety railing 1m high shall be provided on the open side.

2.108 Water Closet (WC)

A privy with arrangement for flushing the pan with water. It does not include a bathroom.

2.109 Water Course

A natural or an artificial channel formed by draining or diversion of a natural channel, meant for carrying storm and waste water.

2.109.1.1 Major Water Course

Major water courses in the NMA are Vena, Pench, Kanhan, Nag, Sur, Sand, Dora and Pora Rivers.

2.109.1.2 Minor Water Course

Any other water course shown on the Development Plan, which is not classified as a major water course shall be considered as a minor water course.

2.110 Width of Road

The whole extent of space within the boundaries of a road when applied to a new road, as laid down in the jurisdictional surveys map or Development Plan or prescribed road lines by any Act or Law and measured at right angles to the alignment of such road, whichever is more.

2.111 Window

An opening to the outside other than the door which provides all or part of the required natural light, ventilation or both, to the interior space.

Additional definitions:**2.112 Abut**

To abut on a road such that any portion of the building is fronting on the road.

2.113 Bio-swale

A bio-swale is a bio-filtration method or tool for removing silt and other pollutants from surface runoff water. It comprises of a 'swaled' drainage course with gently sloping sides (less than 6 percent) and filled with vegetation, compost and/ or rubble. The flow path of water along the wide and shallow swales is designed to maximize time which the water spends in the swale, which aids the trapping of pollutants and silt.

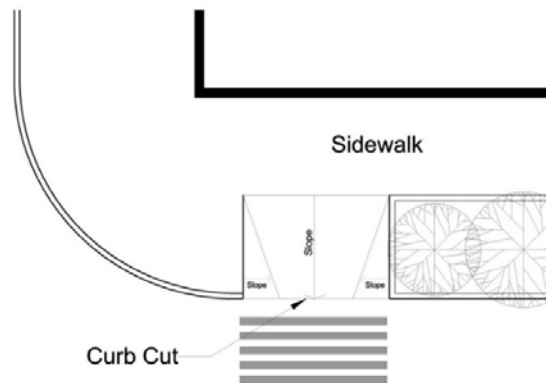
2.114 Caliper

The caliper of a tree is the measurement of the diameter of the trunk at a height of 1.2m above the base of the tree where the trunk meets the soil.

2.115 Curb Cut

A curb cut is a solid ramp that slopes down from the top surface of a sidewalk to the surface of an adjoining street. It is designed for ease of access for pedestrians, bicyclists and physically disabled people. In comparison with a conventional curb which is finished at a right angle above the street surface, a curb cut is finished at a slope that connects both surfaces (see figure 3 below).

Figure 3: Curb Cut

**2.116 Driveway**

A driveway is a paved or unpaved motorable surface within individual plots that provides access to a building or parking area from a public road right of way. It is owned and maintained by an individual plot owner/s.

2.117 Ground Coverage

The ratio of the total plinth area or the footprint area of all the buildings to the total plot area expressed as a percentage.

2.118 Easement

A right to cross or otherwise use someone else's land for a specified purpose of access.

2.119 Farm House

An independent dwelling, with plinth area not more than 150 sqm, constructed on designated agriculture land as an incidental use attached to a farm. It is the residence of the farmer who owns or manages the said farm land. Any building not associated with farm activities and/or a residence of a farmer shall not be construed as a farmhouse.

Farm house shall be permitted only after the owner obtains the requisite permission from the Collector, Nagpur under the provisions of the Maharashtra Land Revenue Code, 1966 (MLRC) and an attested

certified copy is attached with the application for building permission under Section 44 of the MR&TP Act, 1966.

2.120 Improvement Scheme

The scheme prepared under the NIT Act 1936 for the notified area and duly approved by the State Government.

2.121 Non Agricultural (NA) Permission

Means permission for Non-agricultural use granted under Section 44 of the Maharashtra Land Revenue Code, 1966, to use any agricultural land for non-agricultural purposes.

2.122 Podium

A continuous projecting base, raised platform or pedestal under a high rise building, within the permissible building line, not exceeding a height of 15m. Generally used for vehicle parking and circulation in a part of building with useable floors of building or buildings resting on it, accessible by vehicular ramp and steps.

2.123 Road/ Street Level or Grade

The officially established elevation or grade of the central line of the street upon which a plot fronts. If grade has not been officially established the existing grade of the street at its mid-point or crown shall be considered.

2.124 Service Road

A road/ lane parallel to a highway/ major road, provided for the purpose of access to adjoining plots.

2.125 Site

A parcel or piece of land enclosed by definite boundaries and approved by the Authority as a building site, under these Regulations.

2.126 Telecommunication Cell Site/ Base Station

‘Telecommunication cell site/ Base station’ shall, for each telecom operator, mean and include a tower of requisite height and dimensions, delta, single pole antennae, microwave antenna, cabin of requisite dimension for housing equipment, telecom transceiver machinery, related civil work, requisite wires and cables, power supply equipment, diesel generator set/ alternate power supply mechanism, cabins/ cupboard for housing any/ all of the aforesaid items as necessary.

2.127 Town Planning Scheme

The scheme prepared under the MRTP Act 1966 for the area notified and duly approved by the State Government

2.128 Transit Oriented Development (TOD)

A development focused around a transit node which facilitates complete ease of access to the transit facility, there by inducing people to prefer to walk and use public transportation over personal modes of transportation.

2.129 TOD Influence Zone

Land on both sides of a mass rapid transit (MRT) corridor falling within a distance of 500 m from the centre line of MRT corridor.

2.130 Travelator

A power driven horizontal walkway used for transportation of people within same floor of a building.

2.131 Vegetated Filter Strips

Filter strips are bands of dense, permanent vegetation with a uniform slope designed to provide water quality treatment for an adjacent runoff source (i.e., impervious area) by allowing pollutant filtering and settling and storm water infiltration.

3 APPLICABILITY OF REGULATIONS

3.1 General

These Regulations shall apply to all development, redevelopment erection and/or re-erection of a building, change of use etc., as well as to the design, construction or re-construction of, and additions and alteration to a building. Further, In addition to the provisions contained in the Maharashtra Regional and Town Planning Act, 1966, Nagpur Improvement Trust Act, 1936, the Maharashtra Municipal Corporations and Maharashtra Regional and Town Planning (Amendments) Act 2010 and the National Building Code 2005 as amended from time to time, these Regulations shall apply to the building activities and development work defined in Regulation 3.2 to 3.5.

3.2 Part Construction

Where the whole or part of a building is demolished or altered or reconstructed, removed, except where otherwise specifically stipulated, these Regulations apply only to the extent of the work involved.

3.3 Change of Occupancy

Where the occupancy or use of a building is changed, except where otherwise specifically stipulated, these Regulations shall apply to all parts of the building affected by the change.

3.4 Reconstruction

The reconstruction in whole or part of a building which has ceased to exist due to an accidental fire, natural collapse or demolition, having been declared unsafe, or which is likely to be demolished by or under an order of the NIT/ SPA and for which the necessary certificate has been given by the NIT/ SPA, be allowed subject to the provisions in these regulations.

3.5 Conflict in Provisions

If there is any overlapping of provisions or any conflicts between the existing provisions and the provisions in the Development Control by the NIT/SPA, then matter shall be referred to the Director of Town Planning, Maharashtra State, Pune whose decision shall be final.

3.6 Applicability of Heritage Regulations

The heritage regulations, establishment of Heritage Conservation Committee and the list of Heritage Sites shall be applicable as previously sanctioned by the Government/concerned Competent Authority.

3.7 Draftsman's Errors

Draftsman's errors which are required to be corrected as per actual situation on site/ as per survey records, sanctioned layout etc., shall be corrected by the Chairman, NIT after due verifications and consultation with the Director Town Planning, Maharashtra State.

- 3.8 The private or rental premises designated in Public-Semi Zone will continue to be in this zone as long as public semi-public user exists; otherwise the Chairman, NIT shall allow development permission on such lands considering the adjoining land use zone after due verification and prior approval of the Director Town Planning, Maharashtra State.

4 INTERPRETATION

- 4.1 In the regulations, the use of present tense includes the future tense, the masculine gender includes the feminine and the neutral, the singular number includes the plural and the plural includes the singular. The word person includes a corporation/ agency/ organization, writing includes printing

and typing and 'signature' includes thumb impression made by a person who cannot write if his name is written near to such thumb impression.

- 4.2 Whenever sizes and dimensions of rooms and spaces within buildings are specified, they shall mean clear dimensions unless otherwise specified in these regulations.

5 DEVELOPMENT PERMISSION AND COMMENCEMENT CERTIFICATE

- 5.1 No person shall carry out any development, in contravention of the Development Plan proposals.
- 5.2 No person shall carry out any development work including development of land by laying out into suitable plots or amalgamation of plots or development of any land as group housing scheme or erect, re-erect or make alterations or demolish any building or cause the same to be done without first obtaining a separate building permit/ commencement certificate for each such development work/ building from NIT/ SPA.
- 5.3 No temporary construction shall be carried out without obtaining prior approval of NIT/ SPA, which may be granted subject to such conditions as may be deemed necessary by NIT/ SPA.

5.4 Development undertaken on behalf of Government

As per the provisions of Section 58 of the Maharashtra Regional and Town Planning Act, 1966 the office in-charge of the Government Department shall inform in writing to the NIT/ SPA of its intention to carry out its purpose along with details of such development or construction as specified below:-

- i) An official letter by the authorized officer of Government Department addressed to the Authority, giving full particulars of the development work on any operational construction.
- ii) Ownership document and measurement plan issued by the Competent Authority of Land Records Department.
- iii) Development / building plans confirming to the provisions of Development Plan and these Regulations for the proposed development work to the scale specified in these Regulations.
- iv) The proposals of the Development Plan or Town Planning Scheme/ Improvement Scheme affecting the land.
- v) A Site Plan (as per Regulation 6.2.4) showing the plan, sections and elevations of the proposed development work to the scale.
- vi) Detailed plan (with required number of copies) showing the plan, sections and elevations of the proposed development work to the scale, including existing building specified either to be retained or to be demolished.

5.4.1 The operational construction of the Government, whether temporary or permanent which is necessary for the operation, maintenance, development or execution of any of following services may be exempt from the provisions of these regulations:

- i) railways;
- ii) national highways;
- iii) national waterways;
- iv) airways and aerodromes;
- v) major ports;
- vi) posts and telegraphs, telephones, wireless, broadcasting and other like forms of communication;
- vii) regional grid for electricity;
- viii) Defence authorities, and

- ix) any other service, which the State Government/ Central Government may by notification, declare to be a service for the purpose of this clause, if it is of opinion that the operation maintenance development of execution of such services is essential for the community.

All such construction shall however, conform to the prescribed requirement for the provision of essential services, water supply connection, drains etc., to the satisfaction of the Chairman/ NIT.

5.4.2 However, the following constructions of government departments do not come under the purview of operational construction for the purpose of exemption under Regulation 5.4.1:

- i) new residential building, roads and drains in railway colonies, hospitals, clubs, institute and school, in the case of railways;
- ii) a new building, new construction or new installation or any extension thereof, in the case of any other services.

5.4.3 However, no permission shall be necessary for the following works:

- i) the carrying out of works in compliance with any order or direction made by any authority under any law for the time being in force.
- ii) the carrying out of work by any Authority in exercise of its powers under any law for time being in force.
- iii) the carrying out of any works by the Central or State Government or any local authority:
 - a) required for the maintenance or improvement of highway, road or public street, being works carried out on land within the boundaries of such highway, road or public street;
 - b) Required for the purpose of inspecting, repairing or renewing any drains, sewers mains, pipes, cable, telephone or cables, or other apparatus including the breaking open of any street, or other land for the purpose.

Provided that the concerned authority shall inform the NIT/ SPA, in writing, one month before carrying out such development.

- i) the excavation (including excavation of wells) made in the ordinary course of agricultural operations.
- ii) the construction of a road intended to give access to land solely for agricultural purpose.
- iii) Normal use of land which has been used temporarily for other purposes like marriage pandals or for festive occasions; and
- iv) in case of land, normally used for one purpose and occasionally used for any other purpose, for the use of land for that other purpose on occasions.

6 PROCEDURE FOR OBTAINING BUILDING PERMIT AND COMMENCEMENT CERTIFICATE

6.1 Notice

Every person who intends to carry out development and erect, re-erect or make alterations in any place in a building or demolish any building, shall give notice in writing to the NIT/ SPA of his said intention in the prescribed form (See Appendix A1 or A2) and such notice shall be accompanied by the payment receipt of required scrutiny fee and any other fee/ charges prescribed by the NIT/ SPA from time to time and the plans and statements in sufficient copies (see Regulation No. 6.1.1), as required under Regulation No. 6.2 and 6.3. The plans may be ordinary prints on Ferro paper or any other type (prints only). One set of plans shall be retained in the office of the NIT/ SPA for record after the issue or permit of a refusal. For the sake of scrutiny, the plans shall also be submitted in an electronic format as specified by NIT/SPA from time to time.

6.1.1 Copies of Plans and Statements

Minimum four copies of plans and statements shall be made available along with the notice. In case of building schemes, where clearance is required (No Objection Certificate) from any agencies like, any one of the Chief Fire Officer, NIT/NMC, Director of Fire Services, Maharashtra, number of copies of plans required shall be as decided by the Chief Fire Officer of the relevant authority. Once approved, additional copies of corrected plans, shall be submitted to NIT. These corrected plans shall also be submitted in an electronic format.

- 6.1.2** NIT/ SPA shall sanction the layout plans / building plans as per the development policies of NIT in force at that time.
- 6.1.3** For the layout sanctioned, Security Deposit and supervision charges shall be payable by the land owner at the time of execution of the development agreement. The security deposit and the supervision charge shall be decided by NIT/ SPA from time to time.
- 6.1.4** In case of sub-division layout/ group housing scheme development, the developer shall enter into a development agreement with NIT/ SPA and abide by it.
- 6.1.5** The land owner shall pay security deposit charges for tree plantation as decided by NIT/SPA from time to time.

6.2 Information Accompanying Notice

The Notice shall be accompanied by the key (location) plan, site plan, sub-division layout plan, building plan, services plans, specifications and certificate of supervision and ownership title as prescribed in 6.2.1 to 6.2.13.

6.2.1 Size of drawing sheets and colouring of plans

- 6.2.1.1** The size of drawing sheets shall be any of those specified in Table 6-1. In addition, electronic version of all drawings shall be submitted to NIT in AutoCAD format.

Table No. 6-1 - DRAWING SHEET SIZES

Sr. No.	Designation	Trimmed Size (In mm)
(1)	(2)	(3)
1	AO	841 x 1189
2	A1	594 x 841
3	A2	420 x 594
4	A3	297 x 420
5	A4	210 x 297

If necessary, submission of plans on sheets bigger than A0 size is also permissible.

- 6.2.1.2** Colouring Notations for Plans: - The Plans shall be coloured as specified in Table 6-2. Prints of plans shall be on one side of paper only.
- 6.2.1.3** Dimensions: all dimensions shall be in metric units.

Table No. 6-2- COLOURING OF PLANS

Sr. No.	Item	Site Plan		Building Plan	
		White Plan	Ammonia Print	White Plan	Ammonia Print
(1)	(2)	(3)	(4)	(5)	(6)
1.	Plot lines	Thick Black	Thick Black	Thick Black	Thick Black
2.	Existing Street	Green	Green	..	..
3.	Future street if any	Green dotted	Green dotted	..	..
4.	Permissible Building lines	Thick dotted black	Thick dotted black	..	..
5.	Marginal Open Spaces	No Colour	No Colour	No Colour	No Colour
6.	Existing work	Black (outline)	Blue	Black	Blue

Sr. No.	Item	Site Plan		Building Plan	
		White Plan	Ammonia Print	White Plan	Ammonia Print
7.	Work proposed to be demolished	Yellow hatched	Yellow hatched	Yellow hatched	Yellow hatched
8.	Proposed work	Red filled in	Red	Red	Red
9.	Drainage & sewerage work	Red dotted	Red dotted	Red dotted	Red dotted
10.	Water supply work	Black dotted thin	Black dotted thin	Black dotted thin	Black dotted thin
11.	Deviations from the sanctioned plan	Red hatched	Red hatched	Red hatched	Red hatched
12.	Recreational open space / Ground / layout open space	Green wash	Green wash	Green wash	Green wash
Note:-	For land development/sub-division/layout/building plan, suitable colouring notations shall be used which shall be indexed.				

6.2.2 Ownership Title and Area

Every application for development permission and commencement certificate shall be accompanied by the following documents for verifying the ownership and area etc., of the land:

- Attested copy of original sale/ lease - deed/ power of attorney/ enabling ownership document wherever applicable;
- V.F.NO. 7-12 extracts of property register card of a date not earlier than six months of the date of submission of the development proposal and 'C' copy ('C' prat) in original, issued by land records department wherever necessary;
- Statement of area of the holding by triangulation method from a qualified licensed technical personnel or architect with an affidavit from the owner in regard to the area in the form prescribed by the Chairman, NIT.
- Any other document prescribed by the Chairman, NIT;
- Wherever third party interest is created by way of agreement to sale or mortgage etc., the registered consent of such interested persons shall be submitted with the application;
- A certified copy of approved sub-division/ amalgamation / layout of land from the concerned authority;
- In the case of land leased by the government or local authorities, clearance/No Objection Certificate from Government or such authorities regarding observance of the lease conditions shall be obtained and attached to the application for development permission in respect of such land.

6.2.3 Key Plan or Location Plan

A key plan drawn to a scale of not less than 1:10,000 shall be submitted along with the application for a Building Permit and Commencement Certificate, showing the boundary locations of the site with respect to neighbourhood land marks or with respect to the area within the radius of 200m from the site, whichever is more.

6.2.4 Site Plan

The site plan submitted with an application for permission shall be duly authenticated by the appropriate officer of the Department of Land Records. The site plan shall be drawn to a scale of 1:500 and in the case where the plot is more than 4ha, to a scale of 1:1,000 showing the following details:

- boundaries of the site and of any contiguous land belonging to the neighbouring owners;
- position of the site in relation to neighbouring streets;
- name of the street, if any, from which the building is proposed to derive access;
- all existing buildings contained in the site with their names (where the buildings are given names) and their numbers;

- e) position of the building and of other buildings, if any, which the applicant intends to erect, upon his contiguous land referred to in (a) above in relation to;
- f) boundaries of the site and, in a case where the site has been partitioned, the boundaries of the portions owned by others;
- g) all adjacent streets, buildings (with number of storeys and height) and premises within a distance of 12m of the work site and of the contiguous land (if any) referred to in (b); and
- h) means of access from the street to the building and to all others buildings (if any) which the applicant intends to erect upon;
- i) building setbacks/ marginal open spaces to be left around the building to secure free circulations of air, admission of light and access for scavenging purposes;
- j) width of the street (if any) in front and width of the street (if any) at the side of near the building and the proposed street width as defined in the Development Plan, if any;
- k) direction of north relative to the building plan and scale;
- l) any existing physical features, such as wells, tanks, drains, pipe lines, high tension line, railway line or trees etc.;
- m) the ground area of the whole property and the break-up of the covered area on each floor;
- n) a plan indicating parking spaces as required under these regulations;
- o) overhead electric supply lines including space for electrical substation according to the requirements of the electric distribution licenses, water supply and drainage line;
- p) such other particulars as may be prescribed by the Chairman, NIT.

6.2.5 Sub- division / Layout Plan

In the case of development of land, the notice shall be accompanied by the sub-division/ layout plan which shall be drawn on a scale of not less than 1:500, however, for layout having areas 4.0ha and above the plan shall be drawn at a scale of not less than 1:1000, containing the following:

- a) scale and north point;
- b) the location of all proposed and existing roads with their existing/ proposed widths within the land;
- c) dimension of plot along with building lines showing the setbacks with dimensions within each plot;
- d) the location of drains of sewers, public facilities and services and electrical lines and so on;
- e) table indicating size, area, and use of all the plots in the sub-division layout plan;
- f) the statement indicating the total area of the site, area utilized under roads, recreational open spaces, play grounds, recreation spaces and any Development Plan reservation/roads if applicable, schools, shopping and other public places along with their percentage with reference to the total area of the site proposed to be sub-divided/ laid out;
- g) in case of plots which are sub-divided in built-up areas, in addition to the above, the means of access to the sub-division from existing streets;
- h) Contour plan of site, wherever necessary;

6.2.6 Building Plan

The plans of the buildings with elevations and sections accompanying the notice shall be drawn to a scale of 1:100 and shall:

- a) include floor plans of all floors together with the covered area clearly indicating the sizes of rooms and the position and width of staircases, ramps and other exit ways, lift-wells, lift machine room and lift pit details. It shall also include ground floor plan as well as basement plans and shall indicate the details of parking space, loading and unloading spaces provided around and within

building as also the access ways and the appurtenant open spaces with projections in dotted lines, distance from any building existing on the plot in figured dimensions along with accessory building;

- b) show the use or occupancy of all parts of the buildings;
- c) show exact location of essential services, for example, WC, sink, bath and the like;
- d) include sectional drawings of the building showing all sectional details;
- e) show all street elevations;
- f) give dimensions of the projected portions beyond the permissible building line;
- g) include terrace plan indicating the drainage and the slopes of the roof;
- h) give indications of the north point relative to the plans and
- i) give dimensions and details of doors, windows and ventilators;

6.2.6.1 Building plans for multi-storied, public occupancy and special buildings. For:

- i) multi-storied buildings which are more than 15m height;
- ii) special buildings like educational, assembly/ public occupancy, mercantile, institutional and industrial, storage and hazardous buildings;
- iii) mixed occupancies with any of the aforesaid occupancies having area more than 500sqm.
- j) The following additional information shall be furnished/ indicated in the Building Plans, in addition to the items (a) to (i) of regulation No. 6.2.6:
 - a) access to fire appliances/vehicles with details of vehicular turning circle and clear motorable access way around the building;
 - b) size (width) of main and alternate staircases along with balcony approach, corridor, ventilated lobby approach;
 - c) location and details of lift enclosures;
 - d) location and size of fire lift;
 - e) smoke stop lobby/door, where provided;
 - f) refuse chutes, refuse chamber, service duct, etc.;
 - g) vehicular parking spaces;
 - h) refuge area, if any;
 - i) details of building services:- Air-conditioning system with position of fire dampers, mechanical ventilation system, electrical services, boilers, gas pipes etc.,
 - j) details of exits including provision of ramps, etc. for hospitals and buildings requiring special fire protection measures;
 - k) location of generator, transformer and switch gear room;
 - l) smoke exhaustor system, if any;
 - m) details of fire alarm system network;
 - n) location of centralized control, connecting all fire alarm systems, built-in fire protection arrangements and public address system etc;
 - o) location and dimensions of static water storage tank and pump room along with fire service inlets for mobile pump and water storage tank;
 - p) location and details of fixed fire protection installations such as sprinklers, wet risers, hose reels, drenchers, CO2 installation etc;
 - q) location and details of first aid, fire-fighting equipments/ installations.

6.2.7 Service Plan

Plans, elevations and sections of private water supply, sewage disposal system and details of building services, where required by the NIT/ SPA, shall be made available on a scale not less than 1:100 and scale of 1:1000 for layouts.

6.2.8 Specifications

General specification of the proposed constructions, giving type and grade of materials to be used in the form given in Appendix A1, duly signed by licensed Architect as the case may be, shall accompany the notice.

6.2.9 Supervision

The notice shall be further accompanied by a certificate of supervision in the prescribed form given in Appendix B, by the required licensed Architect/ Engineer/ Structural Engineer, as the case may be. In the event of the said licensed technical personnel ceases to be employed for the development work, further development work shall stand suspended until a new licensed technical person is appointed and his certificate of supervision along with a certificate for the previous work (either from the previous technical personnel or new) is made available.

6.2.10 Building Permit Fee

The notice shall be accompanied by an attested copy of the receipt of payment of the Building Permit Application Fee. The building permit fee and layout /subdivision of land fees shall be as decided by the Chairman, NIT from time to time, subject to government orders, if any.

6.2.11 Security Deposit Fee

For ensuring the faithful compliance of these Regulations and the directions given in the sanctioned plan and other terms and conditions, a security fee shall be charged at rates as specified by the Chairman, NIT. The same shall be returned to the owner after the issue of the full occupancy certificate for the building by the Chairman, NIT.

6.2.12 No Objection Certificate (NOC)

In the case of development/ construction of buildings requiring clearance from the authorities like Civil Aviation Authority, Railways, Directorate of Industries, Maharashtra Pollution Control Board, District Magistrate, Inspectorate of Boilers and Smoke Nuisance, Defence Authorities, Police Department, Department of Explosives, Archeological Department, State Environmental Impact Assessment Authority (SEIAA) or any other authority prescribed in these Regulations, the relevant No Objection Certificates applicable the occupancy, shall also accompany the application.

In case of a building identified in Regulation No.6.2.6.1, the building scheme shall also be cleared by the Fire Officer of the Local Authority or in absence of such officer, from the Directorate of Maharashtra Fire Services

- a) NOC from Chief Fire Officer, NIT/ NMC/ Director, Fire Services, Government of Maharashtra shall be mandatory for the following:
 - i) any building with height 15m and above;
 - ii) for any mixed use residential and commercial retail or any mixed occupancy building with built-up area over 500sqm;
 - iii) for all buildings mentioned in 6.2.6.1; and
 - iv) for all fuel filling stations.
- b) NOC from Director, Microwave Projects, Nagpur Telecom, and Civil Aviation Authority shall be mandatory for the following:
 - i) For buildings with height more than 24m; and

6.2.13 For Microwave Wireless Mobile Towers of Any Height Development Charges

Development charges as per the provisions of section 124A of the MR&TP Act, 1966 shall be deposited with the NIT/SPA before issue of development permission/commencement certificate. In case of revised permission where no development is carried out in pursuance of the earlier permission, amount of difference of development charges, if any, shall be levied and recovered.

6.2.14 Premium Charges

Premium charges as may be required to be recovered under these regulations shall be paid to the NIT/SPA before issue of development permission/ commencement certificate. The amount of premium collected shall be kept in a separate account and it shall be utilised for development of civic amenities and infrastructure. Premium charges shall be as follows:

- a) Industrial uses – 70% of Ready Reckoner rate
- b) Commercial uses – 80% of Ready Reckoner rate
- c) Residential uses – 60% of Ready Reckoner rate

6.2.15 Tax Receipt for Tax Clearance

The notice shall also be accompanied by the attested copy of a tax receipt from the relevant authority for payment of tax up to date.

6.2.16 Structural Stability Certificate and Structural Design Sufficiency Certificate

For all buildings, Structural Design Sufficiency Certificate shall be submitted to NIT at the time of submission of building plans. Structural Stability Certificate shall be submitted to NIT before obtaining the Occupation Certificate. For purposes of record, structural drawings shall be submitted to NIT for all buildings above height 24m and buildings covered under Regulation 6.2.6.1.

6.3 Signing the Plans

All the plans shall be duly signed by the owner and the architect or licensed engineer/ structural engineer/ supervisor and shall indicate his name, address and licence number allotted by the Chairman, NIT.

6.4 Qualification and competence of the Architect / Licensed Engineer / Structural Engineer / Supervisor and Registration of Developer

Architect/ Engineer/Structural Engineer Supervisor referred under 6.3 shall be registered / licensed by the Chairman NIT as competent to plan and carry out the various works as given in Appendix C. The qualification and procedure for registration and licensing of the Engineer/ structural engineer/ supervisor shall be as given in Appendix C.

6.5 Discretionary Powers

6.5.1 Discretionary Powers

- 6.5.1.1** In conformity with the intent and spirit of these regulations the Chairman, NIT may, in consultation with the Divisional Head of the Nagpur division of the Town Planning Department:
- a) decide on matters where it is alleged that there is an error in any order, requirement, decision, determination or interpretations made by him in the application of these Regulations;
 - b) determine and establish the location of land use boundaries in exceptional cases, or in cases of doubt or controversy;
 - c) interpret the provisions of these regulations where the streets layout actually on the ground varies from the street layout as shown on the Development Plan;
 - d) with prior approval of government, modify the limit of a zone where the boundary line of the land use divides a plot; and
 - e) Authorise the erection of building or use of premises for a public service undertaking for public utility purposes only, where he finds such an authorisation to be reasonably necessary for the public convenience and welfare, even if it is not permitted in any land use classification.

The Chairman may grant permission for temporary construction for period not exceeding six months at a time and in the aggregate not exceeding for a period of one year. Such permission may be given by him for the construction of the following temporary constructions, namely:

- i) structures for protection from rain or covering of terraces during monsoon only;
- ii) pandals for fairs, ceremonies, religious functions, etc.;
- iii) structures for godowns/storage of construction materials within the site;
- iv) temporary site offices and watchman chowkies within the site only during the phase of construction of the main building;
- v) structures of exhibitions/ circuses etc.;
- vi) structures for storage of machinery, before installation, for factories in industrial lands within the site;
- vii) structures for ancillary works for quarrying operations in conforming zones;
- viii) MAFCO stalls, milk booths and telephone booths;
- ix) transit accommodation for persons to be rehabilitated in a new construction;
- x) structures for educational and medical facilities within the site of the proposed building during the phase of planning and constructing the said permanent buildings;
- xi) Ready mix concrete plant

Provided that, temporary constructions for structures etc., mentioned at (iii), (iv), (vi), (ix) and (x) may be permitted to be continued temporarily by the Chairman NIT, but in any case not beyond completion of construction of the main structure or building and that structure in (vii) may be continued on annual renewal basis by the Chairman, NIT beyond a period of one year.

Provided further that for any structure accommodating more than 50 persons, No Objection Certificate from any one of the Chief Fire Officer, NIT/ NMC/ Director of Fire Services, Maharashtra shall be obtained prior to issuing permission, wherever necessary.

6.5.1.2 In specific cases, where a clearly demonstrable hardship is caused, the Chairman, NIT, consultation with the Divisional Head of the Nagpur division of the Town Planning Department, may by special written permission:

- i) permit any of the dimensions/ provisions prescribed by these Regulations to be modified, provided the relaxation sought does not violate the health, safety; fire safety, structural safety and public safety of the inhabitants the buildings and the neighbourhood. However, no relaxation from setbacks required from the road boundary or FSI or parking requirement shall be granted under any circumstances.

While granting permission under (i), conditions may be imposed on: size, cost or duration of the structure, abrogation of claim of compensation, payment of deposit and its forfeiture for noncompliance.

6.5.2 Delegation of Powers

Any of the powers, duties or functions conferred or imposed upon or vested in the Chairman NIT by any of these regulations may be exercised, performed or discharged under the Authority Control, and subject to his revision and to such conditions and limitations, if any as he shall think fit to prescribe, by any officer whom the Authority generally or specially empowers in writing on this behalf and in each of the said regulations. The word Chairman shall to the extent to which any officer is so empowered, be deemed to include such officer. The decision of the officer to whom such powers have been delegated shall be subject to review, if necessary, by the Chairman, NIT.

The Chairman, NIT shall have appellate jurisdiction over all decisions taken by any officer so empowered.

6.6 Grant of Permission or Refusal

6.6.1 The Authority may either sanction or refuse the plans and specifications or may sanction them with such modifications or directions as it may deem necessary after having recovered the necessary

charges as per MR&TP Act, 1966 and there upon shall communicate its decision to the person giving the notice in the prescribed form given in Appendix D1, D2, D3 and E1, E2.

6.6.2

- i. The building plans for buildings identified in regulation No. 6.2.6.1 shall also be subject to the scrutiny of the Chief Fire Officer, NIT/ NMC/ Director of Fire Services, Maharashtra and the sanction through building permit shall be given by the NIT/SPA after the clearance from the Chief Fire Officer, NIT/ NMC/ Director of Fire Services, Maharashtra.
- ii. In case of land subdivision or layout, tentative layout shall be recommended for demarcation at first instance. After having demarcated the layout by the Land Records Department, the owner shall submit the demarcated layout for final approval to NIT/SPA, which shall examine the provision laid down in Regulation No.6.8 and grant final approval if it is in accordance with the layout recommended for demarcation and confirming to the regulations. This shall also be mandatory to Group Housing Scheme.

6.6.3 If within sixty (60), days of the receipt of the notice, along with necessary fees/deposit/charges etc. as may be applicable under 6.2.10, 6.2.11, 6.2.13 and 6.2.14 of these regulations, the NIT/SPA fails to intimate in writing to the persons, who has given the notice, of its refusal or sanction or sanction with such modification or directions, the notice with its plans and statements shall be deemed to have been sanctioned, provided nothing shall be construed to authorize any person to do anything on the site of the work in contravention or against the terms of lease or titles of the land.

Provided further that, the development proposal, for which the permission was applied for, is strictly in conformity with the requirements of all these Development Control Regulations framed under the Act or byelaws or have regulations framed in this behalf under any law for the time being in force and the same in no way violates either provisions of any draft or final plan or proposals published by means of notice, submitted for sanction under the Acts. Provided further that any development carried out in pursuance of such deemed permission which in contravention of the provisions of the above provision, shall be deemed to be an unauthorized development for purposes of sections 52 to 57 of MR&TP Act, 1966 and other relevant Acts.

Provided further that upon receipt of intimation of any claim for deemed permission, the NIT/SPA shall within fifteen days from the date of receipt of such claim, communicate its remarks, if any, regarding deemed permission to the applicant, failing which, the proposal shall be approved and commencement certificate and one set of duly approved plans for proposed development shall be issued to the applicant within fifteen days thereafter.

Provided further that necessary explanation shall be called from the concerned officer of the NIT/ SPA for not processing and disposing of the proposal within 60 days.

6.6.4 After the plan has been scrutinized and objections have been pointed out, the owner giving notice shall modify the plan, comply with the objections raised and resubmit it, the prints of plans submitted for final approval, shall not contain superimposed corrections. The NIT/SPA shall grant or refuse the Commencement Certificate/ Building Permit within 60 days from the date of re-submission. No new objections may generally be raised when they are resubmitted after compliance of earlier objections.

6.7 Board of Appeal

Any person aggrieved by an order/ communication made by the NIT/SPA under these Regulations may, within a period of 30 days from the date of the receipt of such an order, prefer an appeal before the Board of Appeals. The Board shall be constituted at division level consisting of the Divisional Head of the Nagpur division of the Town Planning Department as President and concerned ADTP/ TP of the District as a member.

6.8 Commencement of Work

Commencement certificate/development permission shall remain valid for four years in the aggregate but shall have to be renewed every year from the date of its issue. The application for renewal shall be made before expiry of one year if the work is not already commenced. Such renewal can be done for three

consecutive terms of one year after which proposals shall have to be submitted to obtain development permission afresh. If application for renewal is made after expiry of the stipulated period during which commencement certificate is valid, then the Chairman, NIT may condone the delay for submission of application for renewal by charging necessary fees; but in any case, a Commencement Certificate shall not be renewed for a period of more than 4 years from the date of commencement certificate/ development permission. Provided that no such renewal shall be necessary if the work is commenced within the period of valid permission.

For the purpose of this regulation, "Commencement" shall mean as under:

a	For a building work including additions and alterations	Upto plinth level
b	For bridges and overhead tanks	Foundation and construction work upto the base floor
c	For underground works	Foundation and construction work upto floor of underground floor
d	For layout, sub-division and amalgamation proposals	Final demarcation and provision of water bound macadam roads complete.

6.9 In case of land subdivision / group housing schemes, it shall be the responsibility of the owner / developer to construct all infrastructure including roads, storm water drains, sewer lines, water supply lines, development of open spaces etc. In case of land subdivision, these works shall be completed within two years and phase wise building permission shall be granted after release of plots depending upon the percentage of infrastructure work completed. In case of group housing schemes, these works shall be completed before completion of project.

6.10 Development Agreement

It shall be mandatory for the applicant/ owner/ developer to enter into a development agreement with NIT/ SPA. It shall be the responsibility of the applicant/ owner/ developer to construct all infrastructure including roads, storm water drains, sewer lines, water supply lines, development of open space, septic tank, sewage treatment plant as per the development agreement with NIT/ SPA. The plots/ flats shall be released for construction/sale after release of the same as per the terms and conditions of the Development Agreement.

7 PROCEDURE DURING CONSTRUCTION

7.1 Owner's Liability

Neither the grant of permission nor approval of the drawing and specifications nor inspections by the Chairman, NIT during erection of the building, shall in any way relieve the owner of such building from full responsibility for carrying out the work in accordance with these Regulations and safety norms as prescribed by the Bureau of Indian Standards.

7.2 Documents at site

The following documents shall be maintained on the construction site during the entire duration of construction:

- a) **Results of tests:** Where tests of any material are made to ensure conformity with the requirements of these Regulations, records of the test data shall be kept available for inspection during the construction of the building and for such period thereafter as required by the Chairman, NIT.
- b) **Development Permission:** The person to whom development permission is issued shall during the period of construction, keep:
 - i) A copy of a development permission placed in a conspicuous place on the site for which permission has been issued, and
 - ii) A copy of the approved drawings and specifications referred to in Regulation 6 on the site for which the permit was issued.
- c) **Display board:** Display board mentioning name of the owner, name of architects, name of structural engineer, except for small individual plot holders

7.3 Checking of Plinth, Columns upto Plinth Level

The owner through his licensed surveyor, engineer, structural engineer or supervisor or his architect shall give notice in the form of **Appendix F** to the Chairman, NIT on completion of work upto plinth level enabling the Chairman to ensure that the work conforms to the sanctioned plans. The Chairman may inspect the work jointly with the licensed technical personnel or architect within 15 (fifteen) days from the receipt of such notice and either give or refuse permission for further construction as per the sanctioned plans in the form in **Appendix G**. If within this period, the permission is not refused it shall be deemed to have been given provided the work is carried out according to the sanctioned plans.

7.4 Deviation During Constructions

If during construction of a building any departure of a substantial nature from the sanctioned plans is intended by way of internal or external additions, sanction of the Chairman, NIT shall be necessary. A revised plan showing the deviation shall be submitted and the procedure laid down for the original plans shall apply to all such amended plans. Any work done in contravention of the sanctioned plans, without prior approval of the Chairman shall be deemed as unauthorized.

7.5 Completion Certificate

The owner through his licensed surveyor / engineer / structural engineer / supervisor or his architect who has supervised the construction, shall furnish a Building Completion Certificate to the Chairman in the form in **Appendix H**. This certificate shall be accompanied by three sets of plans of the completed development, one of which shall be cloth mounted for office record.

These 'as built' plans shall also be made available in an electronic format, as specified by NIT/ SPA from time to time. In addition to the Completion Certificate and drawings of the completed development, the owner shall submit the following plans/documents to NIT/SPA:

- a) Sewer connection plan;
- b) Final NOC/Clearance from the Chief Fire Officer, NIT/ NMC/ Director of Fire Services Government of Maharashtra, wherever necessary;
- c) Environment clearance as per the Environment Protection Act 1986, wherever necessary; and
- d) Structural Stability Certificate from a competent structural engineer;
- e) Release letter from NIT for dwelling units/ tenements in case of group housing.

7.6 Occupancy Certificate

The Chairman, NIT after inspection of the work, scrutiny of the submitted documents and after satisfying himself that there is no deviation from the sanctioned plans and after requisite fees are paid, issue the Occupancy Certificate in the form given in **Appendix I** or refuse to sanction the Occupancy Certificate in the form given in **Appendix J** within 21 days from the date of receipt of the said completion certificate, failing which the work shall be deemed to have been approved for occupation provided the construction conforms to the sanctioned plans. One set of plans, certified by the Chairman NIT, shall be returned to the owner along with the Occupancy Certificate. Where the Occupancy Certificate is refused or rejected, the reasons for refusal or rejection shall be given in intimation of the rejection or the refusal.

7.7 Part Occupancy Certificate

When requested by the holder of the development permission, the Chairman NIT may issue a part occupancy certificate for a building or part thereof, before completion of the entire work, as per development permission, provided sufficient precautionary measures are taken by the holder to ensure public safety and health. The occupancy certificate shall be subject to the owners indemnifying the Chairman in the form of **Appendix K**.

8 INSPECTION

The Chairman, NIT shall have the power to carry out inspection of the work under the provisions of the Act, at various stages to ascertain whether the work is proceeding as per the provisions of regulations and sanctioned plan.

9 UNSAFE BUILDINGS

All unsafe buildings shall be considered to constitute danger to public safety, hygiene and sanitation and shall be restored by repairs or demolished or dealt with as otherwise directed by the NIT/ SPA. The relevant provisions of the Regulation No. 24.12 shall apply for procedure of actions to be taken by the Chairman, NIT for unsafe buildings.

10 OFFENCES AND PENALTIES

10.1 Offences and penalties:

Any person who contravenes any of the provisions of these Regulations/ any requirements or obligations imposed on him by virtue of these regulations including the maintenance of fire protection services and appliances and lifts in working order or who interferes with or obstructs any person in the discharge of his duties shall be guilty of an offence and upon conviction shall:

- a) be punished with a fine as fixed by the Authority and as stipulated in Section 52 of The Maharashtra Regional and Town Planning Act, 1966 and the relevant section of NIT Act;
- b) further the Authority may take suitable actions including demolition of unauthorised works as decided by the Authority as stipulated under Section 53 of The Maharashtra Regional and Town Planning Act, 1966 and relevant sections of NIT Act.;
- c) in case of Licensed Engineer / Structural Engineer / Supervisor / the NIT/SPA may take suitable action against him which may include cancellation of license and debarring him from further practice / business for a period extending upto five years;
- d) in case of registered architects, the planning authority may take suitable action against the Registered Architect as per the provisions of Architect Act, 1972.

10.2 Revocation of Permission

- 1) Without prejudice to the powers of revocation conferred by Section 51 of the Maharashtra Regional and Town Planning Act, 1966, the NIT/ SPA may, after giving the opportunity of being heard, revoke any development permission issued under these regulations where it is noticed by him that there had been any false statement or any misrepresentation of material fact in the application on the basis of which the development permission was issued and thereupon the whole work carried out in pursuance of such permission shall be treated as unauthorised.
- 2) In the case of revocation of the permission no compensation shall be paid.

10.3 Regularization of unauthorised developments

Regularization of unauthorised developments can be done as per norms established by the Government of Maharashtra from time to time.

PART II GENERAL PLANNING AND BUILDING REQUIREMENTS

11 REQUIREMENTS OF SITES

11.1 No piece of land shall be used as a site for the construction of building

- a) If the NIT/ SPA considers that the site is insanitary or that it is dangerous to construct a building on it;
- b) If the site is within a distance of 9 m. from the edge of water mark of a minor watercourse (like nallah) and 15 m. from the edge of water mark of a major water course (like river) shown on Development Plan or village/city survey map or otherwise, provided that where a minor water course passes through a low lying land without any well-defined banks, the owner of the property may be permitted by the Chairman, NIT to restrict and or to re-align the same within the same land along with cross section as determined by the Chairman NIT, subject to any approvals or clearances required from Irrigation Department, Maharashtra Pollution Control Board and/or Ministry of Environment and Forests, as applicable from time to time ;
- c) If the site is not drained properly or is incapable of being well drained;
- d) If the owner of the building has not shown to the satisfaction of the Authority all the measures required to safeguard the construction from constantly getting damp;
- e) If the building is for assembly uses, for cinemas and theatres as well as for public worship which has not been previously approved by the Chairman, NIT;
- f) If the building is proposed on any area filled up with carcasses, excreta, filth and offensive matter, including hazardous materials, chemicals, etc that may endanger health and safety of the occupants. No construction will be permitted until the owner carries out necessary remediation and till the production of certificate from the concerned authority to the effect that it is safe from the health and sanitary point of view, to be built upon;
- g) If the use of the site is for the purpose, which in the opinion of the Authority will be a source of annoyance to the health and comfort of the inhabitants of the neighbourhood;
- h) If the plot has not been approved as a building site by the Chairman, NIT;
- i) If the proposed occupancy of the building on the site does not conform to the land use proposals in the development plans or Zoning Regulations, and
- j) If the level of the site is less than prescribed datum level depending on topography and drainage aspects, and there is no proper drainage or plan for drainage in place during or after construction
- k) If it doesn't derive access from an authorised street/means of access described in these Regulations,
- l) If it is within the river/lake boundary and blue flood line of the river (prohibitive zone).
- m) If the site is not developable by virtue of restrictions imposed under any law or guidelines of any government department.
- n) If the site is hilly and having gradient more than 1:5 when measured across contour intervals of 5m.

11.2 Distance of Site from Electric Lines

No structure including verandah or balcony shall be allowed to be erected or re-erected or any additions or alterations made to a building on a site within the distance quoted in **Table No. 3** below in accordance with the prevailing Indian Electricity Rules and its amendments from time to time between the building and any overhead electric supply line.

Table No- 3

Sr. No	Voltage level (KV)	Vertical Distance (m)	Horizontal Distance (m)*	Corridor requirement (m)**
1	Low and medium voltage Lines and Service Lines.	2.5	1.2	2.4
2	33	3.7	2	15
3	66	3.7 plus 0.3m for every additional 33 kv or part thereof	2 plus 0.3m for every additional 33 kv or part thereof	18
4	110/100			22
5	132			27
6	220			35
7	400			52
8	500 HVDC			52
9	800			85

Notes:

* Horizontal distance is the clear distance required for any projections or parts of the building from the electric overhead transmission line corridor.

** Corridor is the space under overhead transmission lines required to be clear of any buildings or structures by concerned authority.

11.3 Construction within Blue and Red Flood Line

The construction within blue and red flood line along the river side may be permitted at a height of 0.50 m. above the level of red flood line (high flood line).

11.4 Development within 30 m. from Railway Boundary

For any construction within 30 m. from railway boundary, No Objection Certificate from Railway Authority shall be necessary.

11.5 Distance from Highways

No structure including veranda, balcony or the like shall be allowed to be erected or re-erected or any additions or alterations made to a building on a site within the Building Line and Control Line of roads provided in Annexure L for reference. The maximum height of buildings between the Building Line and Control Line shall be 13.0m. This shall be subject to the provisions of the State Highways Act, 1965 and the National Highway Act, 1956.

11.6 Storm Water Drainage

11.6.1 Discharge of Storm Water from Plots

All plots shall be graded with a minimum one percent slope to ensure efficient drainage into the storm water drains provided along the public road right of ways, after necessary rain water harvesting measures as described in these Regulations are carried out. Excess storm water from plots and internal roads shall be discharged directly into the common storm water drains provided along the public road right of ways or shall follow the natural drainage course in case no storm water drains are provided along public road right of ways. Under no circumstances, shall the storm water be discharged on the public road right of ways.

11.7 Site Planning for the Physically Challenged

Sites shall conform to the requirements given for physically challenged persons as provided in Regulation 33.

Sites/ plots for all buildings shall be made accessible to physically challenged persons. This shall be ensured by resolving problems created by topography, definitive architectural designs or concepts, water logging, levels and so on, so that ingress and egress to buildings can be facilitated. Further, provisions given in Part 3 Annex D, Section 3 of the National Building Code 2005, as amended from time to time shall be referred to as guidance.

12 MEANS OF ACCESS

12.1 Every plot/ building whether existing or proposed, shall have means of access as required in these Regulations.

12.2 Every person who erects a building shall not at any time erect or cause or permit to erect or re-erect any building which in any way encroaches upon or diminishes the area set apart as means of access.

12.3 Width of Means of Access

A. For Residential Development -The plots shall abut on a public means of access like street / road. Minimum width of access / layout road / internal road in any development proposal / subdivision / group housing shall be as given in Table No- 4. In the interest of general development of an area, the NIT/SPA may require the means of access to be of larger width than that required below.

Table No- 4

S. No.	Length of Means of access (meters)	Width of Means of access (meters)
i	Upto 150	9.00
ii	Above 150 and up to 300	12.00
iii	More than 300	15.00

B. **Other than residential development** –The minimum width of access / layout road / internal road in any development proposal in the industrial zone shall be as given in Table No.4a.

Table No- 4a

S. No.	Length of Means of Access in m.	Width of Means of Access in m.
i	Upto 75	12
i	75 to 150	15
ii	Above 150m	18 or more

Note:

- i) The means of access shall be clear of required marginal open spaces from the existing building line.
- ii) In no case, development on plots shall be permitted unless it is accessible by the authorized public street existing prior to coming in to force of these Regulations or road from the layout sanctioned prior to these Regulations.

12.3.1 Pathways

A pedestrian approach to the buildings from road / street / internal means of access wherever necessary, shall be through paved pathway of width not less than 1.5m., 2.0 and 4.5m provided its length measured from exit way of the building is not more than 20 m, 40 m and 60m respectively from the main / internal means of access. If the length is more than 60 m, then a regular street as provided in Table No.4a shall be necessary. This provision shall also apply to group housing scheme or layout of building for other uses except development under Regulation No 24.4.

12.3.1.1 The length of means of access shall be determined by the distance from the farthest plot (building) to the public street. The length of the subsidiary access way shall be measured from the point of its origin to the next wider road on which it meets.

- 12.3.1.2** In the interest of general development of an area, the Chairman, NIT may require the means of access to be of larger width than that required under regulation No. 12.3.
- 12.3.1.3** In case where a private passage is unrestrictedly used by public for more than 10 years as a means of access of width not less than 9 m. to a numbers of plots, the Chairman, NIT may take steps including improvement under, the provision of relevant Act to declare it as a public street.
- 12.3.1.4** In congested areas and gaothans in the case of plots facing street / means of access less than 4.5 m. in width the plot boundary shall be shifted to be away by 2.25 m. from the central line of the street/ means of access way to give rise to a new street / means of access way of width of 4.5 m. clear from the structural projections.
- 12.4** Means of access shall be levelled, metalled, flagged, paved, sewerred, drained, channelled, lighted, laid with water supply line and provided with trees for shade (wherever necessary) to the satisfaction of the Authority, free of encroachment and shall be maintained in a condition to the satisfaction of the Chairman, NIT.
- 12.4.1** **If any private street or any other means of access to a building is not constructed and maintained as specified above, the authority may by written notice require the owner or owners of the several premises fronting or adjoining the said street or other means of access or abutting thereon or to which access is obtained through such street or other means of access or which shall benefit by works executed to carry out any or more of the aforesaid requirements in such manner and within such time as the NIT/ SPA shall direct. If the owner or owners fail to comply with this direction, the NIT/ SPA may arrange for its execution and recover the expenses incurred from the owner/ owners.**
- 12.5** Access from the Highways/classified roads: Generally the plot / building along Highway and important roads with width (right of way) 30m or more shall derive access from service road. However, highway amenities like petrol pump; hotel etc. may have an access direct from such road categories mentioned above or more. The above shall be subject to the provisions of State Highways Act, 1965 and National Highway Act 1956.
- Provided that in suitable cases, the NIT/ SPA may suspend the operation of this rule till service roads are provided.
- 12.6** For buildings identified in Regulation No. 6.2.6.1, the following additional provisions of means of access for public occupancy buildings shall be ensured;
- The width of the main street on which the building abuts shall not be less than 12m and one end of this street shall join another street of width not less than 12 m. in width subject to Regulation No.12.3.
 - The approach to the building and open spaces on its all sides (see Regulation No. 15.1 shall be 6 m. and the layout for the same shall be approved in consultation with the Fire Officer, NIT/NMC, Director of Fire Services, Maharashtra and the same shall be of hard surface capable of taking the weight of fire engine, weighing up to 45 tones. The said open space shall be kept free of obstructions and shall be motorable.
 - Main entrances to the plot shall be of adequate width to allow easy access to the fire engine and in no case it shall measure less than 4.5m for a one way entrance and 6.5m for a two way driveway. The entrance gate shall fold back against the compound wall of the premises, thus leaving the exterior access way within the plot free for movement of fire engine / fire service vehicles. If main entrance at boundary wall is built over, the minimum clearance shall be 4.5m.
 - No building shall be at a distance of more than 25m from a means of access to a fire tender.

12.7 Access Requirements for Fuel Filling Stations

The width of the main street on which the fuel filling stations or fuel filling cum service stations shall abut shall not be less than 12m and one end of this street shall join another street of width not less than 12m in width subject to other conditions given in Regulation 48.

13 REGULATIONS FOR LAND SUB-DIVISION AND LAYOUT

13.1 Layout or sub-division proposal shall be submitted for the following:

- When more than one building, excepting for accessory buildings in the case of residential building, is proposed on any land, the owner of the land shall submit proposal for proper layout of building or sub-division of his entire contiguous holding.
- When development and redevelopment of any tract of land which includes division and sub-division or amalgamation of plots for various land uses within a colony.
- When group housing scheme or campus /cluster planning of any use is proposed.

13.2 Roads / Streets in Land Sub-division or Layout

13.2.1 The width of roads/ streets/ public and internal access ways including pathways shall conform to provisions of Regulation No. 12.3 to 12.7.

13.2.1.1 Every plot, existing or proposed, shall have means of access adhering to the minimum requirements given in these regulations which shall be clearly demarcated on the sub-division layout plan submitted for approval.

13.2.1.2 Plots within a layout shall abut on a street/ road. Plots which do not abut on a road shall abut or front on a means of access, the width and other requirement of which shall be as given in Regulation 12. The minimum width of the means of access to individual plots within a sub-division shall adhere with the requirements given in Table 4, 4(a) and 4(b).

13.2.1.3 In addition to the provisions of Regulation No. 12.3, Dead end roads may be allowed only with a cul-de-sac.

- it is used as a means of access to an individual plot;
- the maximum length shall normally be 150m;
- the ends shall be higher in level than the level of starting point of such dead end roads;
- alignment of the road is straight;
- The minimum road right of way and internal and external radii of cul-de-sacs shall be as prescribed in the Table No- 4b.

Table No- 4b

Activity/ Area	Right of Way Width	Inner turning radius of road	Outer radius of road
Residential	9.0m	6.0m	15.0m

The following figure 4 demonstrates the turning radii for dead end roads/ cul-de-sacs for respective right of ways.

Figure 4

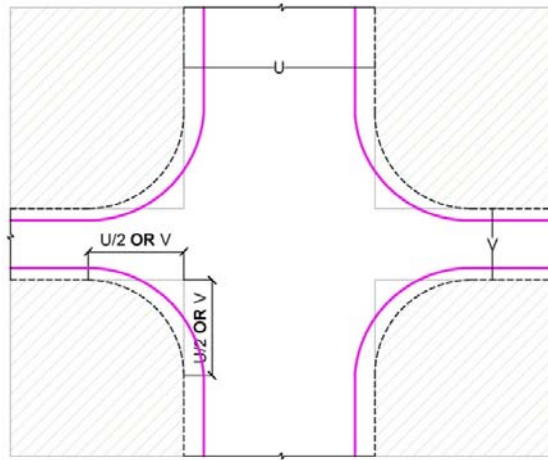


13.2.2 Intersection of Roads/ Roads Geometry at Junctions

All road intersections shall be rounded off to allow turning radius for vehicles, unless otherwise directed by the Chairman NIT. Turning radius for all roads shall be measured at the inner edge of the road carriage way in case a curb is not present. In case a curb is present, the turning radius shall be measured at the outer face of the curb. Buildings shall be set back at the required marginal distance as per Regulation 23 from the adjusted plot boundary due to the rounded off junction.

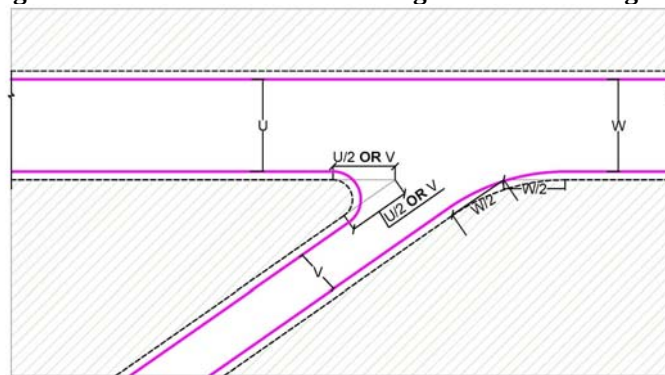
- 13.2.2.1** When roads of equal width intersect at right angles, tangent lengths from the point of intersection to the curve shall be equal to half the width of the roads. In cases when width of intersecting roads is not equal, both tangent lengths from the point of intersection to the curve shall be equal to half the width of wider of the two roads or full width of the narrow road, whichever is more, subject to minimum of 6m (See figure 5).

Figure 5: Road intersection at right angles



When roads intersect at an angle less than 60 degrees, the tangent length at obtuse angle, shall be equal to half the width of the road from which the vehicle enters. The tangent lengths at acute angle shall be equal to half the width of the roads in case widths are equal. In case widths of roads intersecting at acute angle vary, the tangent lengths shall be equal to half the width of wider of the two roads or full width of the narrow road, whichever is more, subject to minimum of 6m (as shown in figure 6).

Figure 6: Road intersection at an angle less than 60 degrees



- 13.2.2.2** While granting the development permission for land sub-division or group housing/campus planning, it shall be necessary to coordinate the roads in the adjoining lands.
- 13.2.2.3** Whenever called upon by the NIT/ SPA to do so, areas under roads shall be handed over to the NIT/SPA by way of deed after development of the same for which nominal amount of Re 1/- shall be paid by the NIT/ SPA.

13.2.3 Sidewalks

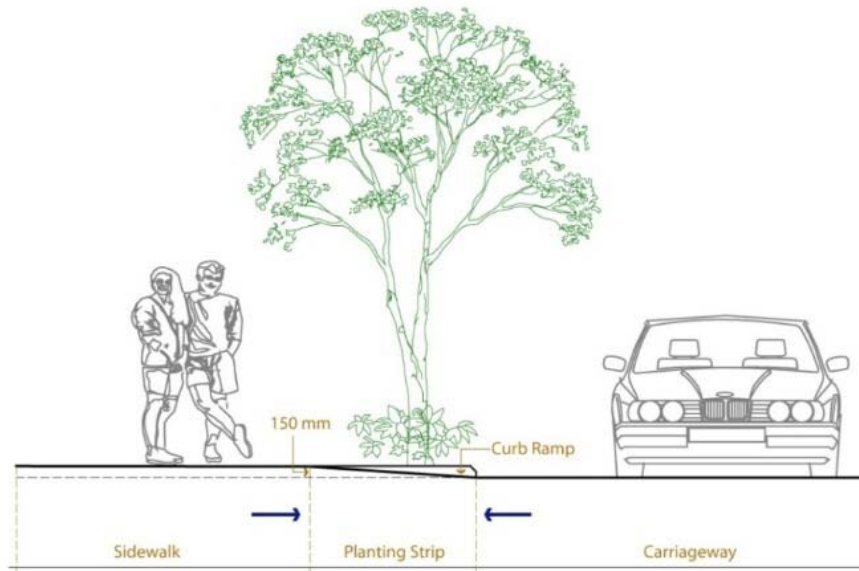
All internal roads with right of way above 15m within a layout shall have a designated area for sidewalks (see figure 7).

- Sidewalks shall have a clear walking path of a minimum 1.5m width with no encumbrances or vertical obstructions like signage, light poles etc;
- Sidewalks shall be constructed with a cross slope of 1:50 (2 percent slope) in order to facilitate drainage toward the street or any adjacent planting strip. No sidewalk shall drain into a private land parcel/plot.
- Sidewalks shall be generally between 150mm to 175mm higher than the road level measured at the base of the curb.

13.2.4 Curb Cuts and Driveways

Curb cuts and driveways shall be provided only at the designated point of entry into each plot and at all crosswalks to enable wheelchair access to and from the sidewalk. Driveways shall be no more than 4m for a one way access into the plot. For a driveway serving a two-way (two lane) access into a plot, the width of the driveway shall be a minimum of 5.5m and a maximum of 7.0m. Curb cuts and driveways shall be provided in a manner such that the curb ramps do not interfere with the flow of pedestrian circulation on the sidewalk. The curb ramp shall be constructed within the width of the planting strip, such that it flushes with the sidewalk landing at the top and with the street at the bottom, as shown in the Figure 7.

Figure 7: Sidewalks and curb cuts



13.3 Recreational Open Spaces

13.3.1 Requirement

In any layout or subdivision or any development of land for any use/zone admeasuring 0.40 Ha or more after deducting Development Plan roads and reservation area, if any, 10% of the entire holding area shall be reserved as recreational open space. Such a recreational open space shall, as far as possible, be provided in one place. In case of land admeasuring more than 0.8 ha, such recreational open space may be allowed to be left at different locations in the same layout provided that the size and other dimensions conform to the provisions herein below.

In case of development of land for educational purpose, 40% of the gross area (or as decided by the Government from time to time) shall be earmarked for playground which shall be inclusive of 10% recreational open space. Area covered by the playground shall be included in the computation of the plot area for FSI calculations.

Notwithstanding anything contained in this rule, the shape and location of such open space shall be such that it can be properly utilised as playground.

For educational institutions, if playground is not a part of the same plot, but the institution has a provision for an independent playground under its ownership or lease admeasuring minimum 3500sqm with a minimum dimension of 40m, located within a distance of 200m from plot boundary, only then can the recreational open space be limited to 10% of the plot area for the plot on which the institution will come up.

Provided that, the above-mentioned area of 0.4 Ha or 0.8 Ha shall be measured with reference to original holding as on 11th January 1967 and not with reference to sub-divided holding in revenue record thereafter without the permission under the Maharashtra Regional & Town Planning Act, 1966. If such sub-divided holding in revenue record admeasures less than 0.4 or 0.8 Ha, then 10% open space shall be left which shall not be in any case less than 250 sq.m.

Provided further that, in case of lands declared surplus or retainable under Urban Land (C & R) Act, 1976, if the entire retainable holding or entire surplus holding independently admeasures 0.4 Ha or more, then 10 percent recreational open space shall be necessary in respective holding.

Provided further that, no such open space shall be necessary:

- a) In case of layout or subdivision of plots from already sanctioned layout by the NIT/SPA where the requisite recreational open space has already been left in the sanctioned layout;
- b) for development of the reservations in the development plans designated for the purpose other than residential;
- c) In case of transfer godowns and fuel filling stations.

13.3.2 The owner shall have to give an undertaking that the recreational open space shall be for the common use of all the residents or occupants of the layout / building unit.

- a) On sanction of the development permission, the recreational open space shall deem to have vested in the society/ association of the residents/ occupants. In case such society or association is to be formed, the possession/ custody of recreational open space shall remain with the Chairman, NIT until such association/ society is formed. The recreational open space shall not be sold to any other person and it shall not be put to any other user except for the common use of residents/ occupants.
- b) If the NIT/ SPA is convinced that there is misuse of open spaces; in such case the NIT/ SPA shall take over the land of recreational open space.

13.3.3 No permission shall be granted to delete / reduce open spaces of the existing sanctioned layout / subdivision. However, while revising the layout, such recreational open space may be rearranged without decrease in area subject to minimum prescribed area under these Regulations with the consent of plot/ tenement holders/ co-owners; but such revision of recreational open space area shall ordinarily not be allowed after a period of 4 years from the first sanction.

13.3.4 The open spaces shall be exclusive of location of accesses/ internal roads / designations or reservations in development plan roads and areas for road widening.

13.3.5 No such recreational open spaces shall admeasure less than 400 sq. m.

13.3.6 Minimum dimensions -The minimum dimension of such recreational open space shall be 10m and if the average width of such recreational open space is less than 20m the length thereof shall not exceed 2.5 times the average width.

13.3.7 Such recreational open space shall also be necessary for group housing scheme or campus/ cluster planning for any use / zone.

13.3.8 If required, structures and uses which can be permitted in the recreational open spaces shall be as under:

- 1) There shall be two storeyed structure with maximum 15% built up area of recreational open space, out of which 10% built up area shall be allowed on ground floor and remaining 5% can be permitted on 1st floor. In case of stilts, additional floor may be allowed. However, all

such structures shall be included as a part of the BUA for FSI calculations (see Regulation 15.4.3).

- 2) The structures used for the purpose of pavilion or gymnasium or club house or vipasana and yoga center or crèche or kindergarten or library or water tank, health out post if required by the NIT/ SPA or other structures for the purpose of sports and recreation activity may be permitted. Convenience shopping below pavilion facing on road, on payment of premium at the rate of 10% of the land rate in the Annual Schedule of Rates, with requisite side margins required for stadium may be allowed.
- 3) Detached toilet block or parking, either temporary or permanent shall not be permitted.
- 4) A swimming pool and related ancillary structures may also be permitted in such a recreational open space. The ownership of such structures and other appurtenant uses shall vest, by provision in a deed of conveyance, in all the owners on account of whose cumulative holdings, the recreational open space is required to be kept as recreational open space or ground viz "R.G" in the layout of sub-division of the land.
- 5) Elevated storage reservoir (ESR)
- 6) The proposal for the construction of such structure should come as a proposal from the owner/s, owners' society/ societies or federation of owners' societies and shall be meant for the beneficial use of the owners/ members of such society/ societies/ federation of societies.
- 7) Such structure shall not be used for any other purpose, except for recreational activity for which a security deposit as decided by the Chairman will have to be paid to the NIT.
- 8) The remaining area of the recreational open space shall be kept open to sky and properly accessible to all members as a place of recreation, garden or a playground.
- 9) The owners' society/ societies, the federation of the owners' societies shall submit to the Chairman, NIT; a registered undertaking agreeing to the conditions in (6) to (8) above while obtaining permission for the above said construction.

13.3.9 Every plot meant for a recreational open space shall have an independent means of access, unless it is approachable directly from every building in the layout.

13.3.10 In case of sub-division of land admeasuring 8000 sq. m. or more in area in an industrial zone, 10 percent of the total area in addition to 10 percent stipulated in Regulation No 13.3.1, shall be reserved as amenity open space which, shall also serve as general parking space. When the additional amenity open space exceeds 1500 sq. m., the excess area may be used for construction of buildings for banks, canteens, welfare centre, health centre, offices, convenient shopping, crèches and other common purposes considered necessary for industrial users as approved by the Chairman, NIT. However, such amenity space shall not be required in case of permission governed under Regulation No.22.7.8.

13.3.11 Amenities for Layouts of Larger Areas in Residential Zone:

13.3.11.1 For layouts admeasuring more than 2,000 sqm, provision of 10% of the total area subject to minimum of 250sqm shall be made for amenity space in the layout for purposes such as defined in Regulation No.2.9 or as approved by the Chairman, NIT. The area earmarked for such amenities shall be developed for the same purpose. Provided that such amenity space shall not be required in case of permission governed under Regulation No. 22.7.8. This provision shall not be mandatory for layouts with area admeasuring less than 2,000 sqm.

13.3.11.2 Convenience Shopping

In sub-division layouts larger than 2 Ha, provision shall be made for convenience shopping (see 2.28). Such shopping area shall not be less than 2 percent subject to minimum requirements given in Regulation 21.4.1, but shall not exceed 5 percent of the total land area of the plot. Further, following provision shall apply:

- a) Such convenience shopping shall be conveniently located and accessible within 300m from any part of the layout.

- b) Within a layout, the shopping centres and retail uses can be provided on ground floor, and upper floors may be utilized for residential purpose and conveniences like banks, places for doctors and medical practitioners, architects/ engineers, income tax consultants/advocates or any other such professionals.
- c) In case of group housing schemes, the convenience shopping shall be 0.2 to 0.5 percent of permissible built-up area.

13.3.12 Provision of plots / tenements for EWS/LIG: This -provision shall be as per guidelines issued by the Government from time to time.

13.3.13 On the sanction of development permission, the Recreational Open Spaces in a layout or subdivision shall be handed over to the NIT/SPA after development of the same by the developer/ land owner. A nominal amount of INR 1/- shall be paid by the planning authority for the same. The NIT/ SPA may permit the owner/ developer to undertake development of the open spaces for bonafide reasons as recreational community open spaces, unless the NIT/SPA is convinced that there is misuse of open spaces in which case, the NIT/SPA shall take over the said land.

13.4 Plot Area, Plot width for Various Uses

Minimum plot areas and widths for various uses shall be as given below in the Table No. 5.

Table No. 5

Sr No	Uses	Plot Area (in sqm)	Min plot width/ Frontage (m)	Type of Development
(1)	(2)	(3)	(4)	(5)
1	Residential and mixed residential	Minimum 30 maximum 125	Between 4.0 to 8.0	Row house
		Minimum 125 maximum 250	Between 8.0 to 12.0m	Semi Detached
		250 and above	Width above 12.0m; no dimension less than 12.0m	Detached
2	Plots in EWS Housing / High Density Housing / Sites and Services / Slum Upgradation /Reconstruction Scheme by public authority	Minimum 25 to maximum 125	4.0m	Row house
3a	Fuel filling station without service bay /	Minimum 545	Minimum 16.75m	Detached
3b	Fuel filling station with service bay	Minimum 1,100	Minimum 30.5m	Detached
4	Industrial			
4a	Manufacturing industrial units	Minimum 300	10m	Detached
4b	Canteens, transport offices, individual shops for industrial goods and services	Minimum 200	-	Semi-detached
4c	Plots for convenience shopping units or galas	Minimum 50	-	Semi-detached
5	Cinema theatre/ Assembly hall	Minimum 2,000	30.0m	Detached
6	Mangal Karyalay	Minimum 1,000	30m	Detached

Sr No	Uses	Plot Area (in sqm)	Min plot width/ Frontage (m)	Type of Development
(1)	(2)	(3)	(4)	(5)
7	4/5 star hotel - independent plot	Minimum 2,500	30m	Detached
8	3 star hotel - independent plot	Minimum 1,000	30m	Detached

Notes:

- The plot width to depth ratio shall be 1 : 1.5 to 1 : 2.5; as far as possible.
- In public housing schemes for E.W.S. undertaken by government or semi-government organisations, marginal spaces shall be as per their respective schemes and rules.
- The front setback for already existing layouts / roads shall be as per existing scheme.

13.4.1 Net Plot Area and Computation of FSI

13.4.1.1 Computation of FSI

FSI shall be computed on the basis of gross plot area for plots admeasuring 0.4ha or less. For plots admeasuring more than 0.4ha computation of FSI shall be on the basis of net plot area.

13.4.1.2 Calculation of Net Plot Area

- In case of a layout/ sub-division of plots such net area , such net area shall be calculated at 90% of the gross plot area, after deducting from the gross plot area, the area covered by amenity space under Regulation 13.3.11 and Development Plan proposals, if any.
- In the case of group housing scheme on land having original holding greater than 0.4 H, net plot area shall be 90% of the gross plot area excluding area covered by amenity space under Regulation 13.3.11 and Development Plan proposals, if any.
- In case of plotted layout, such FSI of 0.9 of gross area shall be distributed on all plots on prorata basis.
- In case of plots from approved layouts, the same plot shall be treated as net plot area and shall be eligible for full permissible FSI under these Regulations.

In case of amalgamated plots, the net plot area is equal to gross plot area after amalgamation for computation of FSI provided original land holding of each plot does not exceed 0.40 ha.

13.4.1.3 Built-up area (BUA) under amenities within the designated amenity space shall not be included in the BUA derived from the net plot area calculations. BUA for amenities shall be computed on the basis of the designated plot area for amenities and the applicable FSI for the plot.

13.5 Relocation of DP Sites/DP Proposals

If the land proposed to be laid out for any development is affected by any reservations for public purposes, the authority may agree to adjust the location of such reservation to suit development without altering the area of such reservation.

All such relocations of the reservations/ alignment of roads shall be carried out in consultation with the Head of the Nagpur Division, Town Planning Department and shall be reported by the Chairman to the Government at the time of sanctioning the development permission. The Development Plan is deemed to be modified to that extent.

Provided that no such shifting of the reservations shall be permitted:

- if the reservation proposed to be relocated is in parts;
- beyond 200 m of the location in the Development Plan;
- beyond the same holding of the owner in which such reservation is located;

- d) unless the alternative location and size is at least similar to the location and size of the Development Plan as regards access, levels, etc.;
- e) unless the relocation is within area covered by the layout or development permission under sanction; and
- f) if the reservation is already shifted under these regulations;
- g) if the land is reserved in view of its geographical location like Bio-Diversity Proposal, Nala training reservation etc.

Provided further that relocation of the reservation from a land may also be permitted on any land within 200 meters belonging to other owner's land if the other owner consents to such relocation of reservation on his land and consents to hand over his land to the NIT/ SPA where reservation is proposed to be relocated in lieu of TDR subject to conditions mentioned in sub regulation no (d) and (f) above.

13.6 Other Stipulations

- a) In case of Development / re-development of any land, building or premises, the intended use shall conform to the use zones, purpose of designation, allocation or reservation, as the case may be, unless specified otherwise.
- b) Combination of Public Purposes / uses in reserved sites: Where the Authority or the Appropriate Authority proposes to use land / building / premises reserved for one specific public purpose/ purposes, partly for different public purpose / purposes, it may do so in consultation with the Head of the Nagpur Division, Town Planning Department. Provided that such partial use shall not exceed 40% of the reserved area and such combination shall not be of incompatible uses.

13.7 Amalgamation of Plots

13.7.1 Amalgamation of plots shall be permissible if they are contiguous and form a sizable plot to aid the planning of a layout/ building.

13.7.2 Amalgamation of Plots shall not be permitted in the following cases:

- a) when plots to be amalgamated have different tenures (Class 1 and Class 2 or N/A and agriculture tenures);
- b) when a public right of way or public open space is located or planned between the plots to be amalgamated; and
- c) when width of the access road right of way is below 9.0m.

13.7.3 Amalgamation of Plots in Different Land Use Zones

Amalgamation of plots shall not be permitted in case of incompatible land uses. However amalgamation of plots in different and compatible land use zones may be allowed subject to the following conditions:

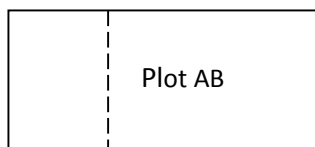
The land uses assigned within the amalgamated plot adhere to the original boundary of land use demarcation as shown on the Development Plan

- a) Combined FSI of all individual plots may be distributed across the amalgamated plot, however, the FSI and BUA permissible shall not exceed the limits set by the particular land use zone.
- b) Examples illustrating this are given below:

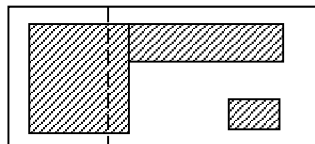
Case 1: Amalgamated plots belong to the same Land Use Zone

Plot A	Plot B
--------	--------

Plot A = 2,000sqm
Plot B = 3,000sqm
Land Use Zone for either plots is R3

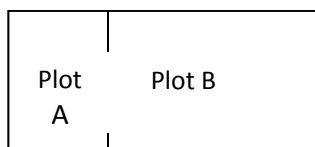


Amalgamated plot AB = 5,000sqm
FSI permissible in R3 Zone = 1.0



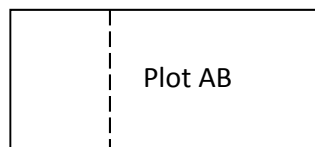
Permissible BUA = 5,000sqm can be utilized
anywhere within the amalgamated plot

Case 2: Amalgamated plots belong to two or more Land Use Zones



Plot A = 2,000sqm; Land Use Zone Residential R3

Plot B = 3,000sqm; Land Use Zone Commercial (C)



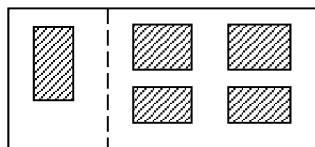
Amalgamated plot AB

FSI permissible in R3 Zone = 1.0;

BUA permissible in plot A = 2,000sqm

FSI permissible in C Zone = 1.5

BUA permissible in Plot B = 4,500sqm



Maximum BUA of 2,000sqm can be utilized on the
portion of amalgamated plot under original 'Plot A'
and maximum BUA of 4,500sqm can be utilized on
the portion of amalgamated plot under original 'Plot B'.

14 LAND USE CLASSIFICATION AND PERMISSIBLE USES

14.1 The various building uses and occupancies and premises to be permitted in the various zones are given in Part III of these Regulations. The Chairman, NIT may modify the specified uses given in Part III of these Regulations with the prior approval of the Director of Town Planning, Maharashtra State, Pune.

14.2 No building or premises shall be changed or converted to a use which is not in conformity with the provisions of these Regulations.

14.3 Uses to be in Conformity with the Zone

Where the use of buildings or premises is not specifically designated on the Development Plan, it shall be in conformity with the zone in which they fall. Any lawful non-conforming use of premises existing prior to the date of enforcement of these regulations, shall continue upto a period as may be specified in the Development Plan; provided further that a non-conforming use shall not be extended or enlarged except as provided in Regulation No. 14.4 and that when a building, containing non-conforming use is pulled down or has fallen down, the use of the new building shall be in conformity with these Regulations.

14.4 Non-Conforming Uses

Any lawful non-conforming use existing prior to enforcement of these regulation, may be allowed to be continued or expanded to the extent of 50 percent of the existing built up subject to availability of FSI as per the provisions of these regulations applicable to such use, provided such additions do not result in the FSI/ total permissible built up area for the non-conforming use to exceed the provisions as per these Regulations, except in Hill Top-Hill Slope Zone of any plan.

14.4.1 Such non-conforming uses or premises identified at the time of publication of the Development Plan are shown under the following categories on the Development Plan:

- a) Existing Residential in Agriculture A1
- b) Existing Residential in Agriculture A2
- c) Existing Residential in Industrial
- d) Existing Residential in Open Space/ Recreation
- e) Existing Residential in Mines and Quarries

15 OPEN SPACE, SETBACK AREA AND HEIGHT LIMITATIONS

15.1 Exterior Open Spaces

15.1.1 Provisions for open spaces at the front side/sides and rear of the building shall be as given in Part IV of these Regulations.

15.1.2 Buildings abutting on two or more streets

When a building abuts on two or more streets, the set-backs from the streets shall be such as if the building was fronting each such street.

15.1.3 Open Spaces/ Setbacks Requirements

15.1.3.1 Side or rear setbacks with respect to the height and depth of the building for light and ventilation:

- i) Setbacks on all sides shall be provided as per Regulation 23, Tables 13 and 13(a), for buildings upto 15m height.
- ii) For buildings with height between 15m and 24m, setbacks on all sides except front shall be minimum $[(H/2) - 4]$ rounded to the nearest decimeter. This will be subject to a maximum of 20m, subject to a minimum of 3.0m for residential building and 4.5m for a commercial building; where, H = height of the building above ground level.
- iii) For buildings above 24m height, the open space on all sides except the front side shall be minimum $H/3$. Provided that, if length/ depth exceeds 40m, an additional setback of 10 percent length or depth of the building minus 4.0m shall be added to the above required margin.
- iv) For buildings that are tower like structures, minimum setback on ground for podium shall be 6m. Setbacks for the tower like portion above podium level shall be as per setbacks for high rise buildings

Provided further that:

- i) The open space for separation between any building and a single storey accessory building shall not be less than 1.5m.
- ii) The minimum distance between any two buildings with a maximum height of 15m in housing developed by government or semi-government agencies only, shall be 4.5m.
- iii) Setbacks in a plot abutting the amenity / recreational open space in the same layout shall not be less than 3m.

- iv) Buildings shall be set-back at least 3.0m from an internal means of access in a layout of buildings except in case of campus planning.

15.1.3.2 Front Margins

Front margin shall be as per Regulation 23.2.1 or as given below, whichever is more.

Sr No	Height of the building	Front Setback (meters)
1	Above 15 m and upto 24 m	6.00 m
2	Above 24 m and upto 37.5 m	9.00 m
3	Height above 37.5 m	12.00 m

15.1.4 Setbacks Separate for Each Building or Wing within a Plot

The open spaces required under these regulations shall be separate or distinct for each building and where a building has two or more wings, each wing shall have separate or distinct open spaces according to these regulations for the purpose of light and ventilation of the wings.

15.1.5 Setbacks to be provided for the Full Consumption of FSI

Side and rear setbacks of the building shall conform to height of the building regardless of consumption of full FSI permissible for a given zone. Smaller setbacks than required under Regulation 15.1.3 may be permissible if the height of building is restricted permanently to any smaller height and the owner/ developer submits an undertaking to NIT subject to adherence to the minimum setback requirements given in Table 13.

15.2 Interior and Exterior Chowk

15.2.1

- Interior chowk:** Wherever habitable rooms or kitchen derive ventilation from inner chowk or interior open space, the size of such interior open space shall not be less than 3 m x 3m upto height of 15m. For height above than 15m, the area of the interior open space shall not less than $H/5 \text{ m} \times H/5 \text{ m}$; where H = height of highest wall of the chowk.
- Exterior Chowk:** The minimum width of exterior chowk (as distinguished from its depth), for the purpose of light and ventilation, shall be not less than 2.4m and depth shall not exceed 1.5 times the width for buildings upto 15m height. For height more than 15m, the exterior open space shall not be less than $H/6 \text{ m} \times H/6 \text{ m}$; where H = height of the highest wall of the chowk. If width of the exterior chowk is less than 2.4m then it shall be treated as a notch and the provisions of exterior chowk shall not apply. However, if the depth of the exterior chowk is more than the width, the provisions of Regulation 15.1.4 shall apply with respect to the open spaces to be left between the wings.

15.3 Area and Height Limitations

The area and height limitations, height of buildings, floor space index, abutting different road widths shall be as given in Part IV and Regulation No. 15.5.

15.4 Permissible Structures / Projections in Marginal Open Spaces

15.4.1 The following Projections shall be Permissible in Marginal Open Spaces:

- Projections into open spaces

Every open space provided either interior or exterior shall be kept free from any erection thereon and shall be open to the sky and no cornice, chajja, roof or weather shade more than 0.75 m wide shall overhang or project over the said open space so as to reduce the width to less than the minimum required. However, sloping chajja provided over balcony/ gallery etc. may be permitted to project 0.3 m. beyond balcony projections at an angle of 30 degree from horizontal level. In all instances the clear height below such projections shall be maintained at 2.5m from the finished ground level.

- b) A **canopy** not exceeding 5 m. in length and 2.5 m. in width in the form of cantilever and unenclosed (as defined in Regulation 2.26) over the main entrance providing a minimum clear height of 2.40 m. below the canopy. The canopy shall not have access from upper floors (above floors), for using as sitting out place. There shall be a minimum clearance of 1.5 m. between the plot boundaries and canopy.

Construction of ottas, railings, barricades or supporting columns for canopy shall not be allowed in front marginal open space. However steps may be permitted within 1.2m from the building line. Porch shall be at a clear distance of required minimum setback from the plot boundary.

- c) **Balconies:** Balcony or balconies with a minimum width of 1.00 m and maximum 2.00 m may be permitted subject to the following conditions:
- i. In non-congested area, no balcony shall reduce the marginal open space to less than 2 m. In congested area balcony may be permitted on upper floors projecting in front setbacks except over lanes having width 4.50 m. or less.
 - ii. No balcony shall be allowed on ground floor which shall reduce minimum required front setback or marginal open space.
 - iii. The width of the balcony will be measured perpendicular to the building upto the outermost edge of balcony.
 - iv. When provided on upper floors, balconies shall be clear of building setbacks.
- d) A **projection** of maximum 30 cm. on rooftop terrace level may be allowed throughout the periphery of the building provided that the clear height below such a projection is at least 3.2 meters. In case of pitched roof projection of maximum 45 cm. at roof top terrace level throughout periphery of the building shall be allowed.
- e) **Accessory buildings:** The following accessory buildings may be permitted in the marginal open spaces:
- i. In an existing building where toilet is not provided, a single storeyed toilet subject to a maximum area of 4.0 sq. m. in the rear or side open space and at a distance of 7.5 m. from the road line or the front boundary and 1.5 m. from other boundaries may be permissible. The Chairman, NIT may reduce 1.5 m. margin in exceptional cases to avoid hardship.
 - ii. Parking lock up garage not exceeding 2.4 m. in height shall be permissible in the rear corner of the plot with independent bungalow. Parking lock up garage when attached to main building shall be 7.5 m. away from the road line and shall be of such constructions giving fire resistance of 2 hours. The area of sanitary block excluding 20 sqmt and parking lock up garage shall be taken into account for the calculation of FSI.
 - iii. Suction tanks, soak pits and space required for fire hydrants, electrical and water-fittings, underground water tanks, dustbins etc.
 - iv. One watchman's cabin / booth not more than 3 sq. m. in built up area having min. 1.20 m. width or diameter of cabin / booth.

Note: When a building abuts on three or more roads then above mentioned user, except (iv), shall be permissible in front setback facing the smaller road or less important from traffic point of view.

- a) "Ramp" into the basement shall be allowed subject to 6.0 m. clear marginal distance for movement of fire fighting vehicle.
- b) Fire escape staircase of single flight not less than 1.2 m.
- c) Staircase mid-landing of 1.2m width with clear minimum headway of 2.1m below the mid-landing. However, clear distance from edge of landing to the plot boundary shall not be less than 1.8m.

- d) In case of high rise buildings only watchman kiosk/caretaker booth shall be permissible within the marginal open spaces created on account of mandatory setbacks.
- e) Exemption from ground coverage calculations: The built-up area of one garage per residential plot or one garage per plot area of 500sqm shall not be included in ground coverage calculations.

15.4.2 Exclusion of Structures / Projections for FSI Calculation

The following shall not be counted under built-up area calculations for the computation of FSI:

- a) open to sky rooftop terrace at any floor of the building;
- b) covered parking under stilts or parking spaces in public buildings open from all sides and having only roofs without any floor above, with a maximum clear height of 3m (if above this height, the stilt area will be calculated in the FSI), and parking above ground designed as a vehicular parking area with atleast 10 parking spaces all at the same level in the same location / entire parking floor. (Scattered parking at the same level above ground level not meeting the above criteria will not be exempt from FSI calculations);
- c) basement parking and mechanical parking;
- d) covered/ open ramps leading to parking;
- e) chajja projections upto 0.6m measured from the finished surface of the external wall;
- f) area occupied by the swimming pool open to sky;
- g) water tanks, sewage treatment plants;
- h) letter box area of maximum area 3.6m x 3m and other conditions prescribed in Regulation 17.17;
- i) society office upto maximum dimension of 3m x 4m;
- j) meter room subject to maximum size 3.0m x 5.0m;
- k) voids in the floor plate to create double height spaces and atriums in basements, ground and upper floors.

Such atriums and double height spaces occurring at the ground and upper floors shall be computed within FSI calculations for only the useable area on that particular floor provided that such area does not exceed 15% of the total BUA for the building between the ground and the top floor. Atrium or double height spaces within the building that exceeds the 15% limit shall be computed at 1.5 times the atrium or double height space useable floor area. Double height spaces occurring in the basement for building utilities and mechanical equipment etc. and double height terraces are exempt from the above 15% limits and shall be counted once as per their useable floor plate.

(Example: A building with total BUA of 10,000sqm between the ground and top-most floor has an atrium from the third floor to the roof of the building. Area of the atrium at the third floor is 1800sqm. Hence the total area for FSI computation will be 15% of 10,000sqm which is 1500sqm plus 1800sqm x 1.5 = 4500sqm. Thus total area consumed under the atrium space will be considered as 6000sqm.)

15.4.3 All other parts of the building except those mentioned in 15.4.2 shall be included in the built-up area for computation of FSI.

15.5 Height of Building

The maximum height of a building shall be subject to the provisions given below:

- a) Buildings on road ROW below 12 meters width shall be limited to a height of 15 meters subject to other restrictions if any.
- b) Buildings on road ROW 12 meters width shall be limited to a height of 24 meters subject to other restrictions if any.

- c) For buildings of road ROW above 12 meters the maximum height shall not exceed twice the total of width of the road abutting plus front open space subject to other restrictions if any.
- d) If a building abuts on two or more streets of different widths, the height of building shall be regulated by the street of greater width.
- e) For building in the vicinity of aerodromes, the maximum height of such buildings shall be subject to values framed by the Civil Aviation Authorities or the development permission shall be considered only after applicant produces NOC from Airport Authority.
- f) In addition to (e) for Industrial Chimneys coming in the vicinity of aerodromes, it shall be of such height and character as prescribed by Civil Aviation Authorities and all Industrial Chimneys shall be of such character as prescribed by the Chief Inspector of Steam Boilers and Smoke Nuisance, and
- g) Buildings intended for hazardous godowns storage of inflammable materials and storage of explosives shall be single storied structures only.

15.6 Height Exemptions

The appurtenant structures such as roof tanks and their supports, ventilation, air-conditioning, lift rooms and similar service equipment, stair cover, chimneys, mobile communication towers, and parapet walls and stilt parking shall be exempted from computation of height of building. Architectural features not exceeding 1m in height shall not be included in computation of height of building.

16 PARKING, LOADING AND UNLOADING SPACES

16.1 Parking Spaces

Wherever a property is to be developed or redeveloped, parking spaces at the scale laid down in these Regulations shall be provided. When additions are made to an existing building, the new parking requirements will be reckoned with reference to the additional space only and not to the whole of building but this concession shall not apply where the use is changed. The provisions for parking of vehicles shall be as given in Table No.6.

16.1.1 General Space Requirements:

- a) **Types:** The parking spaces mentioned below include parking spaces in basements or on a floor supported by stilts, or on upper floors, covered or uncovered spaces in the plot and / or lock up garages. The height of the stilt shall generally be allowed upto 3 m.

Size of parking space: The minimum sizes of parking spaces to be provided shall be as shown below in Table No.6.

Table No- 6

Sr. No	Type of Vehicle	Minimum size/ area
1	Bicycle	0.7 sqm (0.5m x 1.4m)
2	Scooter, motor cycle	2.0 sqm (1m x 2.0m)
3	Passenger car (motor vehicle)	2.5 m x 5 m
4	Ambulance, bus	3.75 m x 10 m
5	Transport vehicle (tempo, truck etc.,)	3.75m x 7.5m
6	Trailer truck	5.0m x 20.0m

Notes:

- i) In case of parking spaces for motor vehicles, upto 50 percent of the prescribed space may be of the size 2.3m x 4.5m
- ii) In case of school buses, relevant parking space as per the size of the bus (mini bus or standard size bus) shall be applicable.

- b) Marking of parking spaces: Parking space shall be paved and clearly marked for different types of vehicles including parking for handicapped persons. One-way and, two-way parking aisles shall be painted to indicate direction of travel.
- c) Maneuvering and other ancillary spaces: Off street parking space must have adequate vehicular access to a street and the area shall be exclusive of drives, aisles and such other provisions required for adequate maneuvering of vehicles.
- d) Ramps for Basement parking: Ramps for parking in basement should conform to the requirement of Regulation No.19.4.6.

Table No- 7
Off Street Parking Norms

Sr. No.	Occupancy	One parking Space for every	Non- Congested Area				Congested Area			
			Car	Scooter	Cycle	Other	Car	Scooter	Cycle	Other
1	2	3	4	5	6	7	8	9	10	11
1	Residential Multi family	4 tenements upto 40sqm carpet area	2	6	6	Additional 10 percent of the required number of spaces for visitors parking	1	3	3	-
		2 tenements above 40sqm and below 60sqm carpet area	2	4	4	Additional 10 percent of the required number of spaces for visitors parking	1	2	2	-
		2 tenements with carpet area above 60sqm or and below 80sqm	3	4	4	Additional 10 percent of the required number of spaces for visitors parking	1	3	3	-
		Tenement with carpet area above 80sqm upto 150sqm	2	2	2	Additional 10 percent of the required number of spaces for visitors parking	1	2	2	
	Residential	Bungalow/ tenement with carpet area 150sqm or above	Min. 2 and 1 additional for every 100sqm carpet area	2	2	-	1	2	2	

Sr. No.	Occupancy	One parking Space for every	Non- Congested Area				Congested Area			
			Car	Scooter	Cycle	Other	Car	Scooter	Cycle	Other
2A	3 to 5 star hotels	60sqm BUA or part thereof	1	1	1	2 Loading/ unloading spaces for BUA above 1000sqm and 1 additional space for every 5000sqm or part thereof	1	1	2	1 Loading/ unloading spaces for BUA above 1000sqm and 1 additional space for every 5000sqm or part thereof
2B	Lodging & boarding establishments and hotels below 3 star	40sqm BUA	1	2	1	-	1	2	2	
3	Restaurant, bars and eating places	25sqm BUA	1	2	0.5	-	0	1	1	-
4	Hospital, Medical Institutions	20 beds or 150 sqm BUA	3	4	4	1 ambulance per 20 beds upto 100 beds capacity. Additionally, 1 ambulance for every additional 100 beds or part thereof.	2	2	2	1 ambulance
5	Assembly (theatres, cinema houses, concert halls, auditoria, assembly halls including those	10 seats	1	3	3	10 seats	1	3	5	-

Sr. No.	Occupancy	One parking Space for every	Non- Congested Area				Congested Area			
			Car	Scooter	Cycle	Other	Car	Scooter	Cycle	Other
	of college and hostels)									
6	Shopping areas, Mangal Karyalaya / Marriage Halls, Cultural Halls	For every 100 sq.m built up area or fraction thereof.	2	8	1		1	4	4	
7A	Educational – Primary School	100 sq.m carpet area or fraction thereof the administration area.	3	5	4		0	2	2	
7B	Educational – Secondary School	1 st to 10 th standard – for every 100sqm of classroom, library and lab carpet area	1	4	20	1 bus every 500sqm classroom, library and lab carpet area; Additional 10% of the required number of spaces for visitors parking	0	2	10	1 bus every 500sqm classroom, library and lab carpet area;
7C	Educational – Other	Standard 11 th and above including higher education levels – for every 100sqm of classroom and lab carpet areas	1	15	15	1 bus every 500sqm classroom, library and lab carpet area; Additional 10% of the required number of spaces for visitors parking	1	5	10	1 bus every 500sqm classroom, library and lab carpet area; Additional 10% of the required number of spaces for

Sr. No.	Occupancy	One parking Space for every	Non- Congested Area				Congested Area			
			Car	Scooter	Cycle	Other	Car	Scooter	Cycle	Other
										visitors parking
8	Hostels, tuition classes, training centers	300sqm carpet area	1	10	20		1	5	10	
9	Government or semipublic or Private office/business buildings/ IT establishments	100sqm carpet area or fraction thereof	3	4	4	Additional 10% of the required number of spaces for visitors parking	1	3	3	Additional 10% of the required number of spaces for visitors parking
10	Mercantile (markets, department al stores, shops and other Commercials users) including wholesale markets	100 sq. m. carpet area or fraction thereof	2	4	2	For malls/ hypermarkets- 1 truck every 1000sqm BUA	1	2	2	
11	Wholesale	100sqm BUA	2	4	2		-	-	-	-
12	Hazardous building	100sqm BUA	1	4	4		-	-	-	-
13	Industrial (Service Industrial in case of Congested Areas)	200sqm BUA (subject to a minimum of 2 car spaces)	2	4	8	Minimum 1 truck per plot; For plot area 1.0ha and above, minimum parking space shall be 10% of the plot area.	1	3	4	

Sr. No.	Occupancy	One parking Space for every	Non- Congested Area				Congested Area			
			Car	Scooter	Cycle	Other	Car	Scooter	Cycle	Other
14	Storage, transfer godowns, warehouses, cold storage	200sqm BUA	1	4	4	1 loading/unloading space every 1000sqm BUA	0	2	2	1 truck every 500sqm BUA
15A	General (uses not covered in 1 to 11)	Plots less than 200sqm	0	2	2		0	2	2	
15B	General (uses not covered in 1 to 11)	Plots less than 100sqm	0	1	1		0	1	1	
16	Fuelling stations	Fuelling station	1	2	2	Additional space for 1 car and 2 two-wheelers for every 60sqm BUA of ancillary commercial uses. Additional space for 2 cars and 3 two-wheelers for every 100sqm covered area for service station	-	-	-	-

Notes:

- Fraction of parking unit need not be provided. However, in case where proportional number of vehicles is less than 1 (i.e. fraction) it will be rounded to the next full number.
- In case of independent single family residential bungalow with plot area upto 300sqm, an independent parking space shall not be mandatory and parking shall be permitted in the marginal open spaces. All calculations are for physical space calculations on a parking area provided on ground and are not applicable for mechanical parking.
- Garage shall be allowed in rear or side marginal space (setback) at one corner having minimum dimension of 2.5 m x 5.0 m and maximum dimension 3 m x 6 m; i.e: minimum 12.5 sqm and maximum 18.0 sqm built up area.
- Mechanical parking shall be permissible in case of parking provided over and above the requisite parking requirements stipulated under these Regulations.

- 16.2 Off street parking space shall be provided with adequate vehicular access to a street, and the area of drives, aisles and such other provisions required for adequate manoeuvring of vehicle shall be exclusive of the parking space stipulated in these regulations.
- 16.3 To meet the parking requirements as per these regulations, common parking area for group of buildings, open or multi-storeyed, may be allowed in the same premises.
- 16.4 In addition to the parking spaces provided for buildings with commercial uses like offices, markets, departmental stores, shopping malls and buildings of industrial and storage, loading and unloading spaces shall be provided at the rate of 1 space for each 1,000 sqm of floor area or fraction thereof exceeding the first 200sqm of floor area, shall be provided. The space shall not be less than 3.75 x 7.5m.
- 16.5 Parking lock up garages shall be included in the calculation for floor space for F.S.I. calculations.
- 16.6 The space required for parking as given in Regulation 16.1 to 16.5 shall be in addition to the mandatory marginal open spaces required for natural lighting and ventilation purposes as given in Regulation 15. Marginal open spaces may be used for parking provided, a minimum distance of 6m in case of buildings given in 6.2.6.1, and 3m in case of all other buildings, adjacent to the building is kept free of any parking, loading or unloading space except buildings mentioned in Regulation 16.5.
- 16.7 In case of parking spaces provided in basements, at least two separate ramps of adequate width and slope for entry and exit (as per Regulation No. 19.4.6) shall be provided preferably at opposite ends.
- 16.8 In addition to regular parking area as per rule, a 3.0m wide strip along the road on front/ side shall be provided as visitors parking for mixed use buildings (residential and commercial). Further, no compound wall or other enclosure shall be allowed between the plot boundary and front of the building line.
- 16.9 If the total parking space required by these Regulations is provided by a group of property owners of the same layout or group housing development for their mutual benefits, such use of this space may be construed as meeting the off-street parking requirements under these Regulations subject to the approval of NIT/ SPA.

In such cases, the details of requirements of total development should be submitted. Owners of such buildings shall submit the parking space layout showing such reservation for parking space and also a registered undertaking that the area earmarked will be developed as a parking lot for common use.

16.10 Parking for differently-abled persons shall be provided as per IRC 103:2012

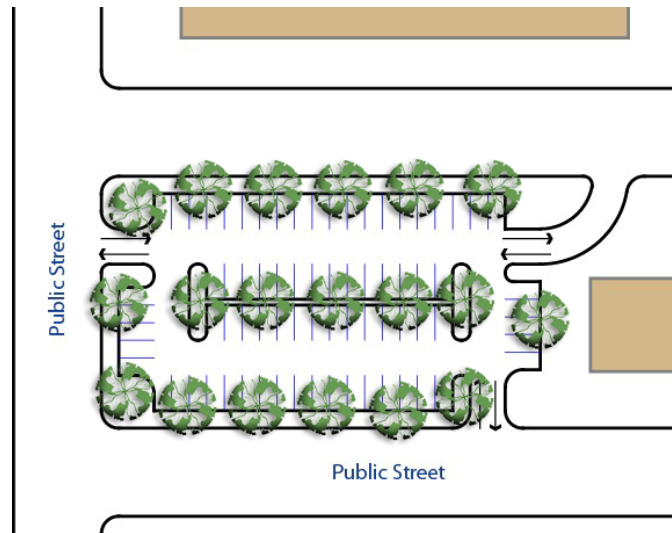
16.11 Parking area layout

A parking area layout shall fulfil the following conditions:

- a) The minimum width of access to street from parking space shall be 3m in each direction of travel.
- b) Parking lots shall have independent ingress and egress leading to a street if the capacity of the lot exceeds 25 cars (see Figure 8); the minimum width shall be 6m for a two way driveway.
- c) If parking space is not provided at street level the gradient of ramp leading to parking space shall not be steeper than 1:10 i.e. the vertical rise shall not exceed more than 1m over a horizontal distance of 10m.
- d) For vehicle parking on sloped ramps within a parking deck (multi-level car park), the ramp slope shall not exceed 1:20.
- e) Minimum clear head way of 2.4m shall be provided on every access leading to parking space and at any point within the parking area.

16.11.1 Tree plantation for open parking within plots

Shade trees shall be provided in open parking lots at the rate of 1 tree for every four car parking spaces and 1 tree for every 8 two-wheeler spaces provided. The mature trees shall be of a minimum 150mm caliper. These trees shall be counted towards the total tree plantation requirements for plots.

Figure 8: Parking area layout with two or more separate accesses and tree plantation

16.12 Parking Surface Treatment

Any surface parking lot with more than three car spaces or five two-wheeler spaces shall be suitably paved with asphalt, concrete, concrete paver blocks or such other material to allow the safe movement of vehicles. Surface parking lots may use materials or paving that allows the percolation of rainwater into the soil.

17 REQUIREMENTS OF PARTS OF BUILDINGS

17.1 Plinth

17.1.1 Main Building: The plinth or any part of a building or out house shall be so located with respect to surrounding ground level that adequate drainage of the site is assured but height shall not be less than 45 cm. above the surrounding ground level. In areas subject to flooding, the height of the plinth shall be at least 60 cm. above the high flood level.

17.1.2 Interior Courtyards: Every interior Courtyard shall be raised at least 15 cm. above the surrounding ground level and shall be satisfactorily drained.

17.2 Habitable Rooms

17.2.1 Size: A habitable room shall have a carpet area of minimum 9.0 sq.m except those in the hostels attached to recognised educational institutions, the minimum size of a habitable room for the residence of a single person shall be 7.5 sq. m; the minimum width of a habitable room shall be 2.4 m. One full side of a habitable room shall abut on the open space. Where there is more than one room, one shall be not less than 9.0 sq.m and other 6.50 sq.m.

17.2.1.1 The size of the room in a single room tenement shall not be less than 12.5 sq. m. with a minimum width of 2.4 m.

17.2.1.2 Height: The height of all rooms for human habitation shall not be less than 2.75 m. measured from the surface of the floor to the lowest point of the ceiling (bottom of slab). The minimum clear head room under beam shall be 2.4 m. In case of centrally air conditioned building, height of the habitable room shall not be less than 2.4 m, measured from the surface of the floor to the underside of the slab or to the underside of the false ceiling.

17.2.1.3 In the case of pitched roof, the average height shall not be less than 2.75 m. and the minimum height at eaves level shall not be less than 2.1 m.

17.2.1.4 The maximum internal room height shall be as per the Table No. 8b below.

Table No- 8b

Sr No	Occupancy Type	Maximum internal height of rooms (meters)
1	Residential	4.4*
2	Educational or Institutional (including government offices)	4.5
3	Public occupancy or assembly buildings, star hotels above 3 star category	4.5*
4	Business premises – commercial offices	4.5
5	Mercantile – Retail	5.5
6	Mercantile – Wholesale	5.5
7	Auditoriums, cinema halls and theatres with capacity less than 200 persons	11
8	Auditoriums, cinema halls and theatres with capacity more than 200 persons	14
9	Banquet halls and convention halls less than 1000 sqm	9
10	Banquet halls and convention halls more than 1000 sqm	14
11	Industrial buildings	As per industry requirement for process buildings; 4.5m for all other buildings
12	Storage buildings	15m in case of warehouses; 4.5m for all other buildings
13	Hazardous buildings	As per industry requirement for process building; 4.5m for all other buildings

* Except portions common to two floors in case of duplex flats/ villas or double height areas in case of star category hotels as applicable.

17.2.1.5 Height of room for Information Technology Establishment (I. T. E.) for any telemetric equipment storage erection facility can have a height as required for effective functioning of that system.

17.2.1.6 In case of double height spaces in residential villas or portions common to two floors of duplex flats, the minimum height shall be 5.65m.

17.3 Kitchen

17.3.1 Kitchen size - The area of the kitchen shall not be less than 3.3 sq. m. with a minimum width of 1.5 m.

17.3.1.1 In the case of special housing scheme as given in Regulation No. 17.2.1.1 no provision for kitchen is necessary. Where alcoves (a cooking space having direct access from the main room without any inter communicating door) are provided, the size shall not be less than 2.4 sq.m. with a minimum width of 1.2 m.

17.3.2 Height: The room height of a kitchen measured from the surface of the floor to the lowest point in the ceiling (bottom of slab) shall not be less than 2.75 m., subject to provisions of 17.2.1.3.

17.3.3 Other Requirement: Every room to be used as kitchen shall have-

- Means for the washing of kitchen utensils which shall lead directly or through a sink to grated and trapped connection to the waste pipe;
- Impermeable floor.
- Window of not less than 1.0 sq. m. area, opening directly on to an interior or exterior open space, but not into a ventilation shaft.

- d) In case multi-storeyed residential buildings more than 15 m. in height provision for refuse chutes shall be necessary. Refuse chutes shall be provided as per Regulation 25.6.

17.4 Bath Rooms, Water Closets, combined bath room plus water closet

17.4.1 Size - The minimum size shall be as under-

- a) Independent Bathroom 1.0 x 1.2 m.
- b) Independent Water closet 0.9 m. x 1 .2 m.
- c) Combined bath room and water closet 1.8 sq. m. with minimum width of 1.0 m.

17.4.2 Height: The Height of a bathroom or water closet measured from the surface of the floor to the lowest point in the ceiling (bottom of slab) shall be not less than 2.1 m.

17.4.3 Other Requirements - Every bathroom or water closet shall -

- a) be so situated that at least one of its wall shall open to external air with the size of opening (windows, ventilators, louvers) not less than 0.3 sq. m. in area and side not less than 0.3 m. (See Regulation No. 17.12.3)
- b) have the platform or seat made of water tight non-absorbent material,
- c) be enclosed by walls or partitions and the surface of every such wall or partitions shall be finished with a smooth impervious material to a height of not less than 1 m. above the floor of such a room; and
- d) be provided with an impervious floor covering, sloping towards the drain with a suitable grade and not towards verandah or any other room.

17.4.4 No room containing water closets shall be used for any purpose except as a lavatory and no such room shall open directly into any kitchen or cooking space by a door, window or other opening. Every room containing water closet shall have a door completely closing the entrance to it.

17.5 Loft and ledge or tand

The maximum depth of a loft shall be 1.5 m. and the loft may be provided, over residential kitchens, habitable rooms, bath rooms, corridors and over shop floor, built up to an area 25 per cent over kitchens and full space of bath rooms, water closets and corridors . In the shops with width upto 3.0m, a loft shall cover upto 33.5 percent of the carpet area and in shops width above 3.0m, a loft shall cover upto 50 percent of the carpet area. However, loft will not be allowed where mezzanine floor is provided.

17.5.1 The clear head room under loft shall not be less than 2.1 m.

17.5.2 Loft in commercial areas and industrial buildings shall be located 2 m. away from the entrance.

17.5.3 Size of ledge or tand

A ledge or tand in a habitable room shall not cover more than 25 percent of the area of the floor on which it is constructed and shall not interfere with the ventilation of the room under any circumstances.

17.5.4 Height of ledge or tand

- a) The ledge shall be provided at a minimum height of 2.1m.
- b) Cantilevered projections of cupboards and shelves may be permitted in the marginal open spaces created by building setbacks subject to the prescribed conditions in Regulation 15.4.1.

17.6 Cupboards & Shelves

The projections (cantilever) of cupboards and shelves may be permitted on all floors except on ground floor. Such projections may project upto 45 cm, in the setbacks for residential buildings provided the width of such cupboard/shelves does not exceed 2.4 m. and each room shall not have more than one such cupboard/ shelf. Moreover such projection shall be at least 2 m. from plot boundary and the bottom of such a projection shall be atleast 2.5 m. above the finished ground level.

17.7 Mezzanine floor

- 17.7.1 Size:** The aggregate area of the mezzanine floor shall not exceed 50 % of the built up area of that floor. The minimum size of a mezzanine floor if it is used as a habitable room shall not be less than 9.0 sq.m.
- 17.7.2 Note:** Mezzanine floor area shall be counted towards F. S. I
- 17.7.3 Height:** The minimum height of a mezzanine floor shall be 2.2 m. The headroom under mezzanine room shall not be less than 2.10 m.
- 17.7.4 Other Requirements:** A mezzanine floor may be permitted in a room, provided that
- It confirms to the standards of habitable rooms as regards lighting and ventilation.
 - It is so constructed as to not interfere under any circumstances with the ventilation of the space over and above it;
 - Such mezzanine floor or any part of it shall not be used as a kitchen; and
 - In no case a mezzanine floor shall be closed so as to make it liable to be converted into unventilated compartments.

17.8 Store Room

- 17.8.1 Size:** The floor area of a store room in a residential building where light ventilation and height are provided at special standards lower than as required for living room shall not be more than 3 sq. m.
- 17.8.2 Height-** The height of a store room shall not be less than 2.10 m.

17.9 Garage

- 17.9.1 Private garage:** The size of a garage in individual residential building shall be not less than 2.5m x 5m and not more than 3m x 6m. The garage, if located in the side marginal open space/ setback, shall not be constructed within 1.5m from the main building.
- 17.9.2 Height:** The maximum head room in a garage shall be 2.4 m.
- 17.9.3** The plinth of garage located at ground level shall not be less than 15 cm. above the surrounding ground level.
- 17.9.4** The garage shall be setback behind the building line for the street / road on to which the plot abut, and shall not be located affecting the access ways to the building.
- 17.9.5 Corner Site:** When the site fronts on two streets, the location of a garage (in a corner plot), if provided within the building setbacks, shall be located diagonally opposite the point of intersection.

17.10 Roofs

- 17.10.1** The roof of a building shall be so constructed or framed as to permit effective drainage of the rain water there from by means of sufficient rain water pipes of adequate size, wherever required, so arranged, jointed and fixed as to ensure that the rain water is carried away from the building without causing dampness in any part of the walls or foundations of the building or those of an adjacent building.
- 17.10.2** The Chairman, NIT may require rain water pipes to be connected to a storm water drain through a covered channel formed beneath the public footpath or in any other approved manner, if not used for rain water harvesting.
- 17.10.3** Rainwater pipes shall be affixed to the outside of the walls of the building or in such other manner as may be approved by the Chairman, NIT.
- 17.10.4** Terrace of a building shall not be sub-divided and it shall have only common access. However for pent houses, sub-divisions of a terrace may be permissible.

17.11 Basement:

17.11.1 Basement shall be constructed within the prescribed setbacks and prescribed building line in one or two levels and may be put to only following uses. These shall be permissible free of FSI, except (c), (d), (e) and (f).

- a) Air conditioning equipment and other machine used for services and utilities of the building;
- b) Parking spaces
- c) Strong room, bank cellars etc.
- d) Storage of household or other goods of ordinarily non-combustible material;
- e) Storage incidental to principal use; and
- f) Shopping and related uses at only the basement level nearest to the ground level fronting road.

Provided further, that uses given in (d) to (f) above may be permitted subject to adherence with Regulation 17.11.4 (g)

17.11.2 The basement shall not be used for residential, habitation or any uses other than those mentioned above.

17.11.3 Multilevel basements may be permitted if the basement is used for parking provided size of the plot is minimum 1,000 sqm. The ramps of minimum 3.5 m width for entry and exit of vehicle separately shall be provided. In case of bona-fide hardship, the Chairman, NIT may allow only one ramp with not less than 6.5 m. in width. (See regulation 19.4.6)

17.11.4 The basement shall have the following requirements -

- a) Every basement shall be in every part at least 2.4 m. in height from the floor to the soffit of beam. Adequate ventilation shall be provided for the basement with a ventilation area not less than 2.5% of the area of the basement. Any deficiency may be met by providing in addition adequate mechanical ventilation in the form of blowers, exhaust fans, air conditioning systems etc.
- b) The minimum height of the ceiling of any basement shall ordinarily be 0.9 m. and maximum of 1.2 m. above the average surrounding ground level. However it does not apply to the mechanically ventilated basements.
- c) Adequate arrangement shall be made such that surface drainage does not enter the basement.
- d) The walls and floor of the basement shall be water-tight and be so designed that the effect of the surrounding soil and moisture, if any, are taken into account in design and adequate damp proofing treatment is given; and
- e) The access to the basement shall be separate from the main and alternate staircase providing access and exit from higher floors. Where the staircase is continuous in case of building served by more than one staircase, the same shall be of enclosed type serving as a fire separation from the basement floor and higher floors [see Regulation No. 19.4.3 (m)] Open ramps shall be permitted if they are constructed within the building line subject to the provision of (d).
- f) Portion of basement beyond the building line shall not be within a distance less than half the margins of the site and the top of this shall align with ground level of the site.
- g) In any circumstances, notwithstanding the uses given in 17.11.1 (d) to (f) above, a basement shall not be used for commercial use or storage of any kind or any such uses which may pose risk to life in case of an emergency.

17.12 Lighting and Ventilation of Rooms.

17.12.1 The minimum aggregate area of opening of habitable rooms and kitchens excluding doors shall be not less than 1/10th of floor area.

17.12.2 No portion of a room shall be assumed to be lighted if it is more than 7.5 m. from the opening assumed for lighting / ventilation of the portion, provided additional depth of living room beyond 7.5 m. may be permitted subject to provision of proportionate increase in the opening.

17.12.3 Where the lighting and ventilation requirements are not met through day lighting and natural ventilation, the same shall be ensured through artificial lighting and mechanical ventilation as per latest version of Part VIII - Building Services Section, Lighting and Ventilation of National Building Code of India published by the Bureau of Indian Standards. In the case of special types of buildings requiring artificial lighting and air-conditioning for special types of manufacturing or other process the requirements about natural day lighting and ventilation may be relaxed.

17.12.4 Ventilation Shaft:

For ventilating the space for water closets and bath room, if not opening on the exterior side of a building, open on the ventilation shaft, the size of which shall not be less than the values given below in Table No. 9:

Table No- 9

Height of building in m.	Size of ventilation every side in sq.m	Minimum width of shaft in m.
Up to 10	1.2	0.90
Up to 12	3.0	1.5
Up to 18	4.5	1.80
Up to 24	5.4	1.80
Up to 30	8.0	2.40
For every 10m above 30m	8.0 + 1.0 (maximum 12sqm)	3m

17.12.5 In residential lodging hotels where attached toilets are provided with mechanical ventilation system installed as per Regulation No. 17.12.3, the size of ventilation shaft may be relaxed by the Chairman, NIT.

17.13 Parapet:

Parapet walls and handrails provided on the edges of roof terraces, balcony etc. shall not be less than 1.05 m. and not more than 1.20 m. in height.

17.14 Wells

17.14.1 Wells intended for supply of water for human consumption or domestic purposes where provided, shall comply with the requirements of Regulation No. 17.14.2 and 17.14.3.

17.14.2 Location: The well shall be located:

- Not less than 15 m. from soak pit, refuse pit, earth closet or privy and shall be located on a side upwards from the earth closet or privy.
- Not less than 18 m. from any cess pit, soak way or borehole latrine and shall be located on a site upwards from the earth closet or privy.
- Such that contamination by the movement of sub soil or other water is unlikely; and
- Not under a tree or otherwise it should have a canopy over it so that leaves and twigs do not fall into the well and rot.

17.14.3 Requirements: The well shall:

- have minimum internal diameter of not less than 1 m.;
- be constructed to a height not less than 1 m. above the surrounding ground level to form a parapet or curb and to prevent surface water from following into a well, and shall be surrounded with a paving constructed of impervious material which shall extend for a distance of not less than 1.8 m. in every direction from the parapet or the curb forming the well head and the upper surface for such paving shall be sloped away from a well;
- be a sound and permanent construction (PUCCA) throughout;
- the interior surface of the lining or walls of the well shall be rendered impervious for depth of not less than 1.8 m. measured from the level of the ground immediately adjoining the well-head.

17.15 Septic Tanks:

Where a septic tank is used for sewage disposal, the location, design and construction of the septic tank shall conform to requirements of 17.15.1 and 17.15.2.

17.15.1 Location of Septic Tanks and Subsurface Absorption System: A subsoil dispersion system shall not be closer than 12.00 m. of any source of drinking water, so as to avoid the possibility of bacterial pollution of water supply. It shall also be as far removed from the nearest habitable building as economically feasible but not closer than 6 m. to avoid damage to the structures.

17.15.1.1 Requirements:

- a) Dimensions of Septic Tanks: Septic tanks shall have minimum width of 75 cm., minimum depth of 1 m. below the water level and a minimum liquid capacity of 1 cu.m. Length of tanks shall be 2 to 4 times the width.
- b) Septic tanks may be constructed of brick work, stone masonry, concrete or other suitable materials as approved by the Chairman, NIT..
- c) Under no circumstances should effluent from a septic tank be allowed into an open channel drain or body of water without adequate treatment.
- d) Minimum nominal diameter of pipe shall be 100 mm. further, at junctions of pipes in manholes, direction' of flow from a branch connection should not make an angle exceeding 45 degree with the direction of flow in the main pipe.
- e) The gradients of land drains under drainage as well as the bottom of dispersion trenches and soak way should be between 1:300 and 1:400.
- f) Every septic tank shall be provided with ventilating pipe of at least 50 mm diameter. The top of the pipe shall be provided with a suitable cage of mosquito proof wire mesh.

The ventilating pipe shall extend to a height, which would cause no smell nuisance to any building in the area. Generally, the ventilating pipe may extend to a height of about 2 m. when the septic tank is at least 15 m. away from the nearest building and to a height of 2 m. above the top of the building when it is located closer than 15 m.

- g) When the disposal of septic tank effluent is to seepage pit, the seepage pit may be of any suitable shape with the least cross sectional dimension of 90 cm. and not less than 100 cm. in depth below the invert level of the inlet pipe. The pit may be lined with stone, brick or concrete blocks with dry open joints which should be backed with at least 7.5 cm. of clean coarse aggregate. The lining above the inlet level should be finished with mortar. In the case of pits of large dimensions, the top portion may be narrowed to reduce the size of the RCC cover slabs. Where no lining is used, especially near trees, the entire pit should be filled with loose stones. A masonry ring may be constructed at the top of pit to prevent damage by flooding of the pit by surface run off. The inlet pipe may be taken down to a depth of 90 cm. from the top as an anti-mosquito measure
- h) When the disposal of septic tank effluent is to a dispersion trench, the dispersion trench shall be 50 to 100 cm. deep and 30 to 100 cm. wide excavated to a slight gradient and shall be provided with 15 to 25 cm. of washed' gravel of crushed stones Open jointed pipes placed inside the trench shall be made of unglazed earthenware clay or concrete and shall have minimum internal diameter of 75 to 100 mm. Each dispersion trench should not be longer than 30 m. and trenches should not be placed closer than 1.8 m.

17.15.1.2 Septic Tank Requirements: Requirements specified by State and Central Government, public Health Institutes such as NEERI, for modern methods of disposal, may also be permissible.

17.16 Boundary Wall

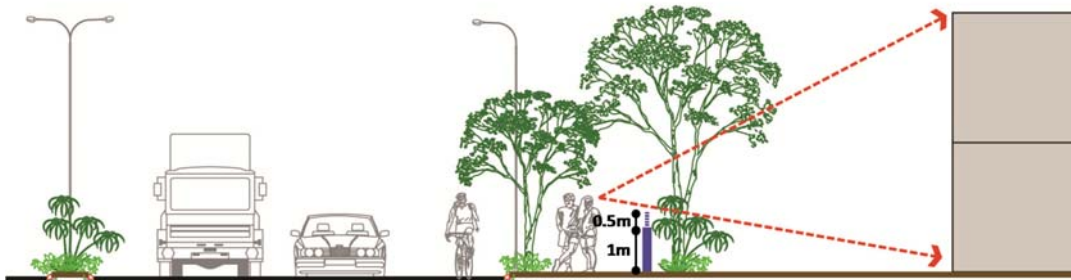
17.16.1 The requirements of the boundary wall are given below:

- a) Except with the special permission of the Chairman, NIT, solid compound walls constructed on plot sides fronting a public road right of way shall have maximum height of 1.0m measured from the finished level of the sidewalk, or from the centre-line of the front street.

An additional screen or fenced grill erected above the wall may be permitted, provided it has a minimum of 60 percent surface perforation (open type, such as railings) and a maximum height of 0.5m above the solid compound wall.

- b) In the case of corner plots at the junction of streets, the maximum height of the solid compound wall shall be 0.75m measured from the finished level of the sidewalk or from the centre-line of the front street, for a length of 10m from the junction of streets. Further, balance height of 0.5 m. shall be permitted if required in accordance with (a) above.
- c) However, the provisions in (a) and (b) above are not applicable to boundary wall of jails. In industrial buildings, electric sub stations, transformer stations institutional buildings like sanatoria, hospitals, industrial buildings like workshops, factories and educational buildings like schools, colleges, including the hostels, and other uses of public utility undertakings. Height upto 2.4 m. to boundary walls of these types of building may be permitted by Chairman, NIT.
- d) Plot access gates shall open inward entirely and shall not open on any access/ pathway/ road/ street. Gates shall be provided with a contrivance which shall prevent the gate from opening outward on the foot-path or road. The height of gates shall not be more than 3m from the finished level of the sidewalk.
- e) Solid compound walls on plot sides other than those fronting a road shall have a maximum height of 1.2m.
- f) In case of corner plots, gates shall be provided only on the straight edge of the plot and not on the tangent.

Figure 9



17.17 Office-cum-Letter Box Room:

In the case of multi-storeyed multi-family dwelling apartments constructed by existing or proposed Cooperative Housing Societies or Apartment Owners Associations, limited companies and proposed societies, an office-cum-letter box room of maximum dimension 3.6 m. x 3 m. shall be provided on the ground floor. In case the numbers of flats are more than 20, maximum size of the office-cum-letter box shall be 20 sq.m.

17.18 Meter Rooms:

Meter room size shall be minimum of 3.00 m. x 5.00 m. depending upon the requirements, the size shall be increased in consultation with M.S.E.D.C.L

17.18.1 The spaces for provision of transformers shall be provided as per the requirements of M.S.E.D.C.L.

17.19 Chimneys

17.19.1 Chimneys, where provided shall conform the requirements of IS 145-1960 of latest version.

17.19.2 Notwithstanding the provisions of Regulation No. 17.19.1, the Chimneys shall be built at least 0.9 m. above parapet wall. In the case of sloping roofs, the chimney top shall not be less than, 0.6 m. above the ridge of the roof in which the chimney penetrates.

18 PROVISION OF LIFTS

Provision of lift shall be made for all buildings more than 15m in height (See Regulation No. 19.4.9).

19 EXIT REQUIREMENTS

19.1 General - The following general requirement shall apply to exits.

- a) Every building meant for human occupancy shall be provided with exits sufficient to permit safe escape of occupants in case of fire or other emergency;
- b) In every building, exits shall comply with the minimum requirements of this part, except those not accessible for general public use;
- c) All exits shall be free of obstructions;
- d) No building shall be altered to reduce the number, width or protection of exits to less than that required;
- e) Exits shall be clearly visible and the routes to reach the exits shall be clearly marked and sign posted to guide the occupants to the floor concerned;
- f) All exit ways shall be properly illuminated;
- g) Fire fighting equipment where provided along exits shall be suitably located and clearly marked but must not obstruct the exit way and yet there should be clear indication about its location from either side of the exit way;
- h) Alarm devices shall be installed for buildings above 15m in height, to insure prompt evacuation of the occupants concerned through the exits;
- i) All exits shall provide continuous means of egress to the exterior of a building or to an exterior open space leading to a street and;
- j) Exits shall be so arranged that they shall be reached without passing through another occupied unit.

19.2 Type of Exits

Exits shall be either of horizontal or vertical type. An exit may be doorway, corridor, and passageways to an internal staircase or external staircase, ramps or to a verandah and/or terraces which have access to the street or to roof of a building. An exit may also include a horizontal exit leading to an adjoining building at the same level. Lifts and escalators shall not be considered as exits.

19.3 Number and Size of Exits

The requisite number and size of various exits shall be provided, based on number of occupants in each room and floor based on the occupant load, capacity of exits; travel distance and height of building as per provisions of Regulation No. 19.3.1 to 19.3.5.

19.3.1 Arrangement of Exits

Exits shall be so located so that the travel distance on the floor shall not exceed as given below:

Type of Building	Travel Distance
1) Residential, Educational, Institutional and Hazardous occupancies	22.5 m
2) Assembly, Business, Mercantile, Industrial and Storage occupancies	30.0 m

Note: Wherever more than one exit is required for a floor of a building, they shall be placed as remote from each other as possible. All the exits shall be accessible from the entire floor area at all floor levels. For buildings equipped with sprinklers, the maximum travel distance to an exit shall be 1.5 times the distance given above.

19.3.2 Occupant Load

For determining the exits required the number of persons within any floor area or the occupant load shall be based on the actual number of occupants but in no case, less than that specified in Table No. 10

Table No- 10

Sr. No.	Group of Occupancy	Occupant Load Gross Area*in sqm per person
(1)	(2)	(3)
1	Residential	12.5
2	Educational	04.00
3	Institutional	15 (see Note-a)
4	Assembly	
	(a) with fixed or loose seats and dance floors	0.6 (see Note-b)
	(b) without seating facilities including dining rooms	1.5 (see Note-b)
5	Mercantile	
	(a) Street floor and sales basement	3
	(b) Upper sale floors	6
6	Business and industrial	10
7	Storage	30
8	Hazardous	10

*The gross area shall mean plinth area or covered area.

Note

- Occupant load in dormitory portions of homes for the aged, orphanages, insane asylums, etc. where sleeping accommodation is provided shall be calculated @ not less than 7.5 sq.m. gross area/ person.
- The gross area shall include, in addition to the main assembly room or space, any occupied connecting room or space in the same storey or in the storeys above or below where entrance is common to such rooms and spaces and they are available for use by the occupants of the assembly space. No deductions shall be made in the gross area for corridors, closets or other sub-divisions. The area shall include all space serving the particular assembly occupancy.

19.3.3 Capacity of Exits

The capacity of exits (doors and stairways) indicating the number of persons that could be safely evacuated through a unit exit width of 50 cm. shall be as given in Table No. 11.

Table No- 11

S.No.	Group or Occupancy	Number of Occupants		
		Stairways	Ramps	Doors
1	Residential	25	50	75
2	Educational	25	50	75
3	Institutional	25	50	75
4	Assembly	40	50	60
5	Business	50	60	75
6	Mercantile	50	60	75
7	Industrial	50	60	75
8	Storage	50	60	75
9	Hazardous	25	30	40

- 19.3.4** For all buildings identified in Regulation No. 6.2.6.1 there shall be a minimum of two staircases. They shall be of an enclosed type stairway. At least one of them shall be on the external walls of buildings and shall open directly to the exterior, interior open space or to any open place of safety.

19.3.5 The following minimum width provisions shall be made for stairways:

Type of Building	Min Width of staircase
Residential Buildings (multi-storey)	1.2 m
for Individual House & Row housing with G+2 storeys	0.75 m
Hotel (with accommodation)	1.50 m
Assembly buildings like auditoria, theatres, Cinemas etc., mangal karyalaya, marriage halls.	2.00 m
Institutional Buildings like hospitals & Educational	2.00 m
All other buildings	1.50 m

19.4 Other Requirements of Individual Exits- The detailed requirements of individual exits are given in regulation No. 19.4.1 to 19.4.6.

19.4.1 Doorways:

- Every exit doorway shall open into an enclosed stairway, a horizontal exit or a corridor or passage way providing continuous and protected means of egress.
- No exit doorway shall be less than 90 cm in width in case of residential and 100 cm. in width in case of other buildings. Doorways shall be not less than 200 cm. in height. Doorways for bathrooms, water closet, stores etc. shall be not less than 75 cm. wide.
- Exit doorways shall open outwards, that is away from the room but shall not obstruct the travel along any exit. No door, when open, shall reduce the required width of stairway or landing to less than 90 cm. Overhead or sliding doors shall not be installed.
- Exit door shall not open immediately upon a flight of stairs, a landing equal to at least the width of the door shall be provided in the stairway at each doorway. Level of landing shall be the same as that of the floor which it serves.
- Exit doorways shall be openable from the side which they serve without the use of a key.

19.4.2 Revolving Doors :

- Revolving doors shall not be used as required exits except in residential, business and mercantile occupancies, but shall not constitute more than half the total required door width;
- When revolving doors are considered as required exit way the following assumptions shall be made;
 - Each revolving door shall be credited one half a unit exit width; and
 - Revolving doors shall not be located at the foot of a stairway. Any stairway served by a revolving door shall discharge through a lobby or foyer.

19.4.3 Stairways:

- Interior stair shall be constructed of non-combustible materials throughout;
- Interior staircase shall be constructed as a self-contained unit with at least one side adjacent to an external wall and shall be completely enclosed;
- A staircase shall not be arranged around a lift shaft unless the latter is entirely enclosed by a material of required fire- resistance rating. For buildings more than 16m. in height, the staircase location shall be to the satisfaction of Fire Officer, Fire Brigade Authority.
- Hollow combustible construction shall not be permitted.
- The minimum width of an internal staircase shall be as per the provisions of regulation No. 19.3.5

- f) The minimum width of treads without nosing shall be 25 cm. for an internal staircase for residential buildings. In the case of other buildings, the minimum treads shall be 30 cm. The treads shall be constructed and maintained in a manner to prevent slipping.
- g) The maximum height of riser shall be 20 cm. in the case of residential buildings and 15 cm. in the case of other buildings. They shall be limited to 12 per flight. For low income housing scheme in narrow plots, the riser may be provided in one flight.
- h) Handrails shall be provided with a minimum height of 90 cm. from the tread,
- i) The minimum unobstructed headroom in a passage under the landing of a staircase and under the staircase shall be 2.2 m.
- j) No living space, store or other fire risk spaces shall open directly into the external staircase or staircases.
- k) External exit door of staircase enclosure at ground level shall open directly to the open spaces or can be reached without passing through a large lobby.
- l) In the case of assembly, institutional, residential, hotels, industrial and hazardous occupancies, the exit sign with arrow indicating the way to the escape route shall be provided on the wall / floor and shall be illuminated by electric light connected to corridor circuits. All exit way marking signs should be flush with the wall and so designed that no mechanical damage shall occur to them due to moving of furniture or other heavy equipment. Further all landings of floor shall have floor indication boards indicating the floor number. The floor indication board shall be placed on the wall immediately facing the flight of stairs and nearest to the landing. It shall be of appropriate size.
- m) In case of single staircase it shall terminate at the ground floor level and the access to the basement shall be by a separate staircase. Wherever the building is served by more than one staircase, one of the staircases may lead to basement levels, provided the same is separated at ground level by either a ventilated lobby or cut-off screen wall without opening, having a fire resistance of not less than 2 hours with discharge point at two different ends or through enclosures. It shall also be cut off from the basement areas at various basement levels by a protected and ventilated lobby / lobbies. The staircase shall be lighted and ventilated and the minimum size of openings on walls abutting to open spaces shall be 0.3 sq. m. per landing.

19.4.4 Fire escape or external stairs –

For buildings above 15 m. in height fire escape stairs shall be provided subject to the following conditions:

- a) Fire escape shall not be taken into account in calculating the evacuation time of building;
- b) All fire escapes shall be directly connected to the ground;
- c) Entrance to fire escape shall be separate and remote from the internal staircase;
- d) The route to fire escape shall be free of obstructions at all times, except a doorway leading to the fire escape; which shall have the required fire resistance;
- e) Fire escape shall be constructed of non-combustible materials;
- f) Fire escape stairs shall have straight flights not less than 75 cm. wide with 25 cm. treads and risers not more than 20 cm. The number of risers shall be limited to 16 per flight.
- g) Handrail shall be of height not less than 90 cm.
- h) Fire escape staircase shall be connected to other staircases through common passage at every floor.
- i) Unprotected steel frame staircase will not be accepted as means of escape. However, steel staircase in an enclosed fire rated compartment of 2 h. will be accepted as means of access.

19.4.5 Spiral stairs (fire escape) -

The use of spiral staircase shall be limited to low occupant load and to a building of height 9 m. unless they are connected to platforms, such as balconies and terraces to allow escapee to pause.

A spiral fire escape shall not be less than 150 cm. in diameter and shall be designed to give adequate headroom.

19.4.6 Ramps**19.4.6.1 Ramps for pedestrians-**

- a) Ramps with a slope of not more than 1 in 10 may be substituted for and shall comply with all the applicable requirements of required stairways as to enclosure capacity and limiting dimensions. Ramps shall be surfaced with approved non-slipping material;
- b) The minimum width of the ramps in hospitals shall be 2.25 m;
- c) Handrails shall be provided on both sides of the ramp.

19.4.6.2 Ramps for basement or storeyed parking

- a) For parking spaces in a basement and upper floors, at least two ramps of minimum 3.5 m. width each and slope of not steeper than 1:10, shall be provided preferably to the opposite ends. In case of bona-fide hardship, the Chairman, NIT may allow only one ramp, if proposed to be provided due to space restriction, it shall not less than 6.5 m. in width.
- b) Such ramps may be permitted in the side and rear marginal open spaces after leaving sufficient space required for movement of firefighting vehicles or 6m whichever is more. Provided that when a building is abutting 3 or more roads, then ramps shall be allowed in front marginal open spaces facing the smaller road or less important road from traffic point of view.
- c) If a parking garage is used exclusively for two wheeler parking, minimum width of the ramp shall be 2m in each direction of travel. If the ramp is used for trucks, the minimum width of ramp shall be 6m in case of one way and separate ramps shall be provided for each direction of travel.

19.4.6.3 Ramps for access to plot from the approach road

In cases when the level of plot and the approach roads are different and ramps are required for access, the entire length of such ramps shall be provided within the plot boundary.

19.4.7 Corridors

- a) The minimum width of a corridor other than internal passage shall be calculated based on the provisions of Regulation 19.3.1 to 19.3.3 as per corresponding width of staircase.
- b) In case of more than one main staircase of the building interconnected by a corridor or other enclosed space, there shall be at least one smoke stop door across the corridor or enclosed space between the doors in the enclosing walls of any two staircases.
- c) The passages (covered or uncovered) including an arcade, a courtyard, a porch or portico, spaces to be left open to sky in accordance with these Regulations, in any premises shall not be used for any other purpose than the one permissible.

19.4.8 Refuge Area

For buildings more than 24 m in height, refuge area of 15 sq.m or an area equivalent to 0.3 sq.m per person to accommodate the occupants of two consecutive floors whichever is higher shall be provided as under:

The refuge area shall be provided on the periphery of the floor or preferably on a cantilever projection and open to air at least on one side protected with suitable railings.

- a) For floors above 24 m and upto 39 m – One refuge area on the floor immediately above 24 m.
- b) For floors above 39 m – One refuge area on the floor immediately above 39 m and so on after every 15 m.

Note: Residential flats on multi-storeyed buildings with balcony, need not be provided with refuge area. However, flats without balcony or with enclosed balconies shall be provided with refuge area as given above. All refuge areas shall be accessible from common passages/staircases.

19.4.9 Lifts and Escalators

19.4.9.1 Lifts:

All buildings above 15m height shall have provision of 2 separate lifts and all public and special buildings below 15m height shall have provision of atleast one lift.

- a) All the floors shall be accessible for 24 hours by the lifts. The lifts provided in the buildings shall not be considered as a means of escape in case of emergency.
- b) Grounding switch at ground floor level to enable the fire service to ground the lift cars in any emergency shall also be provided;
- c) The lift machine room shall be separate and no other machinery shall be installed therein.

19.4.9.2 Escalators:

Escalators may be permitted in addition to required lifts. Such escalators may be permitted in atrium area in shopping malls / public buildings.

19.4.10 Fire Lift

Where applicable, fire lifts shall be provided with a minimum capacity for 8 passengers and fully automated with emergency switch on ground level. In general, buildings 15 m in height or above shall be provided with fire lifts. In case of fire, only fireman shall operate the fire lift. In normal course, it may be used by other persons. Each fire lift shall be equipped with suitable inter-communication equipment for communicating with the control room on the ground floor of the building. The number and location of fire lifts in a building shall be decided after taking into consideration various factors like building population, floor area, compartments, etc.

20 FIRE PROTECTION REQUIREMENTS

All buildings shall be planned, designed and constructed to ensure fire safety and this shall be done in accordance with the regulations mentioned in Part VI of these regulations and Part IV of Fire Protection of National Building Code of India and Maharashtra Fire Prevention and Life Safety Measures Act, 2006, unless otherwise specified in these regulations. In case of buildings identified in Regulation No. 6.2.6.1, the building schemes shall also be cleared by the Fire Officer Fire Brigade Authority.

21 SPECIAL REQUIREMENTS OF OTHER BUILDINGS

21.1 Educational buildings.

- 21.1.1** Educational buildings shall not be permissible within 60 m. from the existing assembly building and 90 m. from the existing petrol pump.
- 21.1.2** Educational building shall only be permitted if 40% area is available for playground. This may be available as a part of the same plot as the educational building or as a separate plot under the same ownership within 200 meters of the educational building facility. In case of a separate plot under separate ownership for playground, the educational facility will need to furnish proof of long term lease documents (not less than 30 years) to indicate availability of the playground for the educational use. However, this provision shall not be applicable to already approved existing building wherein construction of additional floor is proposed.

- 21.1.3** No classroom shall admeasure less than 38 sq. m. with a min dimension of 5.50
- 21.1.4** The height of any classroom shall not be less than 3.60 m.
- 21.1.5** Exit Requirements -This shall conform to Regulation No. 19.
- 21.1.6** Requirements of Water Supply, Drainage and Sanitation: This shall conform to requirements of part VII of these regulations.
- 21.1.7** Parking spaces - This shall conform to regulation No.16.
- 21.1.8** FSI – permissible FSI shall be as per Regulation 13.4.1
- 21.2 Institutional Buildings (Hospital, Maternity Homes and Health Centre, Sanatoria)**
- 21.2.1** Hospitals and Sanatoria shall be constructed on independent plot.
- 21.2.2** Any Special ward in the hospital building shall not admeasure less than 9.0. sq.m. in area with no side less than 3m
- 21.2.3** Area of the general wards shall not admeasure less than 40 sq. m. with no side less than 5.5m and minimum internal room height of 3.3m.
- 21.2.4** Every building shall have a refuge collection area of minimum 7.50 sq. m. size with cover on top and unclosed on at least three sides. The same shall not be allowed in marginal open spaces. Modern method of incineration of the refuge may be adopted.
- 21.2.5** Exit Requirements-This shall conform to regulation No. 19
- 21.2.6** Requirements of Water Supply, Drainage and Sanitation - This shall conform to requirements of part VII of these regulations.
- 21.2.7** Parking Spaces - This shall conform to Regulation No.16.
- 21.2.8** FSI – permissible FSI shall be as per Regulation 13.4.1
- 21.2.9** Institutional buildings other than hospitals shall have a minimum internal room height of 3.6m.
- 21.3 Cinema Theatre/Multiplex**
- 21.3.1** Plot for Cinema theatres shall not be located within a distance of 60 m. from the plot boundary of existing or proposed educational or medical or institutional user.
- 21.3.2** They shall conform to the provisions of Maharashtra Cinema (Regulations) Rules, 1966, as amended from time to time.
- 21.3.3** Exit Requirements -This shall conform to regulations No.19.
- 21.3.4** Requirements of Water Supply Drainage and Sanitation -This shall conform to the requirements of part VII of these regulations.
- 21.3.5** Parking Spaces - This shall conform to regulation No. 16.
- 21.3.6** FSI – permissible FSI shall be as per Regulation 13.4.1.
- 21.4 Mercantile Buildings.**
- 21.4.1** All the zones where shops and commercial activities are allowed, minimum area of a shop will be 10 sqm with minimum width of 3m. In R3 and R4 zones, minimum area of shop can be 6 sqm with a minimum width of 2.0 m.
- 21.5 Industrial Building**
- 21.5.1** In addition of provisions of these regulations, regulations prescribed under Factory Act shall be applicable.
- 21.5.2** In the case of Industrial Buildings with different operations/processes, the different (gaseous, solid, liquid) effluents shall be so treated, subject to the approval of Maharashtra Prevention of Water Pollution Control Board and Chief Inspector of Steam Boilers and Smoke Nuisance, before letting it out in to the air, ground or water course.

- 21.5.3** Exit Requirements -This shall conform to Regulation No.19.
- 21.5.4** Requirements of Water Supply, Drainage and Sanitation: This shall conform to part VII of these regulations
- 21.5.5** Parking spaces/Loading and unloading spaces-This shall conform to regulation No.16
- 21.5.6** For construction of industrial building, buffer zone of 23 m. wide shall be left from residential or incompatible zone, wherever necessary. Such buffer zone may be part of sizable required recreational open space. Whenever a buffer zone is required to be left in between industrial zone and any incompatible zones, as mentioned in this Regulation, it shall not be a bar for availing FSI of that area, unless it is a part of required recreational open space or road.

PART III: LAND USE CLASSIFICATION AND PERMISSIBLE USES

22 LAND USE CLASSIFICATION AND PERMISSIBLE USES

22.1 General

Development of land in the Nagpur Metropolitan Area shall be regulated on the basis of the following land use zones:

- a) Residential R1
- b) Residential R2
- c) Residential R3
- d) Residential R4
- e) Commercial
- f) Industrial
- g) Public and Semi-public
- h) Agriculture A1
- i) Agriculture A2
- j) Public Utility
- k) Transportation
- l) Recreation/ Open Spaces
- m) Mines and Quarries
- n) Defence
- o) Forests

22.2 Residential R1

22.2.1 Uses permitted

The Residential – R1 zone is primarily intended for the following residential building types:

- a) Residential multi-storey apartment;
- b) Row house and semi-detached dwellings;
- c) Villas/ bungalow;
- d) Site and services/ other housing schemes for the EWS;
- e) Old-age home or orphanage;
- f) Hostels;
- g) Service apartments.

22.2.2 Accessory uses permitted

Following accessory uses (non-residential building uses that are complimentary to residential development) will be permitted provided that the total area for all of these either singly or combined does not exceed 50 percent of the permissible built-up area of the plot. Further, setback requirements by type of activity shall be applicable as per tables 13, 13a and 14. In case of two or more activities in a building, greater of the relevant setbacks shall be applicable.

- a) Community hall
- b) Library
- c) Pre-primary school/ crèche/ day care centre on roads not more than 12m wide
- d) Places for worship, provided a No Objection Certificate shall be obtained from the concerned Police Authority and Collector before application of building permission. Commercial uses shall

not be permissible to be combined with the religious building. Minimum plot area shall be 300sqm.

- e) Customary home occupation (as defined in 2.60) without employing hired labour and including stitching, embroidery, button making, etc., with or without motive power. If motive power is used, the total electricity load should not exceed 1HP.
- f) Medical and dental practitioner's dispensary including pathological laboratory, diagnostic clinic, polyclinic, to be permitted on any floor above. However maternity homes and nursing homes, not exceeding 5 beds for inpatients, located on the ground or stilt floor or on first floor, shall be provided with a separate means of access of staircase from within the building or outside. Such means of access shall not be provided within the prescribed marginal open spaces in any case and with the special permission of Chairman, NIT.
- g) Professional offices and studies of residents of the premises that are incidental to such residential use, not occupying a floor area exceeding 20sqm per office.
- h) Club houses not conducted as a business.

22.2.3 Other permissible uses

- a) Convenience shops (as defined in 2.28) not more than 10sqm BUA;
- b) Service and repair shops not more than 20sqm BUA;
- c) Retail shops and general stores with maximum BUA upto 200sqm
- d) Restaurants and cafeteria upto 200sqm BUA;
- e) Frozen food lockers and fast food vending stalls;
- f) Book depot, stationary and chemist shops;
- g) Radio broadcasting stations, studio, telephone exchanges, mobile towers;
- h) Storage of furniture and other household goods, not exceeding 500sqm;
- i) Dispensaries, including veterinary dispensaries or polyclinics, pathology laboratories;
- j) Photographic studios and laboratories with not more than 50sqm, not employing more than 9 persons and not using power more than 3HP;
- k) Personal service establishments such as professional offices;
- l) Art galleries;
- m) Exhibition hall, community hall, welfare centre, gymnasium;
- n) Animal pounds;
- o) Coal and firewood shops;
- p) Small scale service industries or cottage industries not employing more than 9 persons, with motive power not exceeding 5HP and area not more than 50sqm; such as paper box manufacturing including paper cutting, mattress making and cotton cleaning, establishment requiring power for sealing tin;
- q) Repair, cleaning shops and analytical, experimental or testing laboratories not employing more than 15 persons in the industrial activity. Such establishments shall not include use of a cleaning or dyeing fluid with a flash point lower than 60 degree Celsius and machines with dry load capacity of 30kg. Establishment which conducts activities that are noxious or offensive because of emission of odour, dust, smoke, gas, noise or vibration or other-wise dangerous to public health and safety may be permitted with special permission of Chairman, NIT provided that the motive power requirement of such establishment does not exceed 10 HP;
- r) Repairing garages not employing more than 9 persons and 2HP motive power in the industrial activity with no floor above;

- s) Battery charging and repairing, not employing more than 6 persons with an area not more than 25sqm and not more than 2 chargers with power not exceeding 5KW;
- t) Trade or other similar schools not involving any danger of fire or explosion nor of offensive noise, vibration, smoke, dust, odour, glare, heat or any objectionable influences;
- u) Flour mill/ spice grinding with special written permission of the Chairman, NIT if
 - i) It is located on ground floor;
 - ii) Adequate care has been taken in structural design;
 - iii) It does not cause any nuisance to the neighbors and residents of upper floors;
 - iv) Power requirement does not exceed 7.5kw, and horsepower upto 5HP may be granted with special permission of Chairman, NIT.
- v) Fuel filling stations/ auto service stations

22.2.4 Non-residential uses permitted only in independent plots

- a) Maternity homes or nursing homes with more than 5 beds for inpatients within independent buildings with one doctor's residence with the special written permission of the Chairman who will take into consideration the suitability of the site, size and shape of the site, means of access, water and sanitary arrangement etc, before granting the permission; provided the plot is minimum 500sqm in area and the building has 6m setback on all sides;
- b) Public libraries or museums in independent structures restricted to ground floor;
- c) Club house or other recreational activity conducted as a business;
- d) Hotel, motel or lodge;
- e) Primary schools on roads not more than 24m in width and secondary schools, colleges;
- f) Public parks;
- g) Vegetable and fruit market ;
- h) Bus shelters, auto rickshaw/ taxi stands;
- i) Fuel stations, subject to conditions as per Regulation 48;
- j) Veterinary hospitals;
- k) Storage and sale of kerosene not exceeding 1000litres in groceries and approved ration shops on retail basis;
- l) Sale/ distribution/ storage of LPG cylinders upto 100kg;
- m) Parking of automobiles and other light vehicles as a business;
- n) Marriage halls provided they have access from a road of minimum width 18m;
- o) Hospitals, sanatoria, institutions for children, the aged, mahila ashram, in independent building, provided such uses take access from a road of minimum width 18m;
- p) Public utility buildings.

22.2.5 Special conditions for use premises with shop lines

- a) A building or premises with a shop line along a street may be used only for the purposes indicated in 22.2.4 subject to the following conditions:
- b) It is located on a road with minimum width of 12m;
- c) The additional uses permissible here under shall be restricted to a depth of 12.00m measured from the building line and only on the ground floor of the building in the front portion abutting the street;

- d) Such additional uses shall in no case consume no more than 30 percent of the permissible FSI except in buildings on independent plots. Notwithstanding anything contained above, a pedestrian shopping precinct extending to a depth of more than 12m may be provided subject to the condition that no shop in such pedestrian precinct shall be allowed to open directly on the road in front. The minimum width of a pedestrian way provided shall be 3m clear of all steps or projections. Bollards shall be placed at the entrance of such a pedestrian passage to prevent entry of vehicles provided further that satisfactory arrangements for natural or artificial ventilation are made as may be directed by the NIT;
- e) Where the building or premises abuts on two or more streets, no direct opening of such shop shall be permissible on the street, which is less than 9m in congested and 12m in non-congested area;
- f) All goods offered for sale and brought for repair shall be displayed and kept within the building and shall not be kept in the passages or footpaths or roads;
- g) No trade and business involving any danger of fire, explosion offensive noise, vibrations, smoke, dust glare heat or other objectionable influence may be allowed.

22.3 Residential R2

22.3.1 Uses permitted

The Residential – R2 zone is primarily intended for the following residential building types:

- a) All uses permitted in R1, except service apartments.

22.3.2 Accessory uses Permitted

All accessory uses permitted in R1 zone.

22.3.3 Other permissible uses

- a) Convenience shops (as defined in 2.28) not more than 10sqm BUA;
- b) Service and repair shops not more than 20sqm BUA;
- c) Retail shops and general stores with maximum BUA upto 200sqm;
- d) Restaurants and cafeteria upto 200sqm BUA;
- e) Frozen food lockers and fast food vending stalls;
- f) Book depot, stationary and chemist shops;
- g) Radio broadcasting stations, studio, telephone exchanges, mobile towers;
- h) Storage of furniture and other household goods;
- i) Dispensaries, including veterinary dispensaries or polyclinics, pathology laboratories;
- j) Photographic studios and laboratories with not more than 50sqm, not employing more than 9 persons and not using power more than 3HP;
- k) Marriage halls provided they have access from a road of minimum width 18m;
- l) Institutions for children, the aged, mahila ashram, sanatoria and hospitals in independent buildings, provided such uses take access from a road of minimum width 18m;
- m) Art galleries, exhibition hall, community hall, welfare centre, gymnasium;
- n) Animal pounds;
- o) Coal and firewood shops;
- p) Flour mill/ spice grinding with special written permission of the Chairman, NIT if
 - i) It is located on ground floor
 - ii) Adequate care has been taken in structural design

- iii) It does not cause any nuisance to the neighbors and residents of upper floors
- iv) Power requirement does not exceed 7.5kw, and horsepower upto 5HP may be granted with special permission of Chairman, NIT.

22.3.4 Uses permitted in independent plots

All uses permitted in R1 zone.

22.3.5 Special conditions for use premises with shop lines

A building or premises with a shop line along a street may be used only for the purposes indicated in 22.3.2 subject to the following conditions:

- a) It is located on a road with minimum width of 12m;
- b) The uses permissible here under shall be restricted to a depth of 12.00m measured from the building line and only on the ground floor of the building in the front portion abutting the street;
- c) Such uses shall in no case consume no more than 30 percent of the permissible FSI except in buildings on independent plots. Notwithstanding anything contained above a pedestrian shopping precinct extending to a depth of more than 12m may be provided subject to the condition that no shop in such pedestrian precinct shall be allowed to open directly on the road in front. The minimum width of pedestrian way provided shall be 3m clear of all step or projections and bollards shall be placed at the entrance of such pedestrian passage to prevent entry of vehicles provided further that satisfactory arrangements for natural or artificial ventilation are made as may be directed by the NIT;
- d) Where the building or premises abuts on two or more streets, no direct opening of such shop shall be permissible on the street, which is less than 9m in congested and 12m in non-congested area;
- e) All goods offered for sale and brought for repair shall be displayed and kept within the building and shall not be kept in the passages or footpaths or roads;
- f) No trade and business involving any danger of fire, explosion offensive noise, vibrations, smoke, dust glare heat or other objectionable influence may be allowed.

22.4 Residential R3

22.4.1 Uses permitted

All uses permitted in R2, except hostels.

22.4.2 Accessory uses permitted

- a) All accessory uses permitted in R2.
- b) Maximum BUA for retail shops and general stores and restaurants and cafeteria shall be 40sqm.

22.4.3 Other permissible uses

- a) Convenience shops (as defined in 2.28); not more than 10sqm BUA;
- b) Service and repair shops not more than 20sqm BUA;
- c) Retail shops and general stores with maximum BUA upto 100sqm;
- d) Restaurants and cafeteria upto 100sqm BUA;
- e) Frozen food lockers and fast food vending stalls;
- f) Book depot, stationary and chemist shops;
- g) Dispensaries, including veterinary dispensaries or polyclinics, pathology laboratories;
- h) Exhibition hall, community hall, welfare centre, gymnasium;
- i) Animal pounds;
- j) Coal and firewood shops;

- k) Flour mill/ spice grinding with special written permission of the Chairman, NIT if
 - i) It is located on ground floor
 - ii) Adequate care has been taken in structural design
 - iii) It does not cause any nuisance to the neighbors and residents of upper floors
 - iv) Power requirement does not exceed 7.5kw, and horsepower upto 5HP may be granted with special permission of Chairman, NIT.

22.4.4 Uses permitted in independent plots

In addition to all uses permitted in independent plots in R2:

- a) Resorts, hotels and motels;
- b) Junk yards;
- c) Domestic poultry farm with a space requirement of 0.25sqm per bird;
- d) Large format commercial development (as defined in 2.78.8.1 (g)), provided it is located on a plot with direct access to a road with minimum width of 36m;
- e) Agro-based cottage/ small scale industry registered with the District Industries Centres (DIC);
- f) Agriculture and allied activities including temporary needs for storage of agricultural produce.

22.5 Residential R4

22.5.1 Uses Permitted

- a) Villas/ bungalow;
- b) Semi-detached houses (not row houses);
- c) Old-age homes or orphanage.

22.5.2 Accessory uses permitted

All accessory uses permitted in R4 zone.

22.5.3 Other uses permitted

- a) Convenience shops (as defined in 2.28) not more than 10sqm BUA;
- b) Service and repair shops not more than 20sqm BUA;
- c) Dispensaries, including veterinary dispensaries or polyclinics, pathology laboratories;
- d) Animal pounds;
- e) Coal and firewood shops;
- f) Flour mill/ spice grinding with special written permission of the Chairman, NIT if
 - i) It is located on ground floor;
 - ii) Adequate care has been taken in structural design;
 - iii) It does not cause any nuisance to the neighbors and residents of upper floors;
 - iv) Power requirement does not exceed 7.5kw, and horsepower upto 5HP may be granted with special permission of Chairman, NIT.

22.5.4 Uses permitted in independent plots

All uses permitted in independent plots in R4 zone.

22.6 Commercial Zone

22.6.1 Uses permitted

- a) Residential uses will be permitted provided that the total area for all of these either singly or combined does not exceed 50 percent of the permissible built-up area of the plot.
- b) All non-residential uses permitted in Residential R-2 without restriction on size, number of employees and power consumed;
- c) Accessory uses customarily incidental to any permitted principal use including storage space, upto 50 percent of the total floor area used for the principal use;
- d) Stores or shops for the conduct of retail business including departmental stores;
- e) Auto part stores and show rooms for motor vehicles and machinery;
- f) Sale of used or second hand goods or merchandise (not junk, cotton waste or other materials of offensive nature);
- g) Research, experimental and testing laboratories not involving any danger of fire or explosion nor of any noxious nature and located on a site not less than 4ha in area and when the laboratory is kept at least 30m from any of the boundaries of the site and the necessary residential buildings 30m from the laboratory.
- h) Club houses or other recreational activities, conducted as business;
- i) Hotels;
- j) Business/ corporate office on any floor;
- k) Liquor selling establishment;
- l) Discotheque/ pub;
- m) Malls/ hypermarket upto BUA 40,000sqm;
- n) Commercial complex;
- o) Business or IT/bio-tech/nano-tech park;
- p) Business offices and exchanges;
- q) Multi-storey office building upto 3 storeys;
- r) Mixed commercial such as retail, office, hospitality uses;
- s) Marriage halls;
- t) Multiplex/ cinema halls, drive-in-theatres;
- u) Hospitals, maternity homes and nursing homes;
- v) Assembly or concert halls, dance and music studios;
- w) Cultural centres, art galleries/ museums;
- x) Star hotels;
- y) Headquarters of organizations/institutes;
- z) Fish or meat market place;
- aa) Veterinary dispensaries and hospitals;
- bb) Sport venues, gymkhana etc.,
- cc) Colleges, secondary schools, trade or other similar schools;
- dd) Training centre/ technical institute;
- ee) Police station, fire station and such other public utility buildings;
- ff) Wholesale establishments with storage area not exceeding 200sqm subject to fire protection requirements;

- gg) Correctional and mental institutions, institutions for the children, the aged or widows, sanatoria and hospitals in independent building which take access from a road of width not less than 15m (except veterinary hospitals) provided that those principally for contagious diseases, the insane or for correctional purposes shall be located not less than 45m from any residential premises.
- hh) Storage and sale of kerosene not exceeding 1,000 liters in groceries and approved ration shops on retail basis; Storage and sale of other combustible materials shall not normally be permitted except with the special permission of the concerned authority;
- ii) Bulk storage and sale of kerosene not exceeding 13,000 liters in separate godowns confirming to the existing regulations of Chief Controller of Explosives, Government of India provided further that the applicant shall make adequate fire fighting arrangements at his cost in his plot to the satisfaction of the Chairman, NIT;
- jj) Storage and sale of LPG in cylinders not exceeding 100kg in showrooms/ distribution centre;
- kk) Storage and sale of LPG in cylinders not exceeding 6300kg in a separate godown confirming to the existing regulations of Chief Controller of Explosives, Government of India provided further that the applicant shall make adequate fire fighting arrangements at his cost in his plot to the entire satisfaction of the Chairman, NIT.
- ll) Service and light industrial uses given in Table 12 and belong to group 'green' under MPCB categories, shall be permitted only with the special permission of the Chairman, NIT. The Chairman may grant these uses after such scrutiny as may be necessary to ensure that the location is appropriate and is not likely to cause nuisance and hazard to adjoining owners. Before granting any such permission, the Chairman, NIT may prescribe special conditions about minimum size of plot and minimum buffer open spaces from the industrial building/ industrial use to residential or habitable zone/ use (see Regulation 22.7.4).

22.6.2 Special conditions for all commercial uses

Buildings or premises in the Commercial zone shall be used only for the purposes given in Regulation 22.6.1 subject to the following conditions:

- a) all goods offered for sale shall be displayed within the building excluding passages;
- b) when the commercial zone boundary falls short of a street, the frontage along such street shall not be permitted to be developed for uses which would not be permissible along such streets and
- c) when uses other than those permissible in the residential zones without a shop line have an access from the side or rear open spaces, the width of such open spaces shall not be less than 7m.

22.6.3 Special conditions for use premises with shop lines

A building or premises with a shop line along a street may be permitted subject to the following conditions:

- a) It is located on a road with minimum width of 15m;
- b) The uses permissible here under shall be restricted to a depth of 12 m. measured from the building line and only on the ground floor of the building in the front portion abutting the street;
- c) Such uses shall in no case consume no more than 50 percent of the permissible FSI except in buildings on independent plots. Notwithstanding anything contained above a pedestrian shopping precinct extending to a depth of more than 12m may be provided subject to the condition that no shop in such pedestrian precinct shall be allowed to open directly on the road in front. The minimum width of pedestrian way provided shall be 3m clear of all step or projections and bollards shall be placed at the entrance of such pedestrian passage to prevent entry of vehicles provided further that satisfactory arrangements for natural or artificial ventilation are made as may be directed by the NIT;
- d) All goods offered for sale and brought for repair shall be displayed and kept within the building and shall not be kept in the passages or footpaths or roads;
- e) No trade and business involving any danger of fire, explosion offensive noise, vibrations, smoke, dust glare heat or other objectionable influence may be allowed.

22.7 Industry

22.7.1 Any industry will be permitted only with the special permission of the Chairman, NIT, who may grant it after such scrutiny as may be necessary to ensure that the location is appropriate and is not likely to cause nuisance and hazard to adjoining owners. Before granting any such permission, the Chairman NIT may prescribe special conditions about minimum size of plot and minimum buffer open spaces from the industrial building/ industrial use to residential or habitable zone / use, as given in Section 22.7.3 below.

22.7.2 Building or premises in industrial zone may be used for any industrial as well as accessory uses like banks, canteens, welfare center and such other common purposes considered necessary for the industrial workers, quarters of watchmen, caretakers or other essential staff required to be maintained on the premises. Such residential/commercial/other uses may be permitted up to 25% of the permissible FSI.

22.7.3 Hazardous, obnoxious, explosive and polluting industries shall be subject to the applicable norms, regulations, and clearances from Ministry of Environment and Forests, Department of Explosives and the Maharashtra Pollution Control Board (MPCB), wherever applicable.

22.7.4 Uses permissible

- a) Service and Light Industry establishments and the special conditions if any as given in Table No. 12 for service industries;
- b) Business or IT/ bio-tech establishments, nano-tech park;
- c) Warehousing and godowns or storage buildings;
- d) Freight complex, logistic park;
- e) Commercial complex;
- f) Commercial offices;
- g) Mixed commercial such as retail, office , hospitality;
- h) Business offices and exchanges;
- i) Information technology and bio-technology establishments;
- j) Business park;
- k) Wholesale establishments;
- l) Owner's residence or guest house upto maximum built-up area 1500sqm;
- m) Essential residential quarters for caretakers, watchman or other staff required to be present on the premises, upto maximum 40sqm BUA.

22.7.5 Accessory uses permissible

- a) Convenience shops and service and repair shops upto 10sqm BUA;
- b) Retail shop and general store with BUA upto 100sqm;
- c) Industrial canteen/ restaurant/ café with BUA upto 100sqm;

22.7.6 Uses permitted in independent plots

- a) Fuel station;
- b) Auto service station;
- c) Public parking lot or garage;
- d) Hotels;
- e) Banks;
- f) Training centre/ technical institute;

- g) Truck terminal and allied facilities;
- h) Police station, fire station, electric sub-station, water storage tank etc and such other public utility buildings;

Table No. 12

Sr. No.	Category of Industry	Service Industry Class -A (Permitted in R2 and C) Criteria for Classification and special condition			
		Maximum Permissible			
		Power requirement (in H.P.)	Employment (in persons)	Floor area (in sq. m.)	Special Conditions if any
(1)	(2)	(3)	(4)	(5)	(6)
I. Food Product					
1	Preservation of meat, canning preserving and processing of fish crustaceans and similar foods	-	-	-	-
2	Manufacture of milk and dairy products such as butter, ghee, etc.	10	9	50	-
3	Canning & preservation of Fruits & Vegetables including production of Jam, Jelly, Sauce, etc.	-	-	-	-
4	(a) rice huller (b) Groundnut decorticators (c) Grain Mill for production of flour (d) Manufacture of supari and Masala grindings (in separate building). (e) Baby oil expellers	10 10 10 10 10	9 9 9 9 9	50 50 50 50 50	-
5	Manufacture of bakery products with no Floor above	10	9	75	(i) shall not be permitted under or above a dwelling unit(ii) operation shall be permitted only between 8.00 hrs. to 20.00 hrs. (iii) Fuel used shall be electricity, gas or smokeless coal.
6.	Manufacture of cocoa, chocolate, Sugar confectionary	-	-	-	-
7.	Coffee, curing roasting and grinding	2	9	50	-
8.	Cashewnut processing like drying,shelling, roasting, salting etc.	-	-	-	-
9.	Manufacture of Ice	45	20	250	-

Sr. No.	Category of Industry	Service Industry Class -A (Permitted in R2 and C) Criteria for Classification and special condition			
		Maximum Permissible			
		Power requirement (in H.P.)	Employment (in persons)	Floor area (in sq. m.)	Special Conditions if any
(1)	(2)	(3)	(4)	(5)	(6)
10.	Sugarcane crushing & Fruit Juice	2	9	25	-
II. BEVERAGES & TOBACCO					
11.	Manufacture of soft drinks and carbonated water	-	Not included	-	-
12.	Manufacture of bidi	No Power to be used	as permitted	250	To be permitted in R-1 zone only
III. TEXTILE & TEXTILE PRODUCTS					
13.	Handloom / powerloom of yarn for a maximum of 4 looms.	5	9	50	To be permitted in R-1 zone in areas designated by the Chief Officer.
14.	Printing dyeing & bleaching cotton, woolen & silk textiles	-	Not included	-	-
15.	Embroidery & making of crape laces and fringes	5	9	50	-
16.	Manufacture of all types of textile garments including wearing apparel.	3	9	50	
17.	Manufacture of made up textiles goods such as curtains, mosquito net, mattresses, bedding material pillow cases, textile bags. etc.	3	9	50	
IV. WOOD PRODUCTS AND FURNITURE					
18	Manufacture of wooden & cane boxes & packing cases.	-	-	-	--
19	Manufacture of structural wooden goods such as beams, posts, doors and windows	-	-	-	-
20	Manufacture of wooden furniture and fixtures	1	9	50	i) Shall not be permitted under or adjoining a dwelling unit. ii) operation shall be permitted only between 8.00 hrs. to 20.00 hrs.

Sr. No.	Category of Industry	Service Industry Class -A (Permitted in R2 and C) Criteria for Classification and special condition			
		Maximum Permissible			
		Power requirement (in H.P.)	Employment (in persons)	Floor area (in sq. m.)	Special Conditions if any
(1)	(2)	(3)	(4)	(5)	(6)
21.	Manufacture of bamboo and cane furniture and fixtures	1	9	50	
22.	Manufacture of wooden products such as utensils, toys, art wares etc	-	-	-	-
V.	PAPER PRODUCTS AND PRINTING PUBLISHING				
23	Manufacture of cartons and boxes from papers and paper board, paper pulp.	5	9	50	Manufacture with paper pulp not permitted.
24	Printing & Publishing newspaper.	5	9	50	-
25	Printing & Publishing periodicals, books journals, atlases, maps, envelope, printing picture, post-card, embossing				i) Shall not be permitted under or adjoining a dwelling unit. ii) Operation shall be permitted only between 8.00 hrs. and 20.00 hrs. iii) No restrictions of power, number of employees, area of hours of operation shall apply if located in a building, in separate plot not less than 500 sq. m. and if Spl. Permission of the Chief Officer is obtained
26.	Engraving etching block making etc.	10	9	120	Operation shall be permitted only between 8.00 hrs. to 20.00 hrs.
27.	Book binding	10	9	120	-
VI.	LEATHER PRODUCTS				
28.	Manufacture of leather footwear		Not Included		
29.	Manufacture of wearing apparel like coats, gloves etc.		Not Included		

Sr. No.	Category of Industry	Service Industry Class -A (Permitted in R2 and C) Criteria for Classification and special condition			
		Maximum Permissible			
		Power requirement (in H.P.)	Employment (in persons)	Floor area (in sq. m.)	Special Conditions if any
(1)	(2)	(3)	(4)	(5)	(6)
30.	Manufacture of leather consumers goods such as upholstery suitcases pocket books, cigarette and key cases, purses etc.		Not Included		
31	Repair of footwear and other leather	5	9	50	
VII.	RUBBER AND PLASTIC :				
32.	Re-treading and vulcanizing works	2	9	50	
33.	Manufacture of rubber balloons, hand gloves and allied products	2	9	50	
VIII	NON-METALLIC MINERAL PRODUCTS				
34.	Manufacture of structural stone goods, stone dressing, stone crushing and polishing		Not Included		
35.	Manufacture of earthen & plaster states and images, toys and art wares.		Not Included		
36.	Manufacture of cement concrete building components, concrete jellies, septic tank, plaster or paris work lime mortar etc.		Not Included		
IX.	METAL PRODUCTS :				
37	Manufacture of furniture and fixtures primarily of metal.				
38	Plating & Polishing and buffing of metal products				
39	Manufacture of metal building components such as grills, gates. Doors and window frames, water tanks, wire nets, etc.	5	9	50	
40	Manufacture and repair of sundry ferrous engineering products done by jobbing concerns such as mechanical works, shops with lathes, drills,				

Sr. No.	Category of Industry	Service Industry Class -A (Permitted in R2 and C) Criteria for Classification and special condition			
		Maximum Permissible			
		Power requirement (in H.P.)	Employment (in persons)	Floor area (in sq. m.)	Special Conditions if any
(1)	(2)	(3)	(4)	(5)	(6)
	grinders, welding equipment etc				
41	Total sharpening and razor sharpening works	1	6	25	Operation shall be permitted only between 8.00 hrs. to 20.00 hrs.
X	ELECTRICAL GOODS :				
42.	Repairs of household electrical appliances such as radio set. Television set, tape recorders, heaters, irons, shavers, vacuum cleaners, refrigerators, air-conditioners, washing machines, electric cooking ranges, motor rewinding works etc.	3	9	50	(i) Operation shall be permitted only between 8.00 hrs. to 20.00 hrs. (ii) No spray painting permitted.
XI	TRANSPORT EQUIPMENT				
43	Manufacturing of push cart, hand cart, etc.	10	9	50	
44	(a) Servicing of motor vehicles and motor cycles with no floor above (b) Repair of motor vehicles and motor cycles with no floor above. (c) Battery charging and repairs.	10 5	9 6	50 25	Operation shall be permitted only between 8.00 hrs. to 20.00 hrs. No spray painting permitted
45	Repairs of bicycles and cycle rickshaws	5	6	50	No spray painting permitted
XII.	OTHER MANUFACTURING AND REPAIR INDUSTRIES AND SERVICES				
46.	Manufacture of jewellery and related articles	3	9	50	Operation shall be permitted only between 8.00 hrs. to 20.00 hrs.
47.	Repair of watch, clock and jewellery	3	9	50	Operation shall be permitted only between 8.00 hrs. to 20.00 hrs.
48	Manufacture of sports and athletic goods	-	-	-	-

Sr. No.	Category of Industry	Service Industry Class -A (Permitted in R2 and C) Criteria for Classification and special condition			
		Maximum Permissible			
		Power requirement (in H.P.)	Employment (in persons)	Floor area (in sq. m.)	Special Conditions if any
(1)	(2)	(3)	(4)	(5)	(6)
49	Manufacture of Musical instruments and its repair.	3	9	50	Operation shall be permitted only between 8.00 hrs. to 20.00 hrs.
50	Mass manufacture of miscellaneous Products such as costume, jewellery, costume novelties, feather, plumes, artificial flowers, brooms, brushes, lamp shades, tobacco, pipes, cigarette holders, ivory goods, bandages, wigs and similar articles.	-	-	-	
51	(a)Repairs of locks, stoves, umbrellas, sewing machines, gas burners, buckets & other sundry household equipment. (b) Optical glass grinding and repairs	3	9	50	Operation shall be permitted only between 8.00 hrs. to 20.00 hrs.
		3	9	50	
52.	Petrol filling stations	10	9	(i) 30.5x16.75m. (ii) 36.5x30.5m	Plot size to be line with IRC recommendations depending on service bay or not.
53.	Laundries, Laundry service and cleaning, dyeing, bleaching and dry cleaning	5	9	50	(i) Cleaning & dyeing fluid used shall not have flash point lower than 138 ⁰ F. (ii) Operation shall be permitted between 8.00 hrs. to 20.00 hrs. (iii) Machinery having day load capacity of 20 kg and above.
54	Photo processing laboratories.	5	9	50	Operation shall be permitted between 8.00 hrs. to 20.00 hrs.
55	Electronic Industry of assembly type (and not of manufacturing type including heating load).	10	20	250	In independent structure on independent plot with special permission of the Chief officer

Sr. No.	Category of Industry	Service Industry Class -A (Permitted in R2 and C) Criteria for Classification and special condition			
		Maximum Permissible			
		Power requirement (in H.P.)	Employment (in persons)	Floor area (in sq. m.)	Special Conditions if any
(1)	(2)	(3)	(4)	(5)	(6)
56	Bio-technology Unit	--	--	--	As per Regulation No.24.5
57	Information Technology Unit	--	--	--	As per Regulation No.24.7
Note : The Chief Officer may from time to time add to or alter or amend the above list with the approval of Director of Town Planning, Maharashtra State, Pune.					

22.7.7 Housing schemes for industrial workers

Housing schemes for industrial workers may be permitted as part of an industrial plot upto maximum built-up area of 25 percent of the total plot area, subject to the conditions prescribed below:

- Areas for industrial and non-industrial uses shall be clearly demarcated on the site plan submitted as per Regulation 6;
- The non-industrial area shall have an independent access to a public road;
- Such developments shall be treated as a layout and the conditions prescribed in Regulation 13 pertaining to roads/ streets, means of access, Recreational Open Spaces, minimum and maximum plot areas shall be applicable. In cases where any clause under Regulation 12 and Regulation 13 refers to the area of the sub-division or layout, it shall mean the area demarcated as under non-industrial use on the site plan.
- All other regulations prescribed in Part III, Part V, Part VI of these Regulations shall be applicable.

22.7.8 Allowing Residential/ Commercial user in Industrial Zone (Conversion of industrial zone to residential zone)

- With the previous approval of the Chief Officer in consultation with the concerned Divisional Head of Town Planning and on such conditions as deemed appropriate by him, the existing or newly built-up area of a unit in the Industrial zone may be permitted to be utilised for residential or commercial purposes.
- With the previous approval of the Chairman NIT, in consultation with the concerned Divisional Head of Town Planning, lands in the Industrial Zone, including lands in Industrial Zone in Improvement Scheme/ Town Planning Scheme area, may be permitted to be utilised for any of the permissible users in the Residential and Commercial Zone or the Residential Zone subject to the following conditions:
 - Residential/ Commercial user in respect of industries which are not in operation shall not be permitted unless NOC from Labour Commissioner, Maharashtra State, Mumbai, stating that all legal dues have been paid to the workers or satisfactory arrangements between management and workers have been made, is obtained. However, in respect of any open land in the Industrial Zone where industry never existed, NOC from Labour Commissioner shall not be required.
 - In the layout or sub-division of such land admeasuring upto 2 Ha., 10% land for public utilities and amenities, like electric sub-station, bus-station, sub-post office, police out-post and such other amenities/utilities as may be considered necessary shall be provided.
 - In such layouts or sub-division, having area more than 2 Ha., 20% land shall be provided for public utilities and amenities like electric sub-station, bus-station, sub- post office,

police out-post, garden, playground, school, dispensary and such other amenities/utilities as may be considered necessary.

- iv) The land under public utility / amenity shall be handed over to the NIT/ SPA with proper access and basic land development and shall always be open for general public without any restriction. These areas will be in addition to the recreational space as required to be provided under these regulations provided that at least 50% of the total land provided for public amenity/ utility space shall be reserved for unbuildable purposes such as garden, recreational ground, etc.
- v) The required segregating distance between the Industrial Zone and the area over which Residential use is permitted under these Regulations shall be provided within such land intended to be used for residential or commercial purpose.
- vi) Such residential or local commercial development shall be allowed within the permissible FSI of the nearby Residential or Commercial Zone.
- vii) The land provided for public utilities and amenities under this Regulation shall be considered to be reserved in the Development Plan and Transferable Development Rights as per Regulation No.37, may be given or FSI of the same shall be available for utilisation on the remaining land.

Notes:

- i) Residential/Commercial User may be allowed over the part area of the land holding, subject to the condition that total area of the entire land holding shall be considered for deciding the percentage of the land to be reserved for public amenity/ utility spaces, as per these Regulations.
- ii) The area under reservation if any, in the said land, shall be adjusted in the area of required amenity / utility space as per these Regulations and TDR / in-situ FSI for this area will be allowed.
- iii) 20% of the total area proposed to be utilised for residential development, shall be utilized for constructing residential tenements having built up area upto 50 sq.m. or in the form of plots having area upto 150 sq.m.

22.8 Public/Semi Public

22.8.1 Permissible uses

The following uses shall be permissible:

- a) Pre-primary, primary schools, high schools, technical / trade schools, colleges, educational complex, hostel for students and essential staff quarters.
- b) Hospital, sanatoria, dispensary, maternity homes, health centre, complex of such uses, essential staff quarters,
- c) Veterinary hospital
- d) Dharmashala
- e) Public, NGO or charitable trust owned old age home and orphanage
- f) Public institutions such a libraries, research centres, training centres
- g) Government/ semi-government/ local self-government offices, court buildings, essential staff quarters.
- h) Post office, telegraph office, telephone exchange, complex of such uses, essential staff quarters
- i) Cultural and religious institutions
- j) Museums, art galleries, libraries, exhibition halls, auditoriums
- k) Sports facilities such as stadia, gymkhana, gymnasias and so on

22.8.2 Conditional uses permissible

- a) Commercial use upto 15 percent of the permissible BUA shall be permissible subject to following conditions:
 - i) Convenience shopping, etc.,
 - ii) However, hotels/shops for liquor, pan, cigarette, tobacco, lottery tickets and such others which do not serve public purpose, similarly domestic gas, kerosene shops/ godowns which are dangerous to public health shall not be permitted.
 - iii) Sufficient area for parking as per Regulation 16 shall be provided.
 - iv) Sub-division of survey number/gat number/plot number on which such a development has taken place/ would take place shall not be permitted.
 - v) Commercial use is permitted upto a depth of 12m from the building line having public road frontage.
- b) The plots in which there is an existing development; such commercial uses shall be restricted to maximum 15 percent of the existing and proposed development taken together.
- c) The landowner/ developer/ institution shall provide guarantee in writing to the Chairman, NIT for following all the stipulated conditions scrupulously.

Note: With prior approval of the Secretary, Urban Development, Government of Maharashtra, Mumbai, the Chairman, NIT may include other items of public interest in the list which are not covered in the above list.

22.9 Public Utilities**22.9.1 Permissible uses**

The following uses shall be permissible:

- a) Water treatment plant;
- b) Water reservoir;
- c) Pumping station;
- d) Water storage tank;
- e) Sewage/ effluent treatment plant;
- f) Waste water recycling plant;
- g) Electric sub-station;
- h) Cemeteries, burial grounds and cremation grounds;
- i) Slaughter house;
- j) Solid waste landfill/management site;
- k) Police stations, police training institutes and other establishment of the police force;
- l) Fire stations;
- m) Post, telegraph and communication office;
- n) Telephone exchange;
- o) Cattle pound and dairy farm;
- p) Public urinals.

- 22.9.2** Active agriculture use shall be permitted within land under the 500m buffer zone of solid waste landfill/ management site, however habitation shall not be allowed.

22.10 Transportation**22.10.1 Permissible uses**

The following uses shall be permissible:

- a) Roads;
- b) Bus depots;
- c) Railway stations, depots;
- d) Public transit stations such as metro/ mono-rail station;
- e) Public parking garage;
- f) Truck terminals and allied ancillary facilities such as restaurants, motels, lodge, convenience retail not exceeding 15 percent of total BUA and godowns, transfer godowns and warehouses not exceeding 50 percent of total BUA.
- g) Truck terminal – In addition to minimum 60 percent area for parking of trucks, restaurant, hotel, motel, lodging facility for drivers, auto repair centre, auto service centre, shops for auto spare parts, shops for daily needs, ATM, PCO, primary health centre/ first aid centre, provision for loading and unloading.

22.11 Recreation/ Open Spaces**22.11.1 Permissible uses**

The following uses shall be permissible:

- a) Park, garden;
- b) Botanical garden or nature park or nature trail;
- c) Playground or multipurpose ground;
- d) Plant nursery;
- e) Open to sky amphitheatre;
- f) Rock garden;
- g) Children's park/play area;
- h) Cremation and burial ground limited to 1,000sqm land area;
- i) Golf courses;
- j) Water sports or adventure sports;
- k) Camping grounds;
- l) Art and crafts village;
- m) Waterfront amusement park or theme park, subject to meeting requirements given in Regulation 50.

22.11.2 Conditional Accessory Uses Permitted

The following uses may be permitted as an accessory to any of the above principal uses, provided the total BUA under these uses does not exceed the specified percentage of site area given below:

- a) Office and/or green room with attached toilet: not exceeding 10 percent of site area,
- b) Green house: not exceeding 10 percent of the site area,
- c) Picnic shelters and kiosks: not exceeding 5 percent of the site area,
- d) Detached toilet block: not exceeding 5 percent of the site area,

- e) Restaurants or cafés, each not exceeding 100sqm BUA or 5 percent of the site area, whichever is smaller,
- f) Community hall: not exceeding 1500sqm BUA or 15 percent of the site area, whichever is smaller.
- g) Overhead water storage tank for facilities operated by public agencies, provided it is located within the open space such which shall not adversely affect circulation and utilizable area for recreation purposes.

Further, the total covered areas provided under a combination of accessory uses (a) to (g) above shall not exceed 15 percent of the total site area with number of storeys limited to ground + 1 storey. Of this permissible BUA, maximum of 10 percent shall be allowed on ground floor and 5 percent on first floor.

22.11.3 Parking

Open air parking spaces provided as per the requirements given in Regulation 16 can be permitted and, only serving the uses mentioned in 22.11.2 above that are part of the plot shall be permitted with special approval from NIT.

22.11.4 Additional conditions for Recreation/ Open Space Zone adjoining rivers and lakes as shown on the Development Plan

- a) Activities or uses which principally serve the principle uses given in 22.11.1 but require construction of covered premises or a building may be allowed. Such uses include green house, arboretum and so on. The Chairman NIT may grant these uses after such scrutiny as may be necessary to ensure that the buildings shall not be used for purposes other than serving the principle use. Before granting any such permission, the Chairman may prescribe special conditions on size of the building, its location within the plot and so on.
- b) Maximum permissible FSI for such buildings specified in (a) within this area shall be 0.2.
- c) Such sites and any buildings permitted in 22.11.2, shall be developed as 'low impact developments' subject to the conditions prescribed in Regulation 51.
- d) Site plans submitted at the time of development approval shall have clearly demarcated high flood lines (HFL).

22.12 Agriculture A1

22.12.1 Permissible uses

Agriculture A1 Zone covers area under the irrigation command area. These are prime farmlands with double or triple cropping pattern.

The following uses shall be permissible:

- a) Farm house (as defined in 2.119) subject to the conditions below:
 - i) Minimum size of agriculture holding 0.4ha;
 - ii) Maximum plinth area 150sqm, irrespective of the size of agriculture holding;
 - iii) Only ground + 1 storey structure shall be permitted (with or without stilts).
- b) Farm buildings used for storage of grains or other farm produce subject to the conditions below:
 - i) For size of agriculture holding between 0.4 and 0.6ha: maximum plinth area 150sqm;
 - ii) For size of agriculture holding between greater than 0.6ha: maximum plinth area one- fortieth of that holding or 400sqm, whichever is less.
- c) Cattle shed/ stable subject to maximum permissible FSI of 0.2 on gross plot area.
- d) Poultry farm subject to maximum permissible FSI of 0.2 on gross plot area.
- e) Dairy subject to maximum permissible FSI of 0.2 on gross plot area.
- f) Storage and drying of fertilizer;
- g) Greenhouse;

- h) Activities related to horticulture, plantations, animal husbandry and fisheries;
- i) Brick, tile or pottery manufacture;
- j) Burial ground/ cemetery, crematorium with access to roads with minimum width 12m.
- k) Agri-tourism Centre, as per the conditions laid down by the Maharashtra State Agri and Rural Tourism Co-operative Federation Ltd (MART) subject to maximum permissible FSI of 0.2 on gross plot area.

22.12.2 Conditional uses permissible in independent plots

- a) Food preservation related activities such as salting, curdling, drying, pickling etc., or processing activities provided power requirement does not exceed horsepower upto 10HP;
- b) Public utility buildings permissible in the zone Public Utilities, provided the plot is directly accessible from a road with minimum width, subject to maximum FSI of 0.1;
- c) Cottage industry/ agro-industry registered as small scale industry with the District Industries Centre (DIC), provided it is located on a plot with direct access from a 15m wide road;
- d) LPG godown subject to the following conditions:
 - i) it shall be located on a site with direct access from a 15m wide existing road;
 - ii) minimum plot area shall be 4000sqm;
 - iii) maximum permissible FSI shall be 0.1;
 - iv) only ground floor structure shall be permitted;

No Objection Certificate from the Controller of Explosives and Chief Fire Office, NIT/ NMC/ Director of Fire Services, Government of Maharashtra shall be submitted along with the proposal.

Note:

22.13 Any construction related to any of permissible uses in A1 Zone shall be a ground storey structure with maximum FSI of 0.1 on gross plot area, if not specified. Agriculture A2

22.13.1 Permissible uses

Agriculture A2 Zone covers farmlands that are not included in the irrigation command area.

The following uses shall be permissible:

- a) Farm house (as defined in 2.119) subject to the conditions below:
 - i) Minimum size of agriculture holding 0.4ha;
 - ii) Maximum plinth area 150sqm, irrespective of the size of agriculture holding;
 - iii) Only ground + 1 storeyed structure without stilts or stilts + 1 storeyed structure shall be permitted.
- b) Farm buildings used for storage of grains or other farm produce subject to the conditions below:
 - i) For size of agriculture holding between 0.4 and 0.6ha: maximum plinth area 150sqm;
 - ii) For size of agriculture holding between greater than 0.6ha: maximum plinth area one-fortieth of that holding or 400sqm, whichever is less.
- c) Greenhouse;
- d) Poultry farm;
- e) Cattle shed/ cow shed/ stable;
- f) Activities related to horticulture, plantations, animal husbandry and fisheries;
- g) Burial ground/ cemetery, crematorium with access to roads with minimum width 12m;
- h) Brick, tile or pottery manufacture;

- i) Storage and drying of fertilizer, subject to maximum 20% of plot area;
- j) Mobile phone tower with ancillary equipment;
- k) Dairy;
- l) Cold storage;
- m) Cottage industry/ agro-industry registered as small scale industry with the District Industries Centre (DIC), subject to maximum BUA upto 20% of plot area;
- n) Agri-tourism Centre, as per the conditions laid down by the Maharashtra State Agri and Rural Tourism Co-operative Federation Ltd (MART)
- o) Garden, forestry, nursery, public parks, private parks; play fields, summer camps for recreation of all types.
- p) Bio-gas plants, power generation from waste/ non-conventional sources of energy
- q) Petrol Pump/LPG Pump/CNG Pump: Petrol Pump, LPG Pump, CNG Pump as per Regulation 48
- r) Highways amenities such as motels, way-side restaurants, service stations, service godowns, factory outlets, Highway malls, Hyper Malls along with public conveniences like toilets.
- s) Any other compatible use not specified above may be permitted with prior approval of the Director of Town Planning, Maharashtra State.

22.13.2 Conditional uses permissible in independent plots

The following uses may be permissible after prior approval from the Chairman, NIT:

- a) Religious structure, provided the plot is directly accessible from a road with minimum width 18m, subject to conditions below:
 - i) Total FSI shall not exceed 0.2 (including buildings in 'b' below);
 - ii) Ancillary residential development shall not consume FSI of 0.10;
- b) Food preservation related activities such as salting, curdling, drying, pickling etc., or processing activities, for which the power requirement does not exceed 7.5kw and horsepower upto 5HP;
- c) Public utility buildings permissible in the zone Public Utilities, provided the plot is directly accessible from a road with minimum width 15m, subject to maximum FSI of 0.2;
- d) Amusement park or theme park, provided the plot is directly accessible from a road of minimum width 30m; subject to requirements of Regulation 50 and conditions below:
 - i) Total FSI shall not exceed 0.2 (including buildings in 'ii' below);
 - ii) Ancillary residential development shall not consume FSI of 0.10;
- e) Recreation activities such as swimming pool, shooting ranges, racing tracks and golf course subject to the conditions below:
 - i) the plot is directly accessible from a road of minimum width 30m;
 - ii) total BUA under all ancillary buildings does not exceed 5 percent of gross plot area or 300sqm whichever is less;
 - iii) height of buildings does not exceed 5m from plinth level.
- f) Warehouses or transfer godowns, provided the plot is directly accessible from an existing road of minimum width 15m and plinth area does not exceed 20% of plot area and the structure is limited to ground storey;
- g) LPG godown subject to the following conditions:
 - i) it shall be located on a site with direct access from a 15m wide road;
 - ii) minimum plot area shall be 0.4ha;

- iii) maximum permissible FSI shall be 0.2;
- iv) only ground floor structure shall be permitted;
- v) No Objection Certificate from the Controller of Explosives and Chief Fire Officer, NIT shall be submitted along with the proposal.
- h) Research and development centres, subject to the conditions given below:
 - i) Bio-technology unit as per stipulations given in Part V (regulation no. 24.5)
 - ii) Base FSI of 0.20
 - iii) Minimum plot size shall be 10ha;
 - iv) Maximum 1 percent BUA may be utilized for office use and maximum 1 percent for staff quarters;
 - v) Only one additional storey above ground floor shall be permitted;
 - vi) Total number of employees shall be limited to 10;
 - vii) Research and development work for inflammable and hazardous chemicals shall not be permitted;
 - viii) At least 500 trees per hectare shall be planted and maintained.

Violation of any condition given above in (g) and (h) shall lead to cancellation of the permission.

- i) Educational, medical and institutional buildings of Government or public authorities or of registered public charitable trusts with FSI of 0.2 and ground plus one storey, subject to plantation of trees at the rate of 250 trees per hectare. Additional FSI on payment of premium shall be as stipulated in Regulation 24.2.

Note: Any construction related to any of permissible uses in A2 Zone shall be a ground storey structure with maximum FSI of 0.2 on gross plot area, if not specified.

22.13.3 Improvement Schemes

Improvement schemes as per the NIT Act can be permissible in A2 Zone, provided the area of such improvement schemes is minimum 7.5 sqkm, subject to conditions stipulated by the Chairman NIT from time to time.

22.14 Mines and Quarries

22.14.1 Permissible uses

The following uses shall be permissible:

- a) Stone quarrying;
- b) Soil excavation;
- c) Stone crushing or other similar activities;
- d) Mining activity;
- e) Brick kilns;
- f) Caretaker's quarters or residential quarters for essential staff upto maximum BUA 40sqm;
- g) Ancillary buildings with maximum BUA upto 250sqm - site office, cafeteria.

22.14.2 Special conditions

Conditions prescribed by Regulation 41 shall be applicable to all land parcels under the Mines and Quarries zone. All building activity in this zone shall be as regulated by the Coal Bearing Areas Acquisition and Development Act.

22.14.2 Areas shown as 'Quarry to Park' in the Development Plan

Existing quarries located close to residential areas shall be restored into Quarry Parks (Refer Regulation 41.3) after the expiry of the current license period. The Regulations applicable for Recreation/ Open Spaces Zone (Refer Regulation 22.11) shall be applicable in these areas once the quarrying activities cease to continue.

22.15 Defence

Areas under the Defence zone are lands under occupation and ownership of the Defense Department or otherwise earmarked for defense related services. This zone will be subject to the relevant Defence rules.

Further, certain areas adjoining the Defense zone, as may be specifically notified from time to time, shall be subject to restrictions on constructions or on the use of lands in the interest of safety and security of the defense services or the civil population living in the surrounding areas.

22.16 Forest

Areas under Forest zone are lands under ownership of the Forest Department and subject to applicable rules and regulations of the Forest Department.

22.17 Amendments to uses permitted

The NIT/SPA may from time to time, add or amend the uses permitted in any zone with the approval of Director, Town Planning Department, Pune Government of Maharashtra..

22.18 Uses Permissible in Proposed Reservations

- i) The uses permissible in a reserved sites shall be conforming to the use for which it is reserved. The required parking, public toilets and separate place for garbage bins shall also be provided in the reserved site itself.
- ii) Combination of uses as mentioned below may be permissible even if the reservation is for a specific purpose.
 - a) **Playground** – In playground reservation, minimum 90% area shall be kept open for open play activities. Subject of which covered swimming pool & allied construction, gymnasium, covered badminton court, pavilion, watchman quarter, small may be permitted.
 - b) **Stadium** - In addition to the uses permissible in playground mentioned above, shops below the spectators' tiered gallery may be permitted.
Note: The FSI permissible for (a) & (b) above shall be 0.1 and 0.25 respectively.
 - c) **Park/ Garden** – In addition to the main use of garden, open swimming pool & allied construction, water tank, rain water harvesting system, gardener / watchman quarter, small restaurant or food stalls to the extent of 20 sq.m.may be permitted.Total FSI used for such constructions shall not exceed 4% of the garden area.
 - d) **Vegetable Market** – Open or covered ottas along with petty convenient shops, fruit stalls may be permitted. Further, convenience retail may be permitted.
 - e) **Commercial Centre** – Shopping, vegetable market, departmental stores, offices, banks / community hall on upper floors.
 - f) **Town-hall** -In addition to Town hall, exhibition hall, art gallery, meeting / conference hall, library and small restaurant to the extent of 20 sq.m., may be permitted.
 - g) **Drama Theatre / Natyagriha**-In addition to Drama theatre / natyagriha, art gallery, exhibition hall, library, small restaurant to the extent of 20 sq.m. and allied users such as guest rooms for the artists may be permitted.
 - h) **Cultural Hall** -In addition to Cultural hall, marriage hall, socio-cultural activities, art gallery, exhibition hall, performing arts activities, small restaurant to the extent of 20 sq.m.and allied users such as guest rooms, yoga centre may be permitted.
 - i) **Primary School** – Primary & pre-primary schools and allied activities.
 - j) **Secondary / High School** – Junior college, secondary / high school and primary-preprimary school & allied activities.

- k) **Library** – In addition to library, nursery school anganwadi may be permitted.
- l) **Health Centre / Hospital / Maternity Home / Dispensary** – Any sort of medical facilities alongwith ancillary construction such as staff quarters, chemist shop, restaurant, ATM, PCO, cyber café of not more than 20 sq.m., etc. and sleeping accommodation for guests in case of bigger hospitals of built up area not less than 6000 sq.m. may be permitted.
- m) **Truck Terminus** – In addition to minimum 60% area for parking of trucks, restaurant, hotel, motel, lodging facility for drivers, auto repair centre, auto service centre, shops for auto spare parts, shops for daily needs, ATM, PCO, primary health centre / first aid centre and provision for loading-unloading may be permitted.
- n) **Bus depot** -In addition to S.T. Stand commercial uses as per directives issued by the Government may be permitted.

Note:-1) The permissible FSI for above uses shall be 1.00 and 2.00 on the gross area of reservation, in non-congested and congested area respectively, if not specified.

PART IV
MARGINAL SPACES, SETBACKS, HEIGHT, PERMISSIBLE F.S.I.

23 GENERAL

Following regulations for congested area shall be applicable for the lands included in congested area as shown on the plan. For the areas outside congested area in the development plan, regulation for outside-congested area shall apply. However, in congested area, if the original land holding is more than 0.40 Ha, then regulations of non-congested area shall apply.

23.1 Marginal Open Spaces, Area And Height Limitations And Permissible FSI for Buildings Situated Within Congested Area

23.1.1 Residential Buildings

- a) **FSI:** Maximum permissible FSI shall be 1.5 for pure residential building and in case of residential mixed with commercial or other use, additional FSI, limited to 0.5 for non-residential use may be permitted.
- b) In case of redevelopment scheme of a residential property:
 - i) The size of the tenements shall be minimum 15sqm
 - ii) Where the existing tenement density exceeds 250 tenements per hectare, the redevelopment scheme should accommodate all the existing tenements, as far as possible subject to the condition that proposed FSI does not exceed 25% above the permissible FSI of 1.0
 - iii) Where the existing tenement density is less than 250 tenements per hectare, the redevelopment scheme may accommodate the number of tenements so that the FSI does not exceed 1.0 and the tenement density does not exceed 250 per ha.
- c) **Building setbacks**
 - i) The minimum front setback from the existing or proposed roads shall be as under:

Sr No	Road width	Pure residential use	Mixed use
1	For streets 7.5m to less than 12 m in width	1.00 m	2.00 m
2	For streets 12m to less than 18m in width	1.50 m	2.50 m
3	For streets 18m and above in width	2.00 m	3.00 m

- ii) Side and rear setbacks shall be as below:

Sr No	Residential Plot Area	Side	Rear
1	Upto 250 sqm	0.00	0.00
2	Above 250 and upto 500 sqm	1.00	1.00
3	Above 500 and upto 1000 sqm	2.00	2.00
4	Above 1000 sqm	As per Regulation 13	

Notes:

- i) For light and ventilation, provisions in Regulation No.15.2 shall apply.
- ii) For common wall construction, length of common wall shall not be more than 8 m.
- iii) For properties which have access from streets less than 7.5m wide, no setbacks shall be prescribed subject to the condition that no lane shall be less than 4.5m in width, clear of any structural projections. Streets less than 4.5m wide shall be treated as lanes only when they serve as access to the properties fronting on them.
- iv) Structural projections such as balconies, cornices, weather sheds, roof shall be allowed only up to width of 0.6m within the marginal open space, as given in Regulation 15.4.

- v) Height: The height of the building shall not be governed by regulation 15.5, but shall however not be more than 15m.
- vi) Ground coverage: The maximum ground coverage shall be 60% of the net plot area.

23.1.2 Cinema theatre, multiplex, assembly-building, shopping malls and like buildings: For these buildings, regulations prescribed in non- congested area, except FSI, shall apply.

23.1.3 Education, Medical, Institutional, Commercial, Mercantile and other buildings:

- a) FSI: Maximum permissible FSI shall be 2.0
- b) Marginal Open Space/ Setbacks: Minimum setback of 3m shall be left on all sides
- c) Ground coverage: The maximum ground coverage shall be 50% of the net plot area

23.1.4 Pathway for access to the internal building or interior part of the building:

23.1.4.1 The pathway shall not be less than 3.6m in width and no portion of any building shall overhang or project below a height of 3.6m from the surface of such passage. This is subject to the condition that if in the opinion of the Chairman, the length of such passage or the number of buildings served by such passage requires extra width or clear height than given above.

23.1.5 If the width of property is less than 3.6 m. (12 ft), the entire ground floor shall be on stilts.

23.1.6 Front setback/ marginal open space as prescribed by the Highway or any other rules shall be applicable if they are over and above as prescribed in these Regulations.

23.1.7 Relaxations

23.1.7.1 The provisions mentioned in above Regulation No.23.1.1 to 23.1.4 may be relaxed by the Chairman, NIT in special circumstances in consultation with the Divisional Head, Nagpur Division of the Town Planning Department.

23.2 Marginal Open Spaces, Area And Height Limitations And Permissible FSI for Buildings Situated Non-congested Area

23.2.1 The provisions as given in Table No. 13 shall apply for residential buildings, residential with shop line on ground floor permissible in non-congested areas and ancillary residential buildings permissible in industrial areas. The provisions as given in Table No. 13a shall apply to other buildings in the various land use zones specified therein.

Table No- 13: FRONT/REAR/SIDE MARGINS/HEIGHTS FOR RESIDENTIAL BUILDINGS IN NON-CONGESTED AREA

Sr No	Access Road Type/ Width	Minimum Plot Size (sqm)	Minimum Width of Plot (m)	Maximum Ground Coverage (%)	Minimum Front Setback (m)	Minimum Side Setback (m)	Minimum Rear Setback (m)	Normal FSI permissible on net plot area	Additional FSI with payment of premium	Remarks
(1)	(2)	(3)	(4)	(5)	(6)	(7)	(8)	(9)	(10)	(11)
1	Expressway/ ORR/ National Highways/State Highways	450	15	R1: 60 R2: 50 R3: 40	4.5m from road line or as specified by Highway Rules, whichever is more	3.0	3.0	R1: 1.25 R2: 1 R3: 0.75	0.7	
2	MDR/ ODR	450	15	R4: 30 Any other permissible zone: As per coverage permissible in that zone	4.5m from road line or as specified by Highway Rules, whichever is more	3.0	3.0	R4: 0.5 Any other permissible zone: As per FSI permissible in that zone		
3	Other roads above 24m wide	300	12		6.0	3.0	3.0			
4	15-24m wide roads	250	12		4.5	3.0	3.0			
5	9-15m wide roads	150	10		3.0	1.5	1.5			
6	Row housing on roads of width 12m. and below	50 to max 125	3.50	-	2.25 m.	0.00 (in case of corner plot, 1.5 or building line of the adjoining road whichever is more)	1.5	As per land use zone	As per land use zone	(G+1) may be allowed.
7	Row housing for LIG/ EWS/High Density Housing, Slum Up-gradation	30 to max 50	3.00	-	0.90 m. from pathway 2.25 m.	-do-	0.90	As per land use zone & other provisions	As per land use zone & other provisions	(G+1) may be allowed.

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Sr No	Access Road Type/ Width	Minimum Plot Size (sqm)	Minimum Width of Plot (m)	Maximum Ground Coverage (%)	Minimum Front Setback (m)	Minimum Side Setback (m)	Minimum Rear Setback (m)	Normal FSI permissible on net plot area	Additional FSI with payment of premium	Remarks
(1)	(2)	(3)	(4)	(5)	(6)	(7)	(8)	(9)	(10)	(11)
	etc. by public authority				from road boundary			under this DCR	under this DCR	

Table No - 13a: FRONT/REAR/SIDE MARGINS/HEIGHTS FOR OTHER BUILDINGS IN NON-CONGESTED AREA

Land Use Zone	Access Road Type/ Width	Minimum Plot Size (sqm)	Plot Frontage (m)	Maximum Ground Coverage (%)	Minimum Front Setback (m)	Minimum Side Setback (m)	Minimum Rear Setback (m)	Normal FSI permissible on net plot area	FSI with payment of premium
(1)	(2)	(3)	(4)	(5)	(6)	(7)	(8)	(9)	(10)
Commercial	Expressway/ ORR/ National Highways/State Highways and roads 36m wide and above	-	Min 18	60	6m from road line or as specified by Highway Rules, whichever is more	4.5	4.5	1.25	1
	All other roads upto 9m wide		Min 15		6.0	4.5	4.5		
Public and Semi-public	Expressway/ ORR/ National Highways/State Highways and roads 36m wide and above	-	Min 18	60	6m from road line or as specified by Highway Rules, whichever is more	6.0	6.0	1	-
	All other roads upto 9m wide		Min 15		6.0	4.5	4.5		

NAGPUR IMPROVEMENT TRUST

Land Use Zone	Access Road Type/ Width	Minimum Plot Size (sqm)	Plot Frontage (m)	Maximum Ground Coverage (%)	Minimum Front Setback (m)	Minimum Side Setback (m)	Minimum Rear Setback (m)	Normal FSI permissible on net plot area	FSI with payment of premium
(1)	(2)	(3)	(4)	(5)	(6)	(7)	(8)	(9)	(10)
Transportation		-	-					Bus Depots, Truck terminals and allied ancillary activities - 0.5	
								Railway Stations, depots, Public Parking Garage - 1.0	
								Public transit stations such as metro station - 1.5	
Utilities	Expressway/ ORR/ National Highways/State Highways and roads 36m wide and above	-	-	30	6m from road line or as specified by Highway Rules, whichever is more	4.5	4.5	1	-
	All other roads upto 9m wide				3.5	3.0	3.0		
Agriculture - A2	Expressway/ ORR/ National Highways/State Highways and roads 36m wide and above	4,000	-	As specified in Regulation 22.13	6m from road line or as specified by Highway Rules, whichever is more	4.0	4.0	0.2; or as specified in Regulation 22.13	-
	All other roads upto 9m wide				6.0	4.0	4.0		

NAGPUR IMPROVEMENT TRUST

Land Use Zone	Access Road Type/ Width	Minimum Plot Size (sqm)	Plot Frontage (m)	Maximum Ground Coverage (%)	Minimum Front Setback (m)	Minimum Side Setback (m)	Minimum Rear Setback (m)	Normal FSI permissible on net plot area	FSI with payment of premium
(1)	(2)	(3)	(4)	(5)	(6)	(7)	(8)	(9)	(10)
Prime Agriculture - A1	Expressway/ ORR/ National Highways/State Highways and roads 36m wide and above	4,000	-	As specified in Regulation 22.12	6m from road line or as specified by Highway Rules, whichever is more	6.0	6.0	0.2; or as specified in Regulation 22.13	-
	All other roads upto 9m wide				6.0	4.0	4.0		
Open space and Recreation				5	10.0	6.0	6.0		
	River buffer as marked on the Development Plan along major rivers (Vena, Pench, Nag, Pili and Kanhan).								

Notes for Tables 13 and 13a:

- Where the height of the building exceeds 15m, then side and rear marginal spaces shall be left as per Regulation No.15.1.3 subject to minimum of 3 m.
- Row-housing plots at the junction of two roads shall be larger to maintain the setback from both roads. **Not** more than 8 and **not** less than 4 plots shall be allowed in each block of row housing. Each block shall be separated from the other by 6m wide road or 6m side margin distance of the plot.
- If the plot is from approved land subdivision layout, then plot area shall be treated as net area. The computation of FSI & net plot area shall be as per Regulation No.13.4.1.
- For clinics having area of less than 100 sqm, above regulation shall apply.
- In no case ribbon development rules shall be relaxed without consent of the Highway Authority.
- Rate of payment of premium for the additional FSI mentioned in Column No.10 shall be as described in these regulations. (Refer 6.2.14).
- No relaxation shall be granted in case of ground coverage, marginal distances, parking and other requirements as per these regulations to enable consumption of the maximum permissible FSI.
- For plots abutting service roads of National/ State Highways, the above requirements shall be as per the width of the service road.

23.2.2 Building setbacks and ground coverage for public occupancy buildings

The provisions given below in Table No. 14 shall apply to public occupancy use premises regardless of the land use zone they are located in.

In cases where the minimum requirements given by Land Use Zone in Table 13 and 13a are less than those given for a specific use premise below, the regulations given in below in Table No- 14 shall prevail.

Similarly, in cases where minimum requirements given in Table 14 are less than those required for a particular zone in which the use premise is located, the requirements given in Table 13-13a shall prevail.

Table 14

Sr No	Use Premises	Minimum Access Road Width (m)	Minimum Plot size (sqm)	Maximum Ground Coverage (%)	Minimum Front Setback (m)	Minimum Side Setback (m)	Minimum Rear Setback (m)
(1)	(2)	(3)	(4)	(5)	(6)	(7)	(8)
1	Hospitals, maternity homes and nursing homes (more than 5 beds) clinic, health club	15m	-	65	6	6	6
2	Public / Semi-public buildings	15m	-	65	6	6	6
3	Pre-primary school	9m (30m maximum)	-	40	6	6	6
4	Primary school	12m (30m maximum)	500	40	6	6	6
5	Other education buildings	15m	-	40	6	6	6
6	Auditorium assembly hall, mangal karyalay, stadium, sports complex	24m	-	65	12	6	6
7	Malls, cinema hall/ multiplex	24m	-	65	12	6	6
8	Mercantile / business / commercial	18m	-	65	6	6	6
9	Fuelling stations	15m	See Regulation 48.7	45	12	6	6
10	Resorts	18m	10,000 (1ha)	25	6	6	6
11	Amusement parks / theme parks	24m	50,000 (5ha)	20	12	6	6
12	Hotels	24m		65	6	6	6

Notes:

- i) In case of plots fronting on National Highway, State Highway and Major District Roads, the building line shall be as per Ribbon Development Rules or as given in the Table above, whichever is more.
- ii) Side and rear marginal open spaces as mentioned in the above table shall be subject to Regulation 15, whichever is more.

Table No - 15: FRONT/REAR/SIDE MARGINS/HEIGHTS FOR BUILDINGS IN INDUSTRIAL LAND USE ZONES IN NON-CONGESTED AREA

Sr No	Minimum Plot Size (sqm)	Maximum Ground Coverage (%)	Minimum Front Setback (m)	Minimum Side Setback (m)	Minimum Rear Setback (m)	Normal FSI permissible on net plot area	FSI with payment of premium
(1)	(2)	(3)	(4)	(5)	(6)	(7)	(8)
1	300 to 1000	50	4.5	3.0	3.0	1; 1.5 for IT, Bio-tech and Nano-tech	0.2
2	1001 to 2500		6.0	4.5	4.5		
3	2501 to 5000		6.0	6.0	6.0		
4	5001 & above		9.0	9.0	9.0		

Notes:

1. Minimum plot size for plots with access from national/ state highways and roads of width 36m and above shall be 1,000 sqm
2. Minimum front setback for plots with access from national/ state highways shall be as specified in Highway Rules.
3. Minimum plot frontage for plots abutting national/ state highways shall be 20m

23.3 Development on Narrow Plots

Narrow plots located in Residential R1, Residential R2, Commercial and Industrial zones shall be eligible for certain relaxations in development conditions as given in this Regulation.

23.3.1 Relaxations for narrow plots under Residential and Commercial zones

Plots in R1, R2 and Commercial zones with narrow frontage (width) or depth will be permitted relaxations subject to the conditions indicated in the Table No. 15a below.

Table No- 15a

S. No.	Plot Size / Dimension	Relaxation	Restrictions on Building
1	Depth less than 15m	Rear setbacks may be reduced to 1.5m.	Height not to exceed ground + 1 storey or stilts + 2 storeys subject to maximum of 10m
2	Width less than 8m	Side setbacks may be reduced to 1.5m.	Height not to exceed ground + 1 storey or stilts + 2 storeys subject to upto maximum of 10m

Notes:

- a) No dimension of any building in a narrow plot shall exceed 30m.
- b) In areas when the majority of plots is less than 15m in width or depth, the Chairman, NIT may prescribe building lines up to which row houses would be permissible.
- c) Relaxation for front setback shall not be applicable for plots having access from National Highway/ State Highway/ expressway and roads of width 18m and above, for which Highway Rules are applicable.

d) These relaxations are not applicable to row houses.

23.3.2 Relaxations for narrow plots under industrial zones

Plots in Industrial zones having one dimension smaller than 10m will be permitted relaxations subject to the conditions indicated in the Table No. 15b below, provided that the plot area does not exceed 300 sqm.

Table No- 15b

Sr.	Plot Size / Dimension	Setbacks	Building Dimensions				
			Maximum Width* (m)	Maximum depth* (m)	Maximum height* (m)	No. of storeys	Walls
1	Width less than 10 m	Side open space may be reduced to 1.8m.	6	30	4.5	1	Dead walls 40cm thick on both sides
2	Depth less than 10 m	Rear open space may be reduced to 1.8m.	30	6	4.5	1	Dead wall 40cm thick on rear sides
3	Width between 10m and 12m.	May be reduced on one side to 4.5m. The other side may be reduced to 1.8m.	6	30	8	2	Dead wall 40cm thick facing the reduced open space, as in Sr. No 1 and 2
4	Depth between 10m and 12m.	May be reduced at the rear to not less than 1.8m.	30	6	8	2	Dead wall 40cm thick facing rear side
5	Width between 12m and 16m.	One side open space may be reduced to 1.8m	6	30	8	2	Dead wall 40cm thick facing the reduced open space
6	Depth between 12m and 16m.	Rear open space may be reduced to 1.8m.	30	6	8	2	Dead wall 40cm thick facing rear side

* Subject to meeting setback requirements

PART V

ADDITIONAL FSI IN CERTAIN CATEGORIES IN NON- CONGESTED AREA

24 GENERAL

Additional Floor Space Index may be allowed in certain categories as mentioned below and subject to following conditions:

- a) No relaxation shall be granted in case of marginal distances, parking and other requirement as per these regulations.
- b) The percentage of additional FSI shall be applicable on normal FSI permissible in the said area.
- c) The amount recovered by way of premium for additional FSI shall be deposited in separate infrastructure development fund and shall be utilised for development/up-gradation of infrastructure related to the concerned projects.

24.1 Road widening and construction of new roads

The development right on the land reserved for construction of new roads or widening of existing roads could be transferred by the land owner onto his remaining land, if the land is handed over the land to NIT/SPA/ public sector undertaking free of cost and free of encumbrances.

The Chairman, NIT may permit on the same plot, additional FSI on 100 per cent of the area required for road widening or for construction of a new road proposed under the Development Plan and also for road widening/ service road proposed to NH/SH/MDR/ODR, if the owner (including the lessee) of such land surrenders such land for road widening or construction of new road without claiming any compensation in lieu thereof and hands over the same free of encumbrances to the satisfaction of the Chairman, NIT. Such 100 percent of the FSI on land so surrendered to the NIT/ relevant public sector undertaking may be utilized upto a limit of 40 per cent of the area of the plot remaining after such surrender and the balance FSI remaining there after shall be allowed to be utilised as a Development Right in accordance with the rules regulating Transfer of Development Rights (TDR). Thereafter, the road shall be transferred in the survey records in the name of the NIT/ public sector undertaking and shall vest in it becoming part of a public street/ right of way, provided further that this concession shall not be granted in respect of:

- a) Roads in the areas of Improvement Schemes/ Town Planning Scheme which are the proposal of the scheme.
- b) Where layout is already sanctioned and there was no commitment on the part of authority to grant FSI of such new road / road widening.
 - i) If such road is part and parcel of the layout / scheme, then no FSI shall be permissible for the width of road that would have been necessary according to length as per these regulations.
 - ii) If the FSI on land so surrendered to NIT/ relevant public sector undertaking cannot be utilized by the owner for his own purposes on the remaining plot, then NIT/ SPA may grant Transfer of Development Rights as per Regulation 37.

Note: This regulation shall also be applicable to congested areas.

24.2 Educational, medical institutions, institutional buildings and starred category hotels

The Chairman NIT may with the prior consent of the Director of Town Planning, Maharashtra State and such other terms and conditions as he may specify, allow permissible FSI to be exceeded in respect of educational, medical and institutional buildings of Government or public authorities or of registered public charitable trusts as per the following table:

Sr No	Land Fronting on Road	Basic Permissible FSI on Net Plot	Additional FSI*	Maximum Permissible FSI	Maximum Permissible No. of Floors
(1)	(2)	(3)	(4)	(5)	(6)
1	Road with Width between 12m and 15m	0.2	0.3	0.5	G + 3
2	Road with Width between 15m and 18m	0.2	0.5	0.7	G + 5
3	Road with Width 18m and above	0.2	0.8	1.0	G + 7 subject to maximum building height of 30m

*Conditions:

- In case the educational use involved nursery and elementary schools, such uses shall be housed in single building with maximum ground + 2 floors.
- In case of educational use, at least 40% of the net plot area shall be kept vacant for use as playground.
- The additional FSI under this regulation shall be permissible only after utilization of basic permissible FSI mentioned in column (3) of the Table above.
- Premium shall be levied as described in these regulations. (Refer 6.2.14).

The Chairman NIT may with the prior consent of the Director of Town Planning, Maharashtra State and such other terms and conditions as he may specify, allow permissible FSI to be exceeded in three star category hotels built on independent plot and approved by the Department of Tourism, GOI. Provided the maximum additional FSI over the prescribed normal FSI admissible under these regulations shall not exceed:

- 50 percent (0.5) in the case of three, four and five star category hotels as stipulated under regulation.
- Premium shall be levied as described in these regulations. (Refer 6.2.14).
- Out of the total premium 50 percent shall be payable to the NIT/SPA and 50 per cent to the government.

24.3 Buildings of Government and Semi-Government Offices and Public Sector Undertakings:

The Chairman in consultation with Director of Town Planning, Maharashtra State, Pune may permit the prescribed FSI to be exceeded by 50 percent in the case of buildings of government and semi-government offices and public sector undertakings. Such additional FSI shall be granted without payment of premium.

24.4 Development/Redevelopment of Housing Schemes of Maharashtra Housing and Area Development Authority/ NIT

24.4.1 The FSI for a new scheme on vacant lands of low Cost Housing Scheme for Economically Weaker Section, Low Income Groups and Middle Income Groups of MHADA/NIT having at least 60 percent built-up area of the tenements under EWS, LIG and MIG categories, shall be 2.50

24.4.2 For redevelopment of any existing housing scheme of MHADA/NIT, after at least 35 years of its completion, undertaken by the MHADA/NIT departmentally or jointly with societies /occupiers of buildings or housing societies/ occupiers of building or by lessees of MHADA/NIT or by developer, the FSI shall be as under:-

- Total permissible FSI shall be maximum 2.5 on gross plot area.
- The incentive FSI admissible against the FSI required for rehab shall be as under:-

- i) In congested area, for the area upto 4000 sq. m., the incentive FSI admissible will be 50 percent.
- ii) In congested area, for the area above 4000 sq.m, the incentive FSI admissible will be 60 percent.
- iii) In outside congested area, for the area upto 4000 sqm, the incentive FSI admissible will be 60 percent
- iv) In outside congested area, for the area above 4000 sq.m., the incentive FSI will be 75 percent.
- c) Difference between 2.5 FSI and the FSI required for “rehab + incentive” shall be shared between MHADA and Occupiers Society/ developer in the ratio of 2:1
- d) In the scheme for the land allotted for societies of MIG and HIG and developed plots allotted individually to MIG and HIG group, the permissible FSI shall be as per these Development Control Regulations.

24.4.3 In case of grant of NOC with additional permissible built-up area outside congested area over and above the permissible FSI as per sanctioned DCR prevailing at the time of allotment by MHADA/NIT for the purpose of undertaking Redevelopment / Utilisation, MHADA/NIT shall charge premium described in these regulations. (Refer 6.2.14).

24.4.4 For the purpose of calculating the FSI, the entire area of the layout including development plan roads and internal roads but excluding the land under the reservation of public amenities shall be considered. Sub-division of plots will be permissible on the basis of compulsory recreational open space as in these Regulations. For low cost housing schemes of MHADA/NIT for EWS, LIG categories, the Regulations in the Schedule below shall apply.

24.4.5 For the purpose of this Regulation, the carpet areas for EWS, LIG or MIG tenements shall be as determined by the Government from time to time.

24.4.6 For the offsite infrastructure, MHADA shall pay to the NIT/SPA 12.5 percent of the charges collected by MHADA for the grant of additional FSI (FSI over and above the normally permissible FSI) for the Redevelopment Schemes

24.4.7 In any redevelopment scheme where the co-operative housing society/ developer appointed by the co-operative housing society has obtained No Objection Certificate from the MHADA/NIT thereby sanctioning additional balance FSI with a consent of 70 percent of its members and where such NOC holder has made provision for alternative accommodation in the proposed building (including transit accommodation) then it shall be obligatory for all the occupiers/ members to participate in the redevelopment scheme and vacate the existing tenements, for the purpose of redevelopment. In case of failure to vacate the existing tenements the provisions of Section 95-A of the MHADA Act mutatis mutandis shall apply for the purpose of getting the tenements vacated from the non-co-operative members.

24.4.8 A corpus fund, as may be decided by MHADA/NIT, shall be created by the developer which will remain with societies for its maintenance.

24.4.9 Schedule

The following provisions shall be applicable only for Low Cost Housing Schemes i.e. Economically Weaker Sections and Low Income Group Housing Schemes only undertaken by Maharashtra Housing & Area Development Authority (MHADA)/ NIT.

24.4.9.1 Minimum Plot Size

- a) In the case of a growing house for EWS and LIG category a plot of 25 sq. m., a room of minimum size of 5.57 sq.m. (60 sq.ft) with toilet arrangement in the first phase shall be permitted. In the second phase, one room of 9.30 sq.m. (100 sq.ft.) may be allowed to be

added. However, commencement and occupation certificates shall be granted initially to the first phase only and subsequent certificates for second phase issued as required.

- b) Multi-purpose rooms- A multi-purpose room shall be allowed with size upto 12.5 sq.m. with a minimum width of 2.4 m.
- c) Cooking space (alcove) - Provision of separate kitchen shall not be necessary. However, cooking space shall be allowed with a minimum size of 2.4 sq.m. with minimum width of 1.2 m.
- d) Combined toilet - A combined toilet shall be permitted for more than one tenement with a minimum area of 1.85 sq.m. with minimum width of one meter.
- e) Height - The average height for a habitable room with sloping roof shall be minimum 2.5 m. with minimum height of 2 m. at the eaves. In the case of a flat roof, minimum clear height shall be 2.6 m. for a habitable room. Kitchen areas shall have minimum clear height/average height of 2.4 m. and bath and water closet (without loft) shall have a clear minimum height of 2.2 m.
- f) Plinth - The minimum plinth height shall be 30 cm. and in areas subject to flooding the plinth shall be higher than the high flood level.

24.4.9.2 External walls - 115 mm, thick external brick wall without plaster shall be permitted

24.4.9.3 Staircases - Single flight staircases without landing between the two floors shall be permitted.

24.4.9.4 Front open space - The front open space from roads having width of 9.14 m. and below shall be a minimum of 1.5 m for buildings with height of upto 10 m.

24.4.9.5 Open space (side and rear) - The distance between two ground floor structures shall be of a minimum of 4.5 m for purpose of light and ventilation of habitable rooms. In case of toilets deriving light and ventilation from open space, the distance between the two ground floor structures shall be a minimum of 1.5 m.

24.4.9.6 Pathways

The widths of pathways shall be as follows -

- a) 1.5 m. width of pathways upto 20 m. in length;
- b) 2.0 m. width for pathways upto 30 m. in length;
- c) 2.5 m. width for pathways upto 40 m. in length;
- d) 3.0 m. width for pathways upto 50 m. in length

24.4.9.7 Flushing cistern - In water closets, flushing cistern shall not be essential and toilets without this provision may be permitted

24.4.9.8 Water closet pan size - The water closet seat shall be of a minimum of 0.46 m. (18 inches) in length.

24.4.9.9 Septic tank and leaching pits (soak pits.-A septic tank shall be provided with capacity of 141.6 litres (five cubic feet) per capita. Where the municipal services are likely to be available within four to five years or so, pour flush water seal latrines (NEERI type) shall be permitted where the municipal sewerage system is not available and the water table in the area is not high.

24.4.9.10 Convenience shopping - Convenience Shopping as defined in these Regulations shall be permitted along layout roads with width of 12.2 m. to 18.49 m. provided that a minimum set-back of 1.5m and a minimum plot area of 25.2 sq.m is available and is provided.

24.4.9.11 Recreation Ground - In the layouts, provision for recreation ground shall be on the lines prescribed in these Regulations

24.4.9.12 Ancillary structures - Ancillary structures such as underground tank, overhead tank, substations etc. shall be permissible in the compulsory recreation open space subject to the condition that not more than 10 percent of such space shall be utilised for such purposes.

24.4.9.13 Other provisions of these regulations shall continue to be applicable for such schemes.

24.5 Biotechnology Units/ Parks

24.5.1 Definition: Biotechnology units/ parks shall mean such biotechnology units/ parks which are certified by the Development Commissioner (Industries) or any officer authorized by him in this behalf. The land area of any bio-technology unit/ park shall not be less than 2 acres and built-up area shall not be less than 20,000 sq ft (1,858 sqm) which shall be calculated as per basic zonal permissible FSI under these regulations without considering permissible/ additional FSI/ TDR / Free of FSI area.

24.5.2: Bio-technology units/ park shall be permissible in Agriculture Zones A1 and A2, when located within a distance of 3km from the adjoining developable zone, subject to the following conditions:

- a) Basic zonal permissible FSI shall be 0.2 and, as far as possible, the development shall be at one location on the plot of land.
- b) Ground coverage shall not exceed 10% of the plot area
- c) Tree plantation shall be done at the rate of 500 trees per hectare on the remaining land, excluding the area built upon and the area of surrounding open space/ utility space.
- d) The maximum height of buildings on the plot shall not exceed 24m
- e) Essential residential development for providing accommodation for the staff/ officers shall be permissible upto the extent of 33% of the permissible built-up area.

24.5.3 Additional FSI

Subject to approval by Director of Industries, the Chairman NIT, in consultation with Director of Town Planning, may permit the floor space indices specified in these regulations to be exceeded to the extent of 100% over and above the permissible FSI (including for Biotechnology Units/ Parks located in Agriculture Zone shown in the Development Plan) for biotechnology units/ parks subject to following conditions:

- a) Out of total built up area minimum 90% shall be used for biotechnology purpose and maximum 10% (by deducting parking spaces) shall be used for ancillary users such as specified in the Govt. Resolution of Industry, Energy & Labour Department No. BTP 2008/CR-1608/Ind-2, dated 10/2/2009, and as amended from time to time.
- b) Additional FSI to Biotechnology units would be available to Biotechnology Parks duly approved by the Directorate of Industries and after observance of all the regulations of environment.
- c) Parking spaces, as per the provision of these Development Control Regulations shall be provided subject to minimum requirement of one parking space per 100sq.m. built-up area.
- d) Additional FSI shall be granted only upon payment of specified premium which shall be paid in such manner as may be determined by the government. Such premium shall be recovered at the rate of 25% of the present day market value of the land under reference as indicated in the ASR prepared by the Inspector General of Registration, Maharashtra State
- e) 25% of the total premium shall be paid to the Government and the remaining 75% amount shall be paid to the Planning Authority
- f) The premium so collected by the Planning Authority shall be primarily used for development/ upgradation of off-site infrastructure required for bio-technology units/ parks.
- g) In the event the developer offers to provide such off-site infrastructure at his own cost, the Planning Authority shall determine the estimated cost of the works and shall also prescribe the standards for such work. After completion of such works, the Planning Authority shall verify whether the same are as per prescribed standards and thereafter, by deducting the cost of works, the balance amount of premium shall be recovered from the developer by the said Planning Authority.
- h) No relaxation in the required open spaces, parking and other requirements prescribed in these Regulations shall be allowed in case of grant of additional FSI.
- i) Development of bio-technology units/ parks shall be done as per the guidelines issued by the Industries Department of the State Government from time to time.

24.6 Buildings of Police Department

In case of buildings of Department of Police, Police Housing Corporation, Jail and Home Guard of Government of Maharashtra for use as their Staff Quarters, the Chairman NIT, in consultation with Divisional Head of Town Planning, may permit the Floor Space Index to be exceeded up to 2.5 subject to following conditions:

- a) It shall be permissible to submit a composite scheme for the development/ redevelopment of land of Department of Police, Police Housing Corporation, Jail and Home Guard. For the utilisation of permissible commercial user under these Development Control Regulations; commercial potential of one plot can be shifted to other plot, provided the aggregate FSI on any plot shall not exceed 2.5.
- b) For reconstruction/ redevelopment of the buildings of Department of Police, Police Housing Corporation, Jail and Home Guard of Government of Maharashtra, constructed prior to 1940; the FSI shall be 2.5 or consumed Floor Space Index of existing old building plus 50% incentive FSI, whichever is more.
- c) In the cases of development or redevelopment of land of Department of Police, Police Housing Corporation and Home Guard, commercial user may be permitted up to 25% of the total permissible built-up area.
- d) Such 2.50 FSI shall be used for development and construction of buildings for police department only.

24.7 Information Technology Establishment

Subject to approval by Director of Industries, the Chairman NIT, in consultation with the Director Town Planning Department, Maharashtra State, Pune, may permit the floor spaces indices specified in these regulations to be exceeded to the extent of 100% over and above the permissible FSI (including IT/ITES units located in Residential R1 to R4 / Industrial Zone/ Agriculture Zone A1-A2 proposed in the Development Plan) subject to following conditions:

- a) 100% additional FSI shall be made available to all IT/ITES units in public IT Parks.
- b) 100% additional FSI shall be made available to all registered IT/ITES units located in private IT Parks approved by the Directorate of Industries.
- c) Permission for erecting towers and antenna up to the height permitted by the Civil Aviation Department shall be granted by Chairman NIT as per the procedure followed for development permission.
- d) Additional FSI to IT/ITES units would be available only upon full utilisation of basic admissible FSI.
- e) The additional FSI shall be granted on payment of premium. Such premium shall be recovered at the rate of 25% of the present day market value of the land under reference as indicated in the Ready Reckoner or as decided by the government from time to time.
- f) 25% the total premium shall be paid to the Government and remaining 75% amount shall be paid to the concerned the NIT/ SPA.
- g) The premium so collected by the NIT/ SPA shall be primarily used for development / upgrading off site infrastructure.
- h) In the event, the developer comes forward for provision of such off site infrastructure at his own cost, then the NIT/ SPA may determine the estimated cost of the works and shall also prescribe the standards for the work. After completion of the works, the NIT/ SPA shall verify as to whether the same is as per prescribed standards and thereafter, by deducting the cost of works, the balance amount of premium shall be recovered by the NIT/ SPA.
- i) While developing site for IT/ITES with additional FSI, users ancillary to the principal users as may be approved by the Directorate of Industries, shall also be allowed.

24.8 Religious Building

The Chairman NIT, in consultation with the Director of Town Planning, Maharashtra State, Pune may permit the floor space indices to be exceeded in respect of buildings in independent plots for religious purpose of registered Public Trust by 0.50 subject to following terms and conditions:

- a) The religious building shall be on independent plot.
- b) No Objection Certificate shall be obtained from concerned Police Authority and Collector before applying for permission.
- c) Additional FSI shall be used for religious purpose only ancillary residential user may be permissible within 10% of total area. No commercial user shall be permissible.
- d) The additional FSI shall be permissible to existing authorised religious users subject to structural stability.
- e) The additional FSI shall be permissible subject to payment of premium of 25% of ready reckoner value of respective year or as decided by the government from time to time. 50 percent of the applicable premium shall be paid to Government and remaining 50 percent to NIT/ SPA.
- f) The minimum area of plot shall be 500 sq.m.
- g) The proposal shall be consistent with the Development Plan and provisions under these Development Control Regulations.

24.9 Yatri Niwas, Youth Hostel:

The Chairman NIT, in consultation with the Director of Town Planning, Maharashtra State, Pune may permit the floor space indices to be exceeded by 0.5 in respect of buildings to be constructed by charitable trusts for yatri niwas, youth hostel subject to following conditions:

- a) The building shall be on independent plot having minimum plot area of 1000 sq.mt.
- b) The additional FSI shall be permissible subject to payment of premium of 25% of ready reckoner value of respective year or as decided by the government from time to time. Out of this, 50% - 50% shall be paid to Government and the NIT/ SPA respectively.

24.10 The Land in possession of Maharashtra State Road Transport Corporation

Land in possession of Maharashtra State Road Transport Corporation shall be allowed to be developed for additional 0.5 FSI over and above the permissible FSI subject to following conditions:

- a) Out of total FSI, maximum 1.00 FSI shall be allowed to be developed for commercial use and remaining FSI shall be for the self use of the said Corporation permissible as per the Development Plan.
- b) For additional 0.5 FSI, premium shall not be charged.

24.11 Redevelopment of existing buildings

While reconstructing any existing building in whole or in part, the permissible FSI for reconstruction shall be limited to authorised utilised FSI, including TDR/ additional FSI, if any.

24.12 Redevelopment of dangerous buildings with tenants

Reconstruction in whole or in part of any user which existed prior to these regulations which has ceased to exist in consequence of accidental fire/ natural collapse or demolition for the reasons of the same having been declared unsafe by or under a lawful order of the Chairman shall be allowed with FSI of original authorised building or FSI Permissible as per these regulations, whichever is maximum plus 15% incentive FSI and shall be subject to following conditions:

- a) The new building may be permitted to be reconstructed in pursuance of an agreement to be executed on stamp paper by at least 70 percent of the owners in the original building with developer. Such agreement shall make a provision for accommodation for the all owners in the new building on agreed terms and a copy of such agreement shall be deposited with the NIT/ SPA before granting permission of the new building.

24.13 Basic shelter for urban poor

Any housing scheme undertaken by NIT/ SPA, government / semi government organisation, under the basic shelter for urban poor or similar programme/ scheme of the Central / State Government, may be allowed FSI upto 2.5, without payment of premium subject to following condition:

- a) The said scheme shall be for EWS/LIG housing

24.14 Transit oriented developments

Areas identified to be suitable for development oriented to public transit shall be eligible for additional FSI as per the provisions and conditions given in Regulation 52.

PART VI: FIRE PROTECTION REQUIREMENT

25 FIRE PROTECTION REQUIREMENTS FOR BUILDINGS

25.1 General

In addition to the general provisions given in these regulations, the Authority may insist on suitable protection measures given in this chapter for buildings covered by Regulation No.6.2.6.1.

Further such buildings shall be planned, designed and constructed to ensure fire safety and this shall be done in accordance with the provisions of the Maharashtra Fire Prevention and Life Safety Measures Act, 2006 as amended from time to time and requirements given in Part IV of National Building Code, 2005. In case of buildings identified in Regulation No. 6.2.6.1 the building schemes shall also be cleared by the Chief Fire Officer, NIT/ NMC/ Director of Fire Services, Maharashtra.

25.2 Construction Materials

- 25.2.1** All materials of constructions in load bearing elements, stairways and corridors and facades shall be non-combustible
- 25.2.2** The interior finish materials shall not have a flame spread ability rating exceeding Class I (see 3.4.15.2 of Part 4 of National Building Code)
- 25.2.3** The internal walls or staircase shall be of brick or reinforced concrete with a minimum of 2 h. fire rating
- 25.2.4** The staircase shall be ventilated to the atmosphere at each landing and a vent at the top; the vent openings shall be of 0.5sq.m in the external wall and the top. If the staircase cannot be ventilated, because of location or other reasons, a positive pressure 50 Pa shall be maintained inside. The mechanism for pressurising the staircase shall operate automatically with the fire alarm. The roof of the shaft shall be 1 m. above the surrounding roof. Glazing or glass bricks, if used in staircase, shall have fire resistance rating of minimum 2 h.

25.3 Lifts

General requirements of lifts shall be as follows:

- a) Walls of lift enclosures shall have a fire rating of 2 h; lifts shall have a vent at the top of area not less than 0.2 sq.m.
- b) Lift motor room shall be located preferably on top of the shaft and separated from the shaft by the floor of the room.
- c) Landing doors in lift enclosures shall have a fire resistance of not less than 1 h.
- d) The number of lifts in one row for a lift bank shall not exceed 4 and the total number of lifts in the bank (of two rows) shall not exceed 8. A wall of 2 h. fire rating shall separate individual shafts in a bank.
- e) Lift car door shall have a fire resistance rating of half an hour.
- f) Collapsible gates shall not be permitted for lifts and shall have solid doors with fire resistance of at least 1 h.
- g) If the lift shaft and lobby is in the core of the building, a positive pressure between 25 and 30 Pa shall be maintained in the lobby and a positive pressure of 50 Pa shall be maintained in the lift shaft. The mechanism for pressurisation shall act automatically with the fire alarm; it shall be possible to operate this mechanically also.
- h) Exit from the lift lobby, if located in the core of the building, shall be through a self-closing smoke stop door of half an hour fire resistance.

- i) Lifts shall not normally communicate with the basement; if, however, lifts are in communication, the lift lobby of the basements shall be pressurised as in (g), with self-closing door as in (h).
- j) Grounding switch(es), at ground floor level, shall be provided on all the lifts to enable the fire service to ground the lifts.
- k) Telephone or other communication facilities shall be provided in lift cars for building of 30 m. in height and above. Communication system for lifts shall be connected to fire control room for the building.
- l) Suitable arrangements such as providing slope in the floor of lift lobby, shall be made to prevent water used during fire fighting, etc., at any landing from entering the lift shafts.
- m) A sign shall be posted and maintained on every floor at or near the lift indicating that in case of fire, occupants shall use the stairs unless instructed otherwise. The sign shall also contain a plan for each floor showing the locations of the stairways. Alternate source of power supply shall be provided for all the lifts through a manually operated changeover switch.
- n) Fire Lifts – Following details shall apply for a fire lift :
 - i) To enable fire services personnel to reach the upper floors with the minimum delay, one fire lift per 1200 sq.m. of floor area shall be provided and shall be available for the exclusive use of the firemen in an emergency.
 - ii) The lift shall have a floor area of not less than 1.4 sq.m. It shall have loading capacity of not less than 545 kg (8 persons lift) with automatic closing doors of minimum 0.8 m. width.
 - iii) The electric supply shall be on a separate service from electric supply mains in a building and the cables run in a route safe from fire, that is, within the lift shaft. Lights and fans in the elevators having wooden paneling or sheet steel construction shall be operated on 24 V supply.
 - iv) Fire fighting lift should be provided with a ceiling hatch for use in case of emergency, so that when the car gets stuck up, it shall be easily openable.
 - v) In case of failure of normal electric supply, it shall automatically trip over to alternate supply. For apartment houses, this changeover of supply could be done through manually operated changeover switch. Alternatively, the lift shall be so wired that in case of power failure, it comes down at the ground level and comes to stand-still with door open.
 - vi) The operation of a fire lift is by a simple toggle or two-button switch situated in a glass-fronted box adjacent to the lift at the entrance level. When the switch is on, landing call-points will become inoperative and the lift will be on car control only or on a priority control device. When the switch is off, the lift will return to normal working. This lift can be used by the occupants in normal times.
 - vii) The words 'Fire Lift' shall be conspicuously displayed in fluorescent paint on the lift landing doors at each floor level.
 - viii) Fire lifts shall be high speed lifts with minimum travel time of 2.5m per second.

25.4 Basements

- 25.4.1** Each basement shall be separately ventilated. Vents with cross-sectional area (aggregate) not less than 2.5 percent of the floor area spread evenly round the perimeter of the basement shall be provided in the form of grills or breakable stall board lights or pavement lights or by way of shafts. Alternatively, a system of air inlets shall be provided at basement floor level and smoke outlets at basement ceiling level. Inlets and extracts may be terminated at ground level with stall board or pavement lights as before, but ducts to convey fresh air to the basement floor level have to be laid. Stall board and pavement lights should be in positions easily accessible to the fire brigade and clearly marked 'SMOKE OUTLET' or 'AIR INLET' with an indication of area served at or near the opening.

- 25.4.2** The staircase of basements shall be of enclosed type having fire resistance of not less than 2 h and shall be situated at the periphery of the basement to be entered at ground level only from the open air and in such positions that smoke from any fire in the basement shall not obstruct any exit serving the ground and upper storeys of the building and shall communicate with basement through a lobby provided with fire resisting self-closing doors of 1 h resistance. For travel distance, see Regulation No 19.3.1. If the travel distance exceeds as given therein, additional staircases shall be provided at proper places.
- 25.4.3** In multi-storey basements, intake ducts may serve all basement levels, but each basement levels and basement compartment shall have separate smoke outlet duct or ducts. Ducts so provided shall have the same fire resistance rating as the compartment itself. Fire rating may be taken as the required smoke extraction time for smoke extraction ducts.
- 25.4.4** Mechanical extractors for smoke venting system from lower basement levels shall also be provided. The system shall be of such design as to operate on actuation of heat / smoke sensitive detectors or sprinklers, if installed, and shall have a considerably superior performance compared to the standard units. It shall also have an arrangement to start it manually.
- 25.4.5** Mechanical extractors shall have an internal locking arrangement, so that extractors shall continue to operate and supply fans shall stop automatically with the actuation of fire detectors
- 25.4.6** Mechanical extractors shall be designated to permit 30 air changes per hour in case of fire or distress call. However, for normal operation, air changes schedule shall be as given in Part 8, Building Services, Section 3, Air-conditioning, Heating and Mechanical Ventilation of National Building Code.
- 25.4.7** Mechanical extractors shall have an alternative source of supply
- 25.4.8** Ventilating ducts shall be integrated with the structure and made out of brick masonry or reinforced cement concrete as far as possible and when this duct crosses the transformer area or electrical switchboard, fire dampers shall be provided
- 25.4.9** Use of basements for kitchens working on gas fuel shall not be permitted, unless air conditioned. The basement shall not be permitted below the ward block of a hospital/nursing home unless it is fully sprinkled. Building services such as electrical sub-stations, boiler rooms in basements shall comply with the provisions of the Indian Electricity Act / Rules
- 25.4.10** If cutouts are provided from basements to the upper floors or to the atmospheres, all sides cutout openings in the basements shall be protected by sprinkler head at close spacing so as to form a water curtain in the event of a fire
- 25.4.11** Openable windows on external wall shall be fitted with such locks that can be opened by a fireman's axe
- 25.4.12** All floors shall be compartmented with area not exceeding 750 sq.m by a separation wall with 2 h fire rating, for floors with sprinklers the area may be increased by 50 percent. In long building, the fire separation walls shall be at distances not exceeding 40 m. For departmental stores, shopping centers and basements, the area may be reduced to 500 sq.m for compartmentation. Where this is not possible, the spacing of the sprinklers, care should be taken to prevent spray from one sprinkler impeding the performance of an adjacent sprinkler head.
- 25.4.13** It is essential to make provisions for drainage of any such water on all floors to prevent or minimise water damage of the contents. The drain pipes should be provided on the external wall for drainage of water from all floors. On large area floors, several such pipes may be necessary which should be spaced 30 m. apart. Care shall be taken to ensure that the construction of the drain pipe does not allow spread fire / smoke from floor to floor.

25.5 Service Ducts/Shafts

Service ducts and shafts shall be enclosed by walls of 2 h and doors of 1 h. fire rating. All such ducts/shafts shall be properly sealed and fire stopped at all floor levels.

A vent opening at the top of the service shaft shall be provided having between one- fourth and one-half of the area of the shaft.

25.6 Refuse Chutes

Refuse chutes shall have an opening at least 1 m. above roof level for venting purpose and they shall have an enclosure wall of non-combustible material with fire resistance of not less than 2 h. They shall not be located within the staircase enclosure or service shafts, or air-conditioning shafts inspection panel and doors shall be tight fitting with 1 h fire resistance; the chutes should be as far away as possible from exit.

25.7 Refuge Area

Provisions contained in 19.4.8 shall apply for all buildings except multi-family dwellings. Refuge area of not less than 15 sq.m shall be provided on the external walls.

25.8 Electrical Services

Electrical services shall conform to the following:

- a) The electric distribution cables / wiring shall be laid in a separate duct. The duct shall be sealed at every floor with non-combustible materials having the same fire resistance as that of the duct. Low and medium voltage wiring running in shaft and in false ceiling shall run in separate conduits;
- b) Water mains, telephone lines, intercom lines, gas pipes or any other service line shall not be laid in the duct for electrical cables; use of bus ducts / solid rising mains instead of cables is preferred;
- c) Separate circuits for firefighting pumps, lifts, staircases and corridor lighting and blowers for pressurizing system shall be provided directly from the main switch gear panel and these circuits shall be laid in separate conduit pipes, so that fire in one circuit will not affect the others. Such circuits shall be protected at origin by an automatic circuit breaker with its no-volt coil removed. Master switches controlling essential service circuits shall be clearly labelled;
- d) The inspection panel doors and any other opening in the shaft shall be provided with air-tight fire doors having fire resistance of not less than 2 h;
- e) Medium and low voltage wiring running in shafts, and within false ceiling shall run in metal conduit. Any 230 V wiring for lighting or other services above false ceiling, shall have 660 V grade insulation. The false ceiling including all fixtures used for its suspension, shall be of non-combustible material and shall provide adequate fire resistance to the ceiling in order to prevent spread of fire across ceiling. Reference may be made to good practice;
- f) An independent and well ventilated service room shall be provided on the ground level or first basement with direct access from outside or from the corridor for the purpose of termination of electric supply from the licensees' service and alternative supply cables. The doors provided for the service room shall have fire resistance of not less than 2 h.
- g) Note : If service room is located at the first basement, it should have automatic fire extinguishing system.
- h) If the licensees agree to provide meters on upper floors, the licensees' cable shall be segregated from consumers' cable by providing a partition in the duct. Meter rooms on upper floors shall not open into staircase enclosures and shall be ventilated directly to open air outside; and
- i) Suitable circuit breakers shall be provided at the appropriate points.

25.9 Gas Supply

Gas supply shall conform to the following:

- a) Town Gas / L.P.Gas Supply Pipes – Where gas pipes are run in buildings, the same shall be run in separate shafts exclusively for this purpose and these shall be on external walls, away from the staircases. There shall be no interconnection of this shaft with the rest of the floors. LPG distribution pipes shall always be below the false ceiling. The length of these pipes shall be as short as possible. In the case of kitchen cooking range area, apart from providing hood, covering the entire cooking range, the exhaust system should be designed to take care of 30 cu.m. per minute per sq.m. of hood protected area. It should have grease filters using metallic grill to trap oil vapours escaping into the fume hood.

Note: For detailed information on gas pipe installations, reference may be made to Para.9 'Plumbing Services, Section 3 Gas Supply', of National Building Code of India.

All wiring in fume hoods shall be of fiberglass insulation. Thermal detectors shall be installed into fume hoods of large kitchens for hotels, hospitals and similar areas located in high rise buildings. Arrangements shall be made for automatic tripping of the exhaust fan in case of fire. If LPG is used, the same shall be shut off. The voltage shall be of 24 V or 100 V dc operated with the external rectifier. The valve shall be of the hand re-set type and shall be located in an area segregated from cooking ranges. Valves shall be easily accessible. The hood shall have manual facility for steam or carbon dioxide gas injection, depending on duty condition; and

Gas meters shall be housed in a suitably constructed metal cupboard located in a well-ventilated space, keeping in view the fact that LPG is heavier than air and town gas is lighter than air.

25.10 Illumination of Means of Exit

Staircase and corridor lights shall conform to the following:

- a) The staircase and corridor lighting shall be on separate circuits and shall be independently connected so as it could be operated by one switch installation on the ground floor easily accessible to fire fighting staff at any time irrespective of the position of the individual control of the light points, if any. It should be of miniature circuit breaker type of switch so as to avoid replacement of fuse in case of crisis;
- b) Staircase and corridor lighting shall also be connected to alternative supply. The alternative source of supply may be provided by battery continuously trickle charged from the electric mains;
- c) Suitable arrangements shall be made by installing double throw switches to ensure that the lighting installed in the staircase and the corridor does not get connected to two sources of supply simultaneously. Double throw switch shall be installed in the service room for terminating the stand-by supply.
- d) Emergency lights shall be provided in the staircase and corridor; and
- e) All wires and other accessories used for emergency light shall have fire retardant property.

25.11 A Stand-by Electric Generator

A stand-by electric generator shall be installed to supply power to staircase and corridor lighting circuits, fire lifts, the stand-by fire pump, pressurisation fans and blowers, smoke extraction and damper systems in case of failure of normal electric supply. The generator shall be capable of taking starting current of all the machines and circuits stated above simultaneously. If the stand-by pump is driven by diesel engine, the generator supply need not be connected to the stand-by pump. Where parallel HV / LV supply from a separate sub-station is provided with appropriate transformer for emergency, the provision of generator may be waived in consultation with the Authority.

25.12 Transformers

Transformers shall conform to the following:

- a) A sub-station or a switch-station with oil filled equipment shall not be located in the building. The sub-station structure shall have separate fire resisting walls/surroundings and shall necessarily be located at the periphery of the floor having separate access from fire escape staircase. The outside walls, ceiling, floor, openings including doors and windows to the sub-station area shall be provided with a fire resisting door of 2 h fire rating. Direct access to the transformer room shall be provided, preferably from outside fire escape staircase.
- b) The sub-station area needs to be maintained at negative air pressures and area in sub-station shall not be used as storage/ dump areas.
- c) When housed inside the building, the transformer shall be of dry type and shall be cut off from the other portions of the premises by walls/ doors / cutouts having fire resistance rating of 4 h.

25.13 Air-conditioning

Air-conditioning shall conform to the following:

- a) Escape routes like staircases, common corridors, lift lobbies, etc. shall not be used as return air passage.
- b) The ducting shall be constructed of substantial gauge metal in accordance with good practice.
- c) Wherever the ducts pass through fire walls or floors, the opening around the ducts shall be sealed with materials having fire resistance rating of the compartment.
- d) Where duct crosses a compartment which is fire rated, the ducts shall be fire rated for same fire rating. Further depending on services passing around the duct work, which may get affected in case of fire temperature rising, the ducts shall be insulated.
- e) As far as possible, metallic ducts shall be used even for the return air instead of space above the false ceiling.
- f) Where plenum is used for return air passage, ceiling and its fixtures shall be of non-combustible material.
- g) The materials used for insulating the duct system (inside or outside) shall be of non-combustible material, glass wool shall not be wrapped or secured by any material of combustible nature.
- h) Area more than 750 sq.m. on individual floor shall be segregated by a fire wall and automatic fire dampers for isolation shall be provided.
- i) Air ducts serving main floor areas, corridors, etc. shall not pass through the staircase enclosure.
- j) The air-handling units shall be separate for each floor and air ducts for every floor shall be separated and in no way inter-connected with the ducting of any other floor.
- k) If the air-handling unit serves more than one floor, the recommendations given above shall be complied with in addition to the conditions given below:
 - i) Proper arrangements by way of automatic fire dampers working on smoke detector / or fusible link for isolating all ducting at every floor from the main riser shall be made.
 - ii) When the automatic fire alarm operates, the respective air-handling units of the air-conditioning system shall automatically be switched off.
- l) The vertical shaft for treated fresh air shall be of masonry construction.
- m) The air filters of the air-handling units shall be of non-combustible materials.
- n) The air-handling unit room shall not be used for storage of any combustible materials.
- o) Inspection panels shall be provided in the main trunking to facilitate the cleaning of ducts of accumulated dust and to obtain access for maintenance of fire dampers.
- p) No combustible material shall be fixed nearer than 150 mm to any duct unless such duct is properly enclosed and protected with non-combustible material (glass wool or spyglass with neoprene facing enclosed and wrapped with aluminum sheeting) at least 3.2 mm thick and which would not readily conduct heat.
- q) Fire Dampers:
 - i) These shall be located in conditioned air ducts and return air ducts/ passages at the following points:
 1. At the fire separation wall.
 2. Where ducts/passages enter the central vertical shaft.
 3. Where the ducts pass through floors.
 4. At the inlet of supply air duct and the return air duct of each compartment on every floor

- ii) The dampers shall operate automatically and shall simultaneously switch off the air-handling fans. Manual operation facilities shall also be provided. (Note- For blowers, where extraction system and duct accumulators are used, dampers shall be provided).
- iii) Fire/smoke dampers (for smoke extraction shafts) for buildings more than 24 m in height.
 - 1. For apartment houses in non-ventilated lobbies / corridors operated by fusible link / smoke detectors and with manual control.
 - 2. For other buildings on operation of smoke detection system and with manual control.
- iv) Automatic fire dampers shall be so arranged as to close by gravity in the direction of air movement and to remain tightly closed on operation of a fusible link / smoke detector.

25.14 Provisions of Boiler and Boiler Rooms

Provisions of boiler and boiler rooms shall conform to Indian Boiler Act. Further, the following additional aspects may be taken into account in the location of boiler room:

- a) The boilers shall not be allowed in sub-basement, may be allowed in the basements away from the escape routes.
- b) The boilers shall be installed in a fire resisting room of 4 h fire resistance rating and this room shall be situated on the periphery of the basement. Catch-pits shall be provided at the low level.
- c) Entry to this room shall be provided with a composite door of 2 h fire resistance.
- d) The boiler room shall be provided with fresh air inlets and smoke exhausts directly to the atmosphere.
- e) The furnace oil tank for the boiler, if located in the adjoining room shall be separated by fire resisting wall of 4 h rating. The entrance to this room shall be provided with double composite doors. A curb of suitable height shall be provided at the entrance in order to prevent the flow of oil into the boiler room in case of tank rupture.
- f) Foam inlets shall be provided on the external walls of the building near the ground level to enable the fire services to use foam in case of fire.

25.15 Provision of First-aid and Fire Fighting Appliances

The first-aid fire-fighting equipment shall be provided on all floors, including basements, lift rooms, etc. in accordance with good practice in consultation with the Authority.

25.16 Fire Alarm System

25.16.1 All buildings with heights of 15 m or above shall be equipped with manually operated electrical fire alarm (MOEFA) system automatic fire alarm system in accordance with good practice. However, apartment buildings between 15 m and 30 m in height may be exempted from the installation of automatic fire alarm system provided the local fire brigade is suitably equipped for dealing with fire in a building of 15 m in height or above and in the opinion of the Authority, such building does not constitute a hazard to the safety of the adjacent property or occupants of the building itself.

25.16.2 Manually operated electrical fire alarm system shall be installed in a building with one or more call boxes located at each floor. The call boxes shall conform of good practice.

25.16.3 The installation of call boxes in hostels and such other places where these are likely to be misused shall as far as possible be provided. Location of call boxes in dwelling units shall preferably be inside the building.

25.17 Lightning Protection of Buildings

The lightning protection for buildings shall be provided as given in Para.8 'Building Services, Section 2, Electrical Installations' of National Building Code of India.

25.18 Fire control room

For all buildings 15 m in height or above and apartment buildings with a height of 30 m and above, there shall be a control room on the entrance floor of the building with communication system (suitable public address system) to all floors and facilities for receiving the message from different floors. Details of all floor plans along with the details of fire fighting equipment and installations shall be maintained in the fire control room. The fire control room shall also have facilities to detect the fire on any floor through indicator board connections; fire detection and alarm systems on all floors. The fire staff in-charge of the fire control room shall be responsible for the maintenance of the various services and fire fighting equipment and installations in co-ordination with security, electrical and civil staff of the building.

25.19 Fire officer for hotels, business and mercantile buildings with height more than 30 m

25.19.1 A qualified Fire Officer with experience of not less than 3 years shall be appointed who will be available on the premises.

25.19.2 The Fire Officer shall:

- a) maintain the fire fighting equipment in good working condition at all times,
- b) prepare fire orders and fire operational plans and get them promulgated,
- c) impart regular training to the occupants of the buildings in the use of fire fighting equipments provided on the premises and keep them informed about the fire emergency evacuation plan,
- d) keep proper liaison with City Fire Brigade, and
- e) ensure that all fire precautionary measures are observed at the times.
- f) Note: Competent Authority having jurisdiction may insist on compliance of the above rule in case of buildings having very large areas even if the height is less than 30 m

25.20 House Keeping

To eliminate fire hazards, good house keeping, both inside and outside the building, shall be strictly maintained by the occupants and / or the owner of the building.

25.21 Fire Drills and Fire Orders

Fire notices/orders shall be prepared to fulfill the requirements of fire fighting and evacuation from the buildings in the event of fire and other emergency. The occupants shall be made thoroughly conversant with their actions in the event of emergency, by displaying fire notices at vantage points and through regular training. Such notices should be displayed prominently in broad lettering.

For guidelines for fire drills and evacuation procedures for high-rise buildings, Annexure E of National Building Code of India may be referred.

25.22 Compartmentation

The building shall be suitably compartmentalised so that fire/smoke remain confined to the area where fire incident has occurred and does not spread to the remaining part of the building.

25.23 Helipad

For high-rise buildings above 60 m in height, provision for helipad should be made.

25.24 Materials for Interior Decoration / Furnishing

The use of materials, which are combustible in nature and may spread toxic fume / gases should not be used for interior decoration / furnishing, etc.

For various types of occupancies, requirements given in National Building Code, Part IV as applicable shall be followed.

PART VII: STRUCTURAL SAFETY, WATER SUPPLY, DRAINAGE & SANITARY REQUIREMENTS, OUTDOOR DISPLAY AND OTHER SERVICES

26 STRUCTURAL DESIGN

- 26.1** The structural design of foundations, elements made of masonry, timber, plain concrete; reinforced concrete, pre-stressed concrete and structural steel shall be carried out in accordance with Part 6. Structural design Section 1-Loads, courses and effects, Section 2- Soils and Foundation, Section 3— Timber and Bamboo, Section 4-Masonry, Section 5-Concrete, Section 6-Steel, Section-7- Prefabrication, systems building and mixed / composite construction of National Building Code of India, amended from time to time.

27 QUALITY OF MATERIALS AND WORKMANSHIP

- 27.1** All materials and workmanship shall be of good quality conforming generally to accepted standards of Public Works Department of Maharashtra and Indian Standard Specifications and Codes as included in Part 5 - Building Materials and Part 7 - Construction Practices and Safety of National Building Code of India, amended from time to time
- 27.2** All borrow pits dug in the course of construction and repair of buildings, roads, embankments etc. shall be deep and connected with each other in the formation of a drain directed towards the lowest level and properly stopped for discharge into a river stream, channel or drain and no person shall create any isolated borrow pit which is likely to cause accumulation of water which may breed mosquitoes.

28 ALTERNATIVE MATERIALS, METHODS OF DESIGN & CONSTRUCTION AND TESTS

- 28.1** The provision of the regulations are not intended to prevent the use of any material or method of design or construction not specifically prescribed by the regulations, provided any such alternative has been approved.
- 28.2** The provision of these regulations is also not intended to prevent the adoption for architectural planning and layout conceived as an integrated development scheme.
- 28.3** The authority may approve any such alternative provided it is found that the proposed alternative is satisfactory and conform to the provisions of relevant parts regarding material, design, and construction and that material, method or work offered is, for the purpose intended, at least equivalent to that prescribed in the rules in quality, strength, compatibility, effectiveness, fire rating and resistance, durability and safety.
- 28.4** Tests: Whenever there is insufficient evidence of compliance with the provisions of the regulations of evidence that any material or method of design or construction does not conform to the requirements of the rules or in order to substantiate claims for alternative materials, design or methods of construction, the Chief Officer may require tests sufficient in advance as proof of compliance. These tests shall be made by an approved agency at the expense of the owner
- 28.4.1** Test method shall be as specified by the regulations for the materials or design or construction in question. If there are no appropriate test methods specified in the regulations, the Authority shall determine the test procedure. For methods of tests for building materials; reference may be made to relevant Indian standards as given the National Building Code of India, published by the Bureau of Indian Standards. The latest version of the National building Code of India shall be taken into account at the time of enforcement of these rules.
- 28.4.2** Copies of the results of all such tests shall be retained by the authority for a period of not less than two year after the acceptance of the alternative material.

29 BUILDING SERVICES

- 29.1** The planning, design and installation of electrical installations, air-conditioning and heating work shall be carried out in accordance with Part 8 - Building Services, Section 2-Electrical and allied Installations, Section 3 Air Conditioning, heating and mechanical ventilation of National building Code of India, amended from time to time.
- 29.2** The planning design including the number of lifts, type of lifts, and capacity of lifts depending on occupancy of building; population on each floor based on occupant load, height of building shall be in accordance with Section-5 installation of Lifts and Escalators of National Building Code of India, amended from time to time. In existing buildings, in case of proposal for one additional floor, existing lift may not be raised to the additional floor.
- 29.2.1** Maintenance of Lift in working order: The lifts shall be maintained in working order in line with provisions of Regulation P-4./ 40

30 WATER SUPPLY, DRAINAGE AND SANITARY REQUIREMENTS

- 30.1** The planning, design, construction and installation of water supply, drainage and sanitation and gas supply systems shall be in accordance with the provisions of Part 9 - Plumbing Services- Section 1 Water Supply, Drainage and Sanitation, Section 2 – Gas supply of National Building Code of India as amended from time to time.

30.2 Requirements of Water Supply in Building

The total requirements of water supply shall be calculated based on the population as given below:

Occupancy	Basis
Residential Building	5 persons per tenement
Other Buildings	No. of persons on occupant load and area of floors given in Table 10.

- 30.2.1** The requirements of water supply for various occupancies shall be as given in Table 15f or as specified by the NIT/ SPA from time to time.

Table No- 15f
PER CAPITA WATER REQUIREMENTS FOR VARIOUS OCCUPANCIES/USES

Sr. No	Type of Occupancy	Consumption per head per day (in liters)
(1)	(2)	(3)
1	Residential	
	(a) in living units	135
	(b) Hotels with lodging accommodation (per bed)	180
2	Educational:	
	(a) Day Schools	45
	(b) Boarding Schools	135
3	Institutional (Medical Hospitals):	
	(a) No. of beds not exceeding 100	340
	(b) No. of beds exceeding 100	450
	(c) Medical quarters and hostels	135
4	Assembly-Cinema theatres, auditorium etc. (per seat of accommodation).	15
5	Government and Semi-public business.	45
6	Mercantile (Commercial)	
	(a) Restaurants (per seat)	70
	(b) Other business buildings.	45
7	Industrial	

	(a) Factories where bathrooms are to be provided 45	45
	(b) Factories where no bath-rooms are required to be provided.	30
8	Storage (including warehousing)	30
9	Hazardous	30
10	Intermediate / Stations (excluding mail and express stops).	45 (25)*
11	Junction Stations	70 (45)*
12	Terminal / Stations.	45
13	International and domestic Airports.	70

*The value in parenthesis is for stations where bathing facilities are not provided.

NOTE: The number of persons for Sr. No. (10) to (13) shall be determined by the average No. of passengers: handled by the station daily; due consideration may be given to the staff and workers likely to use the facilities.

Table No- 16
FLUSHING STORAGE CAPACITIES

Sr.No.	Classification of building	Storage capacity.
(1)	(2)	(3)
1	For tenements having common convenience	900 liters net per w. c. seat.
2	For residential premises other than tenements having common convenience	270 liters net for one w. c. seat and 180 liters for each additional seat in the same flat.
3	For Factories and Workshops	900 liters per w. c. seat and 180 liters per urinal seat.
4	For cinemas, public assembly halls, etc.	900 liters per w. c. seat and 350 liters per urinal seat.

Table No- 17
DOMESTIC STORAGE CAPACITIES

Sr No.	No. of Floors	Storage Capacity	Remarks
For premises occupied as tenements with common conveniences			
1	Floor (Ground)	NIL	Provided no down-take fittings are installed.
2	Floors 1,2, 3, 4, 5 and upper floors	500 litres* per tenement	
For premises occupied as Flats or blocks			
1	Floor (Ground)	NIL	Provided no down-take fittings are installed.
2	Floors 1,2,3,4,5 and upper floors	500* litres.	

Note:

- a) If the premises are situated at a place higher than the road level in the front of the premises, storage at ground level shall be provided on the same line as on floor 1.

The above storage may be permitted to be installed provided that the total domestic storage calculated on the above basis is not less than the storage calculation on the number of down-take fittings according to the scales given.

Down-take taps	70 litres each
Showers	135 litres each
Bathtubs	200 litres each

* Subject to provisions of water supply and drainage rules.

31 DRAINAGE AND SANITATION REQUIREMENTS

31.1 General

There should be at least one water tap and arrangement for drainage in the vicinity of each water-closet or group of water-closets in all the buildings.

31.1.1 Each family dwelling unit on premises (abutting on a sewer or with a private sewage disposal system) shall have, at least, one water-closet and one kitchen type sink. A bath or shower shall also be installed to meet the basic requirement of sanitation and personal hygiene.

31.1.2 All other structures for human occupancy or use on premises, abutting on a sewer or with a private sewage disposal system, shall have adequate sanitary facilities, but in no case less than one water-closet and one other fixture for cleaning purposes.

31.2 For Residences

31.2.1 Dwelling with individual convenience shall have at least the following fitments:

- a) One bathroom provided with a tap and a floor trap,
One water-closet with flushing apparatus with an ablution tap; and
One tap with a floor trap or a sink in kitchen or wash place.

31.2.2 Dwelling without individual conveniences shall have the following fitments:

- a) One water tap with floor trap in each tenement,
- b) One water-closet with flushing apparatus and one ablution tap,
- c) Bath for every two tenements, and
- d) One bath with water tap and floor trap for every two tenements.

Table No- 17a: Sanitation Requirements for Residences

Sr	Fitments	Dwellings with Individual Conveniences	Dwellings without Individual Conveniences
1	Bath Room	1 Provided with water tap	1 for every two tenements
2	Water-Closet	1 Provided with water tap	1 for every two tenements
3	Sink (Nahani)	1 Provided with water tap	-----
4	Water Tap	-----	1 with draining arrangements in each tenement 1 in common bathrooms and common water- closets

Note: Where only one water closet is provided in a dwelling, the bath and the water closet shall be separately accommodated.

31.3 Drainage and Sanitation for Buildings Other than Residences

31.3.1 The requirements for fitments for drainage and sanitation in the case of buildings other than residences shall be in accordance with Table No. 18 to Table No. 31. The following shall be, in addition, taken into consideration:

- a) The figures shown are based upon one (1) fixture being the minimum required for the number of persons indicated or part thereof
- b) Building categories not included in the tables shall be considered separately by the Chairman- NIT.

- c) Drinking fountains shall not be installed in the toilets.
- d) Where there is the danger of exposure to skin contamination with poisonous, infectious or irritating material, washbasin with eye wash jet and an emergency shower located in an area accessible at all times with the passage / right of way suitable for access to a wheel chair, shall be provided.
- e) When applying the provision of these tables for providing the number of fixtures, consideration shall be given to the accessibility of the fixtures.
- f) Using purely numerical basis may not result in an installation suited to the need of a specific building. For example, schools should be provided with toilet facilities on each floor. Similarly toilet facilities shall be provided for temporary workmen employed in any establishment according to the needs; and in any case one WC and one washbasin shall be provided.
- g) All buildings used for human habitation for dwelling work, occupation, medical care or any purpose detailed in the various tables, abutting a public sewer or a private sewage disposal system, shall be provided with minimum sanitary facilities as per the schedule in the tables. In case the disposal facilities are not available, they shall be provided as a part of the building design for ensuring high standards of sanitary conditions in accordance with this section.
- h) Workplaces where crèches are provided, they shall be provided with one WC for 10 persons or part thereof, one washbasin for 15 persons or part thereof, one kitchen sink with floor tap for preparing food / milk preparations. The sink provided shall be with a drinking water tap.
- i) In all types of buildings, individual toilets and pantry should be provided for executives and for meeting / seminar / conference rooms, etc. as per the user requirement.
- j) Where food is consumed indoors, water stations may be provided in place of drinking water fountains.

Table No- 18: Sanitation Requirements for office

Sr.	Fixtures	Public Toilets		Staff Toilets	
		Male	Female	Male	Female
1	2	3	4	5	6
i)	Executive Rooms and Conference Halls in	Unit could be common for		For individual officer	
ii)	Main Office Toilets for Staff and Visitors	1 per 25	1 per 15	1 per 25	1 per 15
	a) Water-closet	1 per 25	1 per 15	1 per 25	1 per 15
	b) Ablution tap with each water closet	1 in each water-closet			
	c) Urinals	Nil up to 6	-	Nil up to 6	-
		101-200			
		Over 200			
	d) Washbasins	1 per 25	1 per 25	1 per 25	1 per 25
	e) Drinking water fountain	1 per 100	1 per 100	1 per 100	1 per 100
	f) Cleaner's sink	1 per floor			

Table No- 19: Sanitation Requirements for Factories

Sr.	Fixtures	Offices / Visitors		Workers	
		Male	Female	Male	Female
1	2	3	4	5	6
i)	Water closets (workers & staff)	1 for upto 25 2 for 16-35 3 for 36-65 4 for 66-100	1 for upto 15 2 for 16-25 3 for 26-40 4 for 41-57 5 for 58-77 6 for 78-100	1 for upto 25 2 for 16-35 3 for 36-65 4 for 66-100	1 for upto 15 2 for 16-25 3 for 26-40 4 for 41-57 5 for 58-77 6 for 78-100
	For persons 101-200 add	3%	5%	3%	5%
	For persons over 200 add	2.5%	4%	2.5%	4%
ii)	Ablution tap	1 in each water closet	1 in each water closet	1 in each water closet	1 in each water closet
iii)	Urinals	Nil upto 6 1 for 7-20 2 for 21-45 3 for 46-70 4 for 71-100	-		Nil upto 6 1 for 7-20 2 for 21-45 3 for 46-70 4 for 71-100
	For persons 101-200 add	3%			3%
	For persons over 200 add	2.5%			2.5%
iv)	Washbasins Washbasins in rows or troughs and taps spaced 750 mm c/c	1 per 25 or part thereof	1 per 25 or part thereof	1 per 25 or part thereof	1 per 25 or part thereof
v)	Drinking water fountain	1 per every 100 or part thereof with minimum one on each floor		1 per every 100 or part thereof with minimum one on each floor	
vi)	Cleaner's sink	1 on each floor	1 on each floor	1 on each floor	1 on each floor
vii)	Showers / Bathing rooms	As per trade requirements		As per trade requirements	
viii)	Emergency shower and eye wash fountain	-	-	1 per every shop floor per 500 persons	

NOTE – For factories requiring workers to be engaged in dirty and dangerous operations or requiring them to being extremely clean and sanitized conditions additional and separate (if required so) toilet facilities and if required by applicable Industrial and Safety Laws and the Factories Act must be provided in consultation with the user.

Table No- 20: Sanitation Requirements for Cinema, Multiplex, Concert and Convention Halls, Auditorium

Sr.	Fixtures	Offices / Visitors		Workers	
		Male	Female	Male	Female
1	2	3	4	5	6
i)	Water closets	1 per 100 up to 400 Over 400, add at 1 per 250 or part thereof	3 per 100 up to 200 Over 200, add at 2 per 100 or part thereof	1 for up to 15	1 for up to 12
ii)	Ablution tap	1 in each water closet	1 in each water closet	1 in each water closet	1 in each water closet
iii)	Urinals	1 per 25 or part thereof	-	Nil up to 6 1 for 7-20 2 for 21-45	-
iv)	Washbasins	1 per 200 or part thereof		1 for up to 15 2 for 16-35	1 for up to 12 2 for 13-25
v)	Drinking water fountain	1 per 100 persons or part thereof			
vi)	Cleaner's sink	1 per floor			
vii)	Showers / Bathing rooms	As per trade requirements			

Note:

- i) Some WC's may be European style if desired.
- ii) Male population may be assumed as two-third and female population as one-third

Table No- 21: Sanitation Requirements for Art Galleries, Libraries and Museums

Sr.	Fixtures	Public		Staff	
		Male	Female	Male	Female
1	2	3	4	5	6
i)	Water closets	1 per 200 up to 400 Over 400, add at 1 per 250 or part thereof	1 per 100 up to 200 Over 200, add at 2 per 150 or part thereof	1 for up to 15 2 for 16-35	1 for up to 12 2 for 13-25
ii)	Ablution tap	1 in each water closet	1 in each water closet	1 in each water closet	1 in each water closet
		1 water tap with draining arrangements shall be provided for every 50 persons or part thereof in the vicinity of water closets and urinals			
iii)	Urinals	1 per 50	-	Nil up to 6 1 for 7-20 2 for 21-45	-

iv)	Washbasins	1 per 200 or part thereof. For over 400, add at 1 per 250 persons or part thereof	1 for every 200 or part thereof. For over 200, add at 1 per 150 persons or part thereof	1 for up to 15 2 for 16-35	1 for up to 12 2 for 13-25
v)	Drinking water fountain	1 per 100 persons or part thereof			
vi)	Cleaner's sink	1 per floor, minimum			
vii)	Showers / Bathing rooms	As per trade requirements			

NOTE:

- i) Some WC's may be European style if desired.
- ii) Male population may be assumed as two-third and female population as one-third

Table No- 22: Sanitation Requirements for Hospitals with Indoor Patient Wards

Table No. 22: Sanitation Requirements for Hospitals with Major Patient Wards					
Sr.	Fixtures	Patient Toilets		Staff Toilets	
		Male	Female	Male	Female
1	2	3	4	5	6
i)	Toilet suite comprising one WC and one washbasin and shower stall	Private room with upto 4 patients		For individual doctor's / officer's rooms	
For General Wards, Hospital Staff and Visitors					
ii)	Water closets	1 per 8 beds or part thereof	1 per 8 beds or part thereof	1 for up to 15 2 for 16-35	1 for up to 12 2 for 13-25
iii)	Ablution tap	1 in each water closet	1 in each water closet	1 in each water closet	1 in each water closet
		1 water tap with draining arrangements shall be provided for every 50 persons or part thereof in the vicinity of water closets and urinals			
iv)	Urinals	1 per 30 beds	-	Nil up to 6 1 for 7-20 2 for 21-45	-
v)	Washbasins	2 per 30 beds or part thereof. Add 1 per additional 30 beds or part thereof.		1 for up to 15 2 for 16-35	1 for up to 12 2 for 13-25
vi)	Drinking water fountain	1 per ward		1 per 100 persons or part thereof	
vii)	Cleaner's sink	1 per ward		-	
viii)	Showers / Bathing rooms	1 per ward		-	
ix)	Kitchen sink	1 per ward		-	

NOTE:

- i) Some WC's may be European style if desired.
- ii) Male population may be assumed as two-third and female population as one-third
- iii) Provision for additional and special hospital fittings where required shall be made

Table No- 23: Sanitation Requirements for Hospitals with Outdoor Patient Department

Sr.	Fixtures	Patient Toilets		Staff Toilets	
		Male	Female	Male	Female
1	2	3	4	5	6
i)	Toilet suite comprising one WC and one washbasin (with optional shower stall if building used for 24 hrs)	For up to 4 patients		For individual doctor's / officer's rooms	
ii)	Water closets	1 per 100 persons or part thereof	2 per 100 persons or part thereof	1 for up to 15 2 for 16-35	1 for up to 12 2 for 13-25
iii)	Ablution tap	1 in each water closet	1 in each water closet	1 in each water closet	1 in each water closet
		1 water tap with draining arrangements shall be provided for every 50 persons or part thereof in the vicinity of water closets and urinals			
iv)	Urinals	1 per 50 persons or part thereof	-	Nil up to 6 1 per 7-20 2 per 21-45	-
v)	Washbasins	1 per 100 persons or part thereof	2 per 100 persons or part thereof	1 for up to 15 2 for 16-35	1 for up to 12 2 for 13-25
vi)	Drinking water fountain	1 per 500 persons or part thereof		1 per 100 persons or part thereof	

NOTE:

- i) Some WC's may be European style if desired.
- ii) Male population may be assumed as two-third and female population as one-third
- iii) Provision for additional and special hospital fittings where required shall be made

Table No- 24: Sanitation Requirements for Hospital's Administrative Buildings

Sr.	Fixtures	Staff Toilets	
		Male	Female
1	2	3	4
i)	Toilet suite comprising one WC and one washbasin (with optional shower stall if building used for 24 hrs)	For individual doctor's/officer's rooms	
ii)	Water-closets	1per 25 persons or part thereof	1per 15 persons or part thereof
iii)	Ablution tap	One in each water- closet	One in each water- closet
		1 water tap with draining arrangements shall be provided for every 50 persons or part thereof in the vicinity of water-closets and urinals	
iv)	Urinals	Nil up to 6 1 per 7 to 20 2 per 21-45	-
v)	Washbasins	1per 25 persons or part thereof	1per 25 persons or part thereof

Sr.	Fixtures	Staff Toilets	
		Male	Female
vi)	Drinking water fountain	1 per 100 persons or part thereof	
vii)	Cleaner's sink	1 per floor, Min	
viii)	Kitchen sink	1 per floor, Min	

NOTE: Some WC's may be European style if desired.

Table No- 25: Sanitation Requirements for Hospital's Staff Quarters and Nurses Homes

Sr.	Fixtures	Staff Quarters		Nurses Homes	
		Male	Female	Male	Female
1	2	3	4	5	6
i)	Water-closets	1 per 4 persons or part thereof	1 per 4 persons or part thereof	1 per 4 persons or part thereof 2 for 16-35	1 per 4 persons or part thereof 2 for 16-35
ii)	Ablution tap	One in each water closet 1 water tap with draining arrangements shall be provided for every 50 persons or part thereof in the vicinity of water-closets and urinals	One in each water closet	One in each water closet	One in each water closet
iii)	Washbasins	1 per 8 persons or part thereof		1 per 8 persons or part thereof	
iv)	Bath (Showers)	1 per 4 persons or part thereof		1 per 4 persons or part thereof	
v)	Drinking water fountain	1 per 100 persons or part thereof, minimum 1 per floor		1 per 100 persons or part thereof, minimum 1 per floor	
vi)	Cleaner's sink	1 per Floor		1 per Floor	

NOTE:

- i) Some WC's may be European style if desired.
- ii) For independent housing units fixtures shall be provided as for residences
- iii) Provision for additional and special fittings where required shall be made

Table No- 26: Sanitation Requirements for Hotels

Sr.	Fixtures	Public Rooms		Non-Residential Staff	
		Male	Female	Male	Female
(1)	(2)	(3)	(4)	(5)	(6)
i)	Toilet suite comprising one WC and one washbasin with shower or a bath tub	Individual guest rooms with attached toilets		-	
Guest Rooms with Common Facilities					
ii)	Water closets	1 per 100 persons up to 400 Over 400 add at 1 per 250 or part thereof	2 per 100 persons up to 200 Over 200 add at 1 per 100 or part thereof	1 for up to 15 2 for 16-35 3 for 36-65 4 for 66-100	1 for up to 12 2 for 13-25 3 for 26-40 4 for 41-57 5 for 58-77 6 for 78-100

Sr.	Fixtures	Public Rooms		Non-Residential Staff	
		Male	Female	Male	Female
(1)	(2)	(3)	(4)	(5)	(6)
iii)	Ablution tap	1 in each water closet	1 in each water closet	1 in each water closet	1 in each water closet
		1 water tap with draining arrangements shall be provided for every 50 persons or part thereof in the vicinity of water closets and urinals			
iv)	Urinals	1 per 50 persons or part thereof	-	Nil up to 6 1 for 7-20 2 for 21-45 3 for 46-70 4 for 71-100	-
v)	Washbasins	1 per WC / Urinal	1 per WC	1 for up to 15 2 for 16-35 3 for 36-65 4 for 66-100	1 for up to 12 2 for 13-25 3 for 26-40 4 for 41-57
vi)	Bath (Showers)	1 per 10 persons or part thereof	-	-	-
vii)	Cleaner's sink	1 per 30 rooms, minimum 1 per floor			
viii)	Kitchen sink	1 per kitchen			

NOTE:

- i) Some WC's may be European style if desired.
- ii) Male population may be assumed as two-third and female population as one-third
- iii) Provision for additional and special fittings where required shall be made

Table No- 27: Sanitation Requirements for Restaurants

Sr.	Fixtures	Public Rooms		Non-Residential Staff	
		Male	Female	Male	Female
1	2	3	4	5	6
i)	Water closets	1 per 50 seats up to 200 Over 200 add at 1 per 100 or part thereof	2 per 50 seats up to 200 Over 200 add at 1 per 100 or part thereof	1 for up to 15 2 for 16-35 3 for 36-65 4 for 66-100	1 for up to 12 2 for 13-25 3 for 26-40 4 for 41-57 5 for 58-77 6 for 78-100
ii)	Ablution tap	1 in each water closet	1 in each water closet	1 in each water closet	1 in each water closet
		1 water tap with draining arrangements shall be provided for every 50 persons or part thereof in the vicinity of water closets and urinals			

Sr.	Fixtures	Public Rooms		Non-Residential Staff	
		Male	Female	Male	Female
1	2	3	4	5	6
iii)	Urinals	1 per 50 persons or part thereof		Nil up to 6 1 for 7-20 2 for 21-45 3 for 46-70 4 for 71-100	
iv)	Washbasins	1 per WC	1 per WC	1 per WC	1 per WC
v)	Cleaner's sink	1 per restaurant			
vi)	Kitchen sink / Dish washer	1 per kitchen			

NOTE:

- i) Some WC's may be European style if desired.
- ii) Male population may be assumed as two-third and female population as one-third
- iii) Provision for additional and special fittings where required shall be made

Table No- 28: Sanitation arrangements for Schools and Educational Institutions

Sr.	Fixtures	Nursery School	Non-Residential		Residential	
			Boys	Girls	Boys	Girls
1	2	3	4	5	6	7
i)	Water- closets	1 per 15 pupils or part thereof	1 for 40 pupils or part thereof	1 per 25 pupils or part thereof	1 per 8 pupils or part thereof	1 per 6 pupils or part thereof
ii)	Ablution tap	One in each water- closet	One in each water-	One in each water- closet	One in each water- closet	One in each water- closet
		1 water tap with draining arrangements shall be provided for every 50 persons or part thereof in the vicinity of water-closets and urinals.				
iii)	Urinals	----	1 per 20 pupils or part thereof	----	1 per 25 pupils or part thereof	----
iv)	Washbasins	1 per 15 pupils or part thereof	1 per 60 pupils or part thereof	1 per 40 pupils or part thereof	1 per 8 pupils or part thereof	1 per 6 pupils or part thereof
v)	Bath / Showers	1 per 40 pupils or part thereof	----	----	1 per 8 pupils or part thereof	1 per 6 pupils or part thereof
vi)	Drinking water fountain or taps	1 per 50 pupils or part thereof	1 per 50 pupils or part thereof	1 per 50 pupils or part thereof	1 per 50 pupils or part thereof	1 per 50 pupils or part thereof
vi)	Cleaner's Sink	1 per floor				

NOTE:

- i) Some WC's may be European style if desired.
- ii) For teaching staff, the schedule of fixtures to be provided shall be the same as in case of office building.

Table No- 29: Sanitation arrangements for Hostels

Sr.	Fixtures	Resident		Non-Resident		Visitor / Common Rooms	
		Male	Female	Male	Female	Male	Female
1	2	3	4	5	6	7	8
i)	Water-closets	1 per 6 or part thereof	1 per 6 or part thereof	1 for up to 15 2 for 16-35 3 for 36-65 4 for 66-100	1 for up to 12 2 for 13-25 3 for 26-40 4 for 41-57 5 for 58-77 6 for 78-100	1 per 100 up to 400 Over 400 add at 1 per 250	1 per 200 up to 200 Over 200 add at 1 per 100
ii)	Ablution tap	One in each water- closet	One in each water- closet	One in each water- closet	One in each water- closet	One in each water- closet	One in each water- closet
		1 water tap with draining arrangements shall be provided for every 50 persons or part thereof in the vicinity of water-closets and urinals.					
iii)	Urinals	1 per 25 or part thereof	-	Nil up to 6 1 for 7-20 2 for 21-45 3 for 46-70 4 for 71-100	-	1 per 50 or part thereof	-
iv)	Wash basins	1 per 8 persons or part thereof	1 per 6 persons or part thereof	-	-	-	-
v)	Bath / Showers	1 per 8 persons or part thereof	1 per 6 persons or part thereof	-	-	-	-

NOTE:

- i) Some WC's may be European style if desired.

Table No- 30: Sanitation arrangements for Fruit and Vegetable Markets

Sr.	Fixtures	Shop Owners		Common Toilets in Market Building		Public Toilet for Floating Population	
		Male	Female	Male	Female	Male	Female
1	2	3	4	5	6	7	8
i)	Water-closets	1 per 8 persons or part thereof		1 for up to 15 2 for 16-35 3 for 36-65 4 for 66-100	1 for up to 12 2 for 13-25 3 for 26-40 4 for 41-57 5 for 58-77 6 for 78-100	1 per 50 (Minimum 2)	1 per 50 (Minimum 2)
ii)	Ablution tap	One in each water- closet	One in each water- closet	One in each water- closet	One in each water- closet	One in each water- closet	One in each water- closet
		1 water tap with draining arrangements shall be provided for every 50 persons or part thereof in the vicinity of water-closets and urinals.					
iii)	Urinals	-	-	Nil up to 6 1 for 7-20 2 for 21-45 3 for 46-70 4 for 71-100	-	1 per 50	-

Sr.	Fixtures	Shop Owners		Common Toilets in Market Building		Public Toilet for Floating Population	
		Male	Female	Male	Female	Male	Female
1	2	3	4	5	6	7	8
iv)	Wash basins	1 per 8 persons or part thereof		1 for up to 15 2 for 16-35 3 for 36-65 4 for 66-100	1 for up to 12 2 for 13-25 3 for 26-40 4 for 41-57	-	-
v)	Bath / Showers	1 per 8 persons or part thereof	1 per 6 persons or part thereof	-	-	1 per 50 persons	1 per 50 persons

NOTE :

- Toilet facilities for individual buildings in a market should be taken same as that for office building
- Common toilets in the market buildings provide facilities for persons working in shops and their regular visitors
- Special toilet facilities for a large floating population of out of town buyers / sellers, labour, drivers of vehicles for whom special toilet (public toilets).

Table No- 31: Sanitation Arrangements for Airports and Railway Stations

Sr.	Fixtures	Junction Stations, Intermediate Stations and Bus Stations		Terminal Railway and Bus Stations		Domestic and International Airports	
		Male	Female	Male	Female	Male	Female
1	2	3	4	5	6	7	8
i)	Water-closet	3 for up to 1000 Add 1 per additional 1000 or part thereof	4 for up to 1000 Add 1 per additional 1000 or part thereof	4 for up to 1000 Add 1 per additional 1000 or part thereof	5 for up to 1000 Add 1 per additional 1000 or part thereof	Minimum 2 For 200 2 For 400 9 For 600 12 For 800 16 For 1000 18	Minimum 2 For 200 2 For 400 9 For 600 12 For 800 16 For 1000 18
ii)	Ablution tap	One in each water- closet	One in each water- closet	One in each water- closet	One in each water- closet	One in each water- closet	One in each water- closet
		1 water tap with draining arrangements shall be provided for every 50 persons or part thereof in the vicinity of water-closets and urinals.					
iii)	Urinals	4 for up to 1000 Add 1 per additional 1000	-	6 for up to 1000 Add 1 per additional 1000	-	1 per 40 or part thereof	-
iv)	Washbasins	1 per WC / Urinal	1 per WC	1 per WC / Urinal	1 per WC	1 per WC / Urinal	1 per WC
v)	Bath/Showers	2 per 1000		3 per 1000		4 per 1000	

Sr.	Fixtures	Junction Stations, Intermediate Stations and Bus Stations		Terminal Railway and Bus Stations		Domestic and International Airports	
		Male	Female	Male	Female	Male	Female
1	2	3	4	5	6	7	8
vi)	Drinking fountain or taps water (in common lobby for male/ female)	2 per 1000 or part thereof		3 per 1000 or part thereof		4 per 1000 or part thereof	
vii)	Cleaner's sink	1 per toilet compartment with 3 WC's	1 per toilet compartment with 3 WC's	1 per toilet compartment with 3 WC's	1 per toilet compartment with 3 WC's	1 per toilet compartment with 3 WC's	1 per toilet compartment with 3 WC's
viii)	Toilet for Disabled	1 per 4000	1 per 4000	1 per 4000	1 per 4000	1 per 4000 (Minimum 1)	1 per 4000 (Minimum 1)

NOTE:

- i) Some WC's may be European style if desired
- ii) Male population may be assumed as three-fifth and female population as two-fifth
- iii) Separate provision shall be made for staff and workers

32 SIGNS AND OUTDOOR DISPLAY STRUCTURES

32.1 The display of advertising signs on buildings and land shall be in accordance with Part 10, Section 2 "Signs and Outdoor Display Structures" of National Building Code of India as amended from time to time.

32.2 Prohibition of advertising signs and outdoor display structure in certain cases - Notwithstanding the provisions of sub-regulations no advertising sign or outdoor display structures shall be permitted on buildings of architectural, aesthetical, historical or heritage importance as may be decided by the Chairman or on Government Buildings save that in the case of Government buildings only advertising signs or outdoor display structure may be permitted if they relate to the activities for the said buildings' own purposes or related programmes.

32.3 Other Signs

32.3.1 Roof signs: Roof signs shall not be permissible.

32.3.2 Wall Signs: Wall signs shall be below the level of the roof slab of the ground floor.

- a) Any sign attached to the wall shall not project more than 7.5cm from the wall.
- b) Lighting reflections may project maximum 50cm beyond the wall surface.

32.3.3 Project sign shall not project beyond 0.90m from the wall

32.3.4 The overhead clearance from the ground level shall not be less than 2.50m.

32.3.5 No project sign shall be above the ground floor roof slab level.

32.3.6 Projecting signs shall include polls signs.

32.3.7 Marquee signs

Marquee signs shall not project beyond the chajja in the building and shall not be above the ground floor roof slab height. They shall be above 2.50m height from ground level.

PART VIII: SPECIAL PROVISIONS IN CERTAIN BUILDINGS

33 PROVISION OF FACILITIES FOR PHYSICALLY HANDICAPPED PERSONS

33.1 Definitions

- a) **Non-ambulatory Disabilities:** – Impairments that, regardless of cause or manifestation, for all practical purposes, confine individuals to wheelchairs.
- b) **Semi-ambulatory Disabilities:** - Impairments that cause individuals to walk with difficulty or insecurity, individuals using braces or crutches, amputees, arthritics, spastics, and those with pulmonary and cardiac ills may be semi-ambulatory.
- c) **Hearing Disabilities:-** Deafness or hearing handicaps that might make an individual insecure in public areas because he is unable to communicate or hear warning signals.
- d) **Sight Disabilities:** - Total blindness or impairments, which affect sight to the extent that the individual, functioning in public areas, is insecure or exposed to danger.
- e) **Wheel Chair:** - Chair used by disabled people for mobility. The standard size of wheel chair shall be taken as 1050 mm x 750 mm.

33.2 Scope

These regulations are applicable to all buildings and facilities used by the public such as educational, institutional, assembly, commercial, business, mercantile buildings constructed on plot having an area of more than 2000 sq.m. It does not apply to private and public residences.

33.3 Site Development

Level of the roads, access paths and parking areas shall be described in the plan along with specification of the materials.

33.3.1 Access Path/ Walk Way

Access path from plot entry and surface parking to building entrance shall be minimum of 1800 mm wide having even surface without any steps. Slope, if any, shall not have gradient greater than 5%. Selection of floor material shall be made suitably to attract or to guide visually impaired persons (limited to coloured floor material whose colour and brightness is conspicuously different from that of the surrounding floor material or the material that emits different sound to guide visually impaired persons; hereinafter referred to as “guiding floor material” (Refer Regulation 33.4). Finishes shall have a non-slip surface with a texture traversable by a wheel chair. Curbs wherever provided should blend to a common level.

33.3.2 Parking: For parking of vehicles of handicapped people, the following provisions shall be made-

- a) Surface parking for two car spaces shall be provided near entrance for the physically handicapped persons with maximum travel distance of 30.0 m. from building entrance.
- b) The width of parking bay shall be minimum 3.6 meter.
- c) The information stating that the space is reserved for wheel chair users shall be conspicuously displayed.
- d) Guiding floor materials shall be provided or a device, which guides visually impaired persons with audible signals, or other devices, which serves the same purpose, shall be provided.

33.3.3 Building requirements

The specified facilities for the buildings for physically handicapped persons shall be as follows:

- a) Approach to plinth level
- b) Corridor connecting the entrance/exit for the handicapped.
- c) Stair-ways
- d) Lift

e) Toilet Drinking Water

- 33.3.3.1** Approach to plinth level – Every building should have at least one entrance accessible to the handicapped and shall be indicated by proper signage. This entrance shall be approached through a ramp together with the stepped entry
- 33.3.3.2** Ramped Approach – Ramp shall be finished with non-slip material to enter the building. Minimum width of ramp shall be 1800mm with maximum gradient 1:12. Length of ramp shall not exceed 9.0 meter having 800mm high hand rail on both sides extending 300mm beyond top and bottom of the ramp. Minimum gap from the adjacent wall to the hand rail shall be 50mm.
- 33.3.3.3** Stepped Approach:- For stepped approach size of tread shall not be less than 300mm and maximum riser shall be 150mm. Provision of 800mm high hand rail on both sides of the stepped approach similar to the ramped approach.
- 33.3.3.4** Exit/Entrance Door:- Minimum & clear opening of the entrance door shall be 900mm and it shall not be provided with a step that obstructs the passage of a wheel chair user. Threshold shall not be raised more than 12mm.
- 33.3.3.5** Entrance Landing:- Entrance landing shall be provided adjacent to ramp with the minimum dimension 1800mm x 2000mm. The entrance landing that adjoins the top end of a slope shall be provided with floor materials to attract the attention of visually impaired person's (limited to coloured floor material whose colour and brightness is conspicuously different from that of the surrounding floor material or the material that emits different sound to guide visually impaired persons hereinafter referred to as "guiding floor material" (Refer Regulation 33.4). Finishes shall have a non-slip surface with a texture traversable by a wheel chair. Curbs wherever provided should blend to a common level.
- 33.3.4** Corridor connecting the entrance / exit for the handicapped: The corridor connecting the entrance / exit for handicapped leading directly outdoors to a place where information concerning the overall use of the specified building can be provided to visually impaired persons either by a person or by signs, shall be provided as follows:
- 'Guiding floor materials' shall be provided or device that emits sound to guide visually impaired persons.
 - The minimum width shall be 1500mm.
 - In case there is a difference of level, slope ways shall be provided with a slope of 1:12.
 - Hand rails shall be provided for ramps/slope ways.
- 33.3.5** Stair-ways - One of the stair-ways – near the entrance / exit for the handicapped shall have the following provisions:
- The minimum width shall be 1350 mm.
 - Height of the riser shall not be more than 150 mm and width of the tread 300mm. The steps shall not have abrupt (square) nosing.
 - Maximum number of risers on a flight shall be limited to 12.
 - Hand rails shall be provided on both sides and shall extend 300 mm on the top and bottom of each flight of steps.
- 33.3.6** Lifts - Wherever lift is required as per these Regulations, provision for wheel chair users shall be made in least one lift, as per the following lift car dimensions, for passenger lift of 13 persons capacity of Bureau of Indian Standards.

Clear internal width within lift car	1100 mm
Clear internal width	2000 mm
Entrance door width	900 mm

- a) A hand rail not less than 600mm long at 1000mm above floor level shall be fixed adjacent to the control panel.
- b) The lift lobby shall be of an inside measurement of 1800 mm x 1800 mm or more.
- c) The time of an automatically closing door should be minimum 5 seconds and the closing speed should not exceed 0.25 m/ sec.
- d) The interior of the cage shall be provided with a device that audibly indicates the floor, the cage has reached indicates that the door of the cage of entrance/exit is either open or closed.

33.3.7 Toilets - One special W.C. in a set of toilets shall be provided for the use of handicapped with essential provision of washbasin near the entrance for the handicapped.

- a) The minimum size shall be 1500 mm x 1750 mm.
- b) Minimum clear opening of the door shall be 900mm and the door shall swing out.
- c) Suitable arrangement of vertical/horizontal handrails with 50mm clearance from wall shall be made in the toilet.
- d) The W.C. seat shall be 500mm from the floor.

33.3.8 Drinking Water:-Suitable provision of drinking water shall be made for the handicapped near the special toilet provided for them.

33.3.9 Designing for Children - In the buildings meant for the pre-dominant use of the children, it will be necessary to suitably alter the height of the handrail and other fittings & fixtures, etc.

33.4 Guiding / Warning Floor Material

The floor material to guide or to warn the visually impaired persons with a change of colour or material with conspicuously different texture and easily distinguishable from the rest of the surrounding floor materials is called guiding or warning floor material. The material with different texture gives audible signals with sensory warning when a person moves on this surface with walking stick. The guiding/warning floor material is meant to give the directional effect or warn a person at critical places. This floor material shall be provided in the following areas:

- a) The access path to the building and to the parking area.
- b) The landing lobby towards the information board, reception, lifts, staircases and toilets.
- c) Immediately at the beginning/end of walkway where there is vehicular traffic.
- d) At the location abruptly changing in level or beginning/end of a ramp.
- e) Immediately in front of an entrance/exit and the landing.

34 INSTALLATION OF SOLAR ASSISTED WATER HEATING SYSTEM

- 34.1** All building premises with hot water requirements of a capacity exceeding 100 litres per day shall install and use solar water heating (SWH) system, for at least 50 percent of their annual water heating requirement.
- 34.2** Solar water heating systems should be made in the building for hospitals, hotels, hostels, guest houses, police men/ army barracks, canteens, laboratories and research institutions, schools and colleges and other institutes.
- 34.3** The solar water heating system should be mandatory in the hospitals and hotels, where the hot water requirements are of continuous nature. These buildings must be provided with auxiliary back-up system.
- 34.4** The use of solar water heating system is recommended in the following type of buildings in Government/ Semi-Government and Institutional buildings where the hot water requirements may not be continuous/ permanent:
- Guest Houses
 - Police men/Army barracks
 - Canteens
 - Laboratory & Research Institutions where hot water is needed.
 - Hostels, Schools, Colleges and Other Institutes.
- 34.5** The Installation of the electrical back up in all such water heating system shall be optional depending on the nature of requirements of the hot water. The backup systems may be integrated into SWH system or be separate.
- 34.6** It is suggested that solar heating systems of the capacity of about 100 liters per day based on thermosyphonic with necessary electrical back-up be installed at residential buildings like hostels.
- 34.7** In order to facilitate the installation of the solar water heating systems, the new buildings shall have the following provisions:
- All such buildings where solar water heating systems are to be installed will have open sunny roof area available for installation of solar water heating system.
 - The roof loading adopted in the design of such building should be at least 50 kg per sq. m. for the installation of solar water heating system.
 - A solar water heating system can also be integrated with the building design. These either can be put on the parapet or could be integrated with the south facing vertical wall of the building. The best inclination of the collector for regular use throughout the year is equal to the local latitude of the place. The Collectors should be facing south. However, for only winter use the optimum inclination of the Collector would be (Latitude + 15 degrees of the south.). Even if the Collectors are built in south facing vertical wall of building the output from such Collectors during winter month is expected to be within 32% output from the optimum inclined Collector.
 - All the new buildings to be constructed shall have an installed hot water line from the rooftop and insulated distribution pipelines to each of the points where hot water is required in the building.
 - The capacity of the solar water heating system to be installed on the building shall be described on the basis of the average occupancy of the building. The norms for hospitals, hotels and other functional buildings are given below:

Table No- 31a: Occupancy norms for solar water heating system

Sr No	Type of use	100 liters per day shall be provided for every
(1)	(2)	(3)
1	Restaurants serving food and drinks with seating / serving area of more than 100 sq.m and above	40sqm of seating or serving area
2	Lodging establishments and Tourist Homes	3 rooms
3	Hostel and guest houses	6 beds / persons capacity
4	Industrial canteens	50 workers
5	Nursing homes and hospitals	4 beds
6	Kalyana Mandir, Community Hall and Conventional hall (with dining hall and kitchen)	30sqm of floor area
7	Recreational clubs	100sqm of floor area
8	Residential buildings	Single dwelling unit measuring 200sqm of floor area or site area of more than 400sqm whichever is more

- a) An open area of 3 sq.m. would be required for installation of a collector which supplies about 100 liters of water per day. At least 60% of the roof area may be utilized for installation of the system.
- b) The specifications for the solar water heating system laid down by the Ministry of Non-Conventional Energy Sources may be followed. Flat plate collector conforming to Bureau of Indian Standards - latest standard shall be used in all such solar water heating systems.

35 RAIN WATER HARVESTING

All developments shall conform to the rain water harvesting regulation given in Maharashtra State Urban Development Department's Notification No. TPS- 2409/191/CR- 124/ 09/ UD- 9, dated 28th August 2009 published in the Maharashtra Government Gazette dated 17th September, 2009 and all subsequent revisions thereof.

The requirements of the aforementioned notification are given below for reference. For any amendments in the above regulation shall be referred from Government notifications.

35.1 Requirement

- a) All the layout open spaces/amenity spaces of housing societies and new constructions/ reconstruction/ additions on plots having area not less than 300 sq.mt. in non gaothan areas of shall have one or more rainwater harvesting structures having a minimum total capacity as detailed below.
- b) Provided that the Authority may approve Rain Water Harvesting structures of specifications different from those in Schedule, subject to the minimum capacity of Rain Water Harvesting being ensured in each case.
- c) The owner/society of every building mentioned in the (a) above shall ensure that the Rain Water Harvesting structure is maintained in good condition for storage of water for non potable purposes or recharge of groundwater at all times.
- d) The Authority may impose a levy of not exceeding Rs.1000/- per annum for every 100 sq.m. of built-up area for the failure of the owner of any building mentioned in the (a) above to provide or to maintain Rain Water Harvesting structures as required under these regulations.

35.2 Rain Water Harvesting in a building site includes storage or recharging the ground water by rainwater falling on the terrace or any paved or unpaved surface within the building site.

35.3 The following systems may be adopted for harvesting the rainwater drawn from terrace and the paved surface.

- a) Open well of a minimum 1m diameter and 6m in depth into which rain water may be channeled and allowed to filter for removing silt and floating material. The well shall be provided with ventilating covers. The water from the open well may be used for non-potable domestic purposes such as washing, flushing and for watering the garden, and process water for cooling, etc.
- b) Rain Water Harvesting for recharge of groundwater may be done through a bore-well around which a pit of 1m width may be excavated upto a depth of at least 3m and refilled with stone aggregate and sand. The filtered rain water may be channeled to the refilled pit for recharging the bore-well.
- c) An impressive surface/underground storage tank of required capacity may be constructed in the setback or other open spaces and the rain water may be channeled to the storage tank. The storage tank shall always be provided with ventilating covers and shall have draw-off taps suitably placed so that rain water may be drawn off for domestic, washing, gardening and such other purposes. The storage tank shall be provided with an overflow.
- d) The surplus rain water after storage may be recharged in to ground through percolation pits or trenches or combination of pits and trenches. Depending on the geomorphological and topographical conditions, the pits may be of the size of 1.20 m width X 1.20 m length X 2 m to 2.50 m depth. The trenches can be of 0.60 m width X 2 to 6 m length X 1.50 to 2 m depth. Terrace water shall be channeled to pits or trenches. Such pits or trenches shall be back filled with filter media comprising the following materials:
 - i) 40 mm stone aggregate as bottom layer upto 50% of the depth.
 - ii) 20 mm stone aggregate as lower middle layer upto 20% of the depth.
 - iii) Coarse sand as upper middle layer upto 20% of the depth.
 - iv) A thin layer of fine sand as top layer.
 - v) Top 10% of the pits/trenches will be empty and a splash is to be provided in this portion in such a way that roof top water falls on the splash pad.
 - vi) A retention wall in masonry shall be constructed to line the pit. This wall will extend above the immediate surrounding ground level by 15cm.
 - vii) Perforated concrete slabs shall be provided on the pits/trenches.
- e) Vehicular parking may be permitted on top of recharge pits or trenches provided that the cover slabs are designed to take the load of vehicles.
- f) If the open space surrounding the building is not paved, the top layer up to a sufficient depth shall be removed and refilled with coarse sand or such other absorption media to allow percolation of rain water into ground
 - i) The terrace shall be connected to the open well/bore-well/storage tank/ recharge pit/trench by means of HDPE / PVC pipes through filter media. A valve system shall be provided to enable the first washing from roof or terrace catchment, as they would contain undesirable dirt. The mouth of all pipes and opening shall be covered with mosquito (insect) proof wire net. For the efficient discharge of rain water, there shall be at least two rain water pipes of 100 mm dia. for a roof area of 100 sq.m.
 - ii) Rain Water Harvesting structures shall be sited as not to endanger the stability of building or earthwork. The structure shall be designed such that no dampness is caused in any part of the walls or foundation of the building or those of an adjacent building.
 - iii) The water so collected/recharged shall as far as possible be used for non-drinking and non-cooking purpose.

- c) Provided that when the rain water in exceptional circumstances will be utilised for drinking and/or cooking purpose, it shall be ensured that proper filter arrangement and the separate outlet for bypassing the first rain water has been provided.
- d) It will be ensured that for such use, proper disinfectants and the water purification arrangements have been made.

PART IX: ACQUISITION/ DEVELOPMENT OF RESERVED/ DESIGNATED SITES IN THE DEVELOPMENT PLAN

36 MANNER OF DEVELOPMENT OF RESERVED/ DESIGNATED SITES IN THE DEVELOPMENT PLAN

36.1 Manner of development of land reserved for public amenities as per the Accommodation Reservation principle

The use of land reserved for designated public purpose in the Development Plan shall be regulated in regard to type and manner of development / redevelopment according to **Table No. 32**.

Table No- 32: The manner of development of reserved/ designated sites

Sr. No.	Reservation / designation	Person / Authority who may develop	Conditions subject to which development is permissible
(1)	(2)	(3)	(4)
1	Residential		
a.	Affordable housing scheme	MHADA / NIT/ Owner	The NIT or the said public agency or defense organizations with the permission of NIT, may acquire and develop the reservation. OR the Chairman may allow the owner to develop the reservation, subject to handing over of 25% land to NIT free of cost. If the owner agrees to handover 25% land along with 25% built up area to the NIT free of cost, then he shall be entitled to utilize permissible FSI of his entire plot without deducting the area handed over free of cost.
2.	Commercial		
a.	Commercial Centre	NIT/ Owner	NIT can acquire and develop the land based on the norms prescribed by Chairman, NIT; OR The owner may develop the site with type, number and size of stalls/ shops prescribed by the Chairman, NIT and subject to handing over 25% of built-up area to the NIT free of cost. Thereafter, the owners shall be entitled to have the full permissible FSI of the plot without taking into consideration the area so handed over, for other permissible uses in adjoining zone.
b.	Vegetable Market	NIT/ Owner	NIT may acquire the land and develop the same for vegetable market; OR The Chairman, NIT may allow the owner develop the reservation subject to handing over of 25% land to NIT free of cost. The owner shall be entitled to develop the remaining area for other permissible uses.
3.	Transportation		
a.	State Transport Depot	MSRTC/ NIT	MSRTC can acquire the land and develop the reservation
b.	State Transport Stand	MSRTC/ Private Bus Operators Association/ NIT	MSRTC/ Private Bus Operators Association/ NIT can acquire the land and develop the reservation
c.	Truck Terminal	NIT/	NIT may acquire the land and develop the reservation. OR

Sr. No.	Reservation / designation	Person / Authority who may develop	Conditions subject to which development is permissible
(1)	(2)	(3)	(4)
			The Chairman, NIT may allow the owner to develop the reservation subject to handing over of 25% of land to NIT free of cost. The owner shall be entitled to develop the remaining area for other permissible uses.
d.	Parking	NIT/ Owner	NIT may acquire the land and develop, operate and maintain the parking space OR The Owner may be allowed to develop parking space according to the designs, specifications and conditions prescribed by the Chairman, NIT subject to handing over of parking area equal to plot area, to NIT free of cost. The operation and the maintenance of the facility will be decided by the Chairman, NIT. Parking spaces may be in basement or open spaces or under the stilts or on upper floors with separate entry & exit. Full permissible F.S.I. of the plot, without deducting the area so handed over, would be available to the owner for other permissible user in that zone.
4.	Public - Semi-public		
a.	Hospital/ Nursing Home etc.,	NIT/ Owner	The NIT may acquire and develop the amenity as a reservation. OR The owner may be permitted to develop the reservation subject to handing over to the NIT 15% built-up area for the amenity constructed according to the norms prescribed by the Chairman, NIT free of cost. Thereafter, the owner will be entitled to have the full permissible FSI of the plot for other permissible uses in the remaining area without deducting the FSI utilized for constructing the amenity.
b.	Medical facilities	Government/Owner	The owner or public institution may acquire and develop the site for medical facility.
5.	Educational		
a.	Primary School/ Secondary School	NIT/Owner/ Relevant Public Institution	The NIT may acquire and develop the site for primary school. OR A Public Authority, a Registered Public Trust or a Registered Society may be allowed to acquire and develop the land for primary school based on the norms prescribed by Chairman, NIT. OR The owner may be allowed to develop the reservation based on the conditions laid down by the Chairman, NIT for the specific facility. The owner may operate it himself or NIT may entrust its operation to a registered institution or trust.
b.	College	NIT/ Owner/ Public Institution	The owner or public institution may acquire and develop the site for college
c.	Higher Education/ Educational Institution	NIT/ Institution/ Government	The owner or public institution may acquire and develop the site for higher education / educational institution.

Sr. No.	Reservation / designation	Person / Authority who may develop	Conditions subject to which development is permissible
(1)	(2)	(3)	(4)
6.	Assembly and recreation		
a.	Auditorium	Owner/ NIT	The owner shall construct an auditorium of capacity and other specification prescribed by Chairman/ NIT. Remaining FSI may be allowed to be utilized for other permissible uses subject to these Regulations.
b.	District court complex	NIT	The NIT may acquire and develop the reservation
c.	Community Centre/ Town Hall / Gymkhana/ Exhibition Hall/ Play Ground/ Multi-purpose Ground/ Club/ Garden/ Park/ Sports Complex/ Stadium/ Museum/ other similar recreational uses	NIT/ Owner	The Planning Authority may acquire the land and develop the reservation for the purpose. OR The owner may be permitted to develop the reservation with certain rights to NIT/ SPA.
d.	Library	NIT/ Owner	The NIT/ owner may be permitted to develop the reservation subject to his handing over to NIT 20% built-up area for library constructed according to norms prescribed by the Chairman, NIT free of cost. The owner will be entitled to have full permissible FSI of the plot without taking into account the area utilised for construction of reservation.
7.	Public Utilities		
a.	Water reservoir, fire station, electric sub-station, slaughter house, sewage treatment plant, water treatment plant, pumping stations, solid waste landfill site or other facilities enlisted as permissible uses in the Public Utility land use zone	NIT/ any other relevant government agency/ Owner	NIT/ public sector/Government department undertaking can acquire and develop the land based on the norms prescribed by Chairman, NIT. OR The Owner may be permitted to development or operate the reservation subject to rights decided by NIT/ SPA and subject to his handing over to the NIT, the 25% required BUA for the facility constructed according to the norms prescribed by the Chairman, NIT. Thereafter, the owner will be entitled to full permissible FSI of the plot without deducting the area utilized for the facility for the use permissible in the adjoining zone. Where appropriate authority is other than NIT/ SPA / Departments of State Government, then the cost of land as per the Ready Reckoner shall be paid to the NIT/ SPA and cost of construction to the owner/developer.
b.	Cemetery/ Cremation ground/ burial ground	NIT	The NIT or other public authority with the permission of NIT, may acquire, develop and maintain reservation. OR Registered private/ public trust or religious institution (such as a church) may be allowed to acquire and develop the land based on the norms prescribed by Chairman, NIT

Sr. No.	Reservation / designation	Person / Authority who may develop	Conditions subject to which development is permissible
(1)	(2)	(3)	(4)
8.	Special reservations		
a.	Jail	NIT/ Appropriate Authority	The NIT or the said public agency with the permission of NIT, may acquire and develop the reservation
b.	Firing Range	SRPF	The said public agency with the permission of NIT, may acquire and develop the reservation

NOTE:

- a) The above permissions for development of reservations/ designations shall be granted by the Chairman, NIT of the Planning Authority, with prior approval of Appropriate Authority.
- b) In case of composite reservations/designations, the permission shall be granted in consultation with the Divisional Head of concerned division of the Town Planning Department and Appropriate Authority.
- c) Where development of reservation is in a single building, then built area proportionate with land share may be allowed to be handed over to the NIT/ SPA or Appropriate Authority, as the case may be, in consultation with Divisional Head of concerned division of the Town Planning Department.

36.2 Relocation of Land Reserved for Public Purposes in the Development Plan (DP Proposals)

36.2.1 If the land proposed to be subdivided is affected in part by any reservations or public purposes, the authority may agree to adjust the location of such reservation to suit development without altering the area of such reservation. Provided that no such shifting of the reservations shall be permitted:

- a) beyond 200m of its location in the Development Plan;
- b) beyond the same holding of the owner in which such reservation is located;
- c) unless the alternative location and size is at least similar to the location and size of the original reservation as regards access, levels, etc., and
- d) unless the relocation is within area covered by the layout or development permission under sanction.

36.2.2 All such relocations of the reservations/ alignment of roads shall be carried out in consultation with the Divisional Head of concerned division of the Town Planning and shall be reported by the Chairman to the Government at the time of sanctioning the layout.

36.2.3 Other Stipulations

- a) In case of development/re-development of any land, building or premises, the intended use shall conform to the use zones, purpose of designation, allocation or reservation, as the case may be, unless specified otherwise.
- b) Combination of public purposes/uses in reserved sites: Where the Authority or the Appropriate Authority proposes to use land/building/premises reserved for one specific public purpose/purposes, partly for different public purpose/purposes, it may do so in consultation with the Divisional Head of Town Planning Department, provided that such partial use shall not exceed 40 percent of the reserved area and such combination shall not be of incompatible uses.
- c) Land parcels adjoining (sharing boundary with) the designated sites for Cremation/ Burial Grounds shall have 100 feet (30.5m) wide open belt, with tree plantation along the boundaries. If this is not possible, a six feet high compound wall shall be prescribed on the boundaries between such Cremation/ Burial Grounds and the surrounding land parcels, along with rows of trees planted along the periphery/within the burial and cremation grounds.

37 TRANSFERABLE DEVELOPMENT RIGHTS:

- 37.1** In certain circumstances, the development potential of a plot of land may be separated from the land itself and may be made available to the owner of the land in the form of Transferable Development Rights (TDR). These Rights may be made available when the authority actually intends to acquire the land for development of reservations under Section 126(1) (b) of the Maharashtra Regional and Town Planning Act and subject to the Regulations mentioned below.
- 37.2** The owner or lessee of a plot of land which is reserved for a public purpose or road construction or road widening, in the Draft Published or Sanctioned Development plan and for additional amenities deemed to be reservations provided in accordance with these regulations, except an existing or retention user or any required compulsory or recreational open space, shall be eligible for the award of Transferable Development Rights (TDR) in the form of Floor Space Index (FSI) to the extent and on the conditions set out below. Such award will entitle the owner of the land to FSI in the form of Development Rights Certificate (DRC) which he may use himself or transfer to any other person.
- 37.3** Conditions where TDR shall not be permissible:
- 37.3.1** An existing user or retention user or any required compulsory or recreational open space shall not be eligible for award of Transferable Development Rights (TDR).
- 37.3.2** Further, TDR shall not be allowed in the following cases:
- Where layout is already sanctioned prior to publication of these regulations.
 - If such road is part and parcel of the layout / scheme for which net plot area is considered then no TDR shall be permissible.
- 37.4** However in case of lessee, the award of TDR shall be subject to lessee paying the lessor or depositing with the NIT/ SPA or Appropriate Authority, as the case may be, for payment to the lessor, an amount equivalent to the value of the lessors' interest to be determined by any of the said authorities concerned on the basis of Land Acquisition Act, 1894 and its amendments from time to time, FSI or TDR against the area of land surrendered free of cost and free from all encumbrances.
- 37.5** Subject to the Regulation 37.4 above, where a plot of land is reserved for any purpose specified in Section 22 of The Maharashtra Regional and Town Planning Act, 1966, the owner will be eligible for Development Rights (DRs) to the extent stipulated in these Regulations after the said land is surrendered free of cost and / or after completion of development or construction as per these Regulations if he undertakes the same.
- 37.6** Development Rights (DRs) will be granted to an owner or lessee only for reserved lands which are retainable under the Urban Land (Ceiling and Regulations) Act, 1976 and in respect of all other reserved lands to which provisions of aforesaid Act does not apply, and on production of a certificate to this effect from the Competent Authority under that Act before a Development Right is granted. In the case of non-retainable land, the grant of Development Rights shall be to such extent and subject to such conditions as the Government may specify. Development Rights (DRs) are available only in cases where development of a reservation has not been implemented i.e., DRs will be available only for prospective development of reservations and roads.
- 37.7** Development Rights Certificate (DRC) will be issued by the Chairman, NIT himself with the approval of the Assistant Director of Town Planning, Nagpur Division. It will state, in figures and in words, the FSI credit in square meters of the built-up area to which the owner or lessee of the said reserved plot is entitled, the place and user zone in which the DRs are earned and the areas in which such credit may be utilised.

37.8 Calculation of Development Right

The built-up area for the purpose of FSI credit in the form of a DRC shall be equal to the gross area of the reserved plot to be surrendered and will proportionately, increase or decrease according to the permissible FSI of the zone where from the TDR has originated, weighted against the table given below.

Table No- 32a: Calculation for development rights

Developable Zone	Base FSI Permissible	DC incentive on account of reservation	Resulting Development Credit (Permissible base FSI x incentive FSI on account of reservation)
R1	1.25	1.25	1.5625
R2	1	1.5	1.5
R3	0.75	1.5	1.125
R4	0.5	1.75	0.875
C	1.25	1	1.5
PSP	1	1.5	1.5
I	1	1.25	1.25
A1	0.2	2	0.4
A2	0.2	2.5	0.5

37.8.1 A DRC will be issued only on the satisfactory compliance of the conditions prescribed in these Regulations

37.8.2 If a holder of DRC intends to transfer it to any other person, he will submit the DRC to the Chairman NIT with an appropriate application for an endorsement of the new holder's name, i.e., transferee, on the said Certificate, without such an endorsement by the Chairman NIT and Assistant Director of Town Planning/Town Planner themselves, the transfer shall not be valid and the Certificate will be available for use only by the earlier original holder

37.8.3 A holder of DRC who desires to use FSI Credit Certificate therein on a particular plot of land shall attach to his application for development permission, valid DRCs to the extent required.

37.8.4 DRC shall not be valid for use on receivable plots in the areas listed below, (identified as No TDR Receiving Zone)

- a) All Gaothan / congested area shown on Development Plan and notified slums included in the limits of NMA
- b) All plots abutting National Highways, State Highways and ring roads. However, plots fronting on service roads along the National Highways, State Highways and ring roads shall be eligible for receiving TDR.
- c) Areas in agricultural zone and in blue zone (prohibitive zone) and red zone (restrictive zone) as specified by Irrigation Department.
- d) On plots for housing schemes of slum dwellers for which additional F.S.I. is permissible.
- e) Areas where the permissible F. S. I. is less than 1.0 and also where additional FSI as permissible under these regulations is already consumed
- f) On receiving plots fronting on road width less than 12 m.
- g) In special township areas.

37.9 **Amount of TDR** shall be calculated on the basis of DC generated from a given piece of land and shall be utilized on the receiving plot as per formula given below:

Formula: $X = (R_g / R_r) \times Y$

Where, X = Utilisation of DR in sq.m on receiving plot

R_g = Rate in Rs. per sq.m. as per ASR of generating plots in generating year

R_r = Rate in Rs. per sq.m. as per ASR of receiving plot in generating year

Y = TDR debited from DRC in sq.m.

Examples for illustrating the calculation of TDR are given below. -

Case I - Consider a 2,000 sqm plot in R2 Zone in which 600 sqm (30% area) of land is under reservation. Calculation of Development Rights when DC is used on same plot			
a	Zone	R2	Assumption: Plot is in R2 Zone
b	Plot Size (sqm)	2000	Assumption: Plot is 2,000 sqm in size
c	% of land under reservation	30	Assumption: 30% of the land falls under certain reservation
d	Base FSI	1	FSI for R2 Zone as per these regulations
e	DC incentive	1.5	See Table 32a above
f	Resulting DC	1.5	See Table 32a above. Resulting Development Credit = (d)*(e)
g	Area of land under reservation (sqm)	600	Assumption
h	Resulting Development Credit on plot	900	DRC = (g)*(f) Development Rights Certificate will be issued for 900sqm for this land under reservation.
i	Balance land NOT under reservation	1400	
j	Permissible built-up on balance land not under reservation (sqm)	1400	Permissible built up for this land will be as per the base FSI for this zone = (a)*(d)
k	Total permissible built-up (sqm)	2300	This would be the total permissible built up for this plot, when all the Development Credits are used on the remainder land. Total permissible built up area = (h) + (j) In the absence of any reservations, this would have been (b)*(d), which is 2,000 sqm. Thus additional development right of 300 sqm is obtained by the owner as an incentive.

Case II - Consider a 2,000 sqm plot in R2 Zone in which 600 sqm (30% area) of land is under reservation. Calculation of DC that can be transferred to another plot			
a	Zone	R2	Assumption: Plot is in R2 Zone
b	Plot Size (sqm)	2000	Assumption: Plot is 2,000 sqm in size
c	% of land under reservation	30	Assumption: 30% of the land falls under certain reservation
d	Base FSI	1	FSI for R2 Zone as per these regulations
e	DC incentive	1.5	See Table 32a above
f	Resulting DC	1.5	See Table 32a above. Resulting Development Credit = (d)*(e)
g	Land under reservation (sqm)	600	Assumption
h	Resulting Development Credit on plot	900	Development Rights Certificate will be issued for this land under reservation. DRC = (g)*(f)

i	Rate in Rs per sqm as per ASR of generating plots in generating year	4000	Assumption: ASR of generating plot is 4,000 rs per sqm
j	Rate in Rs per sqm as per ASR of receiving plot in generating year	6000	Assumption: ASR of receiving plot is 6,000 rs per sqm, this is the rate of the plot that the Development Rights are being transferred to.
k	Utilization of DR in sqm on receiving plot	600	This is the amount of Development Rights in sqm that can be transferred, and is based on the rate of land in both the generating and receiving plots. This can be calculated using the following formula - Utilization of DR = [(i)/(j)]*(h) See Regulation 37.9 above

Case III - Example of a 2,000 sqm plot of land, in R2 Zone. <i>100% of this land is assumed to be under reservation, all Development Credits transferred.</i>			
a	Zone	R2	Assumption: Plot is in R2 Zone
b	Plot Size (sqm)	2000	Assumption: Plot is 2,000 sqm in size
c	% of land under reservation	100	Assumption: 30% of the land falls under certain reservation
d	% of DR transferred	100	Assumption: All of the Development Rights are being transferred
e	Base FSI	1	FSI for R2 Zone as per these regulations
f	DC incentive	1.5	See Table 32a above
g	Resulting DC	1.5	See Table 32a above. Resulting Development Credit = (e)*(f)
h	Land under reservation (sqm)	2000	Land under reservation = (b)*(c)/100
i	Resulting Development Credit on plot	3000	Development Rights Certificate (DRC) will be issued for this land under reservation. DRC = (h)*(g)
j	Rate in Rs per sqm as per ASR of generating plots in generating year	4000	Assumption: Rate of generating plot is 4,000 rs per sqm
k	Rate in Rs per sqm as per ASR of receiving plot in generating year	6000	Assumption: Rate of receiving plot is 6,000 rs per sqm, this is the rate of the plot that the Development Rights are being transferred to.
l	Utilization of DR in sqm on receiving plot	2000	This is the amount of Development Rights in sqm that can be transferred, and is based on the rate of land in both the generating and receiving plots. This can be calculated using the following formula - Utilization of DR = [(j)/(k)]*(i) See Regulation 37.9 above

37.10 DRCs may be used on one or more plots of land including Development Plan reservations of buildable nature whether vacant or already developed; by erection of additional storeys or in any other manner consistent with these Regulations, but so as not to exceed in any plot a total built-up FSI higher than that prescribed hereinafter.

37.11 The FSI of the receiving plot shall be allowed to be exceeded over the normal allowable FSI by a maximum of 40%. This can be in addition to the limit mentioned in Regulation No.23 of part IV.

Provided that the extent of utilization of TDR shall be subject to the road width as prescribed below.

Plots Fronting on Road width	Maximum Permissible Utilisation of TDR on Net
1) 12 m to 15 m	0.20
2) above 15 m	0.40

In cases where plots which are already developed with full FSI potential and are subjected to acquisition for road widening, TDR may be permitted to the extent of 35% of the otherwise permissible TDR; except cases under Regulation No.24.4.

37.12 DRs will be granted and DRC will be issued only after the reserved land is surrendered to the NIT/ SPA where it is Appropriate Authority, otherwise to the State Government / Appropriate Authority, as the case may be, free of cost and free of encumbrances and after the owner or lessee has levelled the land to the surrounding ground level and after he has constructed a 1.5 m. high compound wall (or a height stipulated by the Chairman NIT) with a gate, at the cost of the owner and to the satisfaction of the Chairman NIT or the State Government (as the case may be). The cost of any transaction involved shall be borne by the owner or lessee.

37.13 With an application for development permission, where an owner seeks utilisation of DRs, he shall submit the DRC to the Chairman NIT who in consultation with Assistant Director of Town Planning / Town Planner, Nagpur Division, shall endorse thereon in writing in figures and words, the quantum of the DRC proposed to be utilised, before granting development permission, and when the development is complete, he shall endorse on the DRC in writing in figures and words the quantum of DRs actually used and the balance remaining thereafter, if any, before issue of Occupation Certificate.

37.14 A DRC shall be issued by the Chairman NIT himself as a certificate printed on bond paper in appropriate form prescribed by him. Such a certificate will be a transferable "negotiable instrument" after the authentication by the Chairman NIT. The Chairman NIT and Assistant Director of Town Planning / Town Planner, Nagpur Division shall maintain a register in a form considered appropriate by them of all transactions, etc. relating to grant of utilisation of DRs.

37.15 The surrendered reserved land for which a DRC is to be issued shall vest in the NIT/ SPA or the State Government / Appropriate Authority, if the appropriate authority is other than the NIT/ SPA and such land shall be transferred in the Revenue Records in the name of the State Government / Appropriate Authority as the case may be, and shall vest absolutely in the said Authority.

37.16 NIT/ SPA/ Appropriate Authority as the case may be, and shall vest absolutely in the said Authority. Where the Appropriate Authority is other than the State Government / State Government Department, then cost of land as per the Ready Reckoner shall be deposited by such Authority to the NIT/ SPA.

37.17 The Chairman NIT shall draw up in advance and make public from time to time a phased annual programme (allowing 10 percent variation to deal with emergency development) for generation / grant of TDR in the form of DRCs prioritising revised development plan reservations. Notwithstanding this, in urgent cases the Chief Officer may for reasons to be recorded in writing,

grant DRCs as and when considered appropriate and necessary in consultation with the Assistant Director of Town Planning / Town Planner of concerned district of Nagpur Division

- 37.18** If any contiguous land in addition to the land under reservation for which TDR is given remains unbuildable, the Chairman NIT may grant TDR for such land also. The Chairman NIT will take care that such land is utilised for open space, public toilet etc.
- 37.19** Whenever the Appropriate Authority submits its demand for the land reserved for it in the Development Plan or the land owner serves notice under section 127 for such land, then it shall be permissible for the Chairman NIT to grant TDR and take possession of such land subject to condition that the concerned Appropriate Authority (other than the State Government Department) shall deposit at least 75% of the land value as per prevailing rate of Ready Reckoner. The Chairman NIT shall hand over the possession of such land after receiving the payment of 100% land value as per the prevailing rate of Ready Reckoner. However, for the site reserved for the State Government / State Government Department, the Chairman NIT shall handover such reserved land free of cost to the State Government / concerned State Government Department.

Note: Ready Reckoner means Annual Statement of Rates published by the Registration Department for each year.

PART X: ADDITIONAL PERMISSIBLE USES IN CERTAIN CATEGORIES

38 COMMERCIAL USE OF LANDS OWNED BY ZILLA PARISHAD, PANCHAYAT SAMITI & GRAM PANCHAYAT:

Notwithstanding anything contained in these Regulations or the Development Plan, the land owned by Zilla Parishad, Panchayat Samiti and Gram Panchayat (excepting the lands reserved for the appropriate authority other than Zilla Parishad, Panchayat Samiti and Gram Panchayat) shall be allowed to be developed for commercial use up to the maximum extent of 33% of the Floor Space Index available and subject to the general restrictions applicable otherwise to such development and also in accordance with Rural Development and Water Conservation Departments Resolution No. Sankul 2004/ Pra.Kra.54/ Para – 8, dated 30-04-2004, as may be modified from time to time subject to the following conditions:

- a) The lands must be owned by Zilla Parishad / Panchayat Samiti / Gram Panchayat as the case may be.
- b) These lands are not reserved for any other appropriate authority in Development Plan/ Improvement Schemes/ Town Planning Schemes.
- c) Independent access of appropriate width shall be separately provided for each commercial user and original user.
- d) Parking requirement as prescribed for each type of user shall have to be provided

39 COMMERCIAL USE OF LANDS IN THE POSSESSION OF MAHARASHTRA STATE ROAD TRANSPORT CORPORATION

Notwithstanding anything contained in these regulations or the Development Plan, land in the possession of Maharashtra State Road Transport Corporation shall be allowed to be developed for commercial use to the extent specified in Regulation No. 24.10.

40 USES PERMISSIBLE BELOW FLYOVER

Gardens

PART XI: REGULATIONS FOR SPECIAL ACTIVITIES

41 MINES, QUARRIES AND BRICK KILNS

With prior approval from the Chairman, NIT, mining or quarrying operations may be permitted subject to the conditions prescribed in this Regulation.

- a) Quarrying shall be regulated in accordance with the method prescribed by the Collector, Nagpur District.
- b) The conditions prescribed under the Maharashtra Minor Mineral Extraction Rules and Regulations, 1966 shall be observed.

41.1 Areas Where Mining and Quarrying shall be Prohibited

Quarrying shall not be permitted within:

- a) 500m from the gaathan/ village settlements, rivers, forts, historical places, National Highway, State Highway, Major State Highway; and places of tourist interest,
- b) 500m from the high flood line

41.2 Site Planning

- a) Mining and quarrying operations shall be undertaken in a controlled manner, such as starting operations on a site away from crowded areas and later gradually extending it to the other areas.
- b) Hill tops and hill slopes from which rain water flows should not be allowed to be used for mining and quarrying.
- c) Natural landscape and environment are not to be adversely affected.
- d) In case of murum quarrying, entire weathered soil or murum shall not be excavated exposing the hard rock. Instead, a capping of atleast 0.5m shall be left so that it can support vegetation and plantation during restoration.
- e) A quarry or a mine shall have access from road with minimum width 15m.

41.3 Restoration of Inactive or Derelict Mines and Quarries

Land utilized for mines and quarries shall be restored after end of lease period and useful for the community:

- a) Pits and holes created in the process of mining and quarrying should not be left open and be appropriately filled up
- b) Site shall be restored so as to make it safe either by raising a garden or in addition by planting fruit growing trees around it or by converting it into a water reservoir.

41.4 Submission of Maps and Documents to NIT/ SPA

The following maps and documents shall be submitted to the NIT/ SPA for obtaining prior approval of Chairman NIT:

- a) location Plan at the scale of 1:5,000;
- b) site plan on a scale of 1:500 showing site boundaries, access, contours, all existing natural and manmade features such as hills, water courses, trees, and other important landscape features, access roads, buildings and other structures;
- c) existing dwellings or other development within 1km from the site boundary;
- d) proposed excavation plan and cross sections at 1:500 or larger scale showing proposed phasing, terracing, stepping, benching slopes, locations of process equipment, diversion of water courses, impounding lake and storage areas for top soil, waste material and quarried material.
- e) landscaping including screen planting, mounding
- f) Restoration Plan.

41.4.1 Areas not included in the Mines and Quarry Zone shown on the Development Plan shall be permitted for utilization as mines and quarries only in areas identified/ selected by a committee comprising of the Director of Mining and Geology, the Collector, Nagpur and the Deputy Director of Town Planning, Nagpur Division, Nagpur, on lands not less than 40 ha considering the availability of stones and minerals and demand, as per the State Government policy for quarry zone as amended from time to time. No such mines and quarries shall be permitted within urban sectors delineated on the Development Plan.

41.5 Control of Air Pollution

- a) During the entire period of quarrying and mining operations, water shall be sprayed at least once a day over the roads at quarry sites.
- b) Measures to minimize dust pollution such as adoption of hoods at transfer points, vulcanizing of conveyor belt joints, under belt cleaning of devices shall be employed apart from installations of dust suppressions and/ or dust extrication system for conveyance.
- c) Kaccha roads leading to or within quarry and mine sites shall be planted with trees on either sides at the rate of 1 tree every three meters in order to arrest dust.

41.6 Brick Kilns

41.6.1 Siting of brick kilns shall not be permitted within the distances from various existing uses given below:

Sr No.	Distance from	Distance
1.	Municipal Corporation Limits	5 km
2.	Class A Town & Cities Limits	2 km
3.	Other Town & Cities Limits (Municipal councils)	1 km
4.	Village Gaothan	500 m
5.	Wild life Sanctuary / Zoo	500 m
6.	National Highway	500 m
7.	State Highway * / Scheduled Road	300 m
8.	Residential Area (15 Pucca Houses) / Educational Institutes	500 m
9.	Historical or Religious Places/ Protected Monuments / Rivers / Dams / High Tension Line	1 km

41.6.2 Maximum Stack Height

The following stack heights are recommended for optimal dispersion of particulate matter:-

Kiln Capacity	Stack height
Less than 15,000 brick per day (Less than 15 ft trench width)	Minimum stack height of 22m or,
	Induced draught fan operating with minimum draught of 50mm
	Water Gauge with 12m stack height.
15,000—30,000 brick per day	Minimum stack height 27 m in with (15-22 ft trench width) gravitational settling chamber or
More than 30,000 brick per day (More than 22 ft. trench width)	Minimum stack height of 30 m with gravitational settling chamber or Induced draught fan operating with minimum draught of 50mm Water Gauge with 17 m stack height.

41.6.3 Considering the immediate need to protect the top soil and to find ways for safe disposal/utilization of fly ash, it is required that all brick manufacturing units shall utilize fly ash in optimal proportion from thermal power plants for making bricks.

41.6.4 Other regulations

- Approach road within the premises of brick kiln area should be pucca/ stabilized with brick bats etc. shall be maintained by owner of Brick Kiln
- Crushed coal should be used or better burning efficiency.
- Bricks should be laid in a staggered manner for baking to entrap maximum particulate matter at the source itself.
- A properly designed gravity chamber should be used.
- Height of chimney / stack should be at least 30m.

41.6.5 Required permissions and clearances:

The following permissions and clearances must be obtained by the owner and copies of the same shall be submitted to NIT at the time of setting up brick kilns

- Owner of brick kiln must obtain permission/ clearance from MPCB for setting up, operating a brick kiln
- Owner of brick kiln must obtain permission/ clearance of Revenue Department for siting of brick kiln

42 TELECOMMUNICATION CELL SITE/ BASE STATION

“Setting up of Telecommunication Cell Site/Base Station and Installation of the Equipments for Telecommunication Network' shall be governed by Regulation specifically described in Schedule-B appended to Notification No.TPS-1810/1975/CR NEW 65/12/RP/UD-13, dated the 4th March 2014.”

The requirements of the aforementioned notification are given below for reference

SCHEDULE “B”

Regulation for setting up of Telecommunication Cell Site(s)/Base Station(s) and installation of the equipment for Telecommunication Network in the State of Maharashtra.

42.1 Applicability- This Regulation shall apply to all existing and/or proposed Telecommunication Cell Sites/Base Stations installed or to be installed in any area in the State of Maharashtra to which the

provisions of the Maharashtra Regional and Town Planning Act, 1966, apply and shall be implemented by the concerned Competent Authority within whose area, the land is situate.

42.2 Definitions-

- a) "Competent Authority "means the Planning Authority as defined in the Maharashtra Regional and Town Planning Act, 1966, over its area of jurisdiction and elsewhere, the Collector of the concerned District.
- b) "Telecommunication Cell Site/Base Station " (TCS/BS) for any Telecom Operator shall mean and include tower of requisite height and dimensions, delta, single pole antenna, microwave antenna, cabin of requisite dimensions for housing equipment, telecom transceiver machinery, related civil work, requisite wires and cables, power supply equipment, Diesel Generator (DG) Set/Alternate power supply mechanism, cabin/cupboard for housing any or all of the aforesaid items as necessary.

42.3 Control Over Development- No Telecommunication Cell Site/Base Station shall be setup or installed without the previous permission in writing of the Competent Authority. The permission shall be granted in the same manner as prescribed under Sections 44 to 47 of the Maharashtra Regional and Town Planning Act, 1966, in case of areas for which Draft Development Plan has been prepared or final Development Plan has been sanctioned and under Section 18 of the said Act in respect of areas for which draft Regional Plan has been prepared or final Regional Plan has been sanctioned.

If the Competent Authority does not dispose of the application within a period of 60 days from the date of submission, the said application by the Telecom Service Provider/Infrastructure Provider (TSP/IP) shall be deemed to have been approved as per the provisions under Section 45 of the Maharashtra Regional and Town Planning Act, 1966.

42.4 Procedure for Obtaining Development Permission –

- A. All the applications for setting up or installation of any Telecommunication Cell Site/ Base Station (TCS/BS) or erection of a part thereof, shall be made to the Competent Authority by the concerned Telecom Service Provider (TSP) or the concerned Infrastructure Provider (IP), in such form and containing such particulars as may be prescribed by the Competent Authority or the Government.
- B. The application to the Competent Authority for obtaining the aforesaid development permission shall be accompanied by the following documents,-
 - a) All the documents as otherwise required to be attached for any development permission under the sanctioned Development Control Regulations for the area in which the site under application is located.
 - b) Plans showing Location Map, Key Plan, Site Plan, Block Plan and Plans of the proposed work. In case of roof-top tower, the copy of Occupation Certificate or copy of sanctioned building plans or copy of Commencement Certificate issued by the Competent Authority or any other valid proof, in respect of the building on which the erection of roof-top tower is proposed, showing that such building is authorised.
 - c) Notarised consent of the Owner of premises, 'Which shall mean and include consent of the owner of property or no-objection certificate of the concerned registered Co-op Housing Society or notarised consent of 70% of the total number legal occupants in case of Apartments or Condominium or no-objection certificate of the lessor in case of a lease-hold property.
 - d) Copy of agreement between the TSP/IP and the Owner of premises.
 - e) Copy of Access Service License/Infrastructure Provider (IP) Registration Certificate, granted to the TSP/IP by the Department of Telecommunications (DoT), Government of India (GoI).
 - f) "Copy of clearance from the Standing Advisory Committee for Frequency Allocations (SACFA) or copy of application made to SACFA for the said location submitted to Wireless Planning Commission (WPC) wing of the Department of Telecommunications (DoT), with registration

number as WPC Acknowledgement, along with an undertaking that in case of any objection/rejection, TSPs/IPs will take corrective actions or remove the TCS/BS."

- g) "Acknowledgement receipt issued by Telecom Enforcement Resource and Monitoring (TERM) Cell in respect of the self-certificate submitted by TSP/IP regarding mobile towers/ Base Transceiver Station (BTS) [Ground-based or Roof-Top or Pole/wall-mounted] in the format as prescribed by Telecom Engineering Centre (TEC), DoT, establishing/certifying that all General Public areas around the TCS/BS will be within safe Electro-Magnetic Radiation (EMR) exposure limit as per peak traffic measurement after the antennae starts radiating."
- h) "Copy of Structural Stability Certificate for any ground-based Base Transceiver Station (BTS).

OR

In case of any roof-top BTS tower, Structural Stability Certificate for the building, based on written approval of any authorized Structural Engineer of the State/Local Body/Central Building Research Institute (CBRT), Roorkee/IIT/NIT or any other Agency authorized by the Competent Authority.

Provided that such NOC shall not be required for the single pole antennae or cellular signal boosters.

- i) Copy of the type test certificate issued by Automotive Research Association of India (ARAI) to the manufacturers of the Diesel Generator (DG) Sets.
- j) Notarised undertaking from the Applicant/ owner of premises:-
 - i. That the cabin will not be utilized for any purpose other than the Telecommunication Cell Site/Base Station.
 - ii. That if the said activity is discontinued by the Applicant, the said cabin will be demolished forthwith by the Applicant /Owner of premises.
- k) No-objection certificate from the Authority concerned under the Civil Aviation Ministry (hereinafter referred to as the said Authority) in case of any building falling in any area where such no-objection certificate of the said Authority is required under the relevant rules or law.
- l) No objection certificate of the Maharashtra Pollution Control Board regarding compliance with the norms prescribed for noise levels and smoke levels for the power generating sets having capacity above 100 kW, to be provided for Base Transceiver Stations.
- m) No objection certificate of the Chief Fire Officer of the concerned Urban Local Body, and elsewhere, of the Director of Fire Services, only in case of High Rise buildings having height of 15 mt or more measured from ground level.
- n) Copy of clearance from the State Environment Department as well as the Forest Department, in case of forest, protected areas, if applicable.
- o) Data Sheet containing the information regarding:-
 - i. Name of Telecom Service Provider/ Infrastructure Provider
 - ii. Location-
 - iii. Tower Reference-
 - a. Height & Weight of Tower
 - b. Ground Based Tower/ Roof Top Tower
 - c. Number of Antennae planned on Tower
 - d. Permissible maximum EMF Radiation Level
 - e. Proposed maximum EMF Radiation Level.
- p) Requisite fees, charges, as applicable.
- C. In case of area under Coastal Regulation Zone and/or in case of a listed Heritage building/Heritage precinct and/or in case of ceased buildings and/or in case of area under Environmentally Sensitive Zone (ESZ), notified by the Ministry of Environment and Forest

(MoEF) Government of India (GoI), all the applications for installation of any TCS/BS or erection of part thereof, shall be made to the concerned Competent Authority, which will forward it to the Maharashtra Coastal Zone Management Authority (MCMA) or National Coastal Zone Management Authority (NCZMA), as the case may be, and/or Heritage Conservation Committee concerned and/or MHADA and/or High Level Monitoring Committee (HLMC) appointed/ constituted by MoEF, respectively.

- D. The erection of the Base Station including tower, shall be commenced within ninety days from the date of receipt of permission from the Competent Authority and report of erection shall be made to the Competent Authority.

42.5 Leviable charges- The Competent Authority, while granting permission under sub- regulation (3) hereinabove, shall levy and collect the following charges :-

- a) **Development Charge-** Development charge shall be levied and collected by the Competent Authority as per the provisions under Section 124-B of the Maharashtra Regional and Town Planning Act, 1966. For the purpose of assessing the development charge, the setting up of Base Station on land and on roof-tops shall be classified under commercial category. In an area where the Collector is the Competent Authority, the Development Charge shall be collected by the concerned Branch Office of the Town Planning Department on behalf of the Collector, at the rate of 1% of the rate of developed land mentioned in the Annual Statement of Rates for the relevant year, prepared by the Inspector General of Registration, Government of Maharashtra, calculated over the foot print area occupied by the Telecommunication Cell Site/ Base Station.
- b) **Administrative Fee-** Over and above the development charge as stipulated in Clause 5 (a) above, TSP/IP shall pay to the Competent Authority, a onetime non-refundable Administrative fee, in accordance with the location of the installation as shown in the Table herein below :-

Sr. No.	Competent Authority	Administrative Fee (Rs.)
1	Municipal Corporation of Greater Mumbai (MCGM)	50,000
2	Municipal Corporation (Other than the MCGM)	30,000
3	Class A Municipal Council Class B Municipal Council Class C Municipal Council and Nagar Panchayats.	25,000 20,000 15,000
4	Special Planning Authority	30,000
5	Competent Authority in Other Areas	10,000

Provided that the State Government may revise these rates from time to time by publishing a Notification to that, effect in the Official Gazette:

Provided further that, in an area where the Collector is the Competent Authority, the Administrative fee shall be collected by the concerned Branch Office of the Town Planning Department.

42.6 Planning Norms for Erection of TCS/ BS-

- a) Notwithstanding the land use provisions under the relevant Development Control Regulations (DCR) pertaining to any Development Plan (DP) or Regional Plan (RP), subject to the compliance of other provisions of these Regulations, it shall be permissible to install TCS/BS, on,-
- All land uses as earmarked in any DP or RP.
 - All lands which are designated for non-buildable reservations in any DP or RP, subject to the condition that the maximum permissible area for installation of such TCS/BS shall not be more

- than 5% of the area of the reserved site or 100 sq.m. whichever is less, and shall be located in one corner of the reserved site.
- iii. All lands which are designated as open spaces/ recreational open spaces/ recreational grounds in a sanctioned layout, where such installation shall be permissible only with the no- objection certificate of the concerned registered co-operative housing society or consent of 70% of the total number of legal occupants/ plot holders of such layout, subject to the condition that the maximum, permissible area for installation of such TCS/BS shall not be more than 5% of such area or 100 sq.m. whichever is less, and the same shall be located in one corner of such area.
 - iv. All buildable reservations in any DP or RP, except for buildings of uses mentioned in Regulation No. 42.6 (f), where such installation shall be permissible on the roof top, but only after development of the said reservation.
 - v. All open lands in slum areas belonging to the Government I Public Authority I Planning Authority, where only ground-based TCS I BS shall be permissible and no Roof-Top Tower shall be permissible, save as provided in Regulation 42.6 (a)(vi) herein below.
 - vi. public buildings in slum areas, like public toilets, community centres etc., constructed by any Public Authority or to be constructed by the TSP/ IP, where construction of Roof Top Towers shall be permissible, subject to maintenance and compliance of other terms and conditions specified by the concerned Authority.
- b) No permission for installation of TCS/BS shall be granted in wildlife areas and/ or ecologically important areas, without ecological impact assessment and review of installation site. The Forest Department should be consulted before installation of TCS/BS in and around Protected Areas (PAs) and Zoos.
- c) The TCS/BS must have clear access by means of an existing road having minimum width of 6 m. For locations falling in congested area as earmarked on any DP or RP and 9 m, for locations falling outside such congested area. However, in exceptional circumstances, the Competent Authority may relax such road width suitably, but in no case, shall it be less than 5 m.
- d) In case of both ground-based towers and roof-top towers, there shall be no nearby buildings right in front of the antenna(e) of equivalent height, taking into account the tilt of the lowest antenna on tower, as per the details in the Table below :-

Sr. No.	Number of Antenna(e) Pointed in the Same Direction	Building /Structure Safe Distance from the Antenna(e) at the same Height (in mtrs)
1	1	20
2	2	35
3	4	45
4	6	55

Provided that, the antennae at the same height only are to be counted, as the beam width of the mobile antennae, in the vertical direction, is very narrow:

(Explanation- The distance figures in the above Table are based on empirical estimation considering that all the antennae are emitting at their maximum RF power of 20 Watts and exactly in the same direction with the same height.)

Provided further that, above norms shall automatically stand revised as per the latest guidelines issued by the DoT from time to time.

- e) In case of Wall Mounted /Pole Mounted Antenna (e):-
- I. Wherever the antennae are mounted on the Wall of a building or pole or along the road, their height should be at least 5 m. above ground level/ road level:

Provided that, such installations shall have to comply with the prescribed radiation limits.

- II. As far as safe distance of buildings from antenna(e) is concerned, guidelines as in Regulation 42.6(d) above shall apply.
- f) Installation of Base Station antenna(e) shall not be permissible 'within the premises of schools, colleges and hospitals as well as on the adjoining land /building within 3 m. from the boundary of premises of schools, colleges and hospitals. Also antenna(e) shall not be directed/ positioned towards any school/ college/ hospital building.
 - g) The existing Base Station antenna(e) approved earlier on any school/ college/ hospital building shall not be renewed further after the expiry of period of approval and the same shall be removed immediately thereafter, subject to the provisions of Regulation 42.8(d).
 - h) Access to Base Station Antenna site shall be prohibited for the general public, by putting in place suitable measures such as wire-fencing, locking of the door to the roof, etc.
 - i) The roof-top TCS/BS towers shall be put only on buildings which are declared structurally strong enough to bear the load of such installation. The base connection to the building should be got designed from a qualified structural engineer. Structural safety certificate of the composite structure [Building + Tower(s)] shall have to be obtained from any of the recognized Government Institutes.
 - j) While according permission for installation of TCS/BS, permissible for erection of a cabin at ground level may be granted. However, the same shall not be allowed in the prescribed marginal open spaces. The area of such cabin shall not be more than 20 sq. mt. for each TSP/ IP, subject to the certificate of structural safety. Built-up area of such cabin(s) shall not be counted towards built-up area or FSI.
 - k) No permission for installation of TCS/BS shall be granted on buildings which are unauthorized and structurally unsafe. If permission for installation of such structures is granted on a building, which is declared as unauthorized at a later point of time, the Competent Authority shall first take recourse to the provisions of sections 52, 53, 54 and 55 of the Maharashtra Regional and Town Planning Act, 1966 or other relevant laws, as the case may be, against such unauthorised building and in case the Competent Authority, after completing the due process of law, decides to undertake any action of demolition against such unauthorized building then such decision shall also be conveyed to the concerned TSP/IP with a direction to relocate the TCS/BS within a period of 90 days, after which the Competent Authority shall not be under any obligation to send any further intimation to the TSP/IP concerned before demolishing such unauthorised building; and it shall not be liable to pay compensation for the loss of the Base Station as a consequence of the demolition of the unauthorized building. The TSP/IP shall indemnify the Competent Authority to this effect, while seeking permission for installation of TCS/BS.
 - l) Permission for installation of TCS/BS, once granted shall remain valid for next 5 years. The TSP/IP shall apply for renewal of permission to the Competent Authority. The Competent Authority, while considering renewal, shall insist upon submission of fresh structural stability certificate for buildings more than 30 years of age. Administrative fee shall be levied and collected as prescribed in Clause 5 (b) hereinabove, for every such renewal. If TSP/IP fails to apply for renewal along with all necessary documents before the expiry of earlier permission, then such TSP/ IP shall be liable for action under the provisions of the Maharashtra Regional and Town Planning Act, 1966.
 - m) In case of any existing TCS /BS on a slum structure, every effort shall be made to relocate such TCS/BS on a nearby suitable public building or any other authorised structure or open land in the slum. If such relocation is not possible, then such TCS/BS may be allowed to be continued on such slum structure subject to its structural suitability, till the TCS/BS is shifted to any other authorised structure or till the redevelopment of the slum, whichever is earlier.

- n) While granting permission for TCS/ BS, the Competent Authority shall stipulate that TSP/IP shall conduct regular audit in accordance with the directions/guidelines issued by TERM Cell or DoT from time to time.

42.7 Electro-Magnetic Field (EMF) Radiation Norms

- a) Prior to installation of TCS/BS, the TSP/IP shall have to obtain site clearance from the Standing Advisory Committee on Frequency Allocation (SACFA) of the Department of Telecommunication (DoT) for every site from the point of view of interference with other wireless users, aviation hazards and obstruction to any other existing microwave links.
- b) The Electro-Magnetic Field (EMF) radiation from BTS towers shall be subject to the regulations framed by the DoT from time to time. The TSP/IP shall periodically conduct audit and monitor EMF radiation in urban localities, hospitals and educational/industrial/residential/recreational premises, especially around the Protected Areas (PAs) and ecologically sensitive areas, in accordance with the guidelines issued by DoT in this regard. It shall be binding on TSP/IP to follow the mechanism prescribed by the DoT/TERM Cell at local level for ensuring control on the EMF radiation and for notifying on continual basis the radiation level at critical location. For all the existing as well as new BTSs/Towers, TSPs are required to submit self-- certificates periodically in the format prescribed by TEC, DoT, in order to ensure that normally all general public areas around the TCS/BS site are within the safe EMR exposure limits. Audit of the self-certification furnished by the TSPs shall be done by the TERM Cell periodically. TERM Cell shall carry out test audit of the BTS sites on random basis as per the guidelines received from DoT and also in respect of all cases where there is a public complaint. The TERM Cell shall have due regard to the instructions issued by DoT regarding technical audit of TCS/BS, including radiation of towers within safe limits. These shall include Roof Top/Ground Based/Pole Mounted/Wall Mounted Towers. The TERM Cell shall also verify antenna orientation, safe distance from the Tower (exclusion zone) etc. For non-compliance of EMF standards, Telecom Service Provider shall be liable for penal action by the TERM Cell and/or Department of Telecommunication (DoT). Any violation noticed may attract heavy penalties on TSPs and may also lead to shut down of TCS/BS, in case the violation persists.

42.8 Miscellaneous Provisions

- a) Any complaint concerning illegal installation of TCS/ BS on any building or any query of any nature regarding the installation of telecommunication equipment, shall be addressed to the Competent Authority which shall intimate the concerned TSP/IP about the same with a direction to resolve the issue under intimation to the Competent Authority, within such period as may be prescribed by the Competent Authority.
- b) The TSP/IP, who has erected TCS/BS without due permission, shall apply to the concerned Competent Authority for regularization within 180 days from the date of coming into force of this Regulation. In case such application is made within the prescribed period, then the offence, if any, registered against the TSP/IP may be compounded by the Competent Authority under Section 143 of the Maharashtra Regional and Town Planning Act, 1966, subject to the provisions of these regulations.
- c) The TSPs/IPs who have earlier erected TCS/BS with due permission, shall apply afresh, for validation of the previous permission, to the Competent Authority within a period of 90 days from the date of commencement of this Regulation, in order to ensure due compliance of this Regulation. However Administrative fee in such cases shall not be leviable if appropriate fee/ Development charge, not less than the amount prescribed under Regulation 42.5 (b) above, has already been paid. In case the amount paid is less than what is prescribed hereinabove, the difference in amount shall be recovered from the TSP/IP.
- d) Any existing TCS/BS not conforming to any of the above provisions shall have to be removed within one year from the date of commencement of this Regulation, unless the same is specifically regularized by the Competent Authority following due compliance by TSP/IP. However, operation of such non-conforming Telecommunication Cell Site/Base station shall be discontinued within a

period of 30 days from the date of receipt of notice from the Competent Authority to that effect, which shall however be issued only after obtaining the consent of the TERM Cell of DoT.

- e) The Licensees shall try to share the tower for fixing their respective antenna provide the prescribed conditions are duly fulfilled, so as to ensure curtailing of multiple towers and optimizing the use of the existing ones.
- f) Sign boards and Warning signs (" Danger", " RF Radiation ", "Restricted Area)", "Don't Enter" etc.) shall be provided at TCS/BS antenna sites which are clearly Visible and identifiable.
- g) The TSP/IP shall display the details of the following on a board (minimum size 24" x 48") separately or prominently on the cabin, for the perusal of general public in such a way that the same shall be clearly visible and identifiable:-
 - I. Name of TSP/IP,
 - II. Location,
 - III. Tower Reference,-
 - (i) Height,
 - (ii) Weight,
 - (iii) Number of antenna planned on tower,
 - (iv) Permissible EMF radiation level,
 - (v) Proposed EMF radiation level.
 - (vi) Due date for next renewal,
 - (vii) Contact Persons name, address and Telephone Number,
 - (viii) Address of Complaint Redressing Authority with Telephone Numbers,
 - (ix) Police Control Room-100,
 - (x) Fire Control Room-101,
 - (xi) Ambulance- 102
 - (xii) Other important information, if any:

Provided that in case of Telecommunication Cell Site/Base Station on roof-top, the aforesaid Information shall be displayed on the ground floor of the building.

- h) The Competent Authority shall display the list of authorized TCS/BS on their official web-site, alongwith the date of permission and due date for renewal of permission.
- i) TCS/BS Tower shall be inspected for distortion of members, torques of nuts and bolts at least once in five years. However in case of areas affected by any natural calamity, such as cyclone, earthquake, flood, etc., such inspection shall be carried out immediately after such incident suo motu or on being directed by the Competent Authority. Such inspection shall be carried out only by a qualified structural engineer and a certificate to that effect shall be submitted to
- j) TCS/BS Towers located in highly corrosive environment shall be painted every year. Other towers shall be painted at least once in five years to give additional protection.
- k) The Competent Authority shall make efforts to provide Single Window clearance to TSP/IP for disposal of their applications in a time bound manner.
- l) In order to effectively address Public Grievances relating to installation of TCS/ BS and issues related to telecom infrastructure, the State Government may set up,-
 - I. State Level Telecom Committee (STC) consisting of officers from TERM Cells, State Administration, representative(s) of concerned TSP(s) and eminent public persons etc.
 - II. District Level Telecom Committee (DTC) consisting of officers from District Administration, representative(s) of concerned TSP(s) and eminent public persons etc.

42.9 Notwithstanding anything contained herein above, all the Regulations/ Bye-Laws/ Memorandum/ Directions /Guidelines in this regard, issued or to be issued from time to time, by the Department of Telecommunications, Government of India, shall prevail and be binding on TSP/IP and also on

all the Competent Authorities concerned, in which case, this Regulation shall stand modified to that extent.

- 42.10** Powers of Interpretation and Removal of Doubt- If there is any overlapping provision or any conflict between the existing Development Control Regulations and the provisions of this Regulation and if any interpretation is required regarding the clauses of this Regulation, then the matter shall be referred to the Urban Development Department, Government of Maharashtra, whose decision shall be final.

Any directions in this regard issued by the State Government from time to time or policies framed by the State Government shall prevail over these Regulations.

PART XII: SPECIAL SCHEMES

43 SPECIAL TOWNSHIPS

Special Townships for residential development shall be allowed to be developed in the Nagpur Metropolitan Area as per the conditions and norms prescribed in this Regulation.

43.1 General Requirements

43.1.1 APPLICABILITY: These Regulations would be applicable to the area of sanctioned development plan of NIT/SPA.

43.1.2 AREA REQUIREMENT: Any suitable area free from all encumbrances having sufficiently wide means of access (not less than 18 m wide) can be identified for the purpose of development as 'Special Township'. The area under Special Township shall not be less than 40Ha (100acres) at one place, contiguous, unbroken and uninterrupted which shall not include the area under forest, water bodies like river, creek, canal, reservoir, lands falling within the belt of 100m from the HFL of major lakes, dams and its surrounding restricted area, lands in the command area of irrigation projects, land falling within the belt of 200m from the historical monuments and places of Archeological importance, Archeological monuments, Heritage precincts and places, any restricted areas, notified National parks, existing and proposed industrial zone, gaathan areas or congested areas.

43.1.3 MANNER OF DECLARATION: Any area identified above and if found suitable can be notified by the Government in Urban Development Department by following procedure under section 37 of the Maharashtra Regional and Town Planning Act 1966 and also in such other manner as may be determined by it for the purpose of development as 'Special Township Project'. However, in cases where the proposal of Special Townships is submitted by the landowners by themselves or by the Developer who holds rights to develop the whole land under the Special Townships, the procedure under section 37 of the said Act shall not be necessary.

43.1.4 INFRASTRUCTURE FACILITIES: The entire Township should be an integrated one with all facilities within the boundaries of declared townships. All onsite infrastructure, i.e. roads, including D.P. roads, approach road, street lights, water supply and drainage system shall be provided and maintained in future by the developer and the developer shall also carry out development of amenity or proposals, if any, designated in the Development plan, in accordance with the prevailing regulations.

- a) **Water supply:** The developer shall be required to develop the source for drinking water (excluding the groundwater source) or secure firm commitment from any water supply authority for meeting the daily water requirement of minimum 140 liters per capita per day, exclusive of requirement of water for fire fighting and gardening. The storage capacity of the same shall be at least 1.5 times of the actual required quantity as determined by expected population (Resident and Floating) and other uses. The developer would be required to develop proper internal distribution and maintenance systems and shall specially undertake rain water harvesting, groundwater recharging and waste water recycling projects within the Township
- b) **Drainage and Garbage disposal:** The developer shall make suitable and environment friendly arrangements for the disposal and treatment of sewage and solid waste as per requirements of Maharashtra Pollution Control Board & NIT. Recycling sewage for gardening shall be undertaken by the developer.
- c) **The developer shall develop eco-friendly garbage disposal system by adopting the recycling and bio-degradation system in consultation with Maharashtra Pollution Control Board and & NIT**
- d) **Power:** The developer shall ensure continuous and good quality power supply to the township area. The developer may draw the power from existing supply system or may go in for arrangement of captive power generation with the approval from concerned authorities. If the power is drawn from an existing supply system, the developer shall before commencement of development, procure a firm commitment of power for the entire township from the power supply company.

43.1.5 ENVIRONMENT: The development contemplated in townships shall not cause damage to ecology. Environmental clearance shall be obtained from the Ministry of Environment and Forest, Government

of India as per directions issued by the MoEF's Notification dated 7th July 2004 and as amended from time to time. The township shall provide at least 20% of the total area as park / garden / playground as mentioned in 43.4(f) below, with proper landscaping and open uses designated in the Township shall be duly developed by owner / developer. This amenity shall be open to general public without any restriction or discrimination.

43.2 Special Concessions

- a) N.A. Permission: Special Townships shall have deemed NA permission. As soon as the scheme is notified, lands notified under Special Township area as per Regulation No. 43.1.3 will be deemed to have been converted into non-agriculture and no separate permission is required. Non-agriculture assessment, however, will commence from the date of sanction of scheme as per Regulation No. 43.10 (c).
- b) Stamp Duty: The stamp duty rates applicable in Notified Special Township area shall be 50% of the prevailing rates of the Mumbai Stamp Act.
- c) Development Charges: A Special Township Project shall be exempted from Payment of Development charges to the extent of 50%.
- d) Grant of Government Land: Any Government land falling under township area shall be leased out to the developer at the prevailing market rate on usual terms conditions, without any subsidy.
- e) Relaxation from Mumbai Tenancy and Agriculture Land Act: The condition that only the agriculturist will be eligible to buy the agriculture land shall not be applicable in Special Township area.
- f) Ceiling of agriculture land: There shall be no ceiling limit for holding agriculture land to be purchased by the owner / developer for such project.
- g) Exemption from Urban Land (Ceiling and Regulation) Act, 1976: Special Township projects will be exempted from the purview of Urban Land (Ceiling and Regulation) Act, 1976.
- h) Scrutiny fee: A Special Township Project shall be partially exempted from payment of scrutiny fee being levied by the Municipal Council for processing the development proposal on certain terms and conditions as may be decided by the Chairman.
- i) Floating FSI: There will be floating FSI in the township. Unused FSI of one plot can be used anywhere in the whole township.

43.3 Planning Considerations

The Township project has to be an integrated township project. The project should necessarily provide land for following users:-

- a) Residential
- b) Commercial
- c) Educational
- d) Amenity Spaces
- e) Health Facilities
- f) Parks, Gardens & Playgrounds
- g) Public Utilities
- h) Basic amenities

43.4 General Norms For Different Land Uses

The overall planning of the special township shall be such that the project shall generally meet with the specifications spelt out in the prevailing planning standards approved by Government. Further, the planning of Special Township shall take care of following land uses in particular.

- a) Residential: The residential area should be well defined in clusters or neighborhoods or in plotted development with proper road grid. Out of the total built-up area proposed to be utilised which is permissible as proportionate to zoning of area under such township at least 60% of the area shall be used for purely residential development and further, out of the total built-up area proposed to be utilised for residential development 10% shall be built for residential tenements having built-up area upto 40 sq.m.
- b) Commercial: The commercial area shall be properly distributed in hierarchical manner such as convenient shopping, community centre etc.
- c) Educational: Area for primary to secondary schools should be provided as per the prevailing norms of Government of Maharashtra or as prescribed by the Chairman. The area allocation should be on projected population base and as far as possible the educational buildings shall be distributed across the township for easy access to all residential areas. All such complexes should have adequate allocation area for playground. Minimum area required for educational purpose shall be as per prevailing planning standards established by the Government of Maharashtra.
- d) Amenity Spaces: The area allocation for amenity space providing amenities like market, essential shopping area, recreation centers, town hall, library etc. should not be less than 5% of gross area and should be evenly placed.
- e) Health Facilities: Adequate area allocation for health facilities for primary health shall be provided. Minimum area required for health facilities shall be as per prevailing planning standards.
- f) Parks, Grounds and play grounds: The Township shall also provide at least 12% of the gross area of township as parks / gardens / play grounds without changing the topography of the site. This should be exclusive of the statutory open spaces to be kept in smaller layout. This 12% area should be developed by the developer for such purpose and kept open to general public without any restriction or discrimination.
- g) Public Utilities: Appropriate area allocation should be provided for (a) power receiving station/sub station, (b) water supply system, (c) sewerage and garbage disposal system, (d) police station, (e) public parking, (f) cemetery/cremation ground, (g) bus station, (h) fire brigade station, and other public utilities as per requirements.
- h) Transport and Communication: The entire area of township shall be well knitted with proper road pattern, taking into consideration the linkages with existing roads within the township and outside area as well. All such roads shall be developed by the developer as per standard and road widths shall be as given below
 - i) Classified Road – as prescribed
 - ii) Main road/Ring road – Minimum 18 to 24 mt. wide.
 - iii) Internal road – as per prevailing regulations applicable to Development
 - iv) Plan subject to minimum road width 9 m.

Service Industries: In the Special Township area, lands for commercial uses, industrial uses permissible in residential user, may also be earmarked. However, the predominant land use shall be residential use.

43.5 Development Control Regulations

All Regulations prescribed under these Development Control Regulations of sanctioned Development Plan amended from time to time shall be applicable mutatis mutandis except those expressly provided in these Special Regulations

43.6 Special Township in Residential, Residential R1 to R4 with Agriculture A2 zones

The total built-up area/FSI of entire gross area of the Special Township declared as per Regulation No. 43.1 excluding the area under Agriculture A2, if any, included in the project shall be 1.00. The FSI for Agriculture A2 zone, if any, included in Special Township Zone shall be 0.5. Total FSI in the Township will be only in proportion to areas of different zones. There will be no limit of total built-up area / FSI for the development of individual plots. Height of building shall be as per these Development Control Regulations. However, it

may be increased subject to provisions of fire fighting arrangements with prior approval of Chief Fire Officer. Utilisation of DRCs originated from any other area i.e. outside Special Township area shall not be permissible in Special Township area.

However additional FSI up to 100% of the permissible FSI may be permitted for land under Agriculture with previous approval of Government of Maharashtra subject to payment of premium described in these regulations. (Refer 6.2.14).

In case areas notified under Special Township fall in Residential Zone and partly in Agriculture A2 zone the provisions applicable to such scheme shall be proportionate to the area under the respective zoning as per sanctioned Development Plan

43.7 Special Townships in Agricultural A2 zone

Development of Special Township Project in Agricultural A2 zone, contained in the Development Plan shall be permissible subject to conditions that 50% of the gross area of the project shall be kept open while the project of Special Township shall be executed on the remaining 50% land with gross built-up area/ FSI of 0.5 worked out on the entire gross area of the project. Further, while developing such projects, it would be obligatory on the part of the developer to provide and develop all the infrastructure facilities including sites required for public purposes as per the prescribed planning norms. As regards 50% of land, which is required to be kept open, the same shall be made free from encumbrances and no development except town level open amenities shall be permissible therein.

However, additional FSI up to 100% of the permissible FSI may be permitted for land under Agriculture A2 zone with previous approval of Government of Maharashtra subject to payment of premium described in these regulations. (Refer 6.2.14).

All provisions of Regulations except 43.4(f) shall apply to the development of Townships in Agricultural A2 zone.

In case area Notified under Special Township falls in Residential Zone and partly in Agricultural Zone the provisions applicable to such scheme shall be proportionate to the area under the respective zoning as per sanctioned Development Plan.

43.8 General Regulations:

- a) In the event the Special Township project contains sites reserved for public purposes (buildable reservations) in Development Plan, for which the Appropriate Authority is any department of State Govt./Central Govt. or any Government undertaking, the developer shall construct the amenity as per requirement of the concerned department and handover the constructed amenity free of cost to that Department. Upon such handing over the constructed amenity the developer would be entitled to utilise additional floor space over and above the FSI permissible within the township (equivalent to the built up area of the constructed amenity) anywhere within the Special Township project.
- b) In every Special Township proposal the structural designer of developer has to submit declaration with project report to the Municipal Council about the construction of building as below:
 'I have confirmed that the proposed construction in the scheme is as per norms as specified by Bureau of Indian Standards for the resistance of earthquake, fire safety & natural calamities'.
- c) Upper and lower ground floor type construction shall not be allowed.

43.9 Sale Permission

It would be obligatory on the part of the developer firstly to provide for basic infrastructure and as such no permission for sale of plot/ flat shall be allowed unless the basic infrastructure as per **Regulation No. 1.3** is provided by the developer to the satisfaction of the Chairman, NIT. In case the development is provided in phases & sale permission is expected after completion of phase-wise basic infrastructure, such permission may be granted by the Chairman. Before granting such sale permission, developer has to submit undertaking about the basic infrastructure to be provided and completed phase wise. The plots earmarked for amenities, facilities and utilities shall also be simultaneously developed phase-wise along with residential/ allied development.

43.10 Procedure

- a) **Locational Clearance:** The proposal for development of Special Township, along with details of ownership of land or Development Rights of lands in the proposed scheme, site plan, part plan of sanction Development Plan, shall be submitted to Government in Urban Development Department along with a copy to Chairman, NIT and Divisional Head of concerned division of the Town Planning Department, for grant of locational clearance. Upon receipt of such proposal, depending upon the merits of the case, locational clearance may be granted by Government U/S 45 of MR&TP Act, 1966 in consultation with the Chairman, NIT and Divisional Head of concerned division of the Town Planning Department subject to condition that the developer shall obtain environmental clearance from appropriate authority and other respective departments of the State Government within a period of 90 days from the date of receipt of locational clearance and after completion of all prescribed procedure specified in Regulation No.43.2 above and compliance of any such document as may be required by the Government. This locational clearance will be valid for one year from the date of issue and if within such period the letter of intent and final approval is not taken or not applied for, such clearance/ approval will stand lapsed unless it is renewed by the Government for sufficient reasons. Application for renewal has to be made to the Government before expiry of one year. These special Regulations shall not be applicable to the area on which clearance / approval has lapsed.
- b) **Letter of intent:** Upon receipt of locational clearance from the Government the developer shall submit the proposal in respect of Special Township to the Chairman, NIT along with the environmental clearance as mentioned in Regulation No.43.1.5 for issue of letter of intent. The proposal shall contain ownership rights/development rights, document in respect of at least 50% of area under scheme and other particulars as decided and directed by the Chairman, NIT. Details of qualified technical staff and consultant in technical and law field shall be submitted by the developer to the Chairman. Letter of intent shall be issued within a period of 45 days from the date of receipt of the final proposal, complete in all respect. The letter of intent shall be valid for six months unless renewed.
- c) **Final Approval:** The Developer shall submit the layout plan of the entire Township area, sector-wise detailed building plans and details of phasing for final sanction to the Chairman, NIT. The developer shall also submit an undertaking and execute an agreement about development and maintenance of basic infrastructural amenities in future with bank guarantee of 15% of its development cost. Chairman, NIT shall conduct proper enquiry and ensure the correctness of title and ownership etc. Only after such verification, the Chairman, NIT shall grant approval to layout plan and sector wise detailed building plan in consultation with the Divisional Head of concerned division of the Town Planning Department within the stipulated period on terms and conditions as may be determined by the Chairman, NIT.
- d) The period required for technical consultation with the Divisional Head of concerned division of the Town Planning Department shall not be computed. Any one aggrieved by an order passed under prevailing Development Control Regulations may within forty days of the date of communication of the order prefer an appeal to the Director of Town Planning, Maharashtra State, Pune.

Every application shall be accompanied by:

- a) **Ownership Document:** 7/12 extract / Property Card, ownership right document in original with list of such documents.
- b) **Extent of area:** Village map showing the extent of area and authenticated measurement plan / gut book of the land in original and list of such documents
- c) **Authenticated copies of locational clearance and letter of intent.**
- d) **Layout and building (prepared and signed by experts in respective field and team headed by an Architect -Town Planner)**
 - i) **Layout plan showing all details of area utilised under roads, open spaces, parks, gardens, playgrounds and other amenities.**

- ii) Detailed layout plan, building plan of all development with area of all sectors and individual plots and built-up area/ FSI proposed on each sector and plot.
- iii) Detailed report comprising of expected population, requirements of amenities, proposed amenities with reference to prevailing planning standards approved by Government sources of all basic amenities and details of implementation, maintenance, taxation etc.
- iv) Details of zoning and area under such zone
- v) Details of FSI/ total built up area proposed to be utilised in the scheme.
- vi) Details of Eco-friendly amenities provided.
- vii) Plan showing road hierarchy and road widths, pedestrian facility, street furniture, plantation, side walk, subways with details.
- viii) Details of solid waste management plan.
- ix) Plan showing HFL of major lakes, river if any, certified by Irrigation Department.
- x) Plan showing details of distribution of total built-up-area/space.
- xi) Plan showing water supply distribution system, including reservoirs, recycling system, details of rain water harvesting system.
- xii) Details of storm water drainage scheme.
- xiii) Details of fire fighting mechanism, fire brigade station.
- xiv) All other documents as determined and directed by the Chairman, NIT

NOTE: The above prescribed periods shall be computed after compliance of all the requirements listed above and any other additional information called for from the owner/ developer by the Government/Collector/ Chairman.

43.11 Implementation & Completion

- a) Development of basic infrastructure and amenity shall be completed by the developer to the satisfaction of the Chairman, NIT as per phases of scheme. Development of scheme shall be completed within 10 years from the date of final sanction to the layout plan of scheme.
- b) No building in the scheme is permitted to be occupied in any manner unless occupancy certificate is issued by the Chairman, NIT.
- c) Final completion certificate for the scheme is to be issued by the Chairman, NIT in consultation with Maharashtra Pollution Control Board, Tree Authority as far as tree plantation is concerned and Chief Fire Officer, NIT.
- d) Application for occupation certificate or final completion certificate shall be submitted along with a declaration and undertaking by the developer and his structural consultant, Architect, Town Planner as follows:
 - i) We confirm that all buildings constructed in the scheme area are as per norms as specified by Bureau of Indian Standard for the resistance of earthquake, fire safety and natural calamities.
 - ii) Work is done as per sanctioned plan.
 - iii) Built-up-area and FSI consumed in the scheme is as per sanctioned plans of the scheme.
 - iv) If it is found that extra built-up-area / FSI is consumed in the scheme at any time, it shall be demolished by developer at his own cost as directed by the Chairman, NIT

43.12 Interpretation

If any question or dispute arises with regard to interpretation of any of these regulations, the matter shall be referred to the State Government. The Government after considering the matter and if necessary, after giving hearing to the parties, shall give a decision on the interpretation of the provisions of the Regulations. The decision of Government on the interpretation of these regulations shall be final and binding on all concerned.

Any directions in this regard issued by the State Government from time to time or policies updated by the State Government shall prevail over these Regulations.

44 TOURISM DEVELOPMENT ACTIVITIES

44.1 The Planning Authority shall allow the development of tourism activities as per following general terms & conditions-

- a) These guidelines shall be applicable for Tourism activities in A1, A2, Open Space Recreation
- b) Tourism Development Zone can be developed by individual or company or partnership firm or Government / Semi-government Organisations / Corporations
- c) Tourism Development Zone Committee:

Proposals for activities to be specified under Tourism Development Zone shall be recommended for consideration of Government in Urban Development Department by a committee consisting of:

S. No.	Name	Position
i)	Secretary, Tourism Development Department, Mantralaya	Chairman
ii)	Divisional Commissioner	Member
iii)	Chairman- NIT	Member
iv)	Deputy Director of Town Planning / Divisional Head of the Town Planning Department	Member
v)	Representative of Hotel Industries	Member
vi)	Environmentalalist	Member
vii)	Architect, having 20 years' experience in Architectural practices	Member

44.2 This Committee may be called "Tourism Development Zone Committee" (TDZC). The Persons at Sr. No. (v), (vi) & (vii) of the Committee may be nominated by Secretary, Tourism Development Department and the tenure of these members shall change after every 3 years, provided however that the same person shall be eligible for reappointment as a member.

44.3 Size of plot & FSI – Minimum requirements regarding the size of the plot for Tourism Development Zone other features shall be as follows

- a) Tourism activities as identified in Developable Zone shall (R1- R4, Commercial, Industrial, Public and Semi public) be granted FSI as permissible for the zone in the sanctioned DCR.
- b) Area identified in A1, A2 and Open Space Recreation shall be granted FSI as per the Table No-33 given below

Table No- 33

A1, A2, Open Space recreation	Max. (area permissible under Tourism)	Max. built up area permissible (FSI)
Area in hectare	Area in hectare	Area in sq. m.
2.00	1.00	5000 square meter
2.00-3.00	1.10	5500 square meter 6000 square meter
3.00-4.00	1.20	7000 square meter
4.00-5.00	1.40	8000 square meter 8500 square meter
5.00-6.00	1.60	9000 square meter 9500 square meter
6.00-7.00	1.70	10000 square meter
7.00-8.00	1.80	Half of the area of TDZ (0.5 FSI of TDZ area.)
8.00-9.00	1.90	
9.00-10.00	2.00	
Above 10.00	1/5 th of the holding	

Note:

- i) After deducting the area of Tourism Development Zone, remaining land in A1, A2, Open Space Recreational shall be entitled for FSI as permissible under these regulation.

- ii) For plots each more than 2 hectare in area in No development Zone, no sub-division of plots shall be permitted.
- c) Smaller Plots: - For existing landholders having smaller plots in A1, A2 Open Space Recreational, the provisions of promotion of tourism through bed & breakfast type of the arrangement for tourism shall be permissible as recommended by Tourism Development Zone Committee & approved by Government in Urban Development Department. There shall be the same FSI as in No Development Zone for plots, according to Development Control Regulations.
- d) Prohibition for inclusion in TDZ - Lands falling in categories specified below shall not be included in Tourism Development Zone and hence shall not be considered for the purpose -
- e) Lands affected beyond permissible levels by pollution in land, water or air, as may be decided and certified by the Maharashtra Pollution Control Board.
- f) Lands covered by mangroves.
- g) Areas from No Development Zone directly abutting the Residential Zone without being separated by road having width not less than 18 m
- h) Infrastructural Facilities – All the infrastructural facilities required in site as specified by Municipal Council and also as suggested by Tourism Development Zone Committee shall be provided by the developer at his own cost on the site. Proper arrangement for treatment and disposal of sewage and sullage and solid waste shall be made to the satisfaction of Municipal Council & Maharashtra Pollution Control Board. No untreated effluent shall be allowed to pass into the sea or any water body.
- i) Reserved sites for Tourism Development Zone – Where the lands are located in unique/unusual area, particularly suitable for development of tourism in view of existing water body, scenic beauty, tree plantation or geological formation etc. but are designated/ reserved in the Development Plan for the purpose of park or gardens or recreation ground or private garden or private recreational ground, it can be specified as Tourism Development Zone. The minimum area of such site, however, shall not be less than 1.00 Ha. The floor space index available for development in such a site shall be 0.20. This FSI is to be consumed on only 15% of the area of the lands declared as Tourism Development Zone; out of the site designated for open user such as Recreation Ground, Parks etc
- j) Environment& Education – Places where rare species of migratory birds are known to visit and where there is a heritage of flora & fauna shall be given preference for development as Tourism Development Zone. Efforts should be made for creating environmental awareness among the local population & especially among school going children in nearby area.

45 INNOVATIVE DEVELOPMENT PROPOSALS

If any development proposal is submitted by the owner or developer, consisting of new concepts, innovative ideas, then such proposal may be approved by the Authority in consultation with the Director of Town Planning, Maharashtra State, Pune, if it is, otherwise, in accordance with the spirit of these regulations.

PART XIII: SUPPLEMENTARY AND MISCELLANEOUS PROVISIONS

46 PLANTATION AND MAINTENANCE OF TREES

- 46.1** The development in any plot shall be such which preserves existing trees, as far as possible. In cases where trees are required to be cut, two trees shall be planted for every tree to be cut.
- 46.2** Plantation of trees in individual plots shall be done at the rate of 1 tree per 45sqm of gross plot area.

47 EASEMENTS

47.1 Utility easements

Easements established as per the width and locations required by the engineering or the utility department, in no case less than 3m wide, should be provided for open or piped storm drainage, sanitary sewers, water lines and other utilities. This requirement applies to such lines installed at the time of the development and to easements for such lines which may reasonably be expected to be installed in the future.

47.2 Stream Buffer Easements

The stream buffer easement is applicable for plots which have one or more boundaries adjoining a natural stream. Stream buffer as per the Regulation 11.1 (b) shall be reserved as a stream buffer. The plot owner shall provide access for maintenance of the stream at all times.

The stream buffer area can be landscaped or retained in its natural condition. Construction of permanent buildings shall not be permitted. Not more than 10 percent area within the stream buffer shall be paved.

48 REQUIREMENTS FOR FUEL FILLING STATIONS

The regulations given below are applicable to fuel stations with or without auto service stations.

- 48.1** Permission from Government of India, Petroleum Ministry and Chief Controller of Explosives shall be necessary
- 48.2** NOC from Public Works Department and other related departments shall be obtained as per the prevailing rules. As regards service road / building line / control line, the Government Resolution, Public Works Department, No. RBD-1081/ 871/Raste-7, dated 09 March 2001 and the circulars issued in this regard from time to time shall be observed. Instructions contained in Government of India, Ministry of Road Transport and Highways letters dated 25/09/2003 and 17/10/2003 and its enclosures as amended from time to time shall be observed
- 48.3** Plot shall be located /fronting on National Highway, State Highway, Major District Road, Other District Road or Village Road or other road with a minimum width of 12.00 m. or more
- 48.4** The plot on which a petrol filling station with or without service bays is proposed shall be an independent plot on which no other structure shall be constructed
- 48.5** Petrol/LPG/CNG station shall not be permitted within a distance of 90 meter from junction of roads having minimum width of 12 m. each. Also Petrol station shall not be sited within a distance of 90 m. from the nearest premises of school, hospital and theatre, place of assembly or stadium

48.6 Location

To assure satisfactory weaving distances, location of fuel filling stations shall be as per below:

- a) The minimum distance of the plot edge from the nearest road junction/ traffic circle/ traffic island/ bridge/ railway level crossing shall be 90m;
- b) Fuel filling stations shall not be located opposite a break or opening in the central verge on a dual carriage road;

- c) In cases where a service road or a marginal access road is provided in addition to a main road, access to the fuel station shall be provided from the service road. Even with the presence of a service road, a fuel station shall not be located without fulfilling conditions 'a' to 'c' above.
- d) Fuel filling station shall not be sited on the convex side of a road curve. In case the curve is not very sharp and cars moving out of the station are completely visible to the traffic from a distance of at least 90m and vice versa, they may be permitted on such a convex curve.
- e) Fuel filling stations shall not be sited within a distance of 90m from the nearest gate of a school, hospital, theatre, place of assembly or stadium.
- f) The plot on which a petrol filling station with or without service bays is proposed shall be an independent plot on which no other structure shall be constructed, except ancillary structures as mentioned in regulation 48.9.

48.7 Plot Sizes

The minimum size of plots for fuel filling stations shall be as given below:

- a) Fuel filling station: Plot area 545sqm (with minimum frontage of 16.75m)
- b) Fuel filling cum service station: Plot area 1100sqm (with minimum frontage of 30.5m)

48.8 Curb Cuts and Driveways

Plots for fuel filling stations shall have only one single curb cut (and driveway) for incoming and outgoing vehicles, not exceeding 10m in width.

Permission for two curb cuts may be granted by the Authority on the condition that they shall be spaced minimum 40m centre to centre. In such cases, the minimum width of each driveway shall be 5m.

48.9 Ancillary Commercial Uses

Ancillary commercial uses shall be permitted within plots for fuel filling stations, provided the location and access for such ancillary commercial uses does not impede or interfere with vehicular circulation to and from the fuel pumps. The built-up area covered under the combination of all such uses shall be limited to 30 percent of the consumable FSI of the plot.

Such uses shall be limited to the following:

- a) restaurant or coffee shop up to 60sqm;
- b) book shop up to 60sqm;
- c) small scale retail for food items up to 60sqm;
- d) sale of small motor parts up to 60sqm and
- e) ATMs (automated teller machine) up to 10sqm.

48.10 Fire Safety Requirements

Fuel filling stations present fire hazards due to storage of explosive material and nature of their operations. Therefore, in addition to the Maharashtra Fire Prevention and Life Safety Measures Act 2006, fuel filling stations shall comply with the Explosives (Temporary Provisions) Act, 1947, as amended from time to time. The storage and handling of fuel should be in conformity with the restrictions and safety standards under the said Act which regulates operations of inflammable substances like loading, unloading, handling, storage and conveyance etc.

49 REGULATIONS FOR INFORMATION TECHNOLOGY ESTABLISHMENTS

49.1 Not with standing anything contained in these regulations, following regulations shall apply to the building to be used for information technology establishment.

1. Definition -Information Technology Establishment (ITE) means an establishment which is in the business of developing either software or hardware.

2. Height of the room for ITE: Any telemetric equipment storage erection facility can have a height as required for effective functioning of that system.
3. Any covered antenna/ dish antenna/ communication tower will be allowed to be erected free of FSI if, it is used for telecom (basic cellular or satellite telephone) or ITE purpose which shall include equipment relating to earth station, V-sat, routes transponders and similar ITE related structures or equipment.
4. ITE (pertaining software only) may be permitted in R1 zone on the plots / premises fronting on roads having width 9m and above.
5. ITE shall be permitted in service industries zone and industrial zone on all roads having width more than 12m.
6. ITE (pertaining to software only) with ancillary residential development shall be allowed in no development zone subject to the following conditions:
 - i) The total FSI shall not exceed 0.5.
 - ii) Residential development shall not have FSI of more than 0.15.
 - iii) Construction of ITE /Ancillary residential use may be permitted (in suitable location so as to keep as much as remaining space open) upto 15% on 50% of the area of plot. On remaining 50% plot, trees shall be planted at the rate of 500 trees per hectare.
 - iv) Subdivision of land shall be permitted with the area of plot to be subdivided being not less than 400sqm.

50 REGULATIONS FOR RESORTS AND AMUSEMENT/ THEME PARKS

- 50.1** These Regulations shall apply to all resorts and amusement parks/ theme park developments undertaken within the Nagpur Metropolitan Area.
- 50.2** The entire land shall vest in single ownership. It shall not be sub-divided at any time and the individual structures of buildings shall not be sold to different persons.
- 50.3** Infrastructural facilities such as access road, water supply, solid waste collection and disposal shall be provided by the developer/owner at his own cost.
- 50.4** Existing trees shall be preserved and if any trees are cut, five times the number shall be planted and grown to their full height/maturity. Further, 15 trees per 1000sqm of open land shall be planted as part of the landscaping scheme of the development.
- 50.5** Minimum plot size, minimum width of access road, minimum setbacks and maximum ground coverage shall be as given in Table 13 and 13a. All other relevant conditions given in these regulations shall be applicable.
- 50.6** Development permission
 - 50.6.1** Maps, and plans shall submitted to NIT/ SPA at the time of development permission as per Regulation 6. Additionally, the following shall be submitted:
 - a) Location Plan at the scale of 1:5000;
 - b) Site plan on a scale of 1:500 showing site boundaries, existing contours, all existing natural and manmade features such as hills, water courses, trees, and other important landscape features, access roads, buildings and other structures;
 - c) Proposed master plan, including all temporary and permanent structures;
 - d) Landscaping plan.

- 50.7** The entire construction/ development program shall be completed within a period of three years from the date of grant of development permission, failing which the development permission shall automatically lapse.

51 LOW IMPACT DEVELOPMENTS

These Regulations shall apply to site planning and landscaping activities within the Open Space and Recreation Zone along rivers or any environmentally sensitive areas as specified by NIT.

- a) Site planning shall emphasize conservation of natural resources and preserve native flora and fauna.
- b) Area within the high flood line and the river bed shall be left in its natural state.
- c) Low impact materials such as fly ash bricks, compressed earth blocks, bamboo etc., or recycled materials shall be used for construction of facilities under accessory uses.
- d) All paved areas shall have porous/permeable paving which allows storm water run-off to infiltrate into the subsoil. Permeable paving includes:
 - e) porous paving systems;
 - f) unit paver systems; and
 - g) loose fill permeable surfacing;
- h) The storm water management plan shall involve treating surface water runoff through natural cleansing processes before being discharged into the river. Storm water runoffs shall be managed by adoption of any two of the following systems: subsurface infiltration systems like stone filled beds or trenches beneath landscaped areas or paved surfaces;
 - i) vegetated filter strips;
 - j) bio-filtration techniques such as bio-swales;
 - k) detention/retention ponds;
- l) All storm water detention or retention ponds shall be connected to an overflow system connected to a point of discharge in the natural stream/ river.

52 TRANSIT ORIENTED DEVELOPMENTS

52.1 General

The intent of these regulations is to promote transit supportive development around proposed metro rail stations and proposed BRT stations. Such development is intended to include high intensity 18+ hour uses that will make places in the core area of the station vibrant and active throughout the day and well into the evening hours. These would include a mixed use development consisting of commercial and residential development with a mix of housing types from high-end apartments, to middle-income housing, and affordable housing, all at a relatively high density.

To manage the potential oversupply and speculative development, these TOD zone regulations shall be applicable in the future at only such time as when the State Government or the relevant authority responsible for the Metro rail project, awards the contract for construction of the metro rail. If phased construction is envisaged, the TOD zone shall apply to only those stations that are taken up for development along the transit line. (Definition of TOD Zone shall be as given in 2.128 of these Regulations)

52.2 FSI

52.2.1 The maximum permissible total FSI/FAR in the TOD zone shall be 4.0, including base permissible FSI and may be admissible to the plots having area 1,000 sqm and above subject to availability of minimum road width and other applicable regulations within this area.

52.2.2 Above FSI shall be calculated on the net plot area.

- 52.2.3** In case of plot/plots partly falling within the TOD zone, the FSI permissible shall be on prorata basis, provided that the total area of the plot (plot falling within NMRC plus plot falling outside NMRC) shall be 1,000 sqm..
- 52.2.4** Notwithstanding anything contained in any another provision of these Regulations TDR shall not be allowed to be received on the plots within TOD zone, irrespective of its location in congested area/non-congested area as per the Development Plan of NMA.
- 52.2.5** Additional FSI over and above permissible base FSI of respective land use zones as per these DCRs may be permitted on the payment of premium equivalent to 0.5 times of the Annual Schedule of Rates of land (Ready Reckoner) per square meter of additional FSI.
- Notwithstanding anything contained in the provisions of this DCR, no component of the building in NMRC shall be free of FSI.
- 52.3** Minimum layout open space to the extent of 10% of the plot area shall be provided for the plot having area of 4,000 sq.m and above, of sole/amalgamated area of the plot/land.
- 52.4** For any development or redevelopment within NMRC size of the dwelling unit shall be of minimum 25 sqm and maximum 120 sqm of built up area and out of total proposed tenements, atleast 70% tenements shall be less than 60 sqm.
- 52.5** **Density:** Minimum density in the defined TOD zone for any development or redevelopment shall be 600 dwelling units per hectare.
- 52.6** **Permissible land uses:** Mixed use in the form of residential and commercial may be permissible on the plot in NMRC fronting on road width of 12 m. and above subject to be maximum 30 % of the total built up area as commercial and also subject to separate horizontal and vertical access for residential and commercial units.
- 52.7** Other provisions regarding marginal open spaces shall be governed by the proposed height of the development, as given in provisions 1.8 below and should confirm to the Maharashtra Fire Prevention and Life Safety Measures Act 2006(Maharashtra Act no III of 2007).No building permission shall be issued without NOC of the fire officer. Other regulations regarding room sizes, apertures for light and ventilation shall be given in these DCRs for the NMA
- 52.8** Marginal spaces to be left around building in the TOD zone shall be H/4, where 'H' is height of the proposed building provided that the marginal space shall be minimum 6m for the building up to 24m height and minimum 9m for the building above to 24m height.
- Note 1: No projections shall be allowed in marginal spaces so that minimum 6 mt. marginal spaces remain free from all encumbrances for the movement of fire tenders. In case if ramp is necessary for accessibility such ramp may be allowed after living 6 m. clear margin.
- Note 2: If entire floor is used for parking, the height of parking floor shall be counted towards the height of the building

- 52.9** Parking provisions shall be made as per the table given below

S. No	Occupancy	For every	Car	Scooter / Motorcycle	Cycle
1	Residential i. Multi family	Tenements having carpet area			
		i. from 25 to 40 sqm	0	1	2
		ii. 41 to 60 sqm	0	1	2
		iii. 81 sqm & above	0	2	2
		remaining (b) to (f) will have same provision	1	1	1
2	Govt. & Semi govt Private business buildings	100 sqmt carpet area or fraction thereof	1	2	2

Note: Parking spaces for differently-abled as per Indian Road Congress Code no. IRC 103:2012 shall be provided in each new construction/development/re-development in the TOD influence zone.

53 SUSTAINABILITY

53.1 Incentives for Development of Green Buildings

Incentives shall be provided for development of green buildings with a view to promote sustainable development. For availing any incentives, certification from two rating agencies shall be acceptable to NIT. These are the Indian Green Building Council (www.igbc.in) and GRIHA (Green Rating Integrated Habitat Assessment) conceived by TERI and developed jointly with the Ministry of New and Renewable Energy, Government of India.

Owners shall independently apply to any one of the rating agencies and follow the processes laid down by the rating agencies including any external audits as may be necessary to obtain certification.

Incentives by NIT shall be in the form of refund of premiums charged to owners for new construction projects on the basis of the Table No. 35.

Table No- 35: Building setbacks for residential buildings

Points Scored within the GRIHA system	GRIHA Rating (number of stars)	Or	Level of Certification as per IGBC norms	Then	Percentage of Refund from NIT
50-60	*		Certified		10%
61-70	**		Certified		20%
71-80	***		Silver		30%
81-90	****		Gold		40%
91-100	*****		Platinum		50%

Refund of FSI premiums paid to NIT shall be applicable only after the certificate is obtained from the rating agency and submitted to NIT as an attested copy duly examined against the original certificate by the designated officer within NIT along with a letter requesting a refund.

The authority from time to time may amend the percentage of refund and also reserves the right to change or modify the above on the basis of any change to the rating scale by GRIHA or IGBC to their respective rating systems.

54 WASTE WATER TREATMENT AND RECYCLING

54.1 These Regulations shall apply for the following types of waste water:

- Black water - means waste water from W.C. urinals and M.S.W.
- Grey water - means waste water from bathroom, sink, shower and washing cloths etc.
- Apart from waste water from residential, industrial, commercial and institutional uses, bio-medical waste from hospitals should also be processed as per the directives given by the Maharashtra Pollution Control Board.

54.2 These regulations shall be applicable to all residential, commercial, institutional and industrial premises which fall in one of the following categories.

54.2.1 Residential layouts

In case of residential layouts and group housing schemes admeasuring 2000 sqm or more, space for waste water treatment and recycle plant may be constructed by owner/ developer within amenity open space as per standards and specifications prescribed by MPCB. Recycled water should be used for purposes other than drinking – i.e. gardening, landscaping, flushing, fishpond, washing cars, roads and so on.

- a) Drainage lines, chambers, plumbing lines should be marked in different color on the layout plan for approval.
- b) Waste water treatment and recycling plant and additional machinery, plumbing, water tank pipe, landscape should be provided by owner or developer at his own cost.
- c) The owner/ developer should conduct the necessary technical checks for the plant and quality of recycled waste water maintained as per the standards of MPCB. Necessary certificates should be submitted to NIT after every six months.
- d) Operation and Maintenance of waste water and recycling plant should be done by the developer or housing society or owner

54.2.2 Education, industrial, commercial, government, semi- government organization, hotels, lodging and buildings included in 6.2.6.1 of the DCR -

For all above buildings with built up area greater than 500 sqm or with water consumption more than 7,000 liter per day, whichever is less, then provision for waste water treatment plant as mentioned in 54.2.1 shall be applicable.

54.2.3 Hospitals

Hospital with capacity of 40 or more beds waste water recycling plant as mentioned in 54.2.1 shall be applicable

54.3 Exemption may be granted by the Authority in case of proven hardship faced under following circumstances:

- 54.3.1** In case of building premises existing before the enforcement of these Regulations, there is no space or installation of waste water treatment facility and collection chamber
- 54.3.2** In case of provision of additional overhead tank for the purpose of the use of treated water in the existing premises is not feasible

54.4 Construction of the waste water treatment plant and allied structures if applicable

Size and design of the waste water treatment facility shall conform to the National Building Code, 2005 or the relevant State Government policy/ notification if applicable.

54.5 Occupation certificate and permission to sell the plots and constructed tenements shall not be granted till submission of certificate from MPCB.

54.6 Penalty:

- a) Any person violating the provisions of these Regulations shall be fined Rs. 2,500/- only on the day of detection and if the violation continues, then he shall be fined Rs. 1,000/- for per day after written notice from NIT.
- b) If any person fails to operate (as determined by the authorized officer of NIT and from the observations of test results or physical verification) the recycling plant, then he will be charged a penalty of Rs. 3,000/- per day and disconnection of water connection.

APPENDIX A -1
(Regulation 6)

FORM FOR CONSTRUCTION OF BUILDING OR LAYOUT OF BUILDING / GROUP HOUSING

To,
The Chairman,
Nagpur Improvement Trust

Sir,

I hereby give notice that I intend to carry out development in the site/to erect, to re-erect/to demolish/to make material alterations in the building no _____ on Plot no _____ Survey No _____ situated at Road/Street _____ and in accordance with Section 44/45/58/89 of Maharashtra Regional and Town Planning Act, 1966 and Section _____ of the Nagpur Improvement Trust Act, 1936.

I forward herewith the following plans and statements (Item 1 to 6) wherever applicable, in quadruplicate signed by me and (Name in block letters) _____, the Architect / Licensed Engineer / Structural Engineer / Supervisor, the License No _____ who has prepared the plans, designs and a copy of other statements /documents as applicable (Items 7 to 10).

- (1) Key Plan (Location Plan)
- (2) Site Plan
- (3) Sub-Division/Layout Plan
- (4) Building Plan
- (5) Service Plan
- (6) Particulars of Development
- (7) Ownership Title
- (8) Attested copy of Receipt for payment of Building Permission
- (9) Clearance Certificate of Tax Arrears
- (10) No Objection Certificate, where required.

I request that the proposed development/ construction may be approved and permission accorded to me to execute the work.

Signature of Owner _____

Name of Owner _____

Address of Owner _____

Dated _____

- _____
-
- 6 a In what land use zone does the plot fall? _____
:
-
- b What is the permissible FSI? _____
:
-
- c What is the number of the tenements per hectare permissible in the zone? _____
:
-
- 7 a Is the use of every room in the proposed work marked on the plans? _____
:
-
- b Is it in accordance with the rules? _____
:
-
- c Does the use of the building fall in the category of special / public occupancy buildings like cinema halls, theatres, assembly halls, stadia, religious buildings, hospitals, educational buildings, markets and exhibition halls etc? _____
:
-
- 8 If the work is in connection with an industry: _____
- a Please briefly describe the main and accessory process _____
:
-
- b Please state the maximum number of workmen and the total horse power likely to be employed per shift in the factory _____
:
-
- c Under what industrial classification does it fall (Reference to relevant regulation should be given) _____
:
-
- d Is the proposal for relocation of an existing industry, if so give the name and address of existing industry _____
:
-
- e Will the building be at the required minimum distance from the boundary of a residential and commercial zone? _____
:
-
- f Is the proposal for a scenic industrial estate on a plot reserved for service industry? _____
:
-
- g Nature and quantum, of industrial waste/effluents and method of disposal _____
:

9 a What is the average

(i) Prescribed width?

: —

(ii) Existing width of the street?

: —

(If the plots abuts on two or more streets, the above information in respect of all streets should be given)

b What is the height of the building?

(i) Above the center of the street

: —

(ii) Above the average ground level of the plot

: —

c Does it comply with the Regulation 23.2?

: —

10 a If there are existing structures on the plot:

(i) Are they correctly marked and numbered on the site plan?

: —

(ii) Are those proposed to be demolished immediately and colored yellow?

: —

(iii) What is the plinth area and total floor area of all existing structures to be retained?
(Please append statement I giving details)

: —

(iv) What is the number of existing tenements in the structure to be retained?

: —

b What is the plinth area and total floor area of the proposed work?
(Please append statement II giving details)

: —

c What is the number of tenements proposed?

: —

NOTE: TO INDICATE DETAILS ON THE BUILDING PLAN AS IN PROFORMA I

11 a Please state the plinth area and total floor area, existing and proposed (total of Item No. 10 (a) (iii)) :

and 10 (c)

—

- b Please state the overall FSI (Item 11 (a) divided by Item 3 (e)

:

- c Does the work consume the full FSI of the plot, as given in Item 6 (b)? If not, why not?

:

- d Does the proposed building have setbacks on upper floors?

:

- e What is the total number of tenements? (Item 10 (a) plus Item 10 (c)

:

NOTE: TO INDICATE DETAILS ON THE BUILDING PLAN AS IN PROFORMA I

- 12 a What is the width of the front open space? If the building abuts two or more streets, does the front open space comply with Regulation 22.2.2?

:

- b Please state which of the following rules is applicable for the front open spaces:
Table 22-1, Table 22-2
Does that front open space comply with that rule?

:

- 13 a What is :

(i) The width of the side open space (s)?

:

(ii) The width of the rear open space (s)?

:

(iii) The distance between buildings?

:

- b Are there two or more wings to the buildings? If so, are the open spaces separate or distinct for each wing as required under Regulation 22.3.3?

:

- 14 a What are the dimensions of the inner or outer chowk?

:

- b (i) Are any rooms dependent for its light and ventilation on the chowk? If so, are the dimensions as required for each wing of the building?

:

		—								
	If not, is the area equal as per Regulation 22.5?	_____								
		: —								
15	If the area of the building is greater than 16 meters above the average ground level, is provision for lifts made?	_____								
		: —								
a	If so, give details of the lift									
	<table border="0"> <tr> <td>Type</td> <td>Passenger Capacity</td> <td>No. of the lifts</td> <td>Type of Doors</td> </tr> <tr> <td>(1)</td> <td>(2)</td> <td>(3)</td> <td>(4)</td> </tr> </table>	Type	Passenger Capacity	No. of the lifts	Type of Doors	(1)	(2)	(3)	(4)	
Type	Passenger Capacity	No. of the lifts	Type of Doors							
(1)	(2)	(3)	(4)							
b	Details of the fire lift	_____								
		: —								
16	a Does the building fall under purview of Regulation 6.2.6.1?	_____								
		: —								
	b If so, does the proposed fire protection requirements confirm to Regulation 40?	_____								
		: —								
	c If not, give reasons for non-conformity	_____								
		: —								
17	a (i) What are the requirements for parking spaces under Regulation 14?	_____								
		: —								
	(ii) How many are proposed?	_____								
		: —								
	(iii) How many lock up garages are proposed?	_____								
		: —								
	b (i) Are loading / unloading spaces necessary under Regulation 14.6?	_____								
		: —								
	(ii) If so, what is the requirement?	_____								
		: —								
	(iii) How many are proposed?	_____								
		: —								

NOTE: INDICATE DETAILS ON BUILDING PLANS AS IN PROFORMA I

18	a (i) What is the maximum width of the balconies?	_____
		: —

- (ii) Will they reduce the required building setbacks/
marginal open spaces to less than the provisions
of Rules? : _____
- (iii) Do they serve as a passage to any part of the
building? : _____
- (iv) What is their total area? : _____
- b What is the maximum width of weather frames,
sunshades (chajja), sun breakers, cornice, eaves or
other projections? : _____
- c (i) Are any porches / canopies proposed? : _____
- (ii) Are they in compliance with Regulation 22.6? : _____
- 19 a What is the width of the means of access? : _____
- b What is its clear height? : _____
- c Will it be paved, drained and kept free of
encroachment? : _____
- 20 Is recreational or amenity open space provided as
required under Regulation 13.6? : _____
- a Are any accessory buildings proposed? If so, for
what purpose? : _____
- b What are their heights? : _____
- c Are they 7.5m away from the street or front
boundary and if located within the open spaces 1.5m
from other buildings in the plot? : _____
- d Is their area calculated in the FSI? : _____
- 21 a What is the proposed height of the compound
boundary wall : _____

- Is it on a road junction/ corner plot?
: _____
- b Is it in compliance with Regulation 18?
: _____
- 22 a Is the proposal in the Air Port Zone?
: _____
- b Is a “No Objection Certificate” for height and character of smoke from chimneys obtained in compliance with Regulation 23.2?
: _____
- 23 Does the proposal fall in any of the restricted zones?
: _____
- 24 a Does any natural water source pass through the land under development?
: _____
- b Is the necessary setback provided as per Regulation 11.1?
: _____
- 25 Is the plinth level proposed to be above the surrounding ground level?
: _____
- 26 The details of the materials to be used in construction with specification are as below:
- a Roofs
: _____
- b Floors
: _____
- c Walls
: _____
- d Columns
: _____
- e Any other material
: _____
- 27 The number of water closet, urinals, kitchens, baths to be provided are as follows:
- | | Water closets | Baths | Urinals | Kitchens |
|----------|---------------|-------|---------|----------|
| Existing | | | | |
| Proposed | | | | |
- 28 Details of the source of water to be used in the construction
:

29 Distance from the sewer

:

30 Area of municipal land that will be used for stacking building material?

:

31 Please explain in detail in what respect the proposal does not comply with the applicable Development Control Rules and the reasons thereof, attaching a separate sheet if necessary.

:

I hereby declare that I am the owner / lessee / mortgagee in possession of the plot on which the work is proposed and that the statements made in this form are true and correct to the best of my knowledge.

Date:

Address:

Signature of the Applicant

Form of certificate to be signed by the Architect / Licensed Engineer / Structural Engineer / Supervisor employed by the Applicant

I (Name _____) have been employed by the applicant as his Architect / Licensed Engineer / Structural Engineer / Supervisor. I have examined the boundaries and the area* of the plot and I do hereby certify that I have personally verified and checked all the statements made by the applicant who is the owner/lessee/ mortgagee in possession of the plot as in the above form and the attached statement 1 and 2 and found them to be correct.

Date:

Signature of Architect / Licensed
Engineer/Structural Engineer /
Supervisor

Address:

*NOTE: To indicate on building plan as in Form II

FORM OF STATEMENT 1

[Sr.No. 10 (a) (III)]

Existing Building to be retained

Existing Building No.	Floor No.	Plinth Area	Total Floor Area of Existing Building	Use occupancy of Floors
(1)	(2)	(3)	(4)	(5)

OR

FORM OF STATEMENT 2 [Sr.No.10 (b)]

Proposed Building

Existing Building No.	Floor No.	Plinth Area	Total Floor Area of Existing Building	Use occupancy of Floors
(1)	(2)	(3)	(4)	(5)

PROFORMA I**(At Right Hand Top Corner of Site / Building Plan at Floor Level)****A AREA STATEMENTS**

- 1 Area of plot : _____ sqm
- 2 Deductions for
 - a) Road acquisition area : _____
 - b) Proposed road : _____
 - c) Any reservation : _____
 - Total (a + b + c) : _____
- 3 Net gross area of plot (1 - 2) : _____
- 4 Deduction for
 - a) Recreation open space as per Rule No. 13.7.1 : _____
 - b) Internal roads : _____
 - c) Total (a + b) : _____
- 5 Net area of plots (3 - 4c) : _____
- 6 Additional for FSI (2a) : _____
 - Total built up area (2b) : _____
 - Purpose + For (2c) : _____
- 7 Total area (5 + 6) : _____
- 8 FSI permissible : _____
- 9 Permissible floor area (7 x 8) : _____
- 10 Existing floor area : _____
- 11 Proposed areas : _____
 - Area statement : _____ sqm
- 12 Excess balcony area taken in FSI (As per B(c) below) : _____
- 13 Total built up area (10 + 11 + 12) : _____

14 FSI consumed ($13 \div 7$)	:	_____
B BALCONY AREA STATEMENT		
a Proposed balcony area per floor	:	_____
C TENEMENT STATEMENT		
a Net area of plot Item Agreed (7) above	:	_____
b Less deduction of non-residential area (shops etc.)	:	_____
c Area of tenements (a - b)	:	_____
d Tenements permissible	:	_____
e Tenements proposed	:	_____
Total tenements (d + c)	:	_____
D PARKING STATEMENT		
a Parking required for : (by Rule 14)		
Cars	:	_____
Scooters / Motor Cycles	:	_____
Cycles	:	_____
b Garages permissible	:	_____
c Garages proposed for:		
Cars	:	_____
Scooter / Motor Cycles	:	_____
Cycles	:	_____
d Total parking provided	:	_____
E LOADING / UNLOADING SPACES		
Loading / Unloading provided	:	_____
Total Loading / Unloading provided	:	_____

PROFORMA II**(At Right Hand Bottom Corner of Plans / Below Performa I) Contents of Sheet****Stamps of Date of Receipt of Plans****Stamps of Approval of Plans**

Revision	Description	Date	Signature

CERTIFICATE OF AREA

Certified that the plot under reference was surveyed by me on _____ and the dimensions of sides of plot stated on plan are as measured on site and the area so worked out tallies with the area stated in document of ownership records.

Signature of Architect / Licensed
Engineer / Structural Engineer / Supervisor

Description of Proposal and Property _____

Name of Owner _____

Job No.	Drg. No.	Scale	Drawn By	Checked By	North Line
---------	----------	-------	----------	------------	------------

Signature, Name and Address of Architect /
Licensed Engineer / Structural Engineer / Supervisor

APPENDIX A-2**FOR SUB-DIVISION OF LAND AS PLOTTED LAYOUT**

Application for permission for development under Section 44 / 58 of The Maharashtra Regional and Town Planning Act, 1966 read with Section of the Nagpur Improvement Trust Act, 1936.

From

(Name of the owner)

To,

The Chairman,
Nagpur Improvement Trust

Sir,

I intend to carry out the under mentioned development in the site/plot of land, bearing S.No./Gut No., Mouje situated at Road / Street in accordance with Section 44/58 of The Maharashtra Regional and Town Planning Act, 1966 read with Section of the Nagpur Improvement Trust Act, 1936.

I forward herewith the following plans and statements (Item 1 to 6) wherever applicable, in quadruplicate, signed by me (Name in block letters) and the Architect / Licensed Engineer / Structural Engineer / Supervisor (License No.....), who has prepared the plans, designs and a copy of other statements /documents as applicable (Items 7 to 10).

- (1) Key Plan (Location Plan);
- (2) a site plan (in quadruplicate) showing the surrounding land and existing access to the land included in the layout;
- (3) a layout plan (in quadruplicate) showing -
 - (i) sub-divisions of the land or plot with dimensions and area of each of the proposed sub-divisions and its use according to prescribed regulations;
 - (ii) width of the proposed streets; and
 - (iii) dimensions and area of open spaces provided in the layout for the purpose of recreational open space or any like purpose.
- (4) An extract of record of rights property register card (any other document showing ownership of land to be specified) along with consent of co-owners where third party interest is created.
- (5) Attested copy of Receipt for payment of scrutiny fees.

(6) No Objection Certificate, wherever required.

I request that the proposed layout may please be approved and permission accorded to me to execute the work.

Signature of Owner

Signature of the Licensed

Name of Owner

Surveyor/Architect

Address of Owner

Dated: / /

FORM GIVING PARTICULARS OF DEVELOPMENT

(PART OF APPENDIX 1.....ITEM 6)

1.	(a) (i) Full Name of Applicant	
	(ii) Address of applicant	
	(iii) e-mail ID	
	(iv) Mobile No.	
	(b) Name and address of Architect/ licensed Engineer employed.	
	(c) No. and date of issue of License	
2.	Is the land affected by any reservations or road lines? If yes, are these correctly and clearly marked on the block plan?	
3.	*(a) What is the total area of the land according to the document?	
	*(b) Does it tally with the Revenue (7/12) /CTS Record	
	*(c) What is the actual area available on site measured by Architect/licensed Engineer.	
	(d) Is there any deduction in original area of the land on account of road lines or reservation. Please state the total area of such deductions?	
	(e) If so, what is the net area?	

4.	* The permission shall be based on the area whichever is minimum	
5.	(a) Is the land of a city Triangulation Survey Number, Revenue Survey Number or Hissa Number of a Survey Number or a Final Plot Number of a Town Planning Scheme?	
	(b) Whether the certified measurement plan of the land issued by the Land Records Department is submitted with the proposal?	
6.	In what zone does the land fall?	
7.	What is the average	
	(i) prescribed width of access road?	
	(ii) existing width of the street?	
8.	Whether the internal roads proposed in the layout conform to the Regulation No.12.	
9.	How much recreational open space is proposed?	
10.	Whether amenity space required is as per regulation? If so, how much is proposed?	
11.	Does the proposal fall in any of the restricted zones?	
12.	Does any natural water source pass through the land under development?	

I hereby declare that I am the owner / lessee in possession of the plot on which the work is proposed and that the statements made in this form are true and correct to the best of my knowledge.

Date :

Signature of the Applicant.

Address : -----

E-mail ID : -----

Mobile No. : -----

+++++++=

PROFORMA I**(At Right Hand Top Corners of Land Sub-division Layout Plan)**

1.	AREA STATEMENTS	
	Area of plot	sq.m.
2.	Deductions for	
	(a) Road Acquisition Area	
	(b) Proposed Road	
	(c) Any Reservation	
	(Total a+b+c)	
3.	Gross Area of Plot (1-2)	
4.	Deductions for	
	(a) Recreation Open Space as per Regulation No.13.3	
	(b) Internal Roads.	
	(c) Amenity Space, if any	
	Total (a+b+c)	
5.	Net Area of Plots (3 - 4)	
6.	Net area for FSI Calculations= 90%x(3-4c)	

APPENDIX B

(Regulation No. 6.2.9)

FORM FOR SUPERVISION

To
The Building Engineer, NIT
Nagpur

Sir,

I hereby certify that the development/erection/re-erection/demolition or material alteration in/ or Building No on / in Plot No in village _____ in Block No _____ situated at Road / street _____ shall be carried out under my supervision and I certify that all the materials (types and grade) and the workmanship of the work shall be generally in accordance with the general specifications submitted along with, and that the work shall be carried out according to the sanctioned plans. I shall be responsible for the execution of the work in all respects.

Signature of the Architect or
Licensed Engineer/Structural Engineer/ Supervisor

Name of Architect or Licensed Engineer/
Structural Engineer/ Supervisor (in block letter)

Licensee No. of Architect or Licensed Engineer/
Structural Engineer / Supervisor

Address of Architect of Licensed Engineer/ Structural Engineer / Supervisor

Date:

APPENDIX C**(Regulation No. 6.4)****QUALIFICATION, COMPETENCE, DUTIES AND RESPONSIBILITIES ETC. OF
LICENSED TECHNICAL PERSONNEL FOR PREPARATION OF SCHEMES FOR
DEVELOPMENT PERMISSION AND SUPERVISION****C-1 GENERAL**

- C-1.1 The qualifications of the technical personnel and their competence to carry out different jobs for building permit and supervision for the purpose of licensing by the Authority shall be as given in regulation C-2 to C-9. The procedures for licensing the technical personnel is given in regulation C-10.

C-2 ARCHITECT

- C-2.1 *Qualifications:* The qualifications for licensing of an architect will be the Associate Membership of the Indian Institute of Architects or such Degree or Diploma which makes him eligible for such membership or such qualifications listed in Schedule XIV of Architects Act, 1972 and shall be registered under the Council of Architecture as per Architects Act, 1972.
- C-2.2 Competence of Architect: To carry out work related to development permission as given below and to submit.
- (a) All plans and information connected with development permission.
 - (b) Certificate of supervision and completion for all building.
- C-2A Licensed Architect 1: Who is not eligible to be registered under the Council of Architecture as per Architects Act, 1972.
- C-2A.1 *Qualifications-* The qualifications for licensing of Architect who is having 3 to 2 years Diploma of Architecture and which makes him not eligible for such membership or such qualifications listed in Schedule XIV of Architects Act, 1972 and shall not be permitted to be registered under the Council of Architecture as per Architects Act, 1972.
- C-2A.2 Competence of Architect: To carry out work related to development permission as given below and to submit.
- (a) All plans and related information connected with Development Permission on plot up to 200 square meters.
 - (b) Certificate of supervision and completion for building/s on plot up to 200 square meters for a building of not more than Ground plus Two stories or 9 meters height. (Valid only for having related experience of more than 5 years).

C-3 LICENSED ENGINEER - I

- C-3.1 *Qualifications:* The qualifications of the Licensed Engineer – It shall be the Bachelor's Degree in Civil Engineering obtained from any Indian University recognized by the University Grants Commission of the Government of India OR Associate Membership of the Institution of Engineers, India in the branch of Civil Engineering OR Diploma in Civil Engineering or Equivalent, having experience of 10 years in the field of land and building planning.
- C-3.2 Competence- To carry out work related to Development Permission as given below and to submit.
- (a) All plans and related information connected with Development Permission.

- (b) Structural Details and Calculations for building/s on plot upto 500 Square Meters for a building of not more than, Ground plus Three storey's or 12 meters in height. (Valid only for Degree Holders / equivalent (A.M.I.E.) having related experience of more than 5 years).
- (c) Certificate of Completion conforming to the Development Control Rules of Nagpur City.
- (d) Certificate of Completion as a Supervisor, conforming to the sanctioned plans and structural designs of the registered Structural Engineer.

C-4 LICENSED SUPERVISOR - II

C-4.1 *Qualifications*- The qualifications of the Licensed Supervisor - II shall be the Diploma in Civil Engineering obtained from any State Board of Technical Educations.

C-4.2 *Competence*: To carry out the work related to Development Permission as given below and to submit.

- (a) All plans and related information connected with Development Permission on plot up to 200 square meters.
- (b) Structural Details and Calculations for building/s on plot up to 200 square meters for a building of not more than Ground plus Two stories or 9 meters height. (Valid only for Diploma Holders having related experience of more than 5 years).
- (c) Certificate of Completion conforming to the Development Control Rules of Nagpur City of buildings on plot up to 200 square meters.
- (d) Certificate of Completion as a Supervisor, conforming to the sanctioned plans and structural designs of the registered Structural Engineer.

C-5 LICENSED SUPERVISOR - III

C-5.1 *Qualifications*- The qualifications of the Licensed Supervisor - III shall be three years' experience as Architectural Assistant in the office of the registered architect and/or intermediate in Architecture with two years' experience in the office of the registered architect.

C-5.2 *Competence*: To carry out the work related to Development Permission as given below and to submit.

- (a) All plans and related information connected with Development Permission on plot up to 100 square meters.
- (b) Certificate of Completion conforming to the Development Control Rules of Nagpur City of buildings on plot up to 100 square meters.
- (c) Certificate of Completion as a Supervisor, conforming to the sanctioned plans and structural designs of the registered Structural Engineer.

C-6 LICENSED STRUCTURAL ENGINEER - I

C-6.1 *Qualifications*- The qualifications of the Licensed Structural Engineer - I shall be Bachelor's Degree in Civil Engineering obtained from any Indian University recognized by the University Grants Commission of the Government of India OR Associate Membership of the institution of Engineers, India in the branch of Civil Engineering, with minimum 5 years related experience (Two years in field and Three years in the office of Licensed Structural Engineer - II).

C-6.2 *Competence*: To design the RCC / Steel / Timber Structure of building/s and to submit.

- (a) Structural Details and Calculations for building/s on plot up to 750 square meters for a building of not more than, Ground plus FOUR storeys or 15 meters height.

(Licensed Structural Engineer - I shall not be eligible for designing complicated structures like industrial structures, auditoriums, stadiums, roof top towers, cinemas, theatres, hospitals and / or any public structure).

C-7 LICENSED STRUCTURAL ENGINEER - II

- C-7.1 *Qualifications*- The qualifications of the Licensed Structural Engineer - II shall be Master's Degree in Structural Engineering in addition to Bachelor's Degree in Civil Engineering obtained from any Indian University recognized by the University Grants Commission of the Government of India OR Associate Membership of the institution of Engineers, India in the branch of Civil Engineering, with minimum 3 years related experience in Licensed Structural Engineer – III's office.

- C-7.2 *Competence*: To design the RCC / steel / timber structure of building(s) and to submit:

- (a) Structural details and calculations for building(s) on plot up to 750 square meters for a building of not more than, ground plus SEVEN storeys or 24 meters height.

(Licensed Structural Engineer - II shall not be eligible for designing complicated structures like industrial structures, auditoriums, stadiums, roof top towers, cinemas, theatres, hospitals and / or any public structure).

C-8 LICENSED STRUCTURAL ENGINEER - III

- C-8.1 *Qualifications*- The qualifications of the Licensed Structural Engineer - III shall be Master's Degree in Structural Engineering in addition to Bachelor's Degree in Civil Engineering obtained from any Indian University recognized by the University Grants Commission of the Government of India OR Associate Membership of the Institution of Engineers, India in the branch of Civil Engineering, with minimum 6 years related experience in the office of a Licensed Structural Engineer – IV.

- C-8.2 *Competence*: To design the RCC / steel / timber structure of building(s) and to submit:

- (a) Structural details and calculations for building(s) on plot of any size for a building of not more than, ground plus TEN storeys or 34 meters height.

(Licensed Structural Engineer - III shall be eligible for designing complicated structures like industrial structures, auditoriums, stadiums, roof top towers, cinemas, theatres, hospitals and / or any public structure).

C-9 LICENSED STRUCTURAL ENGINEER - IV

- C-9.1 *Qualifications*- The qualifications of the Licensed Structural Engineer - IV shall be Master's Degree in Structural Engineering in addition to Bachelor's Degree in Civil Engineering obtained from any Indian University recognized by the University Grants Commission of the Government of India OR Associate Membership of the institution of Engineers, India in the branch of Civil Engineering, with minimum 10 years related experience.

- C-9.2 *Competence*: To design the RCC / steel / timber structure of building(s) and to submit:

- (a) Structural details and calculations for building(s) on plot of any size for a building of any height.

(Licensed Structural Engineer - IV shall also be eligible for vetting/proof checking the structural designs of all the other categories of Licensed Structural Engineers).

C-10. LICENSING**C-10.1 Technical personnel to be licensed:**

The Qualified technical personnel or group as given in regulations; No C-3, C-4, C-5 shall be licensed with the authority and the license shall be valid for one calendar year ending 31st December after which it shall be renewed annually.

C-10.2 Fees for licensing- The annual licensing fees shall be as follows:-

For Engineer and Structural Engineer: Rs. 1000/- per annum.

For Supervisor (I) Rs. 500 per annum

For Supervisor (II) Rs. 250 per annum

C-10.3 Duties and Responsibilities of Licensed Technical Personnel:-

The duties and responsibilities of licensed technical personnel shall be as follows:-

- (1) It will be incumbent on every licensed technical personnel, in all matters in which he may be professionally consulted or engaged, to assist and co-operate with the Chairman, NIT and other Officers in carrying out and enforcing the provisions of MR&TP Act, and of any regulations for the time being in force under the same.
- (2) Every licensed technical personnel shall, in every case in which he may be professionally consulted or engaged, be responsible, so far as his professional connection with such case extends, for due compliance with the provisions of these Development Control Regulations, and of any regulations for the time being in force under the said Act, or such of them as may respectively be applicable to the circumstances of the particular case and in particular it will be obligatory on him to satisfy himself that a qualified and competent *mistry*/ supervisor or the Inspector of Works is constantly employed and present on the work to supervise the execution of all work and to prevent the use of any defective material therein and the improper execution of any such work.
- (3) In every case in which a licensed technical personnel is professionally concerned in connection with any building or work upon any premises, in respect of which a right to require a set-back has accrued or is about to accrue to the Chairman NIT under the provisions of relevant Act or any of them it will be incumbent on such licensed technical personnel to ascertain whether "the regular line of the street" has been prescribed under the provisions of relevant Act; and whether any portion of the said premises is required for the street and no licensed technical personnel must, on any account or under any pretence whatever, be a part to any evasion or attempted evasion of the set-back (if any that may be required).
- (4) In every case in which a licensed technical personnel is professionally concerned in connection with any building or work upon any premises designed or intended to be used for any purposes in respect of which prescribed by the said Act at a necessary condition to the establishment or use of such premises for such purpose, it shall be incumbent on such licensed technical personnel, so far as his professional connection with such case extends, to see that all conditions prescribed by the said Act, or by any rule for the time being in force there under, in respect of premises designed or intended to be applied to such use, are duly fulfilled or provided for.
- (5) A licensed technical personnel shall not carry out any work in connection with any building or other erection on a plot of land leased or agreed to be leased by NIT/ SPA in contravention of any term or condition of the lease or agreement for lease.
- (6) When licensed technical personnel ceases to be in the employment for the development work, he shall report the fact forthwith to the NIT/ SPA.

FORM FOR CERTIFICATE OF STRUCTURAL DESIGN SUFFICIENCY

With respect to the building work of erection, re-erection or for making alteration in the building No. _____ or Plot No. _____ Survey No. _____ Village _____ Taluka _____ Colony / Street _____ we certify that the structural plans and details of the building submitted for approval satisfy the structural safety requirements for all situations including natural disasters, as applicable, as stipulated under Part 6 Structural Design of the National Building Code of India and other relevant Codes; and the information given therein is factually correct to the best of our knowledge and understanding and Structural work shall be carried out under my supervision and I shall be responsible for Structural work in all respect.

No of floors: _____

Height of building: _____

Signature of owner
Date: _____

Signature of the
Registered Engineer /
Structural Engineer
Date: _____
Registration No: _____

Name: _____

Address: _____

Name: _____

Address: _____

APPENDIX D-1**(Regulation No. 6.6.1)****FORM FOR SANCTION OF BUILDING PERMIT AND COMMENCEMENT CERTIFICATE**

To,

Sir,

With reference to your application No _____ dated _____ for the grant of sanction of Commencement Certificate under Sections 44 of MR&TP Act, 1966;

In order to carry out development work on Building _____ on Plot No _____ Survey No _____ situated at Road / Street _____ village _____. The commencement certificate / building permit is granted under Section 45 of the said Act, subject to the following conditions:

- 1 The land vacated in consequence of the enforcement of the set-back rule shall form part of the public street.
- 2 No new building or part thereof shall be occupied or allowed to be occupied or used or permitted to be used by any person until occupancy permission has been granted.
- 3 The Commencement Certificate/ Building Permit shall remain valid for a period of one year commencing from the date of its issue.
- 4 This permission does not entitle you to develop the land which does not vest in you.
- 5 _____
- 6 _____

Office No:
Office Stamp:

Date:

Yours faithfully,

Building Permit No:
Date:
SANCTIONED

Building Engineer
NIT

Specimen of Stamp of Approval to be marked on building plan

APPENDIX D-2**[Regulation No. 6.6.1]****FORM FOR TENTATIVE APPROVAL FOR DEDMARCATION OF LAND/ SUB-DIVISION LAYOUT**

To,

Nagpur Improvement Trust, Nagpur

Sir,

With reference to your application No _____, dated _____ for the land sub-division approval under Section 44 of The Maharashtra Regional and Town Planning Act, 1966, to carry out development work in respect of land bearing Revenue Survey No _____ Village _____ situated at Road /Street _____, Society _____, it is to inform you that land sub-division layout is hereby tentatively approved and recommended for demarcation, subject to the following conditions:

1. You will get the land sub-division layout demarcated on the site by the Land Records Department and submit the certified copy to that effect for final approval.
2. It shall be the responsibility of the owner to carry out all the development work including construction of roads, sewer lines, water supply lines, culverts, bridges, street lighting, etc. and hand it over to the Nagpur Improvement Trust after developing them to the satisfaction of the Chairman NIT.
3. If you wish that the Nagpur Improvement Trust has to carry out these development works, then you will have to deposit the estimated expenses to the Municipal Council in advance, as decided by the Chairman NIT.
4. You will have to submit an undertaking in respect of recreational open spaces as stipulated in Regulation.
5. This permission does not entitle you to develop the land which does not vest in you.

Signature of Owner

Name of the Owner (in block letters)

Letter No:

Date:

OCCUPANCY REJECTED

APPENDIX D-3**FORM FOR FINAL APPROVAL TO THE LAND SUB-DIVISION / LAYOUT**

To,

Sir,

With reference to your application No. _____, dated _____ for the land sub-division approval, under Section 44 of The Maharashtra Regional and Town Planning Act, 1966 read with Section _____ of the Nagpur Improvement Trust Act, 1936. to carry out development work in respect of land bearing Revenue Survey No _____, mauje _____ situated at Road /Street _____, Society _____, the land sub-division layout is finally approved as demarcated under Section 45 of the Maharashtra Regional & Town Planning Act, 1966, subject to the following conditions:

1.	It shall be the responsibility of the owner to carry out all the development work including construction of roads, sewer lines, water supply lines, culverts, bridges, street lighting, etc. and hand it over to the NIT/SPA after developing them to the satisfaction of the Chairman, NIT.
2.	If you wish that the NIT/SPA should carry out these development works, then you will have to deposit the estimated expenses to the Municipal Council in advance, as decided by the Chairman, NIT.
3.	As per the undertaking submitted by you in respect of recreational open space as stipulated in Regulation No.13.3, the said open space admeasuring ----- sq.m. stand vested in the name of plot holders of the layout or society of the plot holders and you have no right of ownership or interest in the said recreational open space.
4.	This permission does not entitle you to develop the land which does not vest in you.
5.	-----
6.	-----
7.	-----
8.	-----

Office No. ----- Office Stamp
----- Date : -----

Yours faithfully,

Letter No:
Date:
LAYOUT SANCTIONED
subject to conditions mentioned in the letter No.

Chairman, NIT

APPENDIX E-1**(Regulation No. 6.6.1)****FORM FOR REFUSAL OF BUILDING PERMIT AND COMMENCEMENT CERTIFICATE**

To,

Sir,

With reference to your application No _____ dated _____ for the grant of sanction for the development work / the erection of a building / execution of work in Building No _____ Plot No _____ situated at _____ Road / Street _____ village _____. I have inform you that the sanction has been refused, on the following grounds and also as mentioned on the reverse page.

- 1.
- 2.
- 3.
- 4.
- 5.
- 6.

Yours faithfully,

Building Engineer
NIT

Office Memo No. BE/

Office Stamp

Date:

OBJECTIONS:

1. Application form
2. Plans and Statement
3. Architect
4. Ownership
5. Plinth Area
6. Marginal Space
 - i) Front Margin

- ii) Side Margin's
- iii) Rear Margin
- 7. Floor Areas
 - a) Bed room; dining room, hall
 - b) Bath-room
 - c) Kitchen
 - d) Any other room
- 8. Ventilation
- 9. Detached / Semi-detached
- 10. Projection / Balcony
- 11. Stair Case / Stair Case Landing
- 12. Enclosure / Compound wall
- 13. Well
- 14. Porch
- 15. Canopy
- 16. Color code is not as per building regulations
- 17. Miscellaneous

Assistant Engineer II / Junior Engineer / Sectional Engineer

Building Section

NIT

Letter No:

Date:

REJECTED

APPENDIX E-2**FORM FOR REFUSAL OF LAND SUB-DIVISION / LAYOUT**

To,

Sir,

With reference to your application No. _____ dated _____ for the grant of sanction for the development work bearing Revenue Survey No._____, mauje_____, situated at Road/Street _____, Society_____, I regret to inform you that the proposal has been refused under Section 45 of the Maharashtra Regional and Town Planning Act, 1966, on the following grounds and also on grounds mentioned on the reverse page.

1. -----
2. -----
3. -----
4. -----
5. -----
6. -----

Office memo No. BE

Office Stamp

Date :

Yours faithfully,

The Chairman, NIT

OBJECTIONS

1. Application Form.
2. Plans and Statement.
- *3. Architect
4. Ownership.
5. Road width not as per the regulation.
6. Cognizance of D.P.Proposals
7. Required recreational open space
8. Required amenity space
9. Miscellaneous

Planning Assistant/ Assistant Town Planner/
Engineer, Building Section/Town Planning
Section, _____ NIT

Specimen of stamp to be affixed on the plan

APPENDIX F

[Regulation No. 7.3]

FORM FOR INTIMATION OF COMPLETION OF WORK UPTO PLINTH LEVEL

To,

The Chairman
Nagpur Improvement Trust
Nagpur

Sir,

The construction upto plinth / column upto plinth level has been completed in Building No _____ on / in Final Plot No _____ Village _____ situated at _____ Road / Street _____ in accordance with your permission No _____ dated _____ under my supervision and in accordance with the Sanctioned Plan.

Please check the completed work and permit me to proceed with the rest of the work.

Yours faithfully,

Signature of Architect
or Licensed Engineer /
Structural Engineer /
Supervisor

Name:
(In Block Letters)

Mobile No:

Address:

Date:

APPENDIX G

[Regulation No. 7.3]

FORM OF APPROVAL / DISAPPROVAL OF DEVELOPMENT WORK UPTO PLINTH LEVEL

To,

Sir,

Please refer to your intimation No _____ dated _____ regarding the completion of construction work upto plinth / column upto plinth level in Building No _____ on / in Plot No _____ Survey No _____ Village _____ situated at _____ Road / Street _____. You may / may not proceed with the further work as per sanctioned plan / as the construction upto plinth level does / does not confirm to the sanctioned plans.

Building Engineer
Nagpur Improvement Trust, Nagpur

Office No

Office Stamp

Date:

APPENDIX H**[Regulation No. 7.5]****FORM FOR APPLICATION FOR COMPLETION CERTIFICATE**

To,

The Building Engineer
NIT, Nagpur

Sir,

I hereby certify that the erection / re-erection or part / full development work in / on building / part Building No _____ on / in Plot No _____ Survey No _____ Village _____ situated at _____ Road / Street _____ according to the plans sanctioned, vide office Letter No _____ dated _____.

The work has been completed to my best satisfaction, the workmanship and all the materials (type and grade) have been strictly in accordance with general and detailed specifications. No provisions of the Act or the building regulations, no requisitions made, conditions prescribed or orders issued there under have been transgressed in the course of the work. I am enclosing three copies of the completion plans, one of which is cloth mounted. The building is fit for occupancy for which it has been erected/ re-erected or altered, constructed and enlarged.

I have to request you to arrange for the inspection and give permission for the occupation of the building.

License No. of Architect or Licensed Engineer
/ Structural Engineer / Supervisor

Signature of Architect or Licensed Engineer /
Structural Engineer / Supervisor

Address of Architect or Licensed Engineer/
Structural Engineer / Supervisor

Address of Architect or Licensed Engineer
/Structural Engineer / Supervisor

Name of Architect or Licensed
Engineer/Structural Engineer / Supervisor

Encl: As above

Date:

Signature of Owner:
Name of Owner:

APPENDIX I**[Regulation No. 7.6]****FORM FOR GRANTING OCCUPANCY CERTIFICATE**

To,

i) Owner

ii) Architect, Licensed Engineer
Structural Engineer / Supervisor

Sir,

The part / full development work / erection / re-erection / or alteration in of Building No _____ on / in Plot No _____ Village _____ situated at _____ Road / Street _____ Ward _____ completed under the supervision of _____ Architect, Licensed Engineer / Structural Engineer / Supervisor / License No. _____ may be occupied on the following conditions.

1.

2.

3.

4.

5.

A set of certified completion plans is returned herewith.

Office No:

Yours faithfully,

Office Stamp:

Date:

Building Engineer
Nagpur Improvement Trust, Nagpur

Occupancy Certificate No:

Date:

OCCUPANCY GRANTED

APPENDIX J**[Regulation No. 7.6]****FORM FOR REFUSAL OF OCCUPANCY CERTIFICATE**

To,

i) Owner

ii) Architect, Licensed Engineer
Structural Engineer / Supervisor

Sir,

The part / full development work / erection / re-erection / or alteration in of Building No _____ on / in Plot No _____ Survey No. _____ Village _____ situated at _____ Road / Street _____ completed under the supervision of _____ Architect, Licensed Engineer / Structural Engineer / Supervisor / License No. _____ is not allowed to be occupied on the following conditions.

1. The construction carried out by you does not confirm to the sanctioned plans
- 2.
- 3.
- 4.
- 5.

A set of certified completion plans is retained with the NIT and remaining sets are regretfully returned herewith.

Office No:

Yours faithfully,

Office Stamp:

Date:

Building Engineer
Nagpur Improvement Trust, Nagpur

Letter No:

Date:

OCCUPANCY REJECTED

APPENDIX K**[Regulation No. 7.7]****FORM OF INDEMNITY FOR PART OCCUPANCY CERTIFICATE****(ON STAMP PAPER)***

To,

Nagpur Improvement Trust, Nagpur

Subject:

Sir,

I thank you for letting me occupy a portion of the above building before acceptance of the Completion Certificate of the whole building for the plans approved in letter dated _____. Hereby, I indemnify NIT against any risk, damage and danger which may occur to occupants and users of the said portion of the building and also undertake to take necessary security measures for their safety. This undertaking will be binding on me /us, our heirs, administrators and our assignees.

Yours faithfully,

Signature of Owner

Name of the Owner (in block letters)

Witness:

(Signature and name in block letters)

Address:

Date:

** Of such value as decided by the Chairman.*

APPENDIX L
Building Line and Control Line
[See Regulation 11.5]

S. No.	Type of Road	Building Line		Control Line (For industries, godowns, cinema halls, markets and such other crowded public places)	
		Urban areas ¹	Rural areas ²	Urban areas ¹	Rural areas ²
	(1)	(2)	(3)	(4)	(5)
1	Expressway/ Outer Ring Road	60m from centre line or 15m from RoW, whichever is greater	60m from centre line or 15m from edge of ROW, whichever is greater	60m from centre line or 15m from edge of ROW, whichever is greater	60m from centre line or 15m from edge of ROW, whichever is greater
2	National Highway ³	3 to 6m from RoW	40m from centre line	37m from centre line	75m from centre line
3	State Highway, Major State Highway ³	20m from centre line or 4.5m from RoW, whichever is greater	40m from centre line	37m from centre line	50m from centre line
4	Major District Road ³	15m from centre line or 4.5m from RoW, whichever is greater	30m from centre line	37m from centre line	47m from centre line
5	Other District Road	12m from centre line or 4.5m from RoW, whichever is greater	15m from centre line	18m from centre line	30m from centre line
6	Village Road	10m from centre line or 3m from RoW, whichever is greater	12m from centre line	14m from centre line	25m from centre line

*as amended in the relevant Act from time to time.

Urban areas¹: Land Use Zones Residential R1, R2, R3, R4, Commercial, Industrial, Public Semi-Public, Open Space and Recreation, Public Utility, Transportation

Rural areas²: Agriculture A1 and A2, Forests, Mines and Quarries

In case of National Highways, State Highways and Major State Highways and Major District Roads³: 12m wide service road to be provided on either side of the right of way.

APPENDIX M

PLASTIC WASTE (MANAGEMENT AND HANDLING) RULES 2011

All developments shall conform to the Plastic Waste (Management and Handling) (Amendment) Rules, 2011 by the Ministry of Environment and Forests, Government of India vide number S.O. 782(E), dated the 21st April, 2011 in the Gazette of India and all subsequent revisions thereof.

The requirements of the aforementioned notification are given below for reference.

1) Application

The provisions of regulations 4 and 7 shall not apply to the manufacture of carry bags exclusively for export purposes, against an order for export, received by the owner or occupier of the concerned manufacturing unit. This exemption does not apply to any surplus or rejects, left over and the like.

2) Definitions: - In these rules, unless the context otherwise requires:-

- a) **“Act”** means the Environment (Protection) Act, 1986 (29 of 1986);
- b) **“Carry Bags”** mean bags made from any plastic material, used for the purpose of carrying or dispensing commodities but do not include bags that constitute or form an integral part of the packaging in which goods are sealed prior to use;
- c) **“Commodities”** mean articles; including but not limited to vegetables, fruits, pharmaceuticals, food grains and the like;
- d) **“Compostable plastics”** mean plastic that undergoes degradation by biological processes during composting to yield CO₂, water, inorganic compounds and biomass at a rate consistent with other known compostable materials and does not leave visible, distinguishable or toxic residue;
- e) **“Consent”** means the consent to establish and operate from the concerned State Pollution Control Board or Pollution Control Committee granted under the Water (Prevention and Control of Pollution) Act, 1974 (6 of 1974), and the Air (Prevention and Control of Pollution) Act, 1981 (14 of 1981);
- f) **“Disintegration”** means the physical breakdown of a material into very small fragments;
- g) **“Extended producer's responsibility (EPR)”** means the responsibility of a manufacturer of plastic carry bags, and multilayered plastic pouches and sachets and the brand owners using such carry bags and multilayered plastic pouches and sachets for the environmentally sound management of the product until the end of its life;
- h) **“Food-stuffs”** mean ready to eat food products, fast food, processed or cooked food in liquid, powder, solid or semi-solid form;
- i) **“Manufacturer”** means any person who manufactures plastic carry bags or multilayered plastic pouches or sachets or like;
- j) **“Municipal authority”** means municipal corporation, municipality, magar palika, nagar nigam, nagar panchayat, municipal council including notified area committee (NAC) or any other local body constituted under the relevant statutes and, where the management and handling of municipal solid waste is entrusted to such agency;
- k) **“Multilayered plastics”** means a pouch or sachet having at least one layer of plastic in combination with one or more layers of packaging material such as paper, paper board, metalised layers or aluminum foil, either in the form of a laminate or co-extruded structure;
- l) **“Plastic”** means material which contains as an essential ingredient a high polymer and which at some stage in its processing into finished products can be shaped by flow;
- m) **“Plastic waste”** means any plastic product such as carry bags, pouches or multilayered plastic pouch or sachet etc, which have been discarded after use or after their intended life is over;

- n) "Registration" means registration with the State Pollution Control Board or Pollution Control Committee concerned, as the case may be, of units manufacturing plastic carry bags, multilayered plastic pouch or sachet or recycling of plastic waste;
- o) "Virgin plastic" means plastic material which has not been subjected to use earlier and has also not been blended with scrap or waste;
- p) "Waste management" means the scientific reduction, re-use, recovery, recycling, composting or disposal of plastic waste;
- q) "Waste pickers" mean individuals or groups of individuals engaged in the collection of plastic waste.

3) Prescribed Authority

The prescribed Authority means the Authority-

- a) For enforcement of the provisions of these rules related to registration manufactures and recycling shall be the Maharashtra Pollution Control Board.
- b) For enforcement of the provisions of these rules relating to the use, collection, segregation, transportation and disposal of plastic waste, the prescribed authority shall be the NIT/ SPA.

4) Conditions

During the course of manufacture, stocking, distribution, sale and use of carry bags and sachets, the following conditions shall be fulfilled, namely:-

- a) Carry bags shall either be in natural shade (colourless) which is without any added pigments or made using only those pigments and colourants which are in conformity with Indian Standard: IS 9833: 1981 titled as 'List of Pigments and Colourants for Use in Plastics in Contact with Foodstuffs, Pharmaceuticals and Drinking Water', as amended from time to time;
- b) No person shall use carry bags made of recycled plastics or compostable plastics for storing, carrying, dispensing or packaging food stuffs;
- c) No person shall manufacture, stock, distribute or sell any carry bag made of virgin or recycled or compostable plastic, which is less than 40 microns in thickness;
- d) Sachets using plastic material shall not be used for storing, packing or selling gutkha, tobacco and pan masala;
- e) Recycled carry bags shall conform to the Indian Standard: IS 14534:1998 titled as 'Guidelines for Recycling of Plastics', as amended from time to time;
- f) Carry bags made from compostable plastics shall conform to the Indian Standard: IS/ISO 17088:2008 titled as 'Specifications for Compostable Plastics', as amended from time to time.
- g) Plastic material, in any form, shall not be used in any package for packing gutkha, pan masala and tobacco in all forms;

5) Plastic Waste Management

The plastic waste management shall be as under:-

- a) Recycling, recovery or disposal of plastic waste shall be carried out as per the rules, regulations and standards stipulated by the Central Government from time to time;
- b) Recycling of plastics shall be carried out in accordance with the Indian Standard : ISI 4534: 1998 titled as Guidelines for Recycling of Plastics, as amended from time to time;
- c) The prescribed authority shall be responsible for setting up, operationalisation and co-ordination of the waste management system and for performing the associated functions, namely:- (i) to ensure safe collection, storage, segregation, transportation, processing and disposal of plastic waste; (ii) to ensure that no damage is caused to the environment during this process; (iii) to ensure setting up of collection centers for plastic waste involving manufacturers; (iv) to ensure its

channelisation to recyclers; (v) to create awareness among all stakeholders about their responsibilities; (vi) to engage agencies or groups working in waste management including waste pickers, and (vii) to ensure that open burning of plastic waste is not permitted;

- d) The responsibility for setting up collection systems for plastic waste shall be of the prescribed authority concerned and the said prescribed authority may, for this purpose, seek the assistance of manufacturers of plastic carry bags, multilayered plastic pouches or sachets or of brand owners using such products;
- e) The prescribed authority may work out the modalities of a mechanism based on extended producer's responsibility involving such manufacturers, registered within its jurisdiction and brand owners with registered offices within its jurisdiction either individually or collectively, as feasible or set up such collection systems through its own agencies;
- f) Recyclers shall ensure that recycling facilities are in accordance with the Indian Standard: IS 14534:1998 titled as Guidelines for Recycling of Plastics and in compliance with the rules under the Environment (Protection) Act, 1986, as amended from time to time;
- g) The concerned prescribed authority shall ensure that the residues generated from recycling processes are disposed of in compliance with Schedule II (Management of Municipal Solid Wastes) and Schedule III (Specifications for Landfill Sites) of the Municipal Solid Wastes (Management and Handling) Rules, 2000 made under the Environment (Protection) Act, 1986, as amended from time to time;
- h) The prescribed authority shall incorporate the said rules in the relevant bye laws;
- i) The prescribed authority shall encourage the use of plastic waste by adopting suitable technology such as in road construction, co-incineration etc. The prescribed authority or the operator intending to use such technology shall ensure the compliance with the prescribed standards including pollution control norms prescribed by the competent authority in this regard.

6) Protocols for Compostable Plastic Materials

Determination of the degree of degradability and degree of disintegration of plastic material shall be as per the protocols of the Indian Standards in the Appendix M.

7) Marking or Labelling

- a) Each plastic carry bag and multi layered packaging shall have the following information printed in English or in local language, namely:-
 - i) name, registration number of the manufacturer and thickness in case of carry bag;
 - ii) name and registration number of the manufacturer in case of multilayered plastic pouch or sachet.

- b) Each recycled carry bag shall bear a label or a mark "recycled" as shown below and shall conform to the Indian Standard: IS 14534: 1998 titled as Guidelines for Recycling of Plastics, as amended from time to time;



PET: Polyethylene terephthalate
 HDPE: High density polyethylene
 V: Vinyl (PVC)
 LDPE: Low density polyethylene
 PP: Polypropylene
 PS: Polystyrene
 Other: all other resins and multi-materials like ABS (Acrylonitrile butadiene styrene), PPO (Polyphenylene oxide), PC (Polycarbonate), PBT (Polybutylene terephthalate) etc.,

- c) Each carry bag made from compostable plastics shall bear a label "compostable" and shall conform to the Indian Standard : JS/ISO 17088:2008 titled as Specifications for Compostable Plastics;
- d) Retailers shall ensure that plastic carry bags and multi layered packaging sold by them are properly labeled, as per stipulations under these rules.

8) Registration of Manufacturers and Recyclers

- a) Any person manufacturing or proposing to manufacture carry bags and multilayered plastics shall apply to the Maharashtra Pollution Control Board (MPCB) concerned for the grant of registration or for the renewal of registration for the manufacturing unit using Form I of the Plastic Waste (Management) and Handling Rules;
- b) Any person recycling or proposing to recycle carry bags or multi layered plastics or any plastic waste shall apply to the MPCB for grant of registration or renewal of registration for the recycling unit using Form 2 appended to these rules;
- c) No person shall manufacture plastic carry bags, multilayered plastic pouch or sachet or recycle plastic carry bags or multilayered plastic pouch or sachet or any plastic waste without obtaining registration certificate from the MPCB, prior to the commencement of its production;
- d) The MPCB shall not issue or renew a registration for manufacturing or recycling units unless the unit possesses a valid consent under the Water (Prevention and Control of Pollution) Act, 1974 (6 of 1974) and the Air (Prevention and Control of Pollution) Act, 1981 (14 of 1981) and certificate of registration issued by the District Industries Centre or any other government agency authorised in this regard;
- i) The MPCB shall take a decision on the grant of registration within a period of ninety days of receipt of an application which shall complete in all respects:
 Provided that the registration may be deemed to have been granted in case no final decision is communicated to the applicant by the MPCB within a period of ninety days from the date of an application complete in all respects;
 - ii) the manufacturer who has already registered for manufacturing under the Recycled Plastics Manufacture and Usage (Amendment) Rules, 2003 shall not be required to register under these rules and whereas others shall have to register within the period of ninety days from the date of coming into force of these rules
- e) The registration granted under this rule shall be valid for a period of three years, unless revoked, suspended or cancelled; and registration shall not be revoked, suspended or cancelled without providing the manufacturer an opportunity for a hearing;

- f) Every application for renewal of registration shall be made at least ninety days before the expiry of the validity of the registration certificate.

9) Explicit pricing of Carry Bags

No carry bags shall be made available free of cost by retailers to consumers. The prescribed authority may by notification determine the minimum price for carry bags depending upon their quality and size which covers their material and waste management costs in order to encourage their re-use so as to minimize plastic waste generation.

10) State Level Advisory Body

- a) There shall be a State Level Advisory Body to monitor the implementation of these Rules. The State Level Advisory Body shall consist of the following persons, namely:

Table No- 36

1	The Secretary, Department of Urban Development	Chairman
2	One expert from State Department of Environment	Member
3	One expert from State Pollution Control Board or Pollution Control Committee	Member
4	One expert from Urban Local Body	Member
5	One expert from Non-Governmental Organisation	Member
6	One expert from the field of Industry	Member
7	One expert from the field of academic institution	Member

The State Level Advisory Body shall meet at least once in a year and may invite experts, if it considers necessary.

11) Annual Reports

- b) Each State Pollution Control Board or Pollution Control Committee shall prepare and submit the annual report to the Central Pollution Control Board on the implementation of these rules by the 30th day of September of each year;
- c) The Central Pollution Control Board shall prepare a consolidated annual report on the use and management of plastic waste and forward it to the central government along with its recommendations before the 30th day of December each year.

Protocols for compostable Plastic Materials

1.	IS/ISO 14851: 1999 Determination of the ultimate aerobic biodegradability of plastic materials in an aqueous medium-Method by measuring the oxygen demand in a closed Respirometer
2.	IS/ISO 14852: 1999 Determination of the ultimate aerobic biodegradability of plastic materials in an aqueous medium-Method_ by analysis of evolved carbon dioxide
3.	IS/ISO 14853: 2005 Plastics- Determination of the ultimate anaerobic biodegradation of plastic materials in an aqueous system-Method by measurement of biogas production
4.	IS/ISO 14855-1: 2005 Determination of the ultimate aerobic biodegradability of plastic materials under controlled composting conditions-Method by analysis of evolved carbon dioxide (Part- I General method)
5.	IS/ISO 14855-2: 2007 Determination of the ultimate aerobic biodegradability of plastic materials under controlled composting conditions-Method by analysis of evolved carbon dioxide (Part-2: Gravimetric measurement of carbon dioxide evolved in a laboratory- scale test)
6.	IS/ISO 15985: 2004 Plastics- Determination of the ultimate anaerobic biodegradation and disintegration under high-solids anaerobic digestion conditions- Methods by analysis of released biogas

7.	IS/ISO 16929: 2002 Plastics- Determination of degree of disintegration of plastic materials under defined composting conditions in a pilot - scale test
8.	IS/ISO 17556: 2003 Plastics- Determination of ultimate aerobic biodegradability in soil by measuring the oxygen demand in a Respirometer or the amount of carbon dioxide evolved
9.	IS/ISO.20200:2004 Plastics- Determination of degree of disintegration of plastic materials under simulated composting conditions in a laboratory - scale test

“FORM – I”**(Refer rule 8 above)**

**APPLICATION FOR REGISTRATION OF A UNIT FOR THE
MANUFACTURING OF PLASTIC CARRY BAGS, MULTILAYERED PLASTIC POUCH
OR SACHET**

From:

.....

..... (Name and full address of the occupier)

To

The Member Secretary,
Maharashtra Pollution Control Board

.....

Sir,

I/We hereby apply for registration under rule 9 of the Plastic Waste (Management and Handling) Rules, 2011

PART - A GENERAL		
1. (a)	Name and location of the unit	
(b)	Address of the unit	
(c)	Registration required for manufacturing of : i. Carry bags ii. Multilayered plastic pouch or sachet	
(d)	Manufacturing capacity	
(e)	In case of renewal, previous registration number and date of registration	
2.	Is the unit registered with the District Industries Centre (DIC) /Development Commissioner, Small Scale Industries (DCSSI) of the State Government/Union territory? If yes, attach a copy.	
3. (a)	Total capital invested on the project	
(b)	Year of commencement of production	
4. (a)	List and quantum of products and by-products	
(b)	List and quantum of raw materials used	
5.	Furnish a flow diagram of manufacturing process showing input and output in terms of products and waste generated including for captive power generation and water.	
6.	Thickness of carry bags to be manufactured	
7	Status of compliance with these rules	
PART - B PERTAINING TO LIQUID EFFLUENT AND GASEOUS EMISSIONS		
8. (a)	Does the unit have a valid consent under the Water (Prevention and control of Pollution) Act, 1974 (6 of 1974)? If yes, attach a copy	
(b)	Does the unit have a valid consent under the Air (Prevention and Control of Pollution) Act, 1981 (14 of 1981)? If yes , attach a copy	

	PART - C	
	PERTAINING TO WASTE	
9.	Solid Wastes : (a) Total quantum of waste generated (b) Mode of storage within the plant (c) Provision made for disposal of wastes	
		Name and Signature
		Designation
Date :		
Place :		

Note: The principal rules were published in the Gazette of India, Extraordinary vide notification no SO 249 (E), dated the 4th February, 2011.

FORM - 2
(Refer Rule 8 above)

**APPLICATION FORM FOR REGISTRATION OF FACILITIES POSSESSING
ENVIRONMENTALLY SOUND MANAGEMENT PRACTICES FOR RECYCLING PLASTIC
WASTE**

1.	Name and Address of the unit		
2.	Contact person with designation, Tel./Fax/email		
3.	Date Commissioned		
4.	No. of workers (including contract labour)		
5.	Consents Validity a. Water (Prevention & Control of Pollution) Act, 1974; Valid up to _____ b. Air (Prevention & Control of Pollution) Act, 1981; Valid up to _____		
6.	Authorization validity		
7.	Manufacturing Process Please attach a flow diagram of the manufacturing process flow diagram for each product.		
8.	Products and installed capacity of production (MTA)		Installed capacity
9.	Products manufactured during the last three years (as applicable)	Year	Product Quantity
10.	Raw material consumed during the last three years (as applicable)	Year	Product Quantity
11.	Water consumption m ³ /day	Industrial _____ m ³ /day Domestic _____ m ³ /day	
	Date until which water cess has been paid (if applicable)		
	Waste water generation as per consent _____ m ³ /day	Actual waste water generated (average of last 3 months) Industrial _____ m ³ /day Domestic _____ m ³ /day	
	Waste water treatment (provide flow Industrial diagram of the treatment scheme)	Industrial _____ m ³ /day Domestic _____ m ³ /day	
	Waste water discharge	Quantity _____ m ³ /day Location _____ Analysis of treated waste water for pH, BOD, COD, SS, O&G, any other parameter stipulated by SPC B/PCC (attach details)	
12.	Air Pollution Control		
	(a) Provide a flow diagram for emission control system(s) installed for each processing unit, utilities etc.		
	(b) Details for facilities provided for control of fugitive emissions due to material handling, process, utilities etc.		
	(c) Fuel consumption	Fuel	Qty per day/month
		(i)	
		(ii)	
(d) Stack emission monitoring	Stack attached to	Emission (SPM, SO ₂ , NO _x , etc.) mg/Nm ³	

		(I)			
		(ii)			
	(e) Ambient air quality	Location Results $\mu\text{g}/\text{m}^3$	Parameters SPM, SO ₂ , NO _x , etc.) $\mu\text{g}/\text{m}^3$		
		(i)			
		(ii)			
13.	Waste Management:	S. No.	Type	Category	Qty.
	(a) Waste generation in processing plastic-waste	(I)			
		(ii)			
		(iii)			
	(b) Waste Collection and transportation (attach details)				
	(c) Waste Disposal details	S. No.	Type	Category	Qty
		(I)			
		(II)			
	(d) Provide details of the disposal facility, whether the facility is authorized by SPCB/SPCC				
	(e) Please attach analysis, report of characterization of waste generated (including leachate test if applicable)				
14.	Details of plastic waste proposed to be acquired through sale, auction, contract or import, as the case may be, for use as raw material	(i) Name			
		(ii) Quantity required /year			
15.	Occupational safety and health aspects	Please provide details of facilities			
	Remarks:				
	Whether the unit has adequate pollution control systems/ equipment to meet the standards of emission/effluent.	If Yes, please furnish details			
	Whether unit is in compliance with conditions laid down in the said rules.	Yes/No			
16.	Whether conditions exist or are likely to exist of the material being handled/ processed posing adverse immediate or delayed impacts on the environment.	Yes/No			
	Whether conditions exist (or are likely to exist) of the material being handled/processed by any means capable of yielding another material (e.g. leachate) which may possess eco-toxicity	Yes/No			
17.	Any other relevant information				
18.	List of enclosures as per rule				
Name and Signature Designation Date : Place :					



Nagpur Improvement Trust



Station Road, Kingsway, Sadar, Nagpur 440001